

SRI LANKA:

Returns in the east but new displacements in the north

A profile of the internal displacement situation

27 August, 2008

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Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

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OVERVIEW

Returns in the east but new displacements in the north (August 2008)

Background

The 25-year-old civil war in Sri Lanka, stemming from historical differences between the Sinhalese majority and the Tamil minority, has led to more than 70,000 deaths and the displacement of over a million people, almost half of whom continue to be internally displaced persons (IDPs) today.

The armed conflict, which began in 1983 between government forces and the rebel Liberation Tigers of Tamil Eelam (LTTE), had created large numbers of IDPs and refugees by 2001. The following year the two sides arrived at a ceasefire that was facilitated by Norway. Formal peace talks between the government and the LTTE were suspended in April 2003 after the latter withdrew from negotiations citing a lack of progress in improvements in living conditions in Tamil-dominated areas in the north and east. However, the ceasefire continued to hold in 2004 and access to the conflict-affected areas was maintained (UNHCR, 2005, p.247).

A return to conflict began soon after Mahinda Rajapaksa's election as president in November 2005. Almost immediately the LTTE, under the guise of independent "people's militias," began attacks on security forces with the clear intention of provoking war. Full-scale fighting began in the Eastern Province districts of Batticaloa and Trincomalee in July 2006, after the army's efforts to reopen an irrigation canal closed by the LTTE sparked a counter-attack, leading to a major campaign to retake large areas in the east that were under LTTE control (ICG, 20 February 2008, p.2).

After almost a year of fighting, in which hundreds of thousands of civilians were displaced and tens of thousands of homes damaged, destroyed and looted, the government declared the entire Eastern Province free from LTTE control in July 2007 (ICG, 20 February 2008, p.2). Most of those displaced during the year of intense combat were from the Tamil and Muslim minority groups. In March 2007, the government started a massive return programme in the east to send displaced persons to their areas of origin. Human rights organisations and aid agencies said that some of the returns were coerced with IDPs being taken forcefully by security forces to the areas of return (BBC News, 16 March 2007).

Amid escalating violence, the government announced it would be withdrawing from its ceasefire with the Tamil Tigers in January 2008, formalising a return of the conflict (The Guardian, 2 January 2008). In light of the government's decision, the Sri Lanka Monitoring Mission, set up to monitor the ceasefire and its violations, terminated its operational activities (The Hindu, 6 January 2008). The scale of human rights violations in Sri Lanka has drastically increased since the abrogation of the ceasefire agreement and the conflict has involved intentional targeting and indiscriminate attacks on civilians (AI, June 2008, p.3).

A pro-government Tamil armed group, the Karuna faction, founded by former LTTE commander Colonel Karuna, who broke away from the Tigers in 2004, developed a political arm known as the Tamil Makkal Viduthalai Puligal (TMVP). In March 2008, the TMVP won local council elections in Batticaloa district while President Rajapaksa's party, the United People's Freedom Alliance, which campaigned with the TMVP, took control of the municipal council. An alliance of the parties won local elections in the Eastern Province in May (Bloomberg news, 4 July 2008). The leader of

the TMVP, Sivanesanathurai Chandrakanthan, was appointed Chief Minister of the Eastern Province following the elections.

In northern Sri Lanka, fighting has intensified since the end of 2007 as the military has sought to retake areas that remain a stronghold for the LTTE (ICG, 20 February 2008, p.2). The conflict has been accompanied by civilian casualties and the new displacement of thousands of people from Mannar and Jaffna districts (ICRC, 20 November 2007). In parts of the LTTE-controlled Vanni in the north, civilians are facing a constant threat of aerial attacks by the government forces and LTTE restrictions on their movement. They also remain vulnerable to forcible conscription by the LTTE (UTHR, 8 July 2008, p.2). These violations are leading to displacement within the Vanni and to areas outside it, including increasingly to India.

In June 2008, the commander of the army announced that the LTTE has lost the capability of fighting as a conventional army (IHT, 30 June 2008). However, despite the intense army assault, and the loss of much of its foreign backing, the LTTE has not surrendered (Economist, 3 July 2008) and the conflict and displacement persist in parts of the country.

Numbers and dynamics of displacement

At the end of November 2007, UN agencies estimated that around 185,000 people were still displaced in the north and east of Sri Lanka due to the fighting of 2006 and 2007, down from a high of 308,000 IDPs recorded in March 2007. In addition over 312,000 people were still displaced from before the 2002 ceasefire (CHAP February 2008, p.11).

The government estimated at the end of December 2007 that a total of 577,000 people remained displaced due to the conflict and the 2004 tsunami. By May 2008, the IDP caseload was determined to have been reduced to 481,000, including approximately 26,000 tsunami IDPs. Thus 455,000 were displaced by the conflict, including around 182,000 from the 2006-2007 conflict and 272,000 from the pre-2002 ceasefire phase (CHAP July 2008, p.4). After May 2008, intense fighting in the north displaced between 55,000 and 75,000 people by August (AP, 15 August 2008), bringing the total number of conflict-displaced in Sri Lanka to over 500,000.

Six IDP situations have been identified in the country by the Special Representative of the Secretary General on IDPs. The first is of returns in eastern Sri Lanka's Trincomalee and Batticaloa districts, where between April 2006 and March 2007, more than 220,000 people had to flee their homes due to military operations. As a result of government policy since August 2006, approximately 170,000 IDPs have returned to their divisions of origin.

A second category is of those who have remained displaced since 2006-2007 in the eastern districts of Sri Lanka as their areas of origin have been designated High Security Zones or await demining, or because their houses and villages have been occupied by security forces. Most of these IDPs are in camps or with host families in Batticaloa district, while others are in transit camps in Trincomalee district.

The third situation involves more recent displacement in the Northern Province (SRSG, May 2008, p.7). From September 2007, hostilities between government forces and the LTTE concentrated in Mannar and Jaffna districts in the north forced 22,000 persons to flee their homes (ICRC, 20 November 2007).

Another category is of displacement inside the LTTE-controlled Vanni area (SRSG, May 2008, p.8) where recent estimates indicate the presence of over 130,000 IDPs. The number of IDPs in the north is only likely to increase, with many of the communities exposed to insecurity and fighting facing multiple displacements. With the Sri Lankan army advancing into the Vanni and the

LTTE restricting movement out of its area of control, the civilian population is increasingly being pushed into the centre, directly in the heart of the active conflict zone (NRC Sri Lanka, July 2008).

People who have been living in protracted displacement for up to 17 years in Puttalam, Jaffna, Mannar and Vavuniya districts constitute another category. Over 62,000 displaced Muslims from 15,400 families have been living in Puttalam since 1990 (IRIN, 27 September 2007). In Jaffna, 57,000 people remain displaced, often because their homes are within High Security Zones (SRSG, May 2008, p.8). At present there are 18 High Security Zones covering 18 per cent of the land area in Jaffna (CPA, May 2008, p.8). The zones are defined as areas near military camps, barracks or checkpoints and civilians cannot enter them. Some observers claim the zones are a disproportionate response to the security threat and unfairly affect Tamil agricultural lands (USG, 11 March 2008, p.13).

The final IDP situation is of those displaced by natural disasters, particularly the 2004 Tsunami (SRSG, May 2008, p.8).

Besides those who have fled their homes within Sri Lanka, over 21,000 Sri Lankan refugees making up over 7,000 families arrived in India's Tamil Nadu state from January 2006 to May 2008, including over 1,200 people since January 2008 (CHAP, July 2008, p.4). This figure is in addition to approximately 65,000 Sri Lankan refugees who have lived in 133 camps in Tamil Nadu since fleeing there in the 1980s and 1990s (FMR 20, May 2004, p.31).

Restricted humanitarian access

In the last two years, humanitarian agencies in Sri Lanka have been subjected to a series of restrictions that have obstructed and hampered their ability to access areas having IDPs, returnees and other vulnerable populations. Access has largely been restricted on security grounds by various armed actors and this has been particularly the case in areas under LTTE control. In LTTE-controlled Vanni, the government has granted entry to only a few agencies. With the commencement of hostilities, just a handful of agencies are willing to operate, and only a fraction of them are allowed to do so by the Sri Lankan army and the LTTE (CPA, December 2007, p.17).

In the north, the deteriorating security situation has made it harder for aid agencies to continue their work. In mid-December 2007, the LTTE ordered all international agencies operating in areas under its control in Mullaithivu district and parts of Kilinochchi district to cease operations and move staff out. The LTTE informed aid workers that they could not guarantee the safety of international staff based in Mullaithivu. Following this announcement the World Food Programme (WFP) moved out and the agency was unable to deliver food to 32,000 IDPs in Mullaithivu for a period of three weeks (IRIN, 9 January 2008).

Also in December 2007, the ICRC announced that the killings of several aid workers in the year had put humanitarian operations at risk. According to the agency, aid workers were facing greater difficulties and dangers in their efforts to reach displaced persons in Sri Lanka (VOA, 26 December 2007).

Access to LTTE-controlled areas, where many of the displaced are in need of humanitarian assistance, continues to be very complicated. Restrictions on goods such as fuel, cement, iron and steel that could strengthen LTTE capabilities are currently in place (CHAP, February 2008, p.13). These and other restrictions placed by the government have severely restricted humanitarian aid to areas under LTTE control, leaving an estimated 130,000 or more displaced people with inadequate relief, including water and sanitation facilities. Meanwhile, the LTTE

prevents civilians from leaving areas under its control, so they cannot seek safety in other parts of the country (HRW, 2 July 2008).

The A-9 highway, the only land link between the Jaffna peninsula in the north and the rest of the island continues to remain closed as about 100 kilometres of the highway runs through LTTE-controlled areas. Jaffna's civilian population of 632,000, which includes IDPs, is dependent on a limited number of ships and aircrafts for commodities and medicines. Compared to 2006, when the A-9 was first closed, the situation on the peninsula has improved. However, civilian road users are subject to the movements of military convoys and the High Security Zones in Jaffna also impact the mobility of aid agencies (IRIN, 10 March 2008).

Several restrictions on humanitarian organisations were initially in place in areas of return in the east. In some cases, no international or local agency was given authorisation to accompany IDPs back to their areas of origin and agencies accused the government of using blanket security to deny monitoring of the return process (CPA, INFORM, IMARD, LST, June 2007, p.5-6).

According to the Consortium of Humanitarian Agencies, aid organisations have reported better access in the east since the latter half of 2007, and have been able to work effectively in the resettlement communities within government guidelines. These guidelines require agencies to submit project proposals to a government agent who in turn refers them to the regional military headquarters. Agencies can begin work only after approval by both entities. Towards the end of 2007, at least 20 UN agencies and international and local NGOs had this access (IRIN, 21 November 2007).

Restrictions on access to resettlement areas are more severe for agencies working on protection issues. Access also remains a challenge to many of the not yet resettled areas in Batticaloa District, including Kiran and Chenkalady DS Divisions, due to ongoing de-mining work and poor infrastructure (NRC Sri Lanka, July 2008).

Besides access restrictions, humanitarian actors have faced a political backlash in Sri Lanka fuelled by a nationalist fear of international intervention and public suspicion of NGOs (CPA, December 2007, p.20). Since 2006, humanitarian workers have been increasingly targeted by armed actors. Tamil male humanitarian workers between the ages of 21 and 40 have been the most vulnerable. In 2006 and 2007, at least one person engaged in humanitarian service was killed or disappeared every month, with the exception of March and October 2006 (LST, 7 March 2008, p.50).

The massacre of 17 aid workers of the French NGO Action Contre La Faim in August 2006 in eastern Sri Lanka was one of the serious human rights violation cases scheduled to be investigated by a national Commission of Inquiry. The Commission was being observed by an International Independent Group of Eminent Persons (IIGEP). In March 2008, the IIGEP terminated its observation mission noting a variety of problems with the work of the Commission (IIGEP, 15 April 2008, p.1-2). In July 2008, the French government sent a magistrate to Sri Lanka to investigate the Action Contre La Faim massacre. Based on findings from the magistrate's investigation, discussions are to be held between France and its international allies on the possibility of holding an international inquiry into the massacre (Daily Mirror, 30 July 2008).

Various organisations have called for the establishment of an independent human rights monitoring mechanism in Sri Lanka, in cooperation with the office of the UN High Commissioner for Human Rights, to investigate abuses by all parties. At the same time there have been strong objections within Sri Lanka to any form of international human rights monitoring as an infringement of the country's sovereignty which brings in members of the international community who may have vested interests that are detrimental to Sri Lanka's national interests (UPI Asia, 6 August 2008).

Humanitarian and protection concerns of the displaced

Displacement and bans on freedom of movement have made people increasingly reliant on relief aid. Approximately half of the population of the Vanni is dependent on food assistance, as are people in parts of Vavuniya, Mannar and Jaffna. With fighting limiting access to food and the standards of living declining, malnutrition rates have increased, with 2003 rates in the north and east almost double the national average (CHAP, February 2008, p.13). Single women and widows, in particular, have often been at a disadvantage with regard to accessing food aid (SAHR, 8 August 2007, p.8). In Batticaloa district the government has de-registered a number of displaced families who have chosen not to return to their village of origin. This has prevented them from receiving food assistance and resulted in other IDPs seeing a drop in their rations as they share their allocation with de-registered families (NRC Sri Lanka, July 2008).

Significant new displacements in 2007 have also led to increased needs for shelter locations with adequate water, toilet and sanitation facilities (CHAP, February 2008, p.13). The arrival of large numbers of displaced has stretched sanitary and health care facilities, as well as food supplies in host communities and IDP camps. In some clinics, one doctor must see on average 150 IDP patients per day compared to the 50 patients per day recommended by the internationally accepted SPHERE standards (Watchlist, April 2008, p.11). The stress of the conflict on civilians has led to high levels of mental illness and substance abuse in the north and east. This is particularly the case in Jaffna where suicide rates are among the highest in the world (CHAP, February 2008, p.13).

The conflict has had a profound impact on the lives and development of children, with an estimated 300,000 children affected (CHAP, February 2008, p.13). During the large-scale displacement from April 2006 onwards, many schools were forced to close as they had been turned into shelters for displaced persons and the education of more than 135,000 children was impacted. In an urgent bid to enable displaced children to acquire education, UN agencies such as UNICEF devised a two-shift school day at temporary buildings where local children could attend school in the morning and the displaced in the afternoon (IRIN, 21 May 2007). Exceptionally high student dropout and absenteeism rates have been prevalent in the north and east, with dropout rates highest among displaced children (Watchlist, April 2008, p.21).

IDP families and communities have faced various forms of insecurity. Displaced and non-displaced persons living in the LTTE-controlled Vanni are at risk of forcible recruitment. LTTE press gangs often raid homes before dawn, carrying details about the residents and looking for those who have reached the conscription age of 17. Families are also pressured to join the service of the LTTE as family units or to pay an exemption tax (UTHR, July 8, 2008, p.3). People are trapped as the LTTE does not allow the free movement of civilians in and out of the Vanni.

If people do manage to flee LTTE-controlled areas, their security is not guaranteed and persons displaced from the Vanni can be viewed as LTTE collaborators by the security forces and paramilitaries (CPA, December 2007, p.7). Since March 2008, the government has detained almost 700 civilians displaced by fighting from the LTTE-controlled areas at newly established camps in Kalimoddai and Sirukandhal in Mannar district. The army has imposed severe restrictions on the freedom of movement of the IDPs, and instituted a daily pass system that limits to 30 the number of people who can leave the camp each day, and only if a family member remains behind to guarantee the detainees' return in the evening. The authorities maintain that the camp detention is a security measure to protect the IDPs from LTTE reprisals (HRW, 2 July 2008).

At IDP sites and welfare centres, one of the biggest protection concerns has been the forcible recruitment of children by armed groups. Consequently in some camps, parents stay up at night in order to ensure that their children are not taken under cover of darkness (WV, April 2007). The LTTE has been responsible for much of the recruitment among displaced and non-displaced communities, with UNICEF reporting 1,415 outstanding cases of underage recruitment by the LTTE as of 30 June 2008. Of these, 133 were under 18, and 1,282 were recruited while under 18 but had passed that age. There were also 129 outstanding cases of underage recruitment by the Karuna group. Of these 66 were under 18, and a further 63 had been recruited while under 18.

Due to increased insecurity and pressures not to report the incidents, the true total number of children being recruited by the LTTE and the Karuna faction may be much higher. Abductions by the Karuna group have taken place in areas of strict government control with numerous military and police checkpoints. It has been proposed that no armed group could engage in such large-scale abductions, forced recruitments and activities in established camps without government knowledge and at least tacit support (STP, 21 February 2008, p.2).

In the east, the Karuna faction has often operated without hindrance in IDP camps under government control and restricted humanitarian access (USG, 11 March, 2008, p.8). It has threatened and sometimes used violence against displaced people, the local population, and NGOs (STP, 21 February 2008, p.1). The group has also carried out abductions, security round-ups, and forced recruitments in IDP camps in Batticaloa and Trincomalee districts (USG, 11 March, 2008, p.8). The targeting is due to affiliations or former affiliations of IDPs, mistaken identity, or random attacks. In Batticaloa, this has been most severe with IDPs and locals being identified as either supporters of the LTTE or other armed groups (CPA, December 2007, p.8).

Since May 2008 an increased presence by security forces has resulted in a dramatic increase in the number of arrests and detentions of IDPs in Batticaloa. From mid-June until mid-July, at least 42 cases of IDP arrests were recorded. The number of arrests in the general population is unknown. The majority of the people arrested were released after being held for questioning for a day or so. In comparison, from the beginning of the year until mid-June, less than five arrests of IDPs in the district had been reported (NRC Sri Lanka, July 2008).

UNHCR has found sexual abuse to be endemic in IDP camps in Sri Lanka (USG, 11 March 2008, p.13). There has been fear among families, both within and outside IDP camps in conflict-affected areas, about sexual violence against young women, leading them to arrange "marriages" for their teenage daughters. Often these marriages cannot be sustained and the young men leave their wives and re-marry after a while, leaving many young mothers to take care of themselves and their children. Conflict-related frustrations and perceived or real lack of opportunities have been cited as reasons for early school drop outs, under-age marriage and the gendered consequence of early pregnancy for young girls (SAHR, 8 August 2007, p.8).

IDPs in Puttalam have encountered friction and protection problems due to tensions with the area's original Muslim inhabitants, who have grown tired of the newcomers taking their jobs by offering to work for lower pay and, increasingly, taking up their land (Economist, 11 October 2007). Many IDPs have been trying to save as much as possible to buy land in Puttalam. This effort by IDPs to legally own land in the Puttalam area has been prompted by a World Bank project that is to be completed in 2011. The World Bank is assisting in the construction of 7,885 permanent houses for the displaced in Puttalam. The housing component of the project is applicable to only those IDPs who already possess land deeds indicating ownership (Groundviews, 10 August 2008). Besides housing, the project will also provide water and sanitation services to 15,400 displaced and 4,000 non-displaced beneficiaries in Puttalam (World Bank, 2007, p.5).

Other than the World Bank project, which was initiated in 2007, there have been few attempts to find long-term solutions to the plight of these IDPs and given the severe poverty in the area they are living in, the displaced have become dependent on government and NGO support for all their elementary needs (ISIM, Spring 2007, p.52). Observers worry that some of the displaced Muslims in Puttalam are channelling their frustration over their poverty, living conditions, and inability to return home into a more fundamentalist version of Islam. Concerns have been raised particularly with regard to the younger generation, which has known life only in the camps, as being more likely to be drawn to a radical version of Islam (CSM, 7 December 2007).

Return and reintegration

In the immediate aftermath of the capture of the east by government forces, the government began returning some displaced Tamil families to their homes. In violation of international law, some of the displaced were packed in buses and forced back to damaged and destroyed villages despite concerns over their means of supporting themselves and continuing insecurity. In some cases the involuntary returns were taking place as the military offensive was ongoing in nearby areas (MRGI, December 2007, p.2). Forced returns also led to separation of families, including of children from parents.

In March 2007, UNHCR disassociated itself from the government's resettlement efforts in the east, citing involuntary returns. UNHCR subsequently resumed cooperation with the government, noting an improvement in its practices, while stating that some deficiencies remained with the return process (USG, 11 March 2008, p.13).

There has been a government trend to hastily resettle people. In a number of cases the returns were carried out without the people being informed that they had a choice of returning or staying at IDP and welfare camps until the situation in their areas of origin improved. While authorities at the central level have maintained that IDPs have the option of staying back in camps, sometimes the displaced have not been informed by camp officials that they have this option and instead face the prospect of being de-registered and losing access to any rations. In recent returns the government has taken steps to ensure that the IDPs have more information and increasingly "go-and-see" visits to return areas have become the norm (CPA, May 2008, p.17). However, issues raised by IDPs during these visits, including concerns over access to livelihoods and security, are rarely addressed in any constructive way.

Under the government's counter-terrorism strategy, identity cards have been provided to the returnees in the east, in addition to national identity cards that all Sri Lankans possess. The new ID card includes basic details of the returnees and notes their ethnicity. The ID is meant to prevent rebel infiltration into villages, but villagers have expressed discomfort about the system, fearing it would restrict visitors and the mobility and schooling of children travelling outside their neighbourhoods (MRGI, December 2007, p.3).

The "liberated" areas in the east are still heavily militarised, and returnees there have faced intense security measures and routine checks by the Sri Lankan army. Security forces play an active role in most of the civil administration, including returns and the development of newly captured areas. Many of the predominantly Tamil and Muslim villagers in these areas have concerns about the outcome of this as they see the army as being dominated by Sinhalese (MRGI, December 2007, p.3). The returnee communities still continue to face human rights violations from armed actors including the armed forces, the Karuna group and the LTTE (CPA, December 2007). Since April 2008 there has been an increase in security incidents involving returnees in Batticaloa District, which has undermined the success of the return process, and raises questions about its durability.

The resettlement process may restore normality but the restoration of livelihoods has been difficult due to the loss of crops, equipment and specific restrictions related to fishing and farming. An analysis by WFP has shown that 63 per cent of the returnee population in Trincomalee district has poor access to food due to the lack of assets and a very low income level. In the absence of food aid, 54 per cent of households will not have sufficient income to purchase equivalent food from the market. 64 per cent of returnees are food insecure, the lives of 17 per cent are at risk due to their adopted coping mechanisms, and 62 per cent are at risk to livelihoods due to food insecurity combined with livelihood affecting coping mechanisms. Poverty has been the major determinant for returnee households. Fishermen still face restrictions on fishing and farmers have lost much of their harvest due to unexpected heavy rain and localised flooding (WFP, March 2008, p.5).

Following elections in May in the Eastern Province, some economic recovery and increased assistance from the humanitarian community is likely. The elections could encourage the return of stability and a functional regional administrative structure, the first of its kind in more than 15 years, can focus on large-scale, long-term development work rather than just humanitarian support, if it can win the confidence of donors and financial institutions (IRIN, 13 May 2008).

If stability is to be achieved and maintained, continuing communal tensions in the east must be addressed. Clashes in May 2008 between the Tamil and Muslim communities in Batticaloa district led to the temporary displacement of an estimated 594 families or 2,252 people (CHAP, July 2008, p.4), and disrupted the work of aid agencies assisting IDPs and returnees (IRIN, 3 June 2008).

The majority of the remaining displaced in eastern Sri Lanka have been unable to return to their original homes as parcels of minority-owned land have been designated as High Security Zones by the government. In Sampur in Trincomalee district, the army has taken over a 35-square-mile area covering 15 villages, thereby barring 15,000 (mostly Tamil) civilians from their homes. The local government has indicated that some of this area will be released and IDPs will be able to return. However, the area remains legally demarcated a High Security Zone and IDPs have received very little information on this planned return (NRC Sri Lanka, July 2008). The government has identified new sites for those displaced by the Zone who will be unable to return. This relocation plan has been formulated without adequate consultation with the IDPs themselves, and the sites are inappropriate due to their isolation, lack of access to livelihoods, education and markets (MRGI, December 2007, p.3). IDPs have repeatedly stated that they do not want to relocate to these new sites. There is also lack of clarity on the status of compensation and land tenure for those who choose relocation over local reintegration (NRC Sri Lanka, July 2008).

A number of the IDPs whose homes fall within the High Security Zone have continued to live in appalling conditions at a transitional camp in Killivetti for more than a year after they were forced by authorities in March 2007 to move there from welfare camps in Batticaloa (CPA, May 2008, p.17).

As of May 2008, the Sri Lankan Ministry of Resettlement and Disaster Relief Services was reporting that 126,393 people displaced from the post-April-2006 fighting had returned to their areas of origin in Batticaloa and Trincomalee districts, with 6,866 voluntary returns between January and May 2008, primarily in Batticaloa district. An additional 24,504 IDPs were waiting to return (CHAP, July 2008, p.4).

National and international response

Currently Sri Lanka has no national law or policy on internally displaced persons but the government has prepared a draft act that will seek to clarify and develop policy on IDPs. The initiative will be led by the national Human Rights Commission (GOSL, 3 June 2008).

The ministry of Disaster Management and Human Rights is the main coordinating actor for human rights and humanitarian issues in Sri Lanka. Other agencies involved in relief, resettlement and reconstruction initiatives include the Ministry of Resettlement, Ministry of Nation Building, Ministry of Relief Services, National Human Rights Commission and Resettlement Authority. The multiplicity of ministries and agencies with overlapping mandates and duties has at times led to delayed responses, bureaucracy, lack of coordination and duplication. There is also centralised decision-making, with many decisions being made in Colombo and then communicated to local actors with limited or no consultation taking place.

The establishment of the Consultative Committee on Humanitarian Assistance, which brings together the Commissioner General of Essential Services, the Secretary to the Ministry of Foreign Affairs, the Secretary of Defense, the UN and some ambassadors, has helped dialogue between government actors. However the committee and other government agencies have been criticised for the significant time lag between policy decisions and their implementation on the ground. Additionally, critics have pointed out that the committee has enabled the government to claim that issues are being addressed despite limited progress on issues of humanitarian access, movement of goods, visas and work permits (CPA, December 2007, p.11).

The government must take the lead, with the assistance of all stakeholders, in ensuring the swift and effective implementation of a strong rights-based policy and legal framework (CPA, December 2007, p.11).

UNHCR is the lead international agency for IDPs in Sri Lanka. For those displaced by the conflict, UNHCR engages in contingency planning and emergency response and provides protection and humanitarian assistance. The agency is involved in implementing confidence-building and stabilisation activities for all IDP communities, with an additional emphasis on searching for solutions for those in protracted displacement.

International agencies have not adopted the cluster approach for the conflict-related displacement situation in Sri Lanka, but UNHCR coordinates efforts in the areas of protection, camp coordination and management, and non-food relief. UNICEF leads sectoral groups on water, sanitation, education and nutrition; WFP on logistics and food security; WHO on health; UNDP on early recovery; and OCHA on coordination.

UNHCR chairs an IDP Protection Working Group in Colombo which has advocated jointly to address protection concerns. The Inter-Agency Standing Committee in Sri Lanka serves as a forum for overall coordination of the work of the humanitarian community including contingency planning and fundraising, and has been a platform for public advocacy on the protection of civilians, consultations of IDPs in the return process and the imperatives of humanitarian access and protection of humanitarian workers.

The role of the international community could be strengthened by greater consultation and transparency on the part of national authorities. While in some cases this cooperation has been strong, in others, including the early stages of the return process in the east, the international community was not always informed on time or consulted on the government's plans, and had to respond to the critical humanitarian needs of the population with little or no notice (SRSG, May 2008, p.11-12).

CAUSES AND BACKGROUND

Background

2002 ceasefire formally ends and conflict resumes (April 2008)

- In January 2008, the government announced it would be withdrawing from the 2002 ceasefire agreement with the LTTE
- Following the end of the ceasefire, the Sri Lanka Monitoring Mission withdrew from the country
- With the end of the ceasefire and the departure of the mission, civilians are paying a heavy price
- The number of indiscriminate attacks against civilians has gone up in the north, east and south of the country since early 2008

TIME Magazine, January 2008:

"The Sri Lankan government's decision this week to officially pull out of a 2002 cease-fire agreement with the rebel Liberation Tigers of Tamil Eelam (LTTE) was merely a confirmation of what Sri Lankans have known for the past 18 months: war has returned to the beautiful Indian Ocean island. It never really went away, of course; Hundreds have been killed in skirmishes since the Norway-brokered cease-fire took effect six years ago and a resumption of major battles in 2006 has made a mockery of the truce."

The Hindu, 6 January 2008:

"The Sri Lanka Monitoring Mission (SLMM) said that in the light of Sri Lanka's decision to abrogate the CFA, it would terminate its operational activities effective January 16."

Reliefweb, 22 January 2008:

"The end of the ceasefire also meant the departure of the truce monitors, who were deployed in six districts to oversee its implementation.

[...]

With their departure and the end of the truce, civilians are already paying a heavy price in violence and death - a concern that many international and local observers had been expecting."

Amnesty International, 9 April 2008:

"...Since the abrogation of the ceasefire agreement in Sri Lanka on 16 January 2008, the conflict continues to involve the intentional targeting of civilians and indiscriminate attacks. According to the International Committee of the Red Cross (ICRC), 180 civilians died in the first six weeks of 2008, and nearly 270 more were injured in a series of attacks on civilian buses, railway stations and individuals in Colombo, Dambulla, Kebhitigollewa, Madhu, Okkampitiya and Welli Oya. The ICRC has expressed concern that "since the start of the year civilian casualties had gone up as the number of indiscriminate attacks had grown in the north, east and south of the country."

Potential for more stability in the east after elections (May 2008)

- The ruling United People's Freedom Alliance won elections in the Eastern Province in May 2007 in coalition with the breakaway LTTE faction known as the TMVP
- Some observers and opposition parties have claimed the election was marred by irregularities and intimidation
- After elections and a functional administrative structure in place, economic recovery and increased assistance from the humanitarian community are likely

IHT, May 11, 2008:

"The Sri Lankan president on Sunday hailed his party's election victory in the country's tense Eastern Province as a mandate to push ahead with his war against Tamil Tiger rebels in the north. The election commission said the ruling United People's Freedom Alliance coalition won 52 percent of the vote, giving it a total of 20 seats on the province's 37-member council. The ruling party ran in coalition with the breakaway rebel faction known as the TMVP. Independent monitors said the TMVP threatened voters during the election, opposition parliamentarians were attacked by mobs, children who appeared to be 13 years old cast ballots, and gangs of people shuffled between polling stations to vote numerous times."

IRIN, 13 May 2008:

"After provincial elections in Sri Lanka's Eastern region concluded on 10 May, some economic recovery and increased assistance from the humanitarian community is likely, according to UN and other officials.

[...]

A functional, regional administrative structure, the first of its kind in more than 15 years, would also see a shift from the focus on humanitarian work to large-scale, long-term development work, if it can win the confidence of donors and financial institutions, aid officials said."

Background (Special report, 2007)

Historical divisions between the Sinhalese majority and Tamil minority in Sri Lanka have led to a civil war that has caused 70,000 deaths and one of the worst internal displacement crises in Asia, with several hundreds of thousands of people displaced.

Following the end of Britain's colonial rule of Sri Lanka in 1948, a series of government policies led Tamils to fear that they would become marginalised in an increasingly Sinhalese-dominated society. From 1956 onwards, there were outbreaks of communal violence and growing radicalisation of some members of the Tamil community. By the mid-1970s, Tamil political leaders were moving away from supporting a federal state and increasingly calling for a separate state, "Tamil Eelam", in the Tamil-dominated north and east of Sri Lanka. (US Department of State, *Background Note: Sri Lanka*, May 2007, p.4)

After an incident in 1983 in which 13 government soldiers were killed by the rebel Liberation Tigers of Tamil Eelam (LTTE), rioting erupted across the country. Following the violence, Sri Lanka became embroiled in armed conflict between government forces and the LTTE. Despite negotiations between the two sides and an intervention by Indian peacekeeping forces, with the exception of a few periods of calm, the hostilities persisted for two decades.

A ceasefire between the government and the LTTE, facilitated by Norway in 2002, eventually brought hope that the conflict would be resolved. The government lifted its ban on the LTTE,

while the LTTE gave up their demands for a separate state. However, the Sri Lanka Monitoring Mission (SLMM) mandated to monitor the ceasefire observed ongoing abuses, mostly by the LTTE. One year into the ceasefire, the LTTE abandoned peace talks, but the ceasefire held for a period of “no war and no peace.”

In 2004, the LTTE leader in the east, Colonel Muralitharan or Karuna, broke with the organisation’s central command, weakening the LTTE. Currently Karuna and his supporters are operating as a paramilitary group in eastern Sri Lanka, particularly in the district of Batticaloa. The Karuna group is believed by observers to be aiding the army against the LTTE. (The Guardian, *Between troops and Tigers: refugees caught in Sri Lanka's bloody crossfire*, 30 March 2007)

The December 2004 tsunami led to the deaths of more than 30,000 Sri Lankans and the displacement of over half a million people. In 2005, the government and the LTTE arrived at an agreement to share \$3 billion in tsunami assistance from the international community, but the agreement was never implemented, and the two sides lost an opportunity to work in cooperation. The same year, the LTTE assassinated the ethnically-Tamil Foreign Minister, after which Parliament passed emergency regulations that remain in place today.

During the presidential election of November 2005, the LTTE prevented people living in its areas of control, largely believed to be supporters of the more inclusive United National Party, from voting, and the more overtly Sinhalese Sri Lanka Freedom Party came to power. (US Department of State, p.5) In 2006, when the European Union banned the LTTE as a terrorist organisation, the group ordered SLMM monitors from EU member states Denmark, Sweden and Finland to leave the mission, reducing it to less than half its original strength.

The ongoing sporadic conflict escalated following an incident over control of water for irrigation in July 2006. Intense fighting erupted in the north and east, with widespread violations of the rights of people and groups, including the use of civilians as human shields, attacks on places of worship and refuge, retaliatory killings, abductions and disappearances, targeted assassinations, widespread displacement and forced returns, all contributing to create an enormous humanitarian crisis. (Sri Lankan Civil Society Organisations, *Statement by Civil Society Organisations on Human Rights and Humanitarian Concerns*, 14 November 2006, p.1)

Although the government and the LTTE met in Geneva in October 2006 for peace talks, the meeting only reinforced perceptions that neither party had the will to engage in meaningful negotiations. (BBC News, *Sri Lankan talks end in failure*, 29 October 2006)

In May 2007, the government’s Defense Secretary announced that the army was under instructions to eliminate the LTTE leader and eradicate the group, a process that would take two to three years. (The New York Times, *Sri Lanka's Scars Trace Lines of War Without End*, 15 June 2007, section A, p.1) This enthusiasm for war appeared to have the backing of many Sinhalese, while the first ever air strikes by the LTTE on government targets in March 2007 equally seemed to have increased its support among the Tamil diaspora. By this point the 2002 ceasefire stood in name alone.

Since late 2006, the army has achieved significant victories in the east and north-east of the country and in July 2007, the government announced it had taken control over the entire eastern province from the LTTE for the first time in 13 years. However, few analysts believe that this victory will increase peace prospects or put an end to the massive humanitarian and human rights crisis that has engulfed Sri Lanka.

Socio-ethnic profile of Sri Lanka

- Sinhalese (74 percent of the population); Religion: Buddhism; Language: Sinhala
- Tamils (18 percent of the population); Religion: Hinduism; Language: Tamil
- Muslims (7 percent of the population); Language: Tamil
- Breakdown of population according to religion: Buddhists 69%; Hindus 15%; Christians 8% and Muslims 8%
- Between 25 and 39 percent of the population can be classified as poor, depending on the poverty measure
- Nearly 90 percent of the poor reside in rural areas with poverty conditions in the North and the East being far more severe than in other parts of the nation

DRC May 2000, p. 48

"The categorisation of the population according to **ethnicity** is as follows: Sinhalese 74%, Tamil 18%, Moor 7% and Burgher, Malay and Vedda 1%. The Sinhalese predominantly live in the southern regions and parts of the central highlands. But there is also a large Sinhalese minority in the East. Most Tamils and Muslims reside in the northern and eastern portions of the island, although there are also sizeable Tamil and Muslim communities in Colombo and other urban areas in the south. Although there has been an increasing polarization of ethnic groups as a result of the long armed conflict, all communities have lived in close interaction with one another for centuries.

The majority of the Sinhalese are Theravada Buddhists, and the majority of Tamils are Hindus. However, there is also a large group of Christians within both ethnic groups. The breakdown of the population according to **religion** gives the following picture: Buddhists 69%, Hindus 15%, Christian 8%, and Muslim 8%.

Sri Lanka is divided into three geographical zones: the wet lowlands in the southern parts of the country where also the capital Colombo is located, the central highlands and the dry lowlands in the north, where the ongoing war is concentrated."

For further information on the socio-economic profile of Sri Lanka see "[DRC Sri Lanka 2000-2003 : Annex 2](#)", May 2000, pp. 48-50

GoSL December 2002, PRSP, Executive Summary - Introduction

"Between 25 and 39 percent of the population can be classified as poor, depending on whether or not poverty is measured with a low or twenty percent higher poverty line. Poverty is predominately a rural phenomenon with nearly 90 percent of the poor residing in rural areas. Farmers cultivating small plots of land, with few off-farm sources of family income, and casual workers account for a large share of the poor. Two decades of civil conflict have left large numbers of families displaced, disabled and desperate. Poverty conditions in the North and the East are far more severe than in other parts of the nation, compounded by massive destruction of economic and social infrastructure."

Ethnic, social and cultural characteristics of conflict-affected districts (2003)

CPA, 2003:

Jaffna:

"Jaffna has seen multiple displacements involving the shifting of whole populations within and outside the peninsula. As control of the peninsula has swung between the government, LTTE and paramilitary groups the people of Jaffna have had to deal with a number of local structures. In post-CFA environment the authority of the army, police and the EPDP has ebbed in favour of the LTTE which has taken on an increasing role in addressing local disputes and problems, particularly related to kassippu and women. At the local level the authority of the old elites has waned and power has become fragmented with younger members from marginalised groups such as the lower castes taking on a more active role. High Security Zones or the exclusive occupation of a considerable portion of Jaffna land by the security forces has meant a large number of IDPs cannot even access their homes while other returnees. properties are presently occupied by these displaced people. In addition to land occupation disputes, inter-and intra-caste disputes are common in Jaffna.

Mannar:

The district consists of Mannar island which is under government control, and the mainland, part of which, especially north of the Mannar-Vavuniya road, is under LTTE control. It is a predominantly Tamil district, with a large Catholic community. The Catholic church is one of the most active in Sri Lanka and is involved in community affairs, including mediation both within the community and on its behalf, be the disputes over communal fishing rights or inter-ethnic violence. Following the CFA large numbers of displaced Tamils are returning to LTTE-held areas and areas close to the forward defence lines. Before the 1990 eviction by the LTTE, Mannar was home to a large Muslim population. A small number have returned and are laying claim to their properties that in the interim have been occupied by other displaced people either from other districts or from within Mannar district. While the field work suggests that the main concerns of returnees are resource shortages and the lack of support structures, the violence in Veppankulum village a week after the fieldwork was completed suggests that underlying ethnic tensions with the capacity for violence are not just a potential but real danger.

Puttalam:

Despite its distance from the battle lines, Puttalam District provides insight into the potential disputes and problems resulting from large IDP populations choosing to relocate. The arrival in Puttalam of the vast bulk of Muslims evicted by the LTTE from the North in 1990 exacerbated existing resource shortages. The result was discrimination of IDPs in their access to these resources and to opportunities to rebuild their lives; scarcity and loss of opportunities for the host populations; and an environment of tension, hostility and sometimes violence between the IDP and host populations. Traditional methods of dispute resolution are prevalent throughout Puttalam and have played a key role in resolving disputes within their respective communities. NGOs and local citizens have tried to play a more prominent role in trying to respond to inter-community disputes and violence by trying to create peace committees, forums for discussions and multi-ethnic development projects but have found it difficult to control the violence and to sustain these structures.

Trincomalee:

Trincomalee is characterised by the near equal proportions of and the mutual dependency for economic activity of all three ethnic groups. Each group is perceived by the others as benefiting from patronage from the army and government, politicians and the Ministry of Eastern Rehabilitation and Muslim Affairs, and the LTTE. The potential for incidents to escalate into full scale ethnic violence is high. Land and water matters are particularly controversial issues. Government-sponsored colonisation schemes of Sinhalese farmers in the district, along with the blocking of water up-stream (usually in Sinhalese areas) to the detriment of down-stream Tamil farmers, has exacerbated the grievances of Tamil villagers. Muslim villagers complain about occupation of or lack of access to their lands in grey. and LTTE-controlled areas. Sinhalese villagers have suffered threats and attacks at the hands of the LTTE. Ethnic tension manifests

itself in the form of hartals organized by the aggrieved ethnic group and may lead to street violence. At the time of the research, two incidents prompted hartals: the abduction of Sinhalese persons from Trincomalee town and of Muslim persons from Muttur, both allegedly carried out by the LTTE.

Batticaloa:

Batticaloa District consists of both densely populated Tamil and Muslim ethnic majority areas and the coastal regions which tend to be more evenly populated. Abductions, land occupations, personal vendettas and trade issues have created tensions, disputes and local conflicts between the Tamil and Muslim communities. The two main ethnic groups in the area have their own systems of redress, with the mosque committee and hierarchy playing a key role in Muslim communities, and village committees and the LTTE being the most significant actors in the Tamil community. Local village leaderships have responded to the conflict environment by creating village committees responsive to the environment; for instance incorporating LTTE members.

Ampara:

In Ampara District, Muslim and Tamil villages are located side by side. Similarly, in the inland border villages of Ampara, the Sinhalese communities live in the proximity of the other ethnic communities. The three communities' frequent points of contacts revolve around farming, fishing and trade. There are a substantial number of disputes related to land, in particular the encroachment of lands belonging to Muslims by the LTTE and by Tamils. The present CFA has motivated the Muslims to reclaim their lands and re-settle. Rumours and the speed with which ethnic tensions travel contribute significantly to local conflicts between communities.

Vavuniya:

In Vavuniya, [...] the traditional social structures, such as the elder systems, seem to have eroded as a result of the conflict. Multiple displacement, the militarisation of the youth, and the fear caused by the conflict has all contributed to the elders taking a less prominent role within communities. Local disputes, if they do get resolved, are therefore more likely to be addressed by the disputants themselves or taken to a more powerful local actor such as paramilitary groups, the LTTE or the armed forces. While the elder systems in some villages have been replaced by a younger generation, in other societies there is a complete absence of such structures.

The welfare camps are a key example of this. Vavuniya is home to nine major welfare centres. Camp officers run the campus and are approached by camp inmates with their disputes and problems. Structures such as camp committees did not exist in the welfare camps to provide some representation of the residents' needs. The Human Rights Commission has taken a leading role in one of the main camps to form a committee for people to voice their concerns. While the camp officer is the main contact point within the camp, disputes may be handled by a number of actors. "

Roots of the ethnic conflict

- The history of Sinhalese and Tamil communities before colonialism was one of ethnic and cultural mixture
- Colonialism introduced beliefs about racial superiority and identity which resulted in two opposed nationalisms (Sinhala and Tamil) and laid the foundations for the present ethnic conflict between the two groups
- Following independence in 1948, the Tamil community and its politicians faced constant marginalization
- This led to the creation of the Tamil United Liberation Front in May 1976 advocating for the first time a separate Tamil State in Sri Lanka, the Eelam Tamil nation

- The Liberation Tigers of Tamil Eelam (LTTE), also created in 1976, began their armed fight for an independent Tamil homeland in 1983

UN Commission on Human Rights 25 January 1994, para.15

"While there have always been tensions between the Sinhalese and the Tamil kings, they cannot be compared to the violent intercommunal strife between the communities that materialized in the twentieth century. Under pre-modern conditions, political and religious centres were more symbolic than real, with the units of political and cultural life enjoying considerable autonomy so long as the centre received its due share of ritual homage. Because of caste, pre-modern Sri Lanka was also segmented in a hierarchical sense."

Seneviratne, Stavropoulou 1998, p. 362

"The antagonism between the different religious groups grew during colonialism as beliefs about racial superiority and nationalist theories were introduced. This resulted in two opposed nationalisms, Sinhala and Tamil, and these are considered the main underlying cause of the present conflict between the two groups.

[...]

The present ethnic conflict is by most scholars traced to the radical changes that took place primarily in the twentieth century. Those changes included "[I]n particular the explosion of population, the stagnation in the economy, the resulting competition for economic resources, and the influence of Western ideas about nationalism."

UN Commission on Human Rights 25 January 1994, para. 19-20

"Colonialism also introduced beliefs about racial superiority and nationalist theories, [...] It appears, at least, to have strengthened a deep-rooted feeling among the Sinhalese Buddhist community that over the centuries it had been forced to defend itself and its island against invaders (the imperialist rulers and the Tamil minority) who had degraded what had been a remarkable Sinhala civilization. In the nationalist days of the nineteenth and twentieth centuries the Buddhist religion and the Sinhalese language inevitably became the answer to the search for a Sinhalese identity.

Tamil nationalism at the same time grew as a response both to South Indian Tamil and to Sinhalese nationalism. Close linguistic, social and cultural links to South India account for the fact that many Hindus in Sri Lanka have looked there for religious, cultural and political inspiration. Just as the South Indian nationalist Dravidian movement called for the re-establishment of the ancient Dravidian kingdom, so Sri Lankan Tamils invoked ancient Tamil rule in Sri Lanka to support the claim that with the termination of British rule the country ought to revert to its time-honoured patterns of ethnically divided governance. Yet, as it has been pointed out, 'ironically, it is the special connection, the shared history, with the Sinhala, however estranged the two groups might be, that in the end differentiates the Tamil community in Sri Lanka from that in South India and gives it a residual identity of its own. Unlike the South Indians, Sri Lankan Tamils [...] feel peripheral or marginal in relation both to the Sinhala and to the South Indians, a condition that compounds their sense of frustration and distress and intensifies their longing for a homeland. This condition is particularly acute, it is suggested, for the Sri Lankan Tamil expatriate.' Even more ironically, the Sinhalese community perceives itself as a vulnerable minority in the Indian subcontinent as a whole, particularly vis-à-vis the 50 million Tamils in the province of Tamil Nadu in India. This 'siege mentality' has led to the description of Sri Lanka as 'the island of the two minorities'."

CPA July 2003, pp. 2-3

"The beginnings of terrorism in Sri Lanka are inextricably entwined with the activities of the State. In the 30 years from the mid-1940s, successive governments took measures to reduce the number of Tamils in the professions and the public sector. These measures interacted in diverse and complex ways with a potent Sinhala Buddhist exclusivism which gradually became the animating ideology of the Sri Lankan state. Particularly amongst the arriviste, lower caste Sinhalese, the spread of anti-Tamil chauvinism was soon perceived as a promising means of increasing economic opportunity. As time passed, the electoral promise of pandering to this chauvinism tempted even the most cosmopolitan of Sinhalese politicians.

Arguably, the most adverse legislation for Tamils came from the language policy of S.W.R.D. Bandaranaike's government. The introduction of the 1956 'Sinhala Only' Act, which replaced English with Sinhala as the language of official government business, clearly disadvantaged large numbers of Tamils. Its effect was compounded by widespread protests in Tamil areas in which school principals would not allow the teaching of Sinhala while school children refused to study the language.

[...]

The bloody terrorism that has ravaged Sri Lanka since 1983 is fuelled by the refusal of many Tamils to operate within a state system which denies them political power, employment and educational opportunities whilst engendering socio-economic disparity."

SATP 2003

"The Liberation Tigers of Tamil Eelam (LTTE) began its armed campaign in Sri Lanka for a separate Tamil homeland in 1983. The LTTE was formed on May 5, 1976, under the leadership of Velupillai Prabhakaran, and has emerged as perhaps the most lethal, well organised and disciplined terrorist force in the world. Headquartered in the Vanni region, Prabhakaran has established an extensive network of checkpoints and informants to keep track of any outsiders who enter the group's area of control.

Terrorism in Sri Lanka began in 1970 with the formation of a militant student body called the "Tamil Students Movement" to protest government plans to limit access of Tamil students to universities. Very soon this movement went underground and turned to overt terrorist activities. Violence escalated in Jaffna from 1972 onwards, beginning with the publication of a new constitution seen by the Tamil United Liberation Front (TULF) as anti-Tamil. The year 1972 saw the formation of two Tamil terrorist groups – the Tamil New Tigers (TNT) and Tamil Eelam Liberation Organization (TELO), splinter groups of the original Tamil Students Movement. In July 1983, countrywide riots and clashes between Sinhalese and Tamils left thousands of Tamils dead and several hundred thousand as refugees. Large number of Government forces were deployed in the north and east provinces. This period marks the beginning of the LTTE guerrilla campaign against the Sri Lankan Government.

The LTTE aims to create a separate homeland for the Tamils known as the Tamil Eelam (state) in the Northern and Eastern provinces of Sri Lanka. The Tigers control most of the northern and eastern areas of Sri Lanka but have also conducted operations throughout the island."

The current ethnic conflict contains both political and territorial dimensions

- Initially, the territorial conflict concerned the legitimacy of ethno-political claims to the North-East
- Political struggle about equal individual and group rights of Tamils and Sinhalese and the right to co-constitute the political system of the country

- The conflict between the political groupings of the SLFP/PA and the UNP/UNF is connected with the ethno-political North-South conflict

Ferdinands, Rupesinghe, Saravanamuttu, Uyangoda, Ropers, January 2004, p.1

"The ethnic conflict in Sri Lanka contains both political and territorial dimensions. Both are closely intertwined with the 'party political' conflicts in the South as well as conflicts within the Tamil polity and the Tamil-Muslim relationship in the North-East. The essence of the political contention between representatives of the numerical majority and the numerical minorities has been about equal individual and group rights of Tamils and Sinhalese and the right to co-constitute the political system of the country. Initially, the essence of the territorial conflict concerned the legitimacy of ethno-political claims to the North-East. After the tensions escalated to a military struggle, which led to the de-facto division of the country, the territorial dimension now includes issues about the legitimacy of the political-administrative structures established by the LTTE.

The conflict between the political groupings of the UNP/UNF and the SLFP/PA has been continuously connected with the (ethno-political) North-South conflict. Both sides have used the ethnic dimension in the service of their power struggles. A repeated use of majoritarian democracy has derailed all initiatives for resolving the conflict in the last fifty years.

The conflicts within the Tamil polity and the Tamil-Muslim relationship in the North-East have also been closely connected with the main ethno-political conflict and have placed an additional burden on the peace process."

Displacement is not a new phenomenon in Sri Lanka (September 2003)

The Refugee Council, September 2003

"Displacement due to ethnic tensions is not a recent phenomenon. It occurred during the Sinhalese-Muslim ethnic violence of 1915. The ethnic killings of 1958 also led to displacement of Tamils living in predominantly Sinhalese areas. This also caused the displacement of Sinhalese people living in predominantly Tamil areas. Displacement occurred during major ethnic violence in 1977 and 1981. The volume of displacement radically changed during the post-1980 period, when ethnic tensions became more acute. The major violence against the Tamil community in July 1983 was the beginning of large-scale displacement. Tamils living in the southern provinces, including the Hill Country, were victims and more than 100,000 sought refuge in India and in the north-east parts of Sri Lanka."

Causes of displacement

Displacement ongoing due to conflict in the north (August 2008)

- Fighting has intensified in Sri Lanka since the end of 2007 as the military has sought to retake areas in the north, leaving hundreds of thousands civilians vulnerable
- In September 2007, 22,000 people were forced to flee their homes in northwestern Sri Lanka following hostilities in Mannar and Jaffna districts between security forces and the LTTE
- 75,000 people have fled conflict in the north since June 2008

- Families have been fleeing fighting in the north and trying to stay ahead of the combat's moving frontlines
- The displaced are moving further within the LTTE-controlled area or traveling to government-controlled areas in the south

ICG, February 2008:

"Fighting intensified at the end of 2007 as the military sought to retake areas in the north.

[...]

The government's campaign in the north is designed as a war of attrition. Having learned a lesson from earlier periods of the conflict, the government is avoiding trying to win territory quickly by frontal assault. Instead, massive artillery and aerial bombing of Tiger forward defence lines aims to weaken defences sufficiently for measured ground assaults.

[...]

The humanitarian costs of the fighting in the north have been largely hidden from the public. Concerns among aid workers are mounting, however. Government figures as of 31 December 2007 published by the UN High Commissioner for Refugees (UNHCR) show more than 148,000 displaced by renewed fighting in the north, roughly half of whom are within the LTTE-controlled Wanni, which is increasingly difficult for humanitarian groups to access. Hundreds of thousands are vulnerable as the military tightens its grip on the Northern Province."

ICRC, 20 November 2007:

"Hostilities between the Sri Lanka Security Forces and the Liberation Tigers of Tamil Eelam (LTTE) were concentrated over the past month in the Mannar and Jaffna districts in the north of the country. The fighting was restricted to the uninhabited area of Muhamalai, south of the Jaffna peninsula and the sparsely populated area of Madhu, to the north-west of Vavuniya. As a result, 22,000 persons have been forced to flee their homes since the beginning of September, according to the local authorities who, together with humanitarian organizations, are assisting the displaced."

BBC News, August 2008:

"Up to 75,000 people have fled their homes in northern Sri Lanka in the last two and a half months, the UN says. This adds to huge numbers of people already displaced by years of war in the troubled island. Government forces are advancing into territory controlled by the Tamil Tiger rebels, who want an independent state for the island's ethnic Tamil minority...what is clear is that the military is now moving forward at a rapid pace. For months the fighting in the north was taking place on largely static front lines. Now village after village, and rebel base after rebel base, according to the ministry of defence, is falling into government hands.

[...]

The UN says as many as a third of the entire population of the rebel areas have abandoned their homes since the start of June."

UN News Centre, 8 August 2008:

"Some 12,000 families are reported to have escaped the conflict in July alone, with people trying to keep ahead of the fighting's moving frontlines to stay out of the crossfire."

IRIN, 8 August 2008:

"...Families have fled the fighting and moved farther north, closer to the town of Kilinochchi, under the control of the Tigers 300km north of Colombo...an unknown number of civilians [are] still trapped in areas of fighting in the southwestern parts of Kilinochchi and Mullaitivu Districts and around 800 people had reached government-controlled areas by travelling south of the fighting."

Causes of displacement (Special report, 2007)

The internal displacement in Sri Lanka stems primarily from actual or feared conflict-related violence and its devastating impact on people's livelihoods. Conflict-induced displacement is not a new phenomenon in Sri Lanka, where civil war has been ongoing for 24 years. At various times in the war, civilians have been targeted by either the Sri Lankan army or the LTTE and have had no choice but to leave their homes, in many cases remaining uprooted for years. The latest round of the conflict has yet again forced large numbers of people, primarily from the Tamil and Muslim minorities, to be displaced especially in the north and east of the country.

The recent phase of hostilities has been notably brutal, and violations of international humanitarian law have been committed by all parties to the conflict. Most of those displaced in 2006-2007, for example, reported fleeing their homes to escape artillery bombardments and air raids around their homes.

In July 2006 the current intense phase of conflict was set off by a struggle to control the supply of water to civilians in Trincomalee district. On 20 July, the LTTE closed the Mavil Aru sluice gate, cutting off the water supply for over 15,000 mostly Sinhalese families and 30,000 acres of paddy lands. Government forces retaliated and fighting spread to other parts of Trincomalee and Batticaloa districts. The LTTE regrouped in the town of Muttur in Trincomalee district where heavy fighting took place for six days, causing misery and suffering for the civilians. (Frontline Magazine, *Water war*, Volume 23, Issue 16, 12-25 August 2006, p.3) During the fighting there were hundreds of deaths and an estimated 50,000 people were displaced. Thousands of civilians, including women and children, were forced to walk for nearly two days without food and water in search of safety. (BBC News, *The cost of Sri Lanka's water war*, 10 August 2006)

Although the water blockade was lifted on 8 August, the combat spread to the Jaffna peninsula in the north where tens of thousands of people were displaced during ten days of heavy fighting. The army launched another massive offensive in the north in October in an attempt to clear the LTTE from the Jaffna peninsula. (The Economist, *Sri Lanka: War again*, 19 October 2006) During this operation, the army sustained heavy casualties and the intense fighting continued to affect civilians, even in places such as hospitals and schools. On 2 November, the army's aerial bombardment hit a hospital in the LTTE-held town of Kilinochchi. The bombing killed five civilians and damaged the hospital's maternity ward. (UN Department of Public Information Press Release, *UN Condemns Indiscriminate Use of Force in Sri Lanka*, 9 November 2006)

Thousands of civilians were displaced from the Vakarai area of Batticaloa district, which had been under the LTTE's authority, and where some 35,000 civilians were caught in the crossfire during a fierce three-month battle for control. Many vulnerable people, including children, elderly, and sick people were forced to make gruelling journeys out of Vakari to government-controlled areas before the army finally took control of the region in January 2007. In a much-publicised case, in November 2006, army artillery hit a school which was sheltering over 2,000 IDPs. During the bombardment, 62 people died and 47 people, ranging in age from one to 74 years old, were injured. (Human Rights Watch, *Return to War: Human Rights under Siege*, August 2007, p.41)

A number of civilians who were not impacted by direct shelling were forced to leave their homes after receiving threats and warnings of imminent attack from parties to the conflict. In May 2006, in Allipiddy in Jaffna district, a hand-written notice supposedly distributed by the "Makkal Padai" group affiliated with the LTTE warned civilians to leave the area within three days as military offensives were imminent. Almost all the villagers fled and took refuge in churches in Jaffna town. (Inter-Agency Standing Committee, *Conflict-Related Internal Displacement in Sri Lanka: A Study on Forced Displacement, Freedom of Movement, Return and Relocation [April 2006-April 2007]*, July 2007, p.15) In August 2006, the LTTE's radio station warned people living in the coastal

areas south-east of Jaffna town to leave the area immediately. Nearly all the villagers fled the area and sought shelter in schools and churches in Jaffna. (Inter-Agency Standing Committee, p.15)

Other civilians became displaced as their livelihoods were severely impacted by the fighting. Fishermen could no longer go to their traditional fishing areas because of the presence of the army and armed groups, and farmers stopped going to their lands out of fear that mines may have been laid.

Fighting between the army and the LTTE has been the main cause of displacement

- The demands of the Tamils for power sharing arrangements were met by the successive governments with brutal violence and suppression
- The Sri Lanka's ethnic conflict escalated in the early 1980s after anti-Tamil riots in 1983
- Main cause of displacement is war between the Government and the LTTE, forced recruitment by the LTTE, inter-communal violence in the east and human rights abuses
- Three areas of conflict zones: Vanni (controlled by LTTE), Jaffna and border areas south of Vanni ('cleared' areas) and contested areas of Trincomalee, Batticaloa and Ampara in the east.
- Prevention of Terrorism Act in 1979 and Emergency Regulations in 1996, banning or restricting essential goods into the North-East, also lead to large-scale displacement

Gomez, Mario July 2002, pp. 8-11

"The Sri Lanka's ethnic conflict escalated in the early 1980s after anti-Tamil riots in 1983. The riots saw Sri Lanka descend into a spiral of violence that has wrecked the economy and torn apart its social fabric. As in all internal conflicts, the heaviest casualties were civilians and since 1980 thousands upon thousands of Sri Lankans have been uprooted and forced to flee their homes. An estimated 200,000 have fled overseas while the majority has remained displaced within the country's borders. Many of the IDPs have been displaced several times."

The Refugee Council, September 2003, p. 16

"Since the mid 1970s, Tamil youth have resorted to an armed struggle against the Sri Lankan state to create a separate Tamil state in the north-east region of the country. The demands of the Tamils for power sharing arrangements were met by the successive governments with brutal violence and suppression. This has caused a civil war-like situation in the northern and eastern parts of the country. The armed conflict became more ferocious over the years, resulting in immense suffering. The war between the armed forces of the Sri Lanka government and powerfully armed guerrilla forces of the Tamil community, the Liberation Tigers of Tamil Eelam (LTTE), was the main cause of suffering for the people in the conflict areas. Indiscriminate aerial bombing, shelling, massacres, rape, search operations, arbitrary arrest, illegal detention and disappearances by the armed forces in predominantly Tamil areas created panic among the Tamils and led to large-scale displacement.

The Sri Lankan government, in addition, passed the Prevention of Terrorism Act, 1979 and introduced Emergency Regulations in 1996, banning or restricting essential goods such as food, medicines, fertilisers, agricultural implements and fuel, into the north-east, resulting in deprivation and large-scale displacement and escalated mortality rate amongst the population, particularly children."

SCF-UK 8 May 2000 pp. 116-117

"Forced recruitment of child soldiers by the LTTE is another major cause of displacement, with families fleeing to protect their children. Inter-communal violence ignited by the wider war has also forced families from their homes. The conflict zone in Sri Lanka is customarily divided into the three areas: the Vanni – a belt of forest and agricultural land south of Jaffna mostly controlled by the LTTE; Jaffna, and the border areas south of Vanni – areas which the Government has regained and which it calls 'cleared' areas; and the contested areas of Trincomalee, Batticaloa and Ampara in the east.

[...]

In the east, the problem of inter-communal violence is also a cause of displacement. The community is split equally between Muslims, Tamils and Sinhalese. Following the intensified violence of the second phase of the war, factions from the three ethnic groups engaged in sporadic fighting, with many civilian casualties. This violence has been compounded by high levels of human rights abuse committed by government and LTTE forces. As a result, many families have fled the area."

The Refugee Council, September 2003, pp. 18-21

"The immediate causes may be categorized broadly as follows:

1. North-east Tamils fleeing in fear of advancing government security forces during battles.
2. Arrest, detention, torture and disappearance of civilians carried out by security forces.
3. Establishment of army camps in or close to populated areas.
4. Take over of land and houses by armed forces for military camps.
5. People living near army camps fleeing to avoid being caught in crossfire.
6. Need to escape from sea and air attacks by the security forces.
7. Sinhalese people moving out of areas under LTTE control.
8. Reluctance of many Tamil people to be subject to LTTE control.
9. Forcible expulsion of Sinhalese, Tamils and Muslims by the LTTE.
10. Conflict between Muslims and Tamils leading to displacement of both communities.
11. Violence by Sinhalese against Tamils/Muslims in predominantly Sinhalese areas.
12. Shortage of food and other essential items in the war zone.
13. Economic blockade imposed on the north-east by the Sri Lankan government."

Large-scale displacement since 1990 (September 2003)

- After one year of peace talks, war resumed in 1990 and spread to several areas in the north-east
- Fighting and intense bombing of the north-east by the Sri Lankan Airforce resulted in the displacement of a million people in a short period of time
- The majority of the displaced people in the north-east were Tamils, but approximately 75,000 Muslims of the Northern Province were expelled by the LTTE in October 1990
- Peace talks were resumed in 1994 and lasted until April 1995, when fighting broke out again
- Subsequent battles displaced thousands of people in the Vanni area
- Of the more than 500,000 people displaced from the Jaffna peninsula, about 350,000 were forced to move to remote places like Kilinochchi, Mullaitivu, Mannar and Vavuniya.
- In April 2000, capture of the strategic Elephant Pass by the LTTE caused the displacement of more than 160, 000 people within the Jaffna peninsula

- More than 65,000 people fled Army operations in the Jaffna Peninsula in September 2000 and April 2001
- After presidential elections in December 2001, permanent ceasefire agreement between government and LTTE in February 2002

The Refugee Council, September 2003, pp. 17-21

Eelam War II

After a period of peace negotiations between the government and the LTTE, which lasted for nearly 13 months, war resumed on 11 June 1990. The fighting began in Batticaloa District and quickly spread to the other districts of the north-east. The struggle was to fill the military power vacuum created by withdrawal of the Indian Peace Keeping Force (IPKF), which had been in occupation of the north-east since July 1987 under an Indo-Sri Lanka agreement. The Sri Lankan armed forces, the LTTE and other small Tamil and Muslim armed groups attempted to gain dominance and in the process destabilized the normal life of the civilian population. Thousands of people fled homes and villages seeking safety. The situation also caused ethnic tensions, especially between Tamils and Muslims in the eastern region. The fighting and intense bombing of the north-east by the Sri Lankan Airforce resulted in the displacement of a million people in a short period of time.

[...]

The majority of the displaced people in the above districts were Tamils, but in late October 1990, approximately 75,000 Muslims of the Northern Province were driven out of the province by the LTTE."

US DoS, 25 February 2004

The U.S. State Department says 46,000 Muslim inhabitants were forced to leave:

"The LTTE has discriminated against Muslims and, in 1990, expelled some 46,000 Muslim inhabitants--virtually the entire Muslim population--from their homes in areas under LTTE control in the northern part of the island. Most of these persons remained displaced and lived in or near welfare centers. There were credible reports that the LTTE warned thousands of Muslims displaced from the Mannar area not to return to their homes until the conflict is over. However, it appeared that these attacks by the LTTE were not targeted against persons due to their religious beliefs; rather, it appeared that they were part of an overall strategy to clear the north and east of persons not sympathetic to the cause of an independent Tamil state."

The Refugee Council, September 2003, pp. 17-21

[... Eelam War III:]

"Following the collapse of the peace talks between the People's Alliance government and the LTTE, fighting broke out again on 19 April 1995 when the Tigers broke the ceasefire by sinking two naval vessels in the Trincomalee harbour. The government commenced military operations, declaring it as a strategy of 'war for peace'. On 13 May 1997, the Sri Lankan Army launched a military assault called *Operation Jayasikuru* (Certain Victory) to reopen a land supply route to the Jaffna peninsula from Vavuniya through territory in the Vanni controlled by the LTTE. This operation lasted until December 1998. The Army also launched a number of other operations to capture territory under LTTE control in the Vanni and the LTTE launched its own operations to regain territory, the main offensive being named *Oyatha Alaigal III* (Unceasing Waves) in November 1999. These battles displaced thousands of people living in the Vanni area.

The war displaced more than 500,000 people from the Jaffna peninsula, and among them about 350,000 were forced to move to remote and distance places like Kilinochchi, Mullaitivu, Mannar and Vavuniya.

[...]

The LTTE attacked Vavunativu Army camp in Batticaloa on 6 March 1997 and during this operation 5,200 people were displaced. Over 12,000 civilians fled their homes when the Army launched *Operation Rivi Bala* (Sun Power) on 4 December 1998 to capture Mullaitivu and in *Operation Rana Gosha* (Battle Cry), began on 4 March 1999 in Vavuniya and Mannar, more than 20,000 were displaced.

In another phase of *Operation Oyatha Alaigal III* by the LTTE in April 2000, capturing parts of Vanni and parts of Jaffna, and in Army operation *Rivi Kirana* (Sun Beam) launched on 3 September 2000, to recapture territory, more than 160,000 were displaced. Over 65,000 people fled their homes in Army's *Operation Kiniheera* (Anvil) in September 2000 and *Operation Agni Khiela* (Rod of Fire) on 25 April 2001 to capture Chavakachcheri and other areas in the Jaffna peninsula."

BBC Timeline Sri Lanka

"December 2001, a new cabinet, led by Ranil Wickramasinghe, is sworn in after the opposition United National Party narrowly won the parliamentary election. [...] In February 2002, Government and Tamil Tiger rebels sign a permanent ceasefire agreement, paving the way for talks to end the long-running conflict. The peace initiative is sponsored by Norway."

War took heavy toll on all segments of the Sri Lankan society (July 2005)

- The Central Bank reports that the conflict is likely to have reduced Sri Lanka's GDP growth by about 2-3 percentage points a year
- The indirect costs of the war are at least as high; income lost as a result of foregone domestic investment; reduced tourism, decline in foreign direct investment; human capital loss associated with death, injury and displacement
- Study shows quick economic recovery in north and east after signing of ceasefire agreement

GoSL December 2002, PRSP, pp. 29,47

"The human and economic costs of the war are felt most directly by populations in the North and East. According to Government estimates, the size of the overall economy of the Northern Province shrank from US\$ 350 to US\$ 250 million between 1990 and 1995, corresponding to a negative annual average GDP growth of 6.2 percent per annum. The Central Bank reports that the conflict is likely to have reduced Sri Lanka's GDP growth by about 2-3 percentage points a year.

The indirect costs of the war are at least as high. These costs represent the income lost as a result of foregone domestic investment, reduced tourism, the decline in foreign direct investment, and the human capital loss associated with death, injury and displacement. The conflict has prompted the out-migration of large numbers of skilled and semi-skilled persons, depriving the economy of trained professionals, entrepreneurs and highly skilled civil servants that the nation so badly needs.

[...]

Two decades of conflict have taken a heavy toll on all segments of Sri Lankan society. The war-affected areas and nearby villages in the North and East are the most disadvantaged in terms of households' ability to obtain a secure livelihood because of loss of life, assets, or displacement, or as a result of the deterioration of infrastructure, irrigation systems, and roads. Among the more severely affected groups are the displaced, who have lost productive assets and land, as well as social capital. The impact of the war goes beyond the war-torn areas to affect the rural poor in

particular. Poor rural youth on both sides of the conflict are faced with fewer opportunities to better their lives; they make up a substantial share of the soldiers fighting the war. Ethnic minorities face discrimination, both real and perceived, making conflict resolution and ethnic reconciliation central to poverty reduction in the decade to come."

SCOPP, 18 Jul 2005

"[In a study, the GoSL] set out to assess the economic impact of the CFA in the conflict-affected areas (North and East) in relation to the other areas, with 1996-2004 serving as the reference period. The two main areas examined were pre and post-CFA average GDP growth disaggregated by province as well as sector. It was shown that while the West and South Provinces were the two fastest growing provinces prior to the CFA, the North and East Provinces have taken the lead in the post-CFA period, albeit from a much lower base. [...] The fastest growing sectors are agriculture in the NP and EP and services in the NCP. The combined share of the North and East in national paddy production increased from 27% during the pre-CFA period to 31% during the post-CFA period.

Sri Lanka 's overall GDP growth rate has been moderately higher during the post-CFA period (5.0%) compared to the pre-CFA period (3.9%). Hence, the economy as a whole has yet to reap the full benefits of peace. Post-CFA economic growth has been significantly higher than the pre-CFA level only in the NP, EP and NCP. It could therefore be concluded that the economic dividends of peace have been realized mainly in the conflict zone (NP and EP) and adjacent areas (NCP). Whether the high post-CFA growth rates can be sustained in these regions remains to be seen. Consolidation of the peace process, strengthening of the enabling environment for private investment, and full implementation of the rehabilitation and reconstruction programs in the North and East are key factors in this respect."

Peace efforts

Peace efforts at standstill and focus on military solution (August 2008)

- In January 2008, the Sri Lankan government withdrew from the ceasefire brokered by Norwegian peace facilitators
- The government is insisting that the LTTE must lay down arms before further peace negotiations
- The government is focusing on a military solution expecting it to clear the way for a political solution
- The LTTE is counting out peace talks as long as the military offensive is ongoing

Xinhua, 9 August 2008:

"The Sri Lankan government is steadfast in eliminating terrorism before having talks with Tamil Tiger rebels, Prime Minister Ratnasiri Wickramanayake said on Saturday.

[...]

Wickramanayake said government troops currently engaging Liberation Tigers of Tamil Eelam (LTTE) in the north have sent the rebels reeling. The troops said they have entered the rebel heartland districts of Mullaithivu and Kilinochchi where their administration was headquartered.

[...]

In January this year, the Sri Lankan government formally withdrew from the six-year-old ceasefire brokered by the Norwegian peace facilitators. The government has been insisting if the rebels want further negotiations they must lay down arms."

ICG, 20 February 2008:

"Much of the blame for the resumption in violence lies with the LTTE; its ceasefire violations and abuses of the population under its control pushed the government towards war. The Tiger strategy was to shore up internal support by provoking a Sinhala nationalist reaction; it worked, although the insurgents may come to regret their approach. President Mahinda Rajapaksa has also overplayed his hand. Relying on support from Sinhala extremists, he has let them set an agenda that allows only for a military approach. The military and much of the government leadership believe they can defeat or permanently weaken the Tigers by the end of 2008.

[...]

The government argues its military campaign will clear the way for a political solution. Vowing to "eradicate terrorism", it says it aims to destroy the Tigers or force them to disarm and enter democratic politics and negotiations alongside other Tamil and Muslim parties."

AP, 21 July 2008:

"Sri Lankan rebels said Monday that a new round of peace talks on ending the country's 25-year-old civil war is impossible as long as the government presses ahead with a military offensive."

Overview of the peace process (July 2003)

- There were two previous attempts at a ceasefire between LTTE and Government during the 20 year long war, in 1989 and 1994
- Change of Government at the General Election in December 2001 allowed for a new attempt.
- Unofficial ceasefire at the end of 2001 was followed by a Permanent Ceasefire Agreement signed on 22nd February, 2002.
- Commitments included vacating of schools, places of worship and public buildings by the armed forces of Sri Lanka
- Formal peace talks between the Government of Sri Lanka and the LTTE began on September 16, 2002 in Thailand, with subsequent monthly sessions in Asia and Europe
- Peace talks in Thailand resulted in the creation of a Joint Task Force for Humanitarian and Reconstruction Activities (JTF) which should focus on mine action and IDP needs
- A Joint Committee was established to address the return of IDPs to High Security Zone

CPA July 2003, pp. 1-4

"With a change of Government at the General Election in December 2001, [...] By 25th December 2001, the LTTE declared a unilateral ceasefire which was followed up by the Government. The unofficial ceasefire was then followed by a Permanent Ceasefire Agreement signed on 22nd February, 2002. Within the cease-fire agreement there were a number of commitments made by both sides. This included the vacating of schools, places of worship and public buildings by the armed forces of Sri Lanka."

UN Inter-Agency IDP Working Group 17 October 2002, p. 1

"The peace talks which were held in Thailand between the Government of Sri Lanka and the Liberation Tigers of Tamil Eelam (LTTE) were notable for many reasons, including the high emphasis placed on issues pertaining to the internally displaced in Sri Lanka. Both sides have agreed to create a Joint Task Force for Humanitarian and Reconstruction Activities (JTF). The JT

will primarily focus on mine action and IDP needs and will seek international funding for priority humanitarian and reconstruction projects. The JTF will be comprised of members from the Government, Muslim community and LTTE.

The delegates at the talks also agreed to establish a Joint Committee to address the return of IDPs to High Security Zones."

Suspension of peace process end 2003 followed by elections and growing instability in 2004 (May 2005)

- Peace talks suspended by the LTTE in April 2003
- LTTE says that the main reason for withdrawing from the peace talks is the slow progresses made in alleviating the hardships of people affected by the war.
- Political configuration in Sri Lanka with President and the Parliament belonging to rival political parties have undermined the stability of the peace process
- December 2004: Rejection by LTTE of resuming peace talks and growing fear of return to war.

CPA July 2003, pp. 1-4

"With a change of Government at the General Election in December 2001, [...] By 25th December 2001, the LTTE declared a unilateral ceasefire which was followed up by the Government. The unofficial ceasefire was then followed by a Permanent Ceasefire Agreement signed on 22nd February, 2002. Within the cease-fire agreement there were a number of commitments made by both sides. This included the vacating of schools, places of worship and public buildings by the armed forces of Sri Lanka."

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The delegates at the talks also agreed to establish a Joint Committee to address the return of IDPs to High Security Zones."

WFP, August 2004

The 1983–2001 armed conflict between the Government of Sri Lanka and the Liberation Tigers of Tamil Eelam (LTTE) caused the loss of more than 64,000 lives and displaced 800,000 people; a further 800,000 people who remained in the conflict-affected areas were also seriously affected. In early 2002, the Government and LTTE formalized a ceasefire agreement that led to several rounds of peace talks between September 2002 and March 2003.

Progress towards a permanent solution was interrupted, however, when LTTE pulled out of the talks in April 2003, claiming that the challenges of rehabilitation, reconstruction and development were not being met and that the dividends of peace did not reach the people of the north and east. The peace talks have not yet resumed, but the ceasefire has been maintained and there has been no open conflict. Sri Lanka is now in a state of “no war – no peace” The donors at the Tokyo conference for Sri Lanka in June 2003 pledged an unprecedented US\$4.5 billion in grants and loans for rehabilitation and reconstruction, on condition of resumption of the peace talks. In September and October 2003, the Government and LTTE exchanged proposals on the shape and form of an interim administration for the northeast, but the negotiations stalled and led to a political impasse and a period of stagnation.

A new parliament was elected in April 2004 and the President pledged to resume the peace talks, but political turmoil in the Government since late 2003 has caused continued frustration and the situation remains unstable. It is hoped that a return to war can be avoided, but an immense task remains in terms of peace building and reconciliation. Distrust and insecurity remain; regional disparities in development have not been addressed in any significant way. Since the ceasefire, about 320,000 internally displaced persons (IDPs) have returned to their homes hoping to rebuild their lives under a permanent settlement. If the returnees, the host communities and the IDPs remaining in welfare centres are not able to re-establish sustainable livelihoods, peace cannot become a reality.

SATP, Sri Lanka Assessment 2003, p. 1

“[...] On April 21, 2003, the LTTE pulled out of the peace talks in protest against the exclusion of its accredited representatives from the crucial international aid conference in Washington, which was held on April 14, 2003, in preparation for the main donor conference in Japan, and slow reconstruction of war-hit North-East Province (NEP) of the country. [...] There is considerable apprehension that the peace process may break down given the intransigence of the LTTE.”

UN Inter-Agency IDP Working Group, 9 February 2004

“It is not yet clear what effect this political turmoil might have had on durable solutions for the displaced. There are indications that donor assistance has been affected. During a visit to Sri Lanka in late January, Japanese special envoy Mr. Yasushi Akashi said some donors were “reviewing the situation” and “there may be significant modifications in the speed of the delivery of the assistance.” However, Mr. Akashi said no donor has indicated they would revert from the commitments made at the 2003 Tokyo donor conference, at which \$4.5 billion in assistance was pledged.”

Amnesty International, May 2005

“The JVP is opposed to the devolution of power to the LTTE and strongly supports a unitary state. It is said to be opposed to the terms of the cease-fire agreement and third party facilitation in the peace process.

Elections on 2 April brought to power a fragile coalition headed by the President's United People's Freedom Alliance. The LTTE-affiliated Tamil National Alliance (TNA) took the majority of seats in the north-east, where elections were marred by vote rigging, intimidation and violence, including the killing of United National Party and TNA candidates and an Eelam People's Democratic Party (EPDP) activist.

Despite efforts by Norwegian mediators, there was no return to peace talks. Amid an atmosphere of mistrust, the LTTE continued to insist that their proposals for an Interim Self-Governing Authority (ISGA) form the basis of any talks and the coalition government struggled to define its

position. [...] On 27 November [2004], in his annual "Heroes' Day" speech, LTTE leader Velupillai Prabhakaran stated that the LTTE might return to the "freedom struggle" if peace talks did not resume on the basis of the LTTE's ISGA proposals. On 24 December the LTTE formally rejected the government's latest offer of talks amid growing fears of a return to war."

UNHCR says elections could slow efforts to resettle displaced people (February 2004)

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AFP 13 February 2004

"The UN agency for refugees said Friday Sri Lanka's snap parliamentary elections could seriously slow efforts to resettle hundreds of thousands of refugees in the island's embattled regions.

The head of the executive committee of the United Nations High Commissioner for Refugees (UNHCR), Jean-Marc Boulgaris, said here they were worried about the fall-out of the political crisis on internally displaced people (IDPs).

"My concern is that the uncertainty that comes with the elections will dilute the international community's commitment to invest in Sri Lanka and that will have an adverse impact on the IDPs," Boulgaris said.

He told reporters that the immediate needs of 380,000 IDPs in the island's embattled regions should not be neglected with focus shifting to the political arena following the dissolution of parliament last weekend."

Human rights not included in the peace talks (July 2003)

- Some provisions of the cease-fire agreement are aimed at protecting civilians.
- However, it is doubtful that LTTE or the government are willing to have strong human rights standards enforced as part of the peace settlement, as both were implicated in HR violations during war.
- Bi-lateral peace process between the government and the LTTE excludes civil society and other political parties. This limitation has been in the interests of both parties to the process

CPA July 2003, pp. 10-11

"The cease-fire agreement signed in February 2002 does contain some provisions that seek to protect civilians from abuse. Article 2.1 is the most clearly aimed at civilian protection. It states: "Parties shall in accordance with international law abstain from hostile acts against the civilian population, including such as acts as torture, intimidation, abduction, extortion and harassment. Article 2.5 requires the Parties to "review the security measures and the set-up of checkpoints, particularly in densely populated cities and towns, in order to introduce systems that will prevent harassment of the civilian population." Article 2.12 prohibits search operations and arrests under the Prevention of Terrorism Act and the following article (2.13) guarantees family members of detainees access to the detainees within thirty days of the signing of the agreement.

However, there is little reason to believe that either the government - members of which were implicated in the massive human rights violations of the previous UNP regime in the 1980's and early 90's - or the LTTE have any genuine desire to see strong human rights standards enforced

as part of any peace settlement. A robust practice of human rights monitoring and enforcement would be a threat to the traditional sources of power of both organizations.

Still, to the extent that the enforcement of effective human rights standards and democratic norms can be shown to be necessary to maintaining the peace process itself - by stemming worries that the LTTE is simply consolidating its power before further attacks, and by acting as a further confidence builder that the Sri Lankan state has learned to treat its Tamil citizens fairly - both the government and the LTTE would seem to have an interest in limiting their own anti-democratic tendencies."

Achievements and shortcomings of the peace process (January 2004)

Ferdinands, Rupesinghe, Saravanamuttu, Uyangoda, Ropers, January 2004, p.1

"Achievements:

The no-war situation has saved lives and helped to improve living conditions throughout the island.

The majority of the people support the ceasefire and are in favour of moving towards a positive and stable peace.

The suspension of the violent conflict has prevented a severe crisis of the existing political and social system in the South, which re-emerged in the second half of 2001.

The peace process has helped to revitalise the overall economy, which has been in a state of severe crisis.

There have been improvements in relief and the delivery of some rehabilitation and reconstruction services in the North-East.

The peace process has offered an opportunity to de-link the ethnic conflict from war and violence. The effective mobilization of women's efforts for peace has culminated in the recognition by parties at the Track One level of the importance of gender concerns in the peace process. The establishment of the Sub-committee on Gender Issues (SGI) is particularly significant in this regard.

The peace process has attracted the International Community to take an active interest in Sri Lanka and to mobilise additional resources for rehabilitation, reconstruction and development.

The peace process has generated significant common ground on which a political settlement can be founded, as embodied in the *Oslo Communiqué* which enunciated the framework of internal self-determination within a united federal Sri Lanka.

The peace talks demonstrated that the interlocutors of the parties managed to develop a good working relationship with each other and that it was possible to find solutions to some difficult issues.

Shortcomings:

There was no common, consistent and transparent strategic framework guiding the peace negotiations.

The benefits arising from the no-war situation have been distributed in a highly imbalanced way. The people of the North-East are still waiting for: a substantial peace dividend, the normalisation of their living conditions, the return of refugees and IDPs to their homes, and a comprehensive rehabilitation and reconstruction programme in the war-affected areas.

Human rights violations have continued to take place.

There has been a lack of women's representation at all levels of the peace process.

The disputes in the South concerning the approaches to the peace process have been largely linked to partisan agendas of political parties.

The parties that were excluded from peace negotiations have expressed concerns and reservations while questioning the legitimacy of the entire peace process.

The overall mobilisation towards pro-peace goals has been and remains relatively low. The negotiating parties failed to create joint institutions to nurture and foster the peace process. The two peace secretariats worked completely independent from each other and contributed little to the substance of the talks. The parties did not initiate a constructive public discussion on how to reconstruct the Sri Lankan state through the implementation of the *Oslo Communiqué*."

Displacement after the 2003 breakdown of peace-talks

Causes of Displacement (Special Report, 2007)

The internal displacement in Sri Lanka stems primarily from actual or feared conflict-related violence and its devastating impact on people's livelihoods. Conflict-induced displacement is not a new phenomenon in Sri Lanka, where civil war has been ongoing for 24 years. At various times in the war, civilians have been targeted by either the Sri Lankan army or the LTTE and have had no choice but to leave their homes, in many cases remaining uprooted for years. The latest round of the conflict has yet again forced large numbers of people, primarily from the Tamil and Muslim minorities, to be displaced especially in the north and east of the country.

The recent phase of hostilities has been notably brutal, and violations of international humanitarian law have been committed by all parties to the conflict. Most of those displaced in 2006-2007, for example, reported fleeing their homes to escape artillery bombardments and air raids around their homes.

In July 2006 the current intense phase of conflict was set off by a struggle to control the supply of water to civilians in Trincomalee district. On 20 July, the LTTE closed the Mavil Aru sluice gate, cutting off the water supply for over 15,000 mostly Sinhalese families and 30,000 acres of paddy lands. Government forces retaliated and fighting spread to other parts of Trincomalee and Batticaloa districts. The LTTE regrouped in the town of Muttur in Trincomalee district where heavy fighting took place for six days, causing misery and suffering for the civilians. (Frontline Magazine, *Water war*, Volume 23, Issue 16, 12-25 August 2006, p.3) During the fighting there were hundreds of deaths and an estimated 50,000 people were displaced. Thousands of civilians, including women and children, were forced to walk for nearly two days without food and water in search of safety. (BBC News, *The cost of Sri Lanka's water war*, 10 August 2006)

Although the water blockade was lifted on 8 August, the combat spread to the Jaffna peninsula in the north where tens of thousands of people were displaced during ten days of heavy fighting. The army launched another massive offensive in the north in October in an attempt to clear the LTTE from the Jaffna peninsula. (The Economist, *Sri Lanka: War again*, 19 October 2006) During this operation, the army sustained heavy casualties and the intense fighting continued to affect civilians, even in places such as hospitals and schools. On 2 November, the army's aerial bombardment hit a hospital in the LTTE-held town of Kilinochchi. The bombing killed five civilians and damaged the hospital's maternity ward. (UN Department of Public Information Press Release, *UN Condemns Indiscriminate Use of Force in Sri Lanka*, 9 November 2006)

Thousands of civilians were displaced from the Vakarai area of Batticaloa district, which had been under the LTTE's authority, and where some 35,000 civilians were caught in the crossfire during a fierce three-month battle for control. Many vulnerable people, including children, elderly, and sick people were forced to make gruelling journeys out of Vakari to government-controlled areas before the army finally took control of the region in January 2007. In a much-publicised case, in

November 2006, army artillery hit a school which was sheltering over 2,000 IDPs. During the bombardment, 62 people died and 47 people, ranging in age from one to 74 years old, were injured. (Human Rights Watch, *Return to War: Human Rights under Siege*, August 2007, p.41)

A number of civilians who were not impacted by direct shelling were forced to leave their homes after receiving threats and warnings of imminent attack from parties to the conflict. In May 2006, in Allipiddy in Jaffna district, a hand-written notice supposedly distributed by the "Makkal Padai" group affiliated with the LTTE warned civilians to leave the area within three days as military offensives were imminent. Almost all the villagers fled and took refuge in churches in Jaffna town. (Inter-Agency Standing Committee, *Conflict-Related Internal Displacement in Sri Lanka: A Study on Forced Displacement, Freedom of Movement, Return and Relocation [April 2006-April 2007]*, July 2007, p.15) In August 2006, the LTTE's radio station warned people living in the coastal areas south-east of Jaffna town to leave the area immediately. Nearly all the villagers fled the area and sought shelter in schools and churches in Jaffna. (Inter-Agency Standing Committee, p.15)

Other civilians became displaced as their livelihoods were severely impacted by the fighting. Fishermen could no longer go to their traditional fishing areas because of the presence of the army and armed groups, and farmers stopped going to their lands out of fear that mines may have been laid.

Civil unrest between Tamils and Muslims displaced more than 40,000 people in Mutur, Trincomalee district (May 2003)

- Radicalisation of Eastern Muslims as feeling of marginalization grows due to ongoing negotiations between government and LTTE.
- Civil unrest, rioting and ethnic conflict in Mutur, Trincomalee district, on 17 April, left 35,000 people displaced, 2,500 people homeless, 5 people dead and 20 people wounded.
- Parts of Mutur town have been ruined, and more than half of the population has fled.
- Following the signing of an agreement by the leaders of the LTTE and Muttur Majlis Al Shura Council (Muslim), people started returning home one month after the outbreak of violence.

OneWorld.net, 14 October 2003

"[...]the ethnically volatile Trincomalee district [...] boasts an equal number of people from all the three communities – Sinhalese, Tamils and Muslims. The predominantly Muslim area of Mutur in Trincomalee is also famed for its ethnic volatility and is the starting point of all major clashes between Muslims and Tamils in the East."

SATP, Sri Lanka Assessment 2003, p. 4

"The response of the Muslims to the ongoing negotiations and to the intensifying political turbulences in the Eastern Province (in which they constitute slightly more than a third of the population) is yet another problem that has acquired critical significance. The apparent willingness of the United National Front (UNF) leadership to grant the LTTE a position of eminence (if not of sole authority) in the NEP has made the Muslim demand for an autonomous unit of government consisting of the Muslim-majority areas of that part of the country far more vehement than it has ever been in the past. Besides, the interests of the Muslim community need to be accommodated. Notwithstanding the participation of Cabinet Minister and Sri Lanka Muslim Congress leader Rauf Hakeem as a member of the Government delegation during the talks, Muslims as a community have not been invited to participate in the talks. The chief demand by

the Muslims is an arrangement that would facilitate self-government for those inhabiting the main Muslim areas in the East in Sri Lanka. Friction between the two communities has been in existence since a long time."

The Refugee Council, September 2003, pp. 18-21

"In spite of the ceasefire agreement, tension between Tamils and Muslims has increased, particularly in the Eastern Province, because of alleged violations committed by the LTTE against members of the Muslim community. In mid-April 2003, ethnic violence between Tamils and Muslims at Muthur in Trincomalee District led to the displacement of more than 40,000 people, majority of them Muslims."

ZOA Refugee Care 23 April 2003

"Even though tensions, riots and protests have come and gone in Mutur town, nothing like the recent outbreak of violence has happened since the signing of the cease-fire agreement beginning last year."

TamilNet 24 May 2003

"Tamil and Muslim residents of Mutur division, south of Trincomalee town who sought refuge in schools, churches and mosques where their security was ensured following the outbreak of violence between the two communities last month, started to return to their own homes this Saturday after one and a half months in the temporary shelters, sources said. Tamil families living among majority Muslim areas fled to the LTTE held Mutur east villages.

This follows the signing of a four point agreement by the leaders of the LTTE and Muttur Majlis Al Shura Council to resolve differences existing between the two communities through a eight member committee appointed by the both parties, sources said."

Displacement reported after upsurge of violence in the Kinniya division – Trincomalee district (January 2004)

- In November and December 2003, the Trincomalee district witnessed an upsurge of violence
- During the violence in November, about three thousand families were displaced from the Tamil and Muslim communities

USAID/OTI, 31 January 2004

"In November and December Trincomalee district witnessed an upsurge in violence. Most incidents occurred in Kinniya, where Muslims and Tamils live in close proximity. There were related incidents in Trinco town aimed at Muslims celebrating the end of the holy month of Ramadan, apparently in retaliation for similar attacks on Tamils during this year's Hindu Deepavali festival."

TamilNet, 30 November 2003

"Hundreds of Tamil families displaced from villages Alankerni, Eechantivu and Upparu in Kinniya division are still languishing in refugee centres without enough essential food items [...]. About thirty Tamils families displaced from Alankerni have come to Trincomalee town and staying at Kalaimagal Vidiyalayam and are being looked after by local NGOs, sources said.

A consignment of essential food items collected by non-governmental organizations in Trincomalee town had been sent to Tamil refugees staying in welfare centres in Alankerni and Eachchantivu villages by sea Sunday afternoon.

Meanwhile, a conference was held Sunday morning at Grand Mosque of Kinniya town [...] where matters related to bringing normalcy to the area were discussed, sources said.

Kinniya Divisional Secretary said at the conference that about three thousand families from both communities have been displaced due to the present tense situation following the killing of three Muslim farmers on Friday. Of the displaced about eight hundred families are from Tamil community, sources said.

Displacement reported from the eastern town of Batticaloa (31 March 2004)

- The situation in the town of Batticaloa, eastern Sri Lanka, was very tense during the weeks preceeding the elections in April 2004 due to the split within the LTTE
- Tamils originating from Jaffna have received threats and have been ordered to leave the town
- Several hundred Tamils are reported to have left and have headed back to Jaffna or to the capital, Colombo

BBC 31 March 2004

"A number of Tamil residents have fled the eastern town of Batticaloa, saying they were forced out by supporters of renegade Tamil Tiger Colonel Karuna.

The Tamils, from the northern Jaffna area, have returned home or gone to the capital, Colombo. The town has been tense since the killing of a politician linked to Colonel Karuna on Tuesday. The colonel broke from the northern Tigers faction this month, saying it was failing to represent the east. Catholic Bishop Kingsley Swampillai, who has tried to mediate between opposing factions, said businessmen, students and officials had left Batticaloa under duress. Reports of the numbers leaving vary, but media sources in the east suggest they could be in the hundreds. A spokesman for Colonel Karuna denied the Jaffna Tamils had been under any pressure to leave.

[...]

More than 1,000 soldiers have been deployed in the town since the killing of Radian Sathiyamoorthy, a Tamil National Alliance candidate in Friday's general election."

AFP, 31 March 2004

"Tamil residents began fleeing this eastern Sri Lankan town Wednesday as hundreds of troops poured in amid arson attacks and fears of a factional war between Tamil Tiger rebels, residents and police said.

[...]

"Several shops have been torched here," a local police official told AFP. "Tamils who trace their origins to the island's north have begun fleeing after Mr Sathiyamoorthy was killed."

[...]

Leaflets distributed among residents had warned Jaffna Tamils, or those from the northern region of the island, to leave the district of Batticaloa within 24 hours.

The victim of Tuesday's shooting, Sathiyamoorthy, a Tamil National Alliance (TNA) election candidate, had been a supporter of breakaway Tamil Tiger leader V. Muralitharan, better known as Karuna, who holds sway in this eastern area. Karuna broke away from the group's main northern leadership earlier this month.

[...]

A spokesman for the renegade commander, V. Muralitharan, denied they were responsible for the forced eviction.
More than 1,000 Sri Lankan soldiers patrolled the city in trucks and motorbikes and policemen checked vehicles entering the tense town."

AFP 1 April 2004

"United Nations agencies [...] expressed concern for the safety of thousands of ethnic Tamils forced to leave their homes in eastern Sri Lanka following the slaying of a local politician. The United Nations High Commissioner for Refugees (UNHCR) said in a statement it and three other UN agencies working in Sri Lanka were highly worried about the plight of civilians in the troubled district of Batticaloa."

Split within LTTE led to fighting and displacement in the east in April 2004

- In March 2004, LTTE's eastern commander, Colonel Karuna, announces split from rest of organization, as he felt the LTTE did not properly represent the eastern part of the country.
- Subsequent fighting early April leads to largest displacement since beginning of February 2002 ceasefire.
- The situation in the town of Batticaloa, eastern Sri Lanka, was very tense during the weeks preceding the elections in April 2004 due to the split within the LTTE.
- Tamils originating from Jaffna have received threats and have been ordered to leave the town
- Several hundred Tamils are reported to have left and have headed back to Jaffna or to the capital, Colombo
- LTTE attempts to strengthen its presence in Trincomalee, using Sampur as power base

AI Report 2005-Sri Lanka, May 2005

"In March the LTTE's eastern commander, known as Colonel Karuna, split from the organization, taking with him a large number of cadres. In April thousands of LTTE troops moved into the east to engage Colonel Karuna and his supporters in battle, resulting in substantial casualties. After four days of fighting Colonel Karuna disbanded the majority of his supporters and went into hiding. However, he continued to speak out against the LTTE and formed his own political party, which in October joined with the Eelam National Democratic Liberation Front. Throughout 2004 the east remained volatile with continued skirmishes between the LTTE and remaining Karuna supporters, growing numbers of political assassinations and widespread child recruitment."

UN Inter-Agency IDP Working Group, 29 April 2004

"In early March, the LTTE's eastern commander, Colonel Karuna, announced that he and his followers had split from the rest of the organisation. The LTTE in Kilinochchi responded by announcing that Karuna was no longer a member of the LTTE but, despite a build-up of cadres in the southern parts of Trincomalee District, waited until just after the election before taking decisive action. That occurred in the early hours of Friday 9 April, when LTTE cadres were deployed in various locations in the East. After a short period of fighting, the Prabakharan-led LTTE were able to claim victory over Karuna's forces.

[...]

The fighting in the East led to the largest displacement witnessed in Sri Lanka since the February 2002 ceasefire began. When fighting broke out on 9 April, civilians in the Verugal and Vakarai areas of Batticaloa District were requested to leave the area. As a result, 2,603 persons walked to Makerni - a distance of 17 to 22 km - where they stayed in the local school. A further

700 stayed in Eachilampattai, in an LTTE-controlled part of Trincomalee District. Many more people were displaced to other areas or to stay with family and friends. In both locations, local authorities and national and international agencies initiated a coordinated and measured response, providing drinking water, food rations and emergency provisions. Many IDPs began returning to their homes the following day. By 13 April, the Sinhala and Tamil New Year Day, all had returned home."

AFP 1 April 2004

"United Nations agencies [...] expressed concern for the safety of thousands of ethnic Tamils forced to leave their homes in eastern Sri Lanka following the slaying of a local politician.

The United Nations High Commissioner for Refugees (UNHCR) said in a statement it and three other UN agencies working in Sri Lanka were highly worried about the plight of civilians in the troubled district of Batticaloa."

Observer Research Foundation, Pradeep, Eastern Situation in Sri Lanka, 30 June 2004

"The situation in the Eastern Province of Sri Lanka is getting messier by the moment with twists and turns in the script has made it that much more difficult for all the actors in the peace process. The LTTE, hardly four months into a major split in their terrorist organisation's history, has suffered a spate of attacks on the Eastern front in the districts of Batticalao and Amparai.

The focus in the East, however, should not be just on the two trouble-prone districts of Batticalao and Amparai. The Tigers have been reportedly strengthening themselves in Trincomalee. It has been reported that Sampur, which is a village on the Trincomalee's southern bay is becoming a LTTE power-base in the East. Sampur's significance is its proximity to the Sri Lanka Navy base in Trincomalee.

It could be recalled that the LTTE in the past year has used the tactic of sandwiching Muslim-dominated pockets between LTTE camps and other Tamil-dominated areas to intimidate them and encroach upon their arable land. Sampur is located north-east of Muslim-dominated Muttur. Muttur was the scene of communal disturbances between the Tamils and Muslim even last year.

The LTTE has reportedly established a 'Sea Tiger' Base, political secretariat, its court and police station in Sampur. The expansion of the LTTE police network is part of an LTTE strategy to expand its presence and intelligence-capacity in areas under its control. The LTTE 'Police' chief, Nadesan has spoken about setting up around 20 new LTTE police stations in the coming months.

It is against this background that there are reports of the LTTE using 'cultural tactics' [...] to showcase the LTTE's organisational capability and also the supposed ground level support it enjoyed among the people. [...] The LTTE leadership was prepared to open a Fine Arts Academy in Trincomalee district to develop arts and literary activities. The LTTE's latest moves are part of its strategy to maintain a strategic presence in the Trincomalee area not just in military aspects but also on ground level."

Muslim and Sinhalese internally displaced (September 2003)

The Refugee Council, pp. 31-32

"About 14% of the IDPs today are Muslims and Sinhalese. They are from the north, east or the border areas of the two provinces. The majority of Muslim and Sinhalese IDPs live outside the

north-east and need guarantees of safety and security for returns, as they would be returning to areas of the north-east which may fall under the proposed interim administration which will be controlled by the LTTE. Under the July 2003 proposals of the Sri Lankan government, a joint administrative council (composed of members of government, LTTE and Sri Lanka Muslim Congress) will have power over most current government functions in the north-east. The LTTE will have a majority in the council. In view of past violations by the Tigers against these categories of people, in addition to guarantees from the LTTE, procedures and independent institutions must be in place for effective protection."

Obstacles to solutions for people remaining internally displaced (December 2003 - December 2004)

- The major obstacles to solutions for the remaining IDPs are: the presence of landmines, fear for children's safety and ongoing human rights violations:
-
- insufficient investment in basic infrastructure and lack of economic opportunities in wartorn areas
- the presence of High Security Zones - large areas created by the government and controlled by the army
- the need for restitution of property
- landlessness, including those who did not own land prior to their displacement and those whose homes are located within High Security Zones.
- the inadequate efforts to integrate those IDPs, who, in 2002, elected to remain where they were living

UNHCR Global Appeal 2004

"The major obstacles to solutions for the remaining IDPs are: the presence of landmines; insufficient investment in basic infrastructure in wartorn areas; the need for restitution of property; and the inadequate efforts to integrate those IDPs, who, in 2002, elected to remain where they were living. IDPs often return to communities which have suffered extensive physical destruction. Agricultural land or alternative income generation opportunities have to be identified and created for a large number of landless IDPs. The return of a sizeable number of those still displaced will depend on tangible progress at the peace talks, as their home areas form part of the strategic High Security Zones (HSZ). These are areas occupied by the Sri Lankan army and remain off-limits to civilians."

UN Inter-Agency IDP Working Group, 9 February 2004

"Why, 22 months after the commencement of the ceasefire agreement, do 386,104 people remain displaced? It should first be noted that many remaining IDPs do not intend to return to their places of origin. When UNHCR and the Ministry of Rehabilitation, Resettlement and Refugees conducted a survey of IDPs in mid-2002, 25 per cent of all registered IDPs said they intended to remain in their place of displacement.

Nevertheless, it is clear that many remaining IDPs would like to return to their homes. In recent months, UNHCR has been conducting surveys of the residents of welfare centres to ascertain, among other things, what factors are discouraging them from returning home. According to the surveys, the main factors preventing IDPs from returning to their homes are:

Concerns about security in return areas, including the threat of landmines, fear for children's safety and ongoing human rights violations

The lack of education facilities in return areas
The lack of economic opportunities in return areas
Landlessness, including those who did not own land prior to their displacement and those whose homes are located within High Security Zones."

JRS, 8 January 2004

"Nearly two years since a cease-fire was called in the long-running civil war between the Liberation Tigers of Tamil Eelam (LTTE) and the Sri Lankan army, as many as 400,000 people remain displaced within the country.

The peace established in February 2002 has brought many positive results to a country that had suffered 19 years of conflict, with greater freedom of movement for citizens, as well as increasing levels of economic growth. However, the reluctance or inability of so many displaced people to return to their homes remains a serious cause for concern.

"During the peace talks that have so far taken place, several issues with regard to the resettlement of displaced civilians have been discussed in detail", reports JRS Sri Lanka. "But agreements have not been implemented to the expectations of the people in the north and east of the country". One of the main reasons for this is the presence of High Security Zones [HSZ], large areas created by the government and controlled by the army. Civilians are forbidden to reside in these zones and the security forces have been adamant that they are not willing to compromise on the question of dismantling these zones.

During the conflict, the government evicted civilians from the Jaffna peninsula and declared High Security Zones in the area. Nearly 21,000 families or 68,000 individuals were displaced from here and have been forbidden from returning to their land and homes. Security zones have also created similar problems in Vavunya, Mannar, Trinco and Batticaloa.

Another reason for the reluctance of people currently residing in government-run welfare centres to return home, according to JRS Sri Lanka, is the vexed issue of government compensation or assistance. Each displaced family has been promised financial assistance to help them return home and to re-build or construct their houses."

TamilNet, 22 February 2004

"The Jaffna District Humanitarian Agencies Consortium (JDHAC) Sunday handed over a memorandum to the head of the Sri Lanka Monitoring Mission (SLMM) in Jaffna stating that normalcy has not returned to the lives of several thousand Tamil people including internally displaced in the peninsula even after two years of ceasefire, civil society sources said.

The memorandum said that during the last two years Sri Lanka government troops have been constructing new camps in residential areas in addition to the existing high security zones creating additional hardships to civilians and refugees, sources said.

About 87, 722 internally displaced Tamil civilians are still languishing in refugee camps and welfare centres unable to resettle in their lands and houses, which are located in the high security zones. Government troops have failed to respect the ceasefire agreement, the memorandum added."

Post-tsunami displacement situation

Hopes raised by June aid sharing deal overshadowed by increasing violence (June 2005)

- Tsunami may have averted renewed war
- LTTE claims to be equal partner in reconstruction process in north and east
- After months on negotiation, on June 24, government and LTTE sign a joint agreement on bringing reconstruction aid to LTTE-held areas in north and east
- This agreement raised hopes that peace talks would be resumed

FMR Special Issue July 2005:

"While the government views itself as the undisputed representative of the nation-state and the primary driver of post-tsunami recovery, the LTTE claims to be the 'sole representative' of the Tamil nation. The fact that people living in the coastal areas under LTTE control have suffered almost equally as in the areas under government control has added to the LTTE's claim that it should be treated as an equal partner in the reconstruction process. The Norwegian government, facilitators of the cease-fire agreement and peace talks, has been working with the government and the LTTE to try to reach agreement on the nature, powers and functions of a proposed joint mechanism to oversee reconstruction. After much bargaining and amidst much resistance, the government and the LTTE have now – after six months – reached a compromise to establish a joint administrative mechanism for post-tsunami reconstruction.

Against this backdrop, the massive international assistance pledged immediately after the tsunami has been slow to arrive. [...] For many donors, disbursement appears to be contingent on the government and the LTTE working to establish the joint institutional mechanism. The international community views Sri Lanka's post-tsunami recovery process as integrally linked to the resumption of negotiations and re-launch of the peace process."

INFORM, April 2005, p. 3:

"Since the assassination of LTTE's Eastern leader Kaushalyan, there have been a spate of killings of suspected informers and members of the LTTE in the East as well as in the south. Increasing bloodshed in the Welikanda area where Muslim, Tamil and Sinhala villages are located next to one another has led to public protests in the area. Particularly tragic is the fact that some of those who have been killed had only recently entered the tsunami-affected areas in search of their family members who had been affected by the tsunami."

COE-DMHA, June 14:

Despite the impending June 15 [2005] deadline given by the Marxist People's Liberation Front (JVP), Sri Lanka's President Chandrika Kumartunga is moving forward with government plans for a government-LTTE joint mechanism to coordinate the distribution of some US \$3 billion in post-tsunami reconstruction aid. Critics like the JVP have had strong reactions to this prospect, saying such a deal threatens the country's sovereignty and will serve to assist the Tamil Tigers' (LTTE) efforts to create an independent state. While some 10,000 JVP supporters gathered in Colombo and hard-line Buddhist monks have engaged in a fast-to-death to protest the joint mechanism, President Kumaratunga has found support in the opposition United National Party (UNP). After yesterday's meeting with former prime minister and head of the UNP, Ranil Wickremesinghe, the government was offered conditional support from the UNP for the aid-sharing plans and has been given assurances that the UNP will not seize the opportunity to topple the minority government, in light of JVP's impending withdrawal.

International donors see the joint mechanism as a way to ensure equitable distribution of aid to all ethnic groups, and an opportunity to build working relationships between the warring groups to make ground on the 2002 ceasefire between the LTTE and the government. [...]

[The] Sri Lanka Donor Group, comprised of the U.S., Japan, the EU and Norway, [issued] a joint statement supporting the efforts of President Kumaratunga, and urging “the immediate signing of the agreement (joint-mechanism) in order to ensure the proper flow of reconstruction aid to tsunami victims in the North and East.” The statement also included strong requests made to both the government and the LTTE to stop continued violence and politically-motivated killings that threaten the fragile truce between the groups.

Eastern Muslim communities feel excluded from assistance and political participation (July 2005)

FMR July 2005:

“The Muslim communities in the Eastern Province suffered massive losses but state assistance has been minimal. This is due both to the inefficiency of state machinery and the weakness of the deeply divided Muslim political leadership. Muslims have begun to interpret state inaction as deliberate discrimination against the Muslim community. The fact that state agencies have provided assistance to Sinhalese communities and the LTTE’s relief agencies have been working primarily with affected Tamil communities, together with the failure to include Muslim political leaders in negotiations for a government-LTEE joint mechanism, have exacerbated Muslim feelings of exclusion. Muslim political leaders have now come out openly against the government-LTTE joint mechanism on the grounds that Muslim interests will continue to be at risk.

After relief phase, issues of coordination and transparency emerge

- The 26 December 2004 Tsunami killed more than 30’000 people, more than 457,000 remain displaced as of June 2005
- Immediate needs were largely met
- Issues of transparency and accountability regarding utilization of funds remain unclarified
- Coordination between agencies, as well as within the GoSL is a great challenge, especially during current transition from relief to recovery
- Minimum standards in reconstruction are not followed consistently, create disparities
- High level of insecurity among the displaced regarding their rights and future prospects
- Civil society groups and community-based NGOs feel marginalized in regional and national decision making process

AI Report Sri Lanka 2005, May 2005:

“On 26 December a massive earthquake in the Indian Ocean caused tsunami waves to break on Sri Lanka’s coastline, killing more than 30,000 people. Most deaths occurred on the southern and eastern coasts. Following this disaster, local communities across the country responded quickly with support for the victims, government and LTTE forces began emergency rescue and relief operations, and a large amount of international assistance began to arrive.”

OCHA Mid Term Review of Flash Appeal, April 2005, pp. 115 ff:

“Immediate emergency humanitarian needs have generally been met in terms of quantity. Vast operations in the aftermath of the disaster succeeded in preventing further deaths. [...] Early recovery efforts have included capacity building and the restoration of health and educational facilities, infrastructure and sanitation. More than 85% of the children in tsunami-affected areas are back in school. Furthermore, general food distribution is gradually shifting towards more targeted feeding programmes for vulnerable groups and self-sustainability projects such as Food/Cash for Work.”

“Issues of transparency and accountability regarding the utilization of funds received for post-tsunami relief and reconstruction remain unclarified, with no centralized data available as to the actual amounts received, pledged and spent by the government.

[...]

The task of coordinating the relief and reconstruction initiatives were assumed by the Task Force on Rebuilding the Nation (TAFREN) headed by Mr. Mano Tittawela and by the Task Force on Relief headed by Mr. Tilak Ranaviraja who is also the Commissioner General of Essential Services (CGES) and the Secretary to the Ministry of Defence. There still remains a lack of clarity regarding the legal status of these bodies.

[...]

The lack of coordination among all those dealing with the process of reconstruction and rehabilitation, in both the state and non-state sector, combined with the absence of any standard-setting with regard to provision of minimum facilities in the temporary resettlement sites result in a continuing cycle of ad hoc responses and disparities in distribution. In the midst of allegations regarding abuse and misuse of tsunami by both state and non-state agencies, on February 10 the Ministry of Finance and Plan Implementation instituted a process of registration of all NGOs engaged in tsunami-related relief work at the External Resources Department of the Treasury.

The proliferation of state mechanisms to handle specific parts of the reconstruction process leads to further confusion among the NGOs working in these areas as well as among the displaced communities. The lack of consultation with civil society organizations, especially at the District and Sub-District level is another factor that creates a range of tensions at every level. Displaced persons continue to state that they have not received any clear information regarding their future in terms of homes or livelihoods.

[...]

The high levels of insecurity that prevails among the displaced communities as to their present and their future creates many tensions within these groups as they compete with each other for information and for access to whatever resources are made available to them through state and non-state agencies. This situation then becomes a fertile breeding ground for a range of political manipulations since the displaced persons are easily led to believe that it is through allegiance to one political party or the other that they can have some assurances regarding a stable future.

[...]

A dominant issue is that of continued marginalization of civil society organizations, especially at the local level, from the information-sharing processes regarding post-tsunami reconstruction and rehabilitation. By February 2005, civil society groups and elected members of local government bodies including Parliamentarians themselves were raising the issue of their marginalization in the post-tsunami reconstruction process. While there had been a nominal NGO Desk within the Centre for National Operations (CNO), staffed by a representative of the international NGO community, with the folding up of the CNO even this space disappeared. The creation of a high-level Committee on Disaster Relief with the participation of all political parties represented in Parliament was seen to be one way to resolve some of these difficulties. However, the Committee remains ineffectual. [...] Initiatives [often] do not reach out to the smaller community-based groups working in the Districts nor can they address the specific problems arising locally. Thus

decentralizing the flow of information and civil society interaction with the state remains a key challenge.

While the large INGOs, humanitarian organizations, the UN agencies, bilateral donors and the state are linked together through the structures for the provision of humanitarian assistance which existed prior to the tsunami, for example through the Consortium of Humanitarian Agencies (CHA), this process completely marginalizes the many community-based organizations that have moved in to support the post-tsunami reconstruction process and that are not technically classified as humanitarian agencies or service-delivery organizations. This leads to lack of coordination regarding their activities and financial and other inputs in the post-tsunami relief and reconstruction arena.

Importance of equal treatment of conflict- and tsunami IDPs (December 2005)

- Tsunami hit many conflict IDPs in north and east
- Many underline the importance of a broad, participatory and transparent reconstruction process to avoid further social and political tensions

UNHCR, December 2005:

“One of the most quoted principles in international development assistance is the “Do No Harm” Principle. The essence of this principle is to pay attention to the surroundings, listen to the beneficiaries, and make sure that no intervention, however well-meaning, causes additional problems for the beneficiaries and the surrounding society. A situation of - real or perceived - unequal treatment is in itself harmful, and can be used by various groups to destabilize the area and cause further conflict.

This “Do No Harm” principle was incorporated into the Guiding Principles for the Tsunami Recovery, which were endorsed by the Government, LTTE and donors. These provided: “The allocation of resources both domestic and international should be strictly guided by the identified needs and local priorities, without discrimination on the basis of political, religious, ethnic or gender considerations. The recovery strategy should take into account the extent of progress in Sri Lanka since the signing of the Cease Fire Agreement (CFA), after a long period of conflict, and seek to strengthen the peace process. Reconstruction interventions should be done in such a way as to build confidence between different actors in the process. Reconstruction should similarly be sensitive to the impact on neighboring but unaffected communities.”

The principle of non-discrimination is one of the cornerstones of international human rights law. [...]The principles of equality and non-discrimination are also enshrined in the Constitution of Sri Lanka. [...] The Guiding Principles on Internal Displacement (GPID) reconfirm existing international law and specify that the principle of non-discrimination is equally valid in relation to internally displaced persons. Not only should IDPs be treated equally to other nationals of the country, the GPID specifically state that IDPs should be treated equally, regardless of the cause of the displacement. These principles are to be observed by all authorities, groups and persons irrespective of their legal status and applied without any adverse distinction. This means that the responsibility to uphold these principles rests both with the Government, and with any authority, which controls any part of the population or territory. These principles should also guide the work of donors, NGOs and multilateral agencies working in an IDP context.

In regards to equity, the Secretary-General’s Special Representative on the Human Rights of Internally Displaced Persons, Mr Walter Kalin, observed during his visit to Sri Lanka in February 2005: “There is a need to safeguard against discrimination among different groups of IDPs, for

instance, where assistance is provided to IDPs uprooted by a natural disaster but not to those displaced by conflict, or is provided only to IDPs in camps or government-run relocation centers while denied to IDPs staying with host families who also are in need. Such inequities in aid distribution not only violate the principles of impartiality and non-discrimination, they also risk creating resentment and tensions among communities, which can complicate the rehabilitation and reintegration of IDPs and threaten their security. Instead, opportunities should be seized to counter pre-existing patterns of discrimination by ensuring an inclusive response, and thereby promote national reconciliation.”
[...]

Applied to the context of Sri Lanka post-tsunami, these principles imply several important considerations:

All displaced persons, whether conflict or tsunami-displaced, enjoy the same fundamental rights – to adequate housing, livelihood, education, health and other services.

There should be no discrimination in the treatment of internally displaced persons either along ethnic, religious, social or political lines.

Displaced persons may be given differential treatment provided this is based on reasonable and objective criteria and helps to realize these rights. For instance, tsunami IDPs may be given a particular allowance or housing entitlement, provided this is provided to all displaced, regardless of their place of residence or ethnic origin.

Disadvantaged groups amongst the displaced persons, for instance conflict IDPs, may be entitled to affirmative action in order to realize their rights and to eliminate conditions that cause or help to perpetuate discrimination. For instance, should conflict IDPs be worse off than tsunami IDPs, they could be given enhanced benefits or special programmes to prevent a discriminatory situation from arising.

Preferential treatment should be given only in line with the principles of affirmative action, i.e. to realize the rights - or raise the standard - of those IDPs who are living in the worst conditions.

The issue, therefore, is not over what rights and entitlements tsunami-displaced persons may have, but what are the commensurate rights and entitlements of conflict-displaced persons.”

Jayadeva Uyangoda, FMR Special Tsunami Issue, July 2005

“The largest share of destruction occurred in the Northern and Eastern provinces where the civil war had been concentrated for two decades and large numbers of IDPs were living in camps awaiting resettlement or relocation. The Eastern province is distinctive in that there are almost equal numbers of Sinhalese, Tamils and Muslims. Despite its mixed ethnic composition, the LTTE claims the province as the ‘traditional Tamil homeland’. The tsunami caused severe destruction in the coastal belt of LTTE-held zones, the so-called ‘uncleared areas’ to which the Sri Lankan state had no access.

Prior to the tsunami, efforts were being made [...] to re-build these war-torn provinces. Due to the inability of the government and the LTTE to evolve an institutional framework, these efforts had met with little success. [...] In the weeks after the tsunami there was much speculation [...] that the disaster had altered the existing strategic equilibrium in favour of the state. Such speculation helped shape the framework for government-LTTE cooperation.

The responses to the tsunami disaster and the advancement of the stalled peace process are closely interwoven. Effective and sustainable responses to the tsunami disaster require consensus building across political and ethnic divides as well as reforms to make a reality of federalism and decentralisation.

Without reforms to ensure popular participation in the reconstruction process, there will be widespread resistance to ‘reconstruction from above’. Affected communities have already begun

to protest against official and bureaucratic ineffectiveness in the provision of relief. Post-tsunami reconstruction is not just about constructing buildings, roads and economic infrastructure. It involves rebuilding communities, community lives and the livelihoods of nearly a million people who suddenly found themselves destitute. Unless the affected communities are active participants, the rebuilding process will be thoroughly undemocratic.”

OCHA Mid Term Review of Flash Appeal, April 2005

“The problem of equity of aid distribution is emerging. In this regard, a broader definition of tsunami affected people is yet to be formulated. For example, many Sri Lankans who were not directly harmed by the tsunami, live close by and have been affected by the economic consequences. Stakeholders should also address the challenge of equity of assistance to pre- and post-tsunami IDPs.

[...]

Scenarios

The UNCT agree on a most likely scenario (a), and has considered possibilities for an undesired alternative development (b):

- a) The pace of implementation of transitional shelter and relocation has increased and IDPs are consulted and involved in the process, as per the Guiding Principles on internal displacement. Through enhanced coordination, actors are able to better target cross-sectoral needs, introduce more projects for income generating opportunities, and focus on longer-term community based activities. The perceived discrepancy of relief support towards the different areas/communities is addressed through improved tracking of provided assistance as well as better mapping of needs and coverage. The potential dissatisfaction among conflict IDPs is addressed, as projects for this category continue to be implemented at a similar pace;
- b) Low capacity, lack of effective coordination and other factors, such as delays in resolution of the coastal buffer zone, hamper resolution of issues related to relief distribution, relocation/shelter, and implementation of recovery projects generating greater frustrations among affected populations. Insufficient information and involvement/consultations with the IDPs regarding their future leads to further disappointment. Perceived inequities in the relief distribution causes tensions among communities. The situation is aggravated by other actors who use and further induce the feelings of frustration among the affected population, primarily directed towards the government, but also to the international aid community. This may potentially lead to greater civil unrest whereby access to the affected population may be restricted.”

INFORM, April 2005, pp. 2-8

In terms of the approaches towards the reconstruction and rehabilitation process, there still seems to be less emphasis than is called for on the fact that the majority of affected communities constitute the poorest segments of the island’s population. In addition, the fact that in the north and east the communities affected by the tsunami were already those affected by the conflict and that there remain 360,000 persons displaced by the conflict who are awaiting resettlement must be factored into whatever plans are made for resettlement of tsunami-affected populations. If not, a further arena of conflict and tension will be opened up in these very fragile areas. .”

Increasing number of violent incidences may endanger Tamils in government-held areas, says HRW (August 2005)

- After assassination of Foreign Minister on 12 August 2005, president declares state of emergency
- HRW warns of escalation of violence and raises concerns about security of Tamils living in government-held areas

HRW, 16 August 2005

"The assassination of Foreign Minister Lakshman Kadirgamar in Colombo on Friday highlights Sri Lanka's spiraling crisis of political killings, Human Rights Watch said today.

Kadirgamar is the latest and most prominent victim of political violence that has continued in Sri Lanka since the 2002 ceasefire between the government and the separatist Liberation Tigers of Tamil Eelam (LTTE). Since the ceasefire, more than 200 people, mostly Tamils, have been killed for political reasons. Most of the murders have been attributed to the LTTE. The rate of attacks has escalated since April 2005, with credible reports estimating the rate of killings at one a day by June 2005.

Human Rights Watch expressed concern about possible reprisals against Tamils living in government-controlled areas. The police have deployed 1,000 officers to find Kadirgamar's assassins. The government also declared a state of emergency nationwide, giving security forces sweeping powers to deploy troops, arrest persons without charge, and search and demolish buildings."

President Kumaratunga extended the state of emergency by one month on August 16, 2005.**AlertNet, 17 July 2005**

"Tamil Tiger rebels warned on [17 July] of an imminent return to Sri Lanka's two-decade civil war, vowing to carry arms in government-held areas -- a move that could rupture a three-year ceasefire.

[...] "The Tamil people are justified in thinking war is imminent and would take place soon," he added. "In the future we shall take to our usual mode of travel arrangements. And if the military obstructs it, the ceasefire agreement will enter a critical stage."

Thamilselvan said a Supreme Court ruling that blocks a government pact to share \$3 billion worth of tsunami aid with the Tigers only underlined the fact the Tamil people could not expect justice from the majority Sinhalese.

[...] The Tigers have closed their political offices in government-held areas in the east and pulled their cadres back to pockets of jungle they control.

Analysts and diplomats say the standoff could spark an armed confrontation, breaking the truce and raising the spectre of a return to civil war"

DPA, 19 August 2005

"Tamil rebels have agreed to hold a meeting with the Sri Lankan government to review the fragile cease-fire between the two sides, a Norwegian embassy spokesman said."

Renewed conflict outbreak in 2006

LTTE and Karuna group step up military and political mobilisation (September 2006)

CFR, 11 September 2006:

"While some portion of Tamils living overseas support LTTE efforts, the Tigers often use intimidation to secure the lion's share of their funds from abroad. LTTE operatives' tactics include telling expatriates to contribute funds to protect the safety of family members back in Sri Lanka, as well as kidnapping affluent Tamils in Sri Lanka for ransoms secured overseas. Members of the Tamil community abroad say the culture of fear that surrounds such tactics is enough to coerce them to fund the Tigers. Although it is difficult to ascertain how much money flows into LTTE coffers, the group is thought to be one of the wealthiest militant organizations in the world, and extortion of funds from the Tamil diaspora increased during 2005 as the Tigers prepared themselves for the current conflict."

CPA, May 2006, p.18 - 20:

"[...] there were significant developments in the North-East which had multiple effects of the Tamil polity. The 'people's groups' had become increasingly active, launching attacks on the army and police. While the LTTE sought to present this as a popular uprising ,è...," theis was contested by the State and even the SLMM, which the former indicating that they are just LTTE front organisations. [...]The groups have created a critical dynamic in terms of political mobilisation, as the violence, against Tamil civilians, in particular, has generated more sympathy for the use of violence and even a potential return to war. LTTE military training programs for cililians continued and were even expanded in some areas.

[...]

[The Karuna Group] continued to launch attacks in LTTE-controlled areas, but also stepped up its political activiti43s in government-controlled areas, [notably in Batticaloa] [...] Karuna also attempted to broaden his support among the Muslim community vowing to shoot dead members of the LTTE who did not return properties seized from the Muslim Community in the North in 1990.

[...]

This consolidation by the Karuna grupo is of critical concern to the LTTE, and hence it is using multiple strategies - military and political - to severely weaken the group. Teh power struggle and the LTTE's efforts to regain an uncontested political hegemony will continue and intensify"

HRW, 15 March 2006:

"The LTTE has for many years pressured members of the Tamil community to provide financial support for its operations. In late 2005 and early 2006, as armed violence escalated in Sri Lanka's North and East, threatening the four-year-old ceasefire between the government and the LTTE, the LTTE launched a massive fundraising drive in Canada and parts of Europe, pressuring individuals and business owners in the Tamil diaspora to give money for the "final war." Fundraisers for the LTTE and LTTE-linked organizations went from house to house, and approached businesses and professionals, demanding significant sums of money for their cause. In Canada, families were typically pressed for between Cdn\$2,500 and Cdn\$5,000, while some businesses were asked for up to Cdn\$100,000. Members of the Tamil community in the U.K., France, Norway, and other European countries were asked for similar amounts.

Individuals who refused were sometimes threatened. Some were told that if they didn't pay the requested sum, they would not be able to return to Sri Lanka to visit family members. Others were warned they would be "dealt with" or "taught a lesson." After refusing to pay over Cdn\$20,000, one Toronto business owner said LTTE representatives made threats against his wife and children."

Developments in Jaffna (October 2006)

- The security situation in Jaffna is very tense in May 2006, access to populations in need is seriously hampered

CHA, May 2006, p. 1:

"A threatening atmosphere prevails in Jaffna. The Government Agent stated that the killings have increased upto seventy and grenade attacks on the armed forces have increased. Roads are deserted after 03.00 p.m. and normal life comes to a standstill. Roadblocks have been setup and vehicle checks are being conducted everywhere as well as body checks on pedestrians. The Police and armed forces heavily patrol the town. Travelling on the A9 Road poses a large threat to the public as there are check points in-between the main junctions. Vehicles have to be registered at both ends and results the delay of reaching destinations to the passengers. Thefts and robberies have increased in the town. The city is filled with recently displaced people from Allaipity, Mankumban, Velanai, Saravanai and Karainagar. Advanced Level students faced a tough times during their exams as their safety was not guaranteed. Most NGOs and INGOs have stopped their field work and as a result, this has had a immensely negative effect on the IDPs. There remains a state of pandemonium all over the Jaffna town. Long queues were seen at the fuel stations in the peninsula, where there is a severe fuel shortage.

[...]

The firing incidents have increased. The fishing community were badly affected as the sea security zone is still maintained. Many a persons of the fishing community are facing starvation as they are unable to go fishing. In places like Mannalkadu and Nagarkovil, security forces do not permit outsiders to visit the villages. NGOs working in these areas have withdrawn their activity. Many people from these villages have been displaced to the Vanni area. NGO vehicles were not permitted to reach the airport at Palaly."

AFP, 11 October 2006:

"Tamil Tiger rebels killed at least 35 government troops and wounded another 200, halting a major offensive into their territory in northern Sri Lanka, military sources said. Stiff resistance stalled the government's onslaught, which was backed by Israeli-built Kfir jets, after about six hours, high-ranking military sources said on Wednesday.

The bloodshed hit Sri Lanka's peace hopes a day after Norway, the key peace broker in the conflict, announced a deal between the two sides to resume negotiations in Switzerland later this month and end an eight-month talks impasse. The military sources said the casualties occurred in the Muhamalai area of the Jaffna peninsula on Wednesday morning. Casualty figures for the rebel Liberation Tigers of Tamil Eelam (LTTE) group were not immediately available. The warring parties blamed each other for the escalation. Defence Ministry spokesman Prasad Samarasinghe said the operation was intended to neutralise a rebel build-up near the front line on the Jaffna peninsula, 400 kilometres (250 miles) north of Colombo.

[...]

The military said its ground offensive, supported by warplanes, was a "defensive act" as a result of Tamil Tiger attacks. "We can't verify the reports but it is something the LTTE has informed us of," said Thorfinnur Omarsson, a spokesman for the Sri Lanka Monitoring Mission. However, Omarsson said they also had information that the fighting had died down by mid-day. Both sides said the offensive was launched just before dawn.

"The offensive, shattering peace hopes, comes few hours after an official announcement by Norway that parties had agreed to meet in Switzerland from 28 to 29 October," the pro-rebel Tamilnet.com web site said. The LTTE said the military was carrying out a three-pronged attack

against rebel-held territory in the Jaffna peninsula. "Intense clashes are going on," the LTTE said in a statement sent to Colombo from its political headquarters in the northern town of Kilinochchi earlier in the day."

Grave human rights violations: civilians increasingly target of rampant impunity of perpetrators (October 2006)

UNGA, 20 October 2006:

"PHILIP ALSTON, Special Rapporteur on extrajudicial, summary or arbitrary executions, focused on two particular concerns related to challenges confronting the system of special procedures, and the need to sound an early warning alarm in relation to developments in Sri Lanka. [...] He said that the alarm was sounding as the country stood on the brink of a crisis of major proportions. The issue had placed squarely before the Human Rights Council last month, but signs were that any action the Council might take in November would do very little to make a difference, as the tragic situation threatened to reach the bursting point. The first challenge was to acknowledge the need for significantly more sustained and high-level international involvement to pressure the parties to move toward a peaceful resolution of the conflict. The second challenge was to accept that there was no national institution capable of monitoring human rights throughout Sri Lanka and, third, to establish an effective international human rights monitoring mechanism. His report urged the General Assembly to call upon the United Nations Secretariat to establish a full-fledged international human rights monitoring mission in Sri Lanka. "

CPA, May 2006, p.39, 40 (and following):

"Civilians are not just caught in the crossfire, but have become the targets of violence. [...]. It seems that the distinction between combatants and civilians has shrunk as the LTTE has tried to make clear that the violence is generated by the people and the Armed Forces have sought to minimize the LTTE's military strength through taking concerted action, be it prevention or retaliatory, against civilians. [...] This quarter has also seen an increase in the number of abductions and disappearances with particular areas such as Batticaloa, Welikanda, Jaffna and even the South experiencing an upsurge of such incidents. [...]

Trincomalee suffered multiple forms and incidents of violence that polarized ethnic communities and generated waves of displacement.

[...]

Both the armed forces and the LTTE have seriously challenged the concept of non-combatants. The LTTE has increasingly tried to minimize the distinction between itself and the Tamil civilian population by not trying to avoid attacks in civilian populated areas and by presenting the civilians as being responsible for particular attacks. [...] "Government forces were faced with an enemy that appeared from within the civil population. When the army said that it had killed suspected attackers, the Tigers said they were innocent civilians" [...] It has become a propaganda war with civilians increasingly having to suffer the brunt of it. [...] The military training of vulnerable groups such as senior citizens and children by the LTTE has intensified the challenge to distinctions between combatants and non-combatants.

[...]

p.44:

Within the quarter, the issue of state accountability and impunity became a dominant concern. The role of security agencies in particular acts of violence and intimidation was repeatedly highlighted but there seemed to be an inability and unwillingness on the part of the state to take concerted action."

Peace efforts 2006

Geneva peace talks February 2006 (May 2006)

- Geneva I (February 2006) was only a short-lived success
- Geneva II talks (end of April 2006) were cancelled, as CPA violations became more frequent

CPA, May 2006, p. 8-12:

"Why did the Geneva Talks end up being a success, and why did the parties compromise on their stated positions? An optimistic perspective would be that the parties realised that if they failed to come to an agreement, it would basically call into question the continuation of the peace process. [...] A more pessimistic opinion would be that it was a time-buying measure, for neither party is quite ready to go to war and each was playing to the international gallery to demonstrate their commitment and relieve some culpability in light of a decision to return to war. The agreement may have in fact offered the parties a way of testing each other's commitment and branded both short-term relief and potential long-term opportunities for peace making.

[...]

[After the Geneva meeting, there were increasing signs of the LTTE committing violations of the CFA and the Geneva agreement, in particular with regard to child recruitment. General violence was on the rise in the lead-up to the April talks, which eventually had to be cancelled]

[...]

In summary, the inability and the unwillingness of the parties to implement the agreement, coupled with the increase in violence, either through the parties' direct participation in violence or their facilitation of it, raised real questions as to their commitment to the negotiations process as a whole. [...] With Geneva II it became clear that there is confusion and deep rooted suspicion that makes progress in peace talks highly doubtful, unless there is a fundamental shift in the parties' approach to the peace process and each other. "

Geneva October peace talks end without result (October 2006)

- Despite dim hopes for an agreement, the Geneva talks of 28 and 29 October passed without any results
- Ahead of the talks, President Rajapakse declared the Sinhalese population of Sri Lanka united behind his attempt to negotiate peace in Geneva in October 2006
- The pact between the ruling Sri Lanka Freedom Party and Ranil Wickremesinghe's opposition United National Party was meant to strengthen the government's position in peace talks
- LTTE violence prior to talks did not indicate a real commitment to peace talks
- The LTTE brought forth the closed A9 Highway as a main cause for the humanitarian hardship

BBC, 29 October 2006:

"Norwegian mediator Erik Solheim said no deal had been reached on how to address the humanitarian crisis and no dates had been set for new negotiations. The two-day talks in Geneva had been intended to shore up the 2002 ceasefire amid a major upsurge of fighting. They were the first time the two sides had met in eight months. Since July, 372 security force members, 128 civilians and many rebels have died, the government says.

Norwegian diplomats warned at the outset not to expect too much, says the BBC's Imogen Foulkes in Geneva. There was always the suspicion that the Tamil Tigers and the Sri Lankan government turned up only because of international pressure and without any real desire to talk peace, she says, and the lack of progress seems to prove this. The first day began with a strained handshake between the leaders of the two delegations. Swiss diplomats also reminded the Tamil Tigers and Sri Lankan government of their obligations under the Geneva Convention. Saturday was taken up with lengthy recriminations, with each side blaming the other for recent violence.

Sunday foundered on the issue of access to the Jaffna peninsula. The Tamil Tigers demanded the re-opening of the highway to the region saying its closure was preventing humanitarian aid reaching civilians in need. They have said they will not agree to any future meetings if the demand is not met. The government countered that the road was closed because the Tamil Tigers were attacking it and extorting fees from vehicles using it.

Both sides say they are committed to the ceasefire but the acrimonious atmosphere at the close of the talks and the ongoing fighting in Sri Lanka must leave that in doubt, our correspondent adds.

The last round of discussions was in Geneva in February. Two subsequent attempts at talks failed, most recently in June. Since then the international landscape has changed significantly for both sides, our correspondent says. The rebels have been blacklisted as a terrorist organisation by the European Union and Canada. The government, meanwhile, is concerned about losing its international credibility. Both parties have been criticised for human rights abuses, while, on the military front, both have suffered reversals of fortune."

Reuters, 23 October 2006:

"Sri Lanka's ruling and main opposition parties signed a pact on Monday that envisages a joint approach to a stalled peace process, less than a week ahead of talks between the government and Tamil Tiger rebels.

The pact brings together the two main parties in the Sinhalese-dominated south on key national issues including, for the first time, on how to deal with the rebels politically. "

Reuters, 24 October 2006:

"Analysts say greater unity in the normally politically divided south would help the government negotiate with more flexibility -- and public support -- with the rebels in talks in Geneva on October 28-29, aimed at trying to ease the ethnic conflict[...]. "It will certainly be a worrisome proposition for the LTTE, which claims it cannot trust any government to carry out a settlement it may agree to, as state politics and pacts don't survive elections," the Island said in an editorial. "If the SLFP and UNP could agree on a political solution and offer it to the LTTE jointly, the LTTE will be left without excuses for continued bloodletting. This is the way forward."

Times, 19 October 2006:

"The massive suicide attack on a Sri Lankan naval base at Galle is depressing evidence that the Tamil Tigers have no intention of pursuing peace talks and are determined to drag Sri Lanka back to full scale civil war. The attack by terrorists posing as fishermen in two boats came after the huge suicide bomb on Monday that killed almost 100 people, mostly sailors, in the deadliest assault of this long and brutal campaign.

All hopes that the Tigers can now be persuaded to continue restraint or look for ways to resume the talks mediated by Norway now seem unrealistic. There was probably never any serious

intention by the Tigers' leader, Velupillai Prabakharan, to abandon violence or enter a dialogue that could have led to a political solution on the island that would have marginalised the cult-like influence of this malign figure.

The Tigers' clear strategy has been to resume the armed conflict by a series of provocations. They began by ordering a boycott of last year's elections in the expectation that a hardline Sinhalese nationalist, known for his anti-Tamil views, would triumph. This, they hoped, would lead to a clampdown that would alienate even moderate Tamils and rally them to the Tigers. That nationalist, Mahinda Rajapaksha, did win — and the Tigers responded with a series of manufactured incidents, including a dispute over water sources three months ago, which drew an armed response from the Government. More than 2,000 people have been killed in violence this year alone, monitors of the tattered "ceasefire" report. The country has clearly entered another tragic cycle of extreme violence."

POPULATION FIGURES AND PROFILE

General

Number of IDPs has reduced in 2008 but still remains at more than 450,000 (July 2008)

- Displacement in Sri Lanka is characterized by its fluidity and unpredictability
- As of 30 November 2007, the number of IDPs from the 2006/2007 phase of the conflict was 185,325, down from the March 2007 high of 308,000 IDPs
- The 'new' IDP caseload joined the 312,712 individuals previously displaced from the pre-ceasefire phase of the conflict prior to 2002
- As of December 2007, the Government estimated that there were 577,000 IDPs in Sri Lanka
- By May 2008, there were an estimated 455,514 conflict-displaced persons in Sri Lanka
-

CHAP, February 2008:

"As of 30 November 2007, the number of IDPs from the 2006/2007 phase of the conflict was 185,325, down from the March 2007 high of 308,000 IDPs. In addition, 20,200 Sri Lankans have sought refuge in India since January 2006. The 'new' IDP caseload joined the 312,712 individuals previously displaced from the pre-ceasefire phase of the conflict prior to 2002 as well as the 100,000 IDPs displaced as a result of the 2004 tsunami.

New displacements are now taking place across pre-ceasefire groups and tsunami-affected persons, clouding differentiation in categories. Clashes along the FDL in Mannar during the last months of 2007 increased displacement in the Vanni to 127,477. In addition, approximately 70,000 residents of the northern Jaffna peninsula live under extremely isolated circumstances which have resulted in increased hardship and dependence on food and other basic assistance."

SRSG, May 2008:

"Displacement in Sri Lanka is characterized by its fluidity and unpredictability. Mass returns were prioritized by the Government and carried out extremely quickly in the East during 2007. In a period of months in mid-2007, more than half of the 308,000 newly displaced returned home. Meanwhile as military activities have intensified in the North, there has been more displacement. Finally, some IDPs have been displaced more than once, i.e., some of those displaced prior to 2002, or displaced by the tsunami, were again displaced by the resumption of the armed conflict. In total, however, as of December 2007, the Government estimated that there were 577,000 IDPs in Sri Lanka."

CHAP, July 2008:

"Of the 182,802 IDPs displaced since 2006, 121,366 are displaced in the Vanni region, including nearly 50,000 who have been displaced since fighting escalated in the fall of 2007. Many of the displaced within the Vanni are facing multiple displacements, as the Security Forces have made slow, but steady gains, particularly along the western Forward Defence Lines (FDL).

Sri Lanka's total IDP caseload includes the 182,802 post-April 2006 IDPs, another 272,712 individuals displaced by conflict prior to the 2002 Ceasefire Agreement (CFA), and an estimated 26,073 Tsunami IDPs for a total of 481,587. In addition, there are 21,677 Sri Lankan refugees in India including 1,240 who have arrived in India since January 2008."

Number of IDPs (Special report, 2007)

It is difficult to determine the exact numbers of internally displaced people in Sri Lanka today due to the overlap between those displaced by the conflict and the 2004 tsunami, and between those displaced by the conflict before and since 2006. According to estimates, however, around 460,000 people remained displaced in Sri Lanka in August 2007 as a result of conflict and violence, including over 181,000 people, or 49,000 families, displaced by the fighting since April 2006.

Over 312,000 people were still registered as displaced due to conflict and violence in April 2006. By the end of December 2006, this figure appeared to have risen to 520,000 people, out of Sri Lanka's total population of 20 million.

The renewed fighting had in the year to April 2007 displaced an additional estimated 301,000 people from their homes. An estimated 101,000 of these newly displaced people have returned to their areas of origin as at September 2007, within government- and UNHCR-supported return programmes in Trincomalee and Batticaloa districts, including over 3,000 who are staying in transit camps until a durable solution is found for them. Some IDPs have also returned spontaneously to their areas of origin.

In August 2007, the International Organization for Migration in Sri Lanka reported that almost 11,000 families displaced by the 2004 tsunami remained in transitional sites. This number did not include those displaced from the LTTE-controlled areas of Kilinochchi and Mullaitivu, where figures were not available, or tsunami-displaced people living with host families.

A group not included in these IDP statistics is "night IDPs" who stay at their homes during the day, but spend the night in jungle areas or away from their homes due to fear of violence from armed groups. The phenomenon of night IDPs has been increasingly observed since 2006. (IDMC, August 2007)

Prior to 2006, about 60,000 Sri Lankan Tamil refugees were living in refugee camps in the Indian state of Tamilnadu, while at least another 20,000 refugees lived outside the camps. From January 2006-July 2007, over 19,000 additional Sri Lankan refugees arrived in Tamilnadu state. (IDMC, August 2007)

Over 301,800 currently displaced because of fighting since April 2006 (April 2007)

- As of mid-2007, it was estimated that up to 650,000 were displaced due to conflict in Sri Lanka. In the absence of any official estimate and accurate return figures, it should be noted that this figure is a rough estimate.
- Tens of thousands have returned to their homes since March 2007, in particular in the north-east, but many may still be living in situations akin to displacement.
- As of April 2007, UNHCR estimated the number of people displaced since April 2006 at over 300,000 people.

- In May 2006, UNHCR estimated that 312,000 people displaced by conflict prior to the 2002 ceasefire were still unable to return to their homes.
- As of June 2005, over 385,000 IDPs have returned home, most of them in 2002 and 2003; some 347,000 people remain displaced by the conflict, most of them staying with friends and family
- According to estimates, 78% of the displaced are Tamils, 13% Muslims and 8% Sinhalese.
- In the LTTE-controlled Vanni, an estimated 80% of the population was displaced as of January 2002, 90% in Kilinochchi District
- A large number of the Muslims evicted from Jaffna and Mannar by the LTTE in 1990 are still displaced in Puttalam, Anuradhapura and Kurunegala.
- Children constitute over one third of all conflict-IDPs.
- Return movements slowed down considerably after 2003.

The current displacement situation:

The total number of conflict-IDPs in Sri Lanka is a combination of long-term displaced (May 2006 figure) and newly displaced (April 2007 figure). The figure of 650,000 a rough estimate: unregistered IDPs living in host communities may increase the figure, while an unknown overlap between the two groups of displaced may reduce it.

1. As of 17 April 2007, UNHCR-Sri Lanka estimated that 301,879 people had been displaced due to the new round of fighting that started in April 2006. Six months earlier, in October 2006, this figure stood at 209,295.

2. In addition to this new IDP caseload, UNHCR estimated as of 31 May 2006, the total of conflict IDPs who were unable to return after the 2002 ceasefire at 312,712 (see sources).

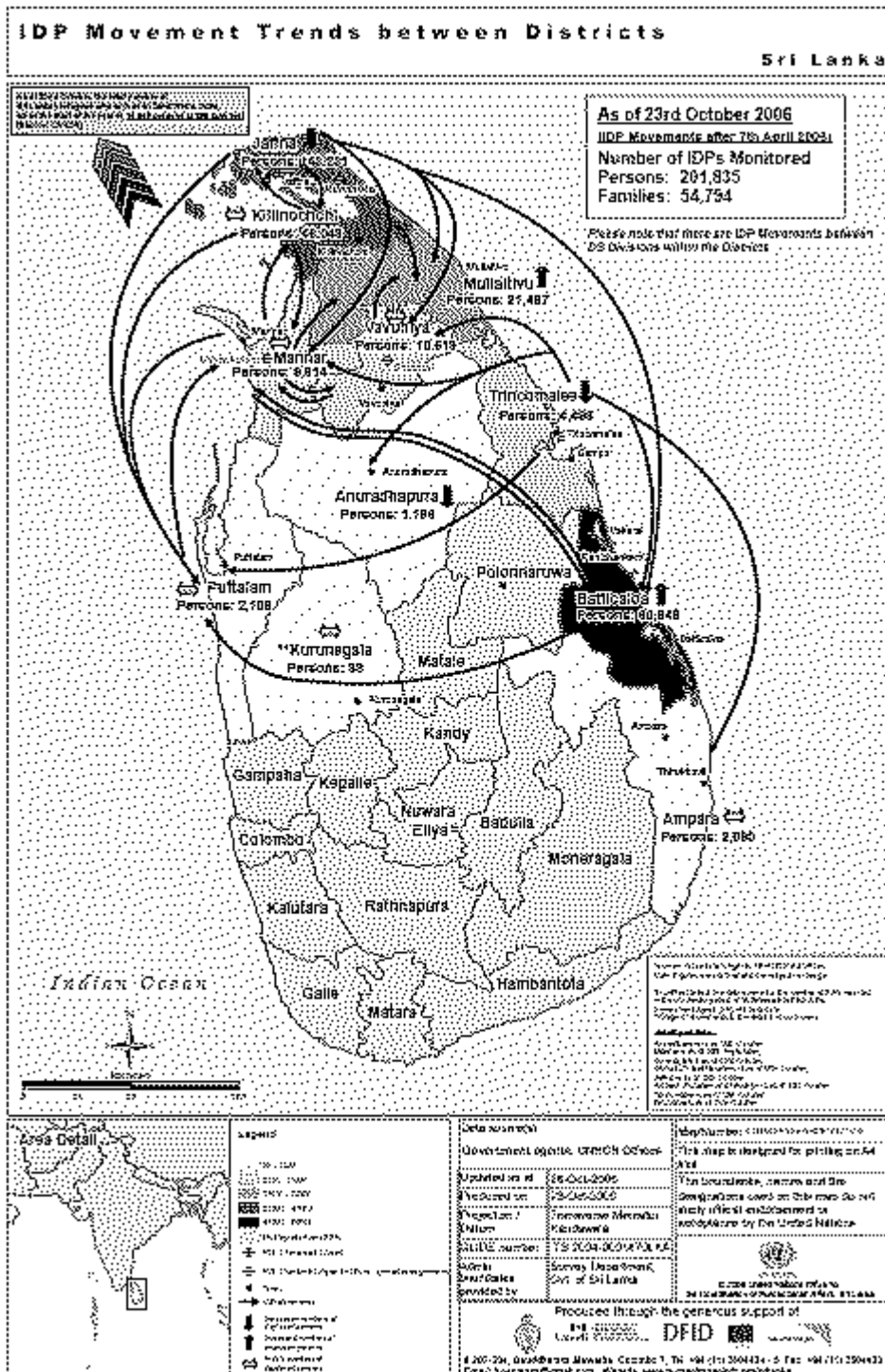
Including the latest estimate of 457,576 tsunami IDPs (31 December 2005, see sources), and factoring in a certain overlap between the three IDP groups, the total figure of displacement - due to both conflict and tsunami - could be between 600,000 and 800,000 (there is no official estimate). Of those, some 600,000 people are displaced due to conflict, although the overlap between the 200,000 newly displaced and the 312,712 pre-2002 conflict IDPs is not known, and many displaced may not be accounted for in the official figures due to access problems:

CHA, July 2006:

"Trincomalee: Discrepancy in the number of displaced persons reported remains an issue. Due to security reasons, many organisations are not in a position to assess the situation in the most affected areas of Muttur and Eachchlampattu."

Many of those who have returned home during 2006 have been re-displaced. Therefore, and again due to limited access to conflict areas, accurate estimates on returns are not possible.

Where are the displaced located:



USDS Country Report, February 2005:

According to the United Nations High Commissioner for Refugees (UNHCR), as of June 2005, 385,384 IDPs had returned to their places of origin, 347,475 persons remained displaced. 70,380 of them lived in welfare centres, 277,000 stayed with friends and family. (UNHCR statistical summary 31 May 2005) [In 2004], according to various sources, approximately 65,000 IDPs were unable to resettle as a result of the High Security Zones. The UNHCR found sexual abuse to be endemic in IDP camps. According to the UNHCR, 5,633 Tamil refugees had returned from India during the year. During the year, the Government began a program to relocate 1,500 IDPs to state lands in Vavuniya and Kilinochchi Districts in the north."

At the beginning of 2004, 34 per cent of the displaced were children:

"Of the 400,000 remaining IDPs in Sri Lanka, it is estimated that 34% are children (136,000 children)." (UNICEF, January 2004)

Tsunami disaster raises number of internally displaced

In June 2005, UNHCR estimates a total of 347,500 conflict-IDPs and 457,500 tsunami IDPs. UNHCR states that tsunami displaced may include some conflict IDPs but does not yet have any information available yet on how significant the overlap of those 2 figures is (UNHCR statistical summary, May 2005).

Numbers Displaced (estimated)

December 1994	525,000*
October 1995	649,049*
December 1995	1,017,181*
May 1996	839,161*
December 1996	768,356*
March 2001	707,215*
January 2002	683,286*
January 2003	410,000**
March 2004	369,438**
December 2004	352,374**
April 2005 (conflict)	347,475**
June 2005 (tsunami)	457,576**

*Source: Ministry of Rehabilitation and Reconstruction/ Commissioner General of Essential Services (CGES)

** Source: UNHCR statistical summaries (www.unhcr.lk)

CPA, July 2003

"According to statistics provided by the Commissioner General of Essential Services (CGES), as of January 2, 2002, there were approximately 174,250 persons in 346 welfare centers in the districts of Jaffna, Kilinochchi, Mullaitivu, Mannar, Vavuniya, Trincomalee, Batticaloa, Ampara, Puttalam, Anuradhapura, Kurunegala, Polonnaruwa, Colombo and Matale. A further 509,036 displaced persons were staying with friends and relatives. The IDPs outside the camps are also eligible to receive rations from the state. According to the CGES statistics, there were a total of 683,286 persons displaced as of January 2, 2002, both within and outside camps. However, these statistics do not capture the total number of displaced people who either are not eligible to receive dry rations due to economic reasons or have not registered with the government and who are living in other areas, including the city of Colombo."

Geographical distribution and disaggregated figures

Distribution of IDPs by district (February 2008)

- As of early 2008, the largest number of IDPs in Sri Lanka are in the north and northwest parts of the country

As of early 2008, the following geographic information on IDPs was available through the CHAP of February 2008:

District: IDP figure: Percentage of population displaced:

Jaffna: 595,000: 32,960, 5.54%
Mannar: 100,000: 22,433: 22.43%
Vavuniya: 164,000: 10,643: 6.49%
Mullaitivu: 145,000: 32,323: 22.29%
Kilinochchi: 142,000: 48,321: 34.03%
Batticaloa: 556,000: 26,409: 4.75%
Ampara: 627,000: 5,564: 0.89%
Trincomalee: 395,000: 6,672: 1.69%

Only little disaggregated information available (October 2006)

As of October 2006, the following information on ethnic, age and gender breakdown is available:

CPA February 2003, pp. 24-25

"By virtue of their geographical concentration in conflict-affected areas, Tamils have been most affected by displacement numerically. The exact ethnic breakdown is not available, but it is estimated that 78% of the displaced are Tamils, 13% Muslims and 8% Sinhalese.

In the LTTE-controlled Vanni, it is estimated that 80% of the population is displaced; 91.75% in Kilinochchi District, according to the Kilinochchi Government Agent. In Government controlled Northern areas, a substantial number of persons remain displaced in Vavuniya, the Jaffna peninsula and Mannar. In 1990, approximately 90,000 Muslim residents were evicted en masse by the LTTE from the North and [continue to live in precarious conditions in Puttalam, Anuradhapura and Kurunegala [...]. In the multi-ethnic Eastern Province, Tamils, Muslims and Sinhalese residents have all been displaced, often as a result of attacks on their villages. Most have settled in their District of origin."

MRRR and UNHCR, 2004:

The UNHCR survey carried out in Puttalam Welfare Centres in 2004 has the following age-gender breakdown:

Age
0-4: 12.1%
5-17: 30.7%
18-59: 53.4%

over 60: 3.8%

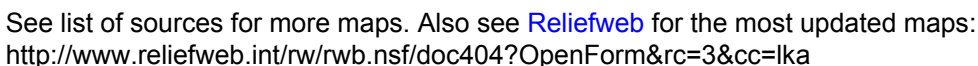
Gender

Female: 49.5%

Male: 50.5%

Most recent maps indicating displacement (October 2006)

Sri Lanka



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- Many IDPs live with family or friends, in temporary shelter or in public buildings
- Because of this, estimates of IDP figures may vary and are difficult to establish

IFRC, 12 October 2006:

"As a result of the renewed clashes between the Sri Lankan Armed Forces and the LTTE in the North and East of Sri Lanka in the last months, the number of newly displaced Internally Displaced Persons (IDPs) increased from approximately 25,000 civilians in April 2006 to approximately 200,000 in September (source UNHCR and Government agents). The majority of the IDPs displaced in the last 5 months are from conflict affected areas in Jaffna, Trincomalee and Batticaloa, where fighting has intensified over the summer. Most IDPs are staying with relatives or in temporary shelters that have sprung up in schools, public buildings and places of worship in safer areas."

CPA, May 2006, p.63:

Partially for political reasons and partially because large-scale displacement is difficult to assess (as many people stay with relatives or move further) exact figures are difficult to obtain.

UNHCR Colombo, August 2005:

UNHCR confirms in its statistical update that the precise number of conflict IDPs also affected by the tsunami is not yet established. Other sources affirm this statement (NRC, email, 26 August 2005). UNHCR pointed out the need for an overall IDP needs assessment.

The number of tsunami-IDPs seems to be diminishing quite rapidly, and it is recommended to check the [UNHCR Sri Lanka](#) website for most recent figures.

2006 displacement in Trincomalee district (October 2006)

- A market bomb in Trincomalee set off riots which prompted thousands to flee
- Army attacks on Mutur and Sampur caused the displacement of some 45,000 persons
- After returning from the August displacement, many fled again due to fear of renewed fighting in September
- The army hinders many to flee

AI June 2006, p.11

Following the market bomb and air strikes in Trincomalee [on 12 April 2006], according to UNHCR and other agencies, 32,081 people comprising 9,039 families were displaced from several villages in the district, and are living in temporary shelters."

UNHCR, September 2006, p.3:

Trincomalee District in the East of Sri Lanka has been the main source of displacement since April 2006. The situation in this District got dramatically worse after a LTTE offensive on the town of Muthur in early August. As a result, tens of thousands of people from Muthur and surrounding areas moved inland to locations around Kanthale and South to Eachchilampattia. On 4th September, 47,586 individuals remained displaced in Trincomalee District alone. A comparable number are reported to have fled further south down the coast to Batticaloa District, where nearly

60,000 people are registered as newly displaced. This figure includes over 16,000 people displaced by events within the District itself.

Some of those displaced from Trincomalee have also moved west across the country to Vavuniya, Puttalam, Anuradhapura and Mannar – the most popular departure point for those who wish to seek refuge in Tamil Nadu, southern India. Since clashes between government forces and the LTTE flared up in mid August, the various districts within this region to the North of Sri Lanka have received people fleeing South from Jaffna, Kilinochchi and Mullaitivu but have also experienced displacement from within the districts themselves. The newly displaced population in Vavuniya and Mannar now stand at over 9,500.

CPA, 25 August 2006:

"Kantalai is a predominantly Sinhala settlement town, that grew up around the large Kantalai tank that provides water for thousands of acres of paddy. Serunuwara is a smaller town with a mixed population. It is a place of Buddhist pilgrimage due to the location of the temple at Seruvila.

Figures made available to us by the Divisional Secretary, Kantalai, indicated that on the evening of Monday August 21 there were 24,173 displaced persons living in Centres in and around the town of Kantalai. The majority of them are Muslims, from Mutur. Of the Sinhala IDPs who had reached Kantalai and first took up residence in the Buddhist temple in the town, there were only 70 families left. They had moved to the area near the Railway Station, and many of them were ready to return to their homes. Since there is no shelling of Kantalai town and its immediate vicinity, there had been no displacement of the people of Kantalai.

In Serunuwara, there were 71 families in the Pilgrim's Rest of the temple and 176 families in the Kavantissa school. They were all Muslims, fleeing from Selvanagar, Allanagar and Thoppur. In addition, officials told us that almost everyone in the town had spent several nights gathering in public buildings for fear of the shelling which was very close to the town on some occasions.

Waves of IDPs arrived in Kantalai from the 3rd and 4th of August. At a peak, there were around 27,000 persons. By the time of our visit, August 21, the numbers had begun to reduce. Over 3000 persons had returned to Mutur and surrounding areas. We were informed that the state had provided transport to take those who wished to return to their homes, with one bus having taken 8 families on the day of our visit. While many that we spoke to indicated their desire to return home, the prevailing situation did not give them the confidence to do so. One man who had gone back to Mutur said that the shelling had continued upto the 20th and that they could not spend their nights at home. Such stories only reaffirm the fears of those presently living in the schools and centres in Kantalai and contemplating return. Although the government continued to assert that there were initiatives underway to restart the ferry service between Trincomalee town and Mutur, to rebuild the damaged infrastructure and homes and to restore the electricity and communication services, yet much more has to be done to restore normalcy and provide security guarantees. This too was a factor that prevented people from returning to Mutur."

Reuters, 24 September 2006:

"Thousands of Muslims are fleeing their homes in embattled northeast Sri Lanka for the second time in as many months but thousands more are stranded, aid workers said on Sunday, after a suspected rebel front vowed to recapture the newly resettled area. Families who had fled the northeastern town of Mutur as it was ravaged by fighting between the military and Tamil Tigers in August only returned from tent cities and refugee camps a fortnight ago after the army drove the Tamil Tigers out.

Now the military is blocking many resettled civilians from leaving again. Around 1,500 families left Mutur for nearby Kinniya on Saturday and more than 1,000 families were stranded at a jetty on Sunday after the government suspended ferry service to the northeastern port of Trincomalee, one local aid worker told Reuters by telephone from the area. "The military and the government are not allowing them to move," he added. "They have stopped the ferry and also by the land route they are stopping them and don't allow them to go on."

The attempted exodus comes after a previously unknown suspected rebel front called Tamileela Thayaga Meedpu Padai distributed leaflets in the town warning residents to leave immediately. "The final preparations have begun to recapture ... Mutur," the leaflet said. "Do not remain in Mutur... you will only face destruction." The Liberation Tigers of Tamil Eelam (LTTE) were not immediately available for comment, but demand that the government must give back the nearby town of Sampur, which the army had captured. The town sits on the southern lip of the strategic harbour of Trincomalee.

Tens of thousands of people displaced by fierce fighting in and around Mutur had spent weeks camped out in emergency shelters in schools in the eastern town of Kantale, but government officials said they were under pressure to return life to normal for the town's regular habitants. "The security forces are giving protection to the civilians in Mutur, so there is no need for them to go because of this LTTE threat," said a military spokesman. "They are telling people not to leave, because security is provided by the security forces," he added. "

CPA, May 2006, p.63:

The wave of displacement in Trincomalee in April 2006 made immediate estimates very difficult. First estimates by the Divisional Secretary of Mutur of over 43,000 were soon revised by OCHA to some 21,500, after the government claimed the estimate was too high.

Displacement from and within Jaffna and Kilinochchi, Dec. 2005 to October 2006 (October 2006)

UNHCR, September 2006, p.3:

"Further North, displacement from Jaffna to Kilinochchi was a key feature of an earlier December 2005-January 2006 movement, before a round of peace talks resumed in February 2006 and calmed tensions for a short while. Residents of Jaffna and Kilinochchi have been severely affected again by the mid-August sudden escalation in fighting, with nearly 48,500 people registered as newly displaced within Jaffna District alone and several hundred stranded on islands to the North of the peninsula, as well as unknown numbers in areas close to the fighting between government forces and the LTTE in the South.

In Kilinochchi, some 35,500 people reported as displaced by events at the beginning of the year had all returned home by the end of March. Now, the tide has turned and there are over 44,000 people registered as displaced by the latest bout of fighting. The host families who managed to shelter January's IDPs have been overwhelmed by this latest influx, leaving at least 18,000 people forced to stay in communal buildings or in the open air. Almost 13,000 IDPs from the North are also registered as displaced with Mullaitivu."

Displacement from Ampara (July 2006)

- Villagers from Sri Vallupuram (Ampara) have been displaced due to fighting nearby.
- They are in need of basic services and provisions

CHA, July 2006:

"SRI VALLIPURAM VILLAGE – This village is in the Thirukkoviul DS Division made up of fifty-four gypsy families.

[...]

The LTTE Political Wing Office is situated ½ km away from this village on the Kanjikuddicharu Road and, of late, is being attacked by another group active in the area. On such occasions, the villagers are caught in the middle. The last attack on July 15th was a decider for the villagers to move out of the area to a safer place, as some bullets had penetrated some of their houses. Children and women are living in fear and not willing to remain there. Therefore, the village leader Mr. Karuval Silva and other members have decided to move out of this village. Currently, they have moved with all their belongings to Kalliyar Kadu, in the Thirukkoviul DS Division. These people live under trees as there is no shelter for them.

Their immediate needs are:

Shelter

Water and Sanitation

Dry Rations

Action:

According to Mr. Manoharan, GS of the village, ICRC had visited the families and provided them with temporary shelter (tarpaulins). The SLMM has also visited the village. The GS stated that they will be issued Samurdhi rations. Two plastic water tanks, which were at Sri Vallipuram village, have been brought to the present location. The Pradeshiya Sabahawa is providing water with water bowsers.

According to Mr. Manoharan, no one had asked the villagers to evacuate, neither the STF nor the LTTE, but the villagers have moved out due to fear and security reasons. The community leader stated that they are being compelled to return to their village but no one is prepared to give assurance for their safety. The majority of the villagers are not willing to return to the village."

Mannar district affected by conflict (August 2006)

- The conflict had a great impact on the internally displaced, but also on the population of Mannar in general

CHA, August 2006:

"Due to the recent unrest, three thousand people have taken refuge at the Madhu Church (Madhu AGA Division), three hundred people have moved to Vanni (Manthai AGA Division), and one thousand five hundred people have moved to Madukarai (Nanattan DS Division).

[...]

Forty-two families displaced from Muttur to Kantale arrived in Puttalam seeking refuge. Some of these families were asked to come by their relatives in Puttalam and the rest have followed the group. Out of a total of one hundred and sixty-nine, 65% of the people are women and children. These families are living without food and sanitation facilities. The food provided randomly is provided through generous collections from people living in the area."

CPA, 28 June 2006:

Mannar District, in the north-west of Sri Lanka, is among the least developed districts in the country, but has a long and proud history. It has one of the earliest settlements in the island. In addition to a substantial Tamil and Muslim population, there is a significant seasonal migrant population of Sinhalese fisher folk. [...]

As a result of the conflict the co-existence that characterized the relations between the communities in Mannar have come under increasing pressure. In 1990, the expulsion by the LTTE of Muslims from Mannar along with those from the Northern Province, has meant that only a faction of the Muslim population still remain but it has also strained relations between the two communities.

Mannar affords the island's closest proximity to South India and historically was the entry point for many travelers. In the modern period, too, much of the exodus of Tamils to southern India in times of extreme crisis in the North and East has been through Mannar, and in particular through Talaimannar. The Sri Lankan Navy has always had a significant presence in the area due to the need to patrol the waters off the Mannar coast for smugglers and poachers. In the context of the present conflict, both the Sri Lankan Navy and the LTTE have had several major sea battles in the area.

[...]

Throughout the second half of 2005 and the first six months of 2006, life in Mannar has been marked by a series of confrontations between the LTTE and the Navy, including grenade attacks on Navy and Police security positions, and a number of attacks on civilians, allegedly by SL Navy personnel. The worst incidents have been the attack on the 100 Houses Housing Scheme on 23/24 December 2005 in which 11 homes were burned down and 4 persons burned to death; and the killing of four members of a family, parents and 2 children, in Vankalai on June 8 2006.

[...]

In the early hours of the morning of June 17, there was a clash between the LTTE Sea Tigers and the SL Navy in the seas just off Pesalai. Fishermen who had gone out to sea returned to shore with the news and the people of the area began flocking to the church fearing that the conflict would spread to the land.

11 days after the incident, it seemed to be a town still trying to cope with the aftermath of the violence of that day. We spoke to some individuals from the community, including the Pesalai Parish Priest, Fr. Vincent Patrick, who had been on the church premises during the attack. Many of them seemed to be traumatized after their experience, and in a state of grave insecurity regarding the future.

By the 28th, [...] there were up to 2,000 people staying the night at the church and returning to their homes in the daytime. There were around 200 persons remaining in the church permanently. Further, we were informed that many of the displaced were now living with family and friends. There did not seem to be a coordinated effort to provide assistance.

[...]

In Pesalai a significant population is now living in displacement, in the church or at friends' and relatives' homes. There are a number of resulting issues such as relief, sanitation, security of the displaced which need to be adequately addressed. Pessali has in fact experienced waves of displacement over the last six months with an incident of violence prompting the population to move away from the vulnerable parts of the town. Mannar has also had to deal with an influx of displaced from outside the district, who are attempting to seek refuge in India.

On the same day, June 28, we visited St. Lawrence's Church in Talaimannar in response to many reports that had reached us regarding a large influx of persons from Trincomalee to Talaimannar, seeking to travel to south India.

[...]

[In Mannar], daily incidents of violence have become the norm. [...] In Mannar Town there is an undeclared curfew at night where people fear to step outside after dusk. The violence has also

had an impact on the turnout at the Madhu Festival. Army personnel told us of how in previous years there would be traffic jams as they would have to check the convoys of vehicles making the pilgrimage, this year they said that there was barely a trickle. Reflecting the steady deterioration of the security situation across the North East there has been an increasing level of violence in Mannar over the last six months.

[...]

In addition to the multiple impacts listed above there has been a steady deterioration in the relations between the civilians and the Navy in particular. Key steps need to be taken to restore confidence through some dialogue and security measures to better ensure that military-civilians relations and the security situation can be strengthened.

MRRR, Mannar plan, 2004

“Displacement, life in welfare camps, lack of educational and health care service facilities, loss of nutritional status, poor sanitation facilities, disruption of family and social life have led to serious deterioration of the standard of living and quality of life of the affected population in particular and Mannar population as a whole. The prolonged civil strife has had a disastrous impact on the people of the district and their standard of living and quality of life. It has caused massive disruption to the economy, the society and the social and economic infrastructure.

It resulted in a temporary exodus of more than 80,000 persons with repeated displacements and permanent displacement of about 30,000 persons who remain displaced as refugees either abroad or in the land of their birth. A percentage have lost their bread winner and women headed families have increased in numbers. There is an unbalanced ratio and women are more than men. Displacement, confinement in camps, loss of privacy and traditional values, poverty and impoverishment, frustration have led to breakdown of traditional values and cohesiveness in society. The major problem that evolves out of this situation is the lack of opportunities for social and economic recovery and development of the whole population.”

Internally displaced in Puttalam, Anaradhapura and Polonnaruwa (July 2006)

- Some 60,000 IDPs live in Puttalam, most of them Muslims expelled from the north in 1990.
- Many returnees are newly displaced in 2006
- A 2004 survey of Puttalam's Welfare Centres reveals that many IDPs would like to return or integrate locally, but that security and livelihood issues are the hindering factors
- A May 2003 report describes the situation of internally displaced persons in Puttalam, Anaradhapura and Polonnaruwa

CPA, 19 July 2006:

"Puttalam in the North West of Sri Lanka is home to an estimated 60,000 displaced people. Most of the displaced are Muslim families from the five districts of the Northern Province who were forcibly expelled by the LTTE in 1990. Before 1990 they were a small minority in the Northern Province, concentrated in areas such as Erukkulampiddi and Musali in Mannar, and Moor Street in Jaffna, and were well integrated with their Tamil neighbours. When they were expelled they moved South, with a majority settling in Puttalam District, in and around Puttalam Town and Kalpitiya. Puttalam is also home to some Tamil and Sinhala conflict affected IDPs from a number of districts including Trincomalee, Batticaloa and Jaffna. Hosting a large IDP population has placed tremendous pressures on local services, as they were not proportionally expanded to meet the needs of the entire population. It has also strained relations between the IDPs and the

host communities who were initially welcoming and provided temporary assistance to the displaced.

Since the signing of the Cease Fire Agreement in February 2002, a small number of families and individuals have attempted to return to their homes in the North. Over the last few months, as the violence escalated and attacks on civilians intensified in the North East, a number of communities have been forced back into displacement. Muslim returnees who were trying to rebuild their lives and livelihoods also began to flee back to displacement in Puttalam.

[...]

With the escalation of violence in the North East over the last few months, there has been a steady stream of IDPs to the North Western Province including Puttalam, Kalpitiya, Udappuwa and Negombo. Official figures of IDPs are not available due to various reasons such as the displaced not reporting immediately upon arrival and the dynamic nature of the current situation. Through our interviews with organizations working with the displaced, the District Secretary's Office and the communities themselves it was reported that a large number of Muslim returnees from the North who were once IDPs attempted to return to their homes but were forced back into displacement once more.

The figures provided by NGOs and community-based organizations are of 384 families from Musali and Nanattan and 71 persons from Kuankulam in mainland Mannar moving back to Puttalam. In addition 46 families had fled from Jaffna District[...].

[...]

Several newly displaced from Karadikulli and now residing in Vepamadu spoke of the insecurity and fear faced by the people; the slightest rumour making them leave. Karadikulli is a small village in the Silavatturai AGA Division in South Mannar, just north of the Moderagam Aru that forms the Northern border of Wilpattu National Park and the southern border of Mannar district. There are two other villages with Muslim populations nearby – Marichchukkaddi and Palakulli. Twenty two individuals have moved to the village post-CFA. The individuals we spoke to referred to an incident on the night of June 30th in which allegedly the LTTE had robbed kitchen utensils from the Musali Maha Vidyalaya. This incident caused tremendous fear among the residents of Karadikulli and the other returnee Muslim Communities in Silavatturai and Musali Divisions, prompting many of them to flee. Newspapers reported that more than 240 families had fled Mannar over a 48 hour period.

Musali and Silavatturai are in a strategic location. The recent series of clashes between the Navy and the Sea Tigers off the Coast of Mannar provide some indication of this. There is heavy military presence along the A14 that links Medawachchiya to Mannar. LTTE controlled Wanni begins just a few kilometers away from the road.

[...]

Displacement of Muslims from other areas: According to organizations working with recently displaced from other areas in the North, the climate of fear and violence has prompted returnees to give up and return to Puttalam. The migration from areas such as Jaffna, Kilinochchi and Vavuniya seem to have begun soon after the shooting of a Muslim youth in Jaffna Town on 14th April. Though the shooting occurred in Jaffna, the fear and insecurity seems to have spread among Muslims in other areas with increasing numbers moving to Puttalam and Kalpitiya since April."

MRRR, UNHCR, Puttalam welfare centre survey, 2004

The IDP population surveyed in Puttalam welfare centers was 14,493 families, i.e. 61,763 individuals. Almost 99% of the people surveyed are Muslim.

Over 60% of the IDPs do not follow an income-generating activity.

While almost 60% would like to return home in the future (i.e. within a year), almost 40% prefer local integration. Well over half of the IDPs willing to return have land available at their place of return, but destroyed houses. Of those wanting to integrate locally, around 70% own land and/or house.

Especially those willing to return in the future, and those wanting to integrate locally need significant assistance for rebuilding their lives. Mannar in particular lacks basic health, educational and income-generating facilities seen as a prerequisite for return. For those willing to integrate locally, building materials and employment opportunities are the most pressing assistance needs.

Obstacles to return or local integration are mostly security-related, followed by landlessness, lack of local infrastructure and lack of income generation.

ADB, UN & WB, 9 May 2003, p. 4

"Three of these four Districts host significant numbers of IDPs. In the case of Puttalam some 66,200 IDPs (almost 10% of the total population of the District) were registered in 2002. They were overwhelmingly from the Muslim community (91%) and mainly from Mannar, with smaller but significant numbers from Jaffna, Kilinochchi and Mullaitivu (these were the main areas from which they were evicted in 1990). The IDPs are concentrated in the four Divisions of Kalpitiya (over half of the total), Puttalam (over a third) and smaller numbers in Mundel and Vanathavilluwa.

In the case of Anuradhapura, some 17,900 IDPs (just under 2% of the District population) are scattered. Significant concentrations of IDPs (above 1500) are found in the five divisions of Kekirawa, Padaviya, Rambewa, Kebithigollewa and Horowpathana. The places of origin and the ethnic composition of the IDPs are more varied (55 % Sinhala, 33% Moslem and 11 % Tamil).

In the case of Polonnaruwa, the 4,100 IDPs (a little over 1% of the population) are concentrated in 4 of the 7 Divisions, with only one (Welikanda) hosting more than 1,500. The ethnic breakdown is similar to that of Anuradhapura."

Vulnerable groups

IDP children and youth at particular risk (April 2008)

- Children and youth in IDP camps have been at risk of abduction and forcible recruitment by armed groups
- Malnutrition is a serious concern for infants and children under 5 in IDP camps
- In many instances military sites are in close proximity to IDP camps and schools used as temporary camps have become direct targets of military attacks

World Vision, April 2007:

"The biggest issue in some of the camps is forcible recruitment of children by armed groups. [...] especially when there is no lighting at night during the power cuts (Batticaloa experiences 3 – 6 hr power cuts everyday), [parents] stay up at night in order to make sure their children are not taken."

Amnesty International, March 2007:

"Armed groups, some identified as part of a breakaway group of Tamil Tigers known as the Karuna faction, are infiltrating camps for newly displaced people and abducting residents. [...]"

There have also been reports of armed men abducting young people from internally displaced people (IDP) camps”

Watchlist, April 2008:

“Malnutrition has become another serious concern in many IDP camps, particularly for infants and children under 5 years old. In many instances, restricted humanitarian access to the displaced populations has added to the difficult plight of these children.

[...]

In many instances military sites are in close proximity to IDP camps, thereby endangering both IDPs and humanitarian workers...some IDP camps, including schools used as temporary shelters, have become direct targets of military attacks.”

Women IDPs exceptionally vulnerable (April 2008)

- Women and children are vulnerable to sexual violence in IDP camps
- Poverty, cramped living conditions and hopelessness have fueled violence in many camps in Sri Lanka
- Cases of sexual and gender based violence may be suppressed by camp management
- Fear among families about sexual violence against young women leads to their arranging 'marriages' of teenage daughters which are often not long-lasting
- At many camps and welfare sites there are minimal facilities with regard to health issues such as family planning, child bearing and feeding infants
- Single women or widows are often at a disadvantage with regard to accessing services and provisions in camps

Watchlist, April 2008:

“Some IDP camps in Sri Lanka have not taken into account the protection and privacy needs of women and children, exposing them to situations that make them vulnerable to sexual harassment, sexual abuse and rape. In general, “poverty, cramped living conditions and hopelessness” have fueled violence in many camps in Sri Lanka...In addition, stress-related alcohol abuse in camps may cause some men to turn violent, even against their own family members. All of these conditions may contribute to sexual violence in IDP camps.”

SAHR, August 2007:

“There is fear amongst families, both within and outside IDP camps about sexual violence against young women, leading them to arrange ‘marriages’ for their teenage daughters. Many interviewees noted the high number of under-age ‘marriages’ where parents either gave consent to marriages of girls over the age of 16 or falsified their ages. Some of these resulted from instances of teen age love affairs and subsequent pregnancies. Often these marriages cannot be sustained and the young men leave their wives and re-marry after a while, leaving many young mothers to take care of themselves and their children. Conflict related frustrations and hopelessness were cited as reasons for early school drop outs, under-age marriage and the gendered consequence of early pregnancy for young girls.

At many camps and welfare sites there were minimal facilities with regard to health issues such as family planning, child bearing and feeding infants. There appeared to have been no preparedness on the part of the state or NGOs to address the inevitable consequences of large scale enforced displacement resulting from concerted military engagement. There were a

number of accounts of child-birth in flight and inadequate conditions at camp sites to address the post partum needs of mothers and infants. Women spoke of the lack of privacy in camps and the pressures put on them by husbands who demanded conjugal relations despite the adverse circumstances. They also spoke of their fears for the security of girl children. The mission noted that there did not appear to be a systematic emergency response in place to address the reproductive health needs of women in situations of enforced displacement. Mobile clinics were operational in some instances but were inadequate to deal with the magnitude of the humanitarian crisis. Health services in host communities were seriously overstretched and women's immediate needs with regard to menstruation, birth control and essential clothing such as appropriate underwear and underskirts were often overlooked or neglected. Women also spoke of gender violence in camp situations and the mission came across instances where such violence had been suppressed by management authorities.

The mission also came across a significant proportion of single women or widows, responsible for family welfare among the displaced. These women were often at a disadvantage with regard to accessing services and provisions since they were in relatively powerless positions and had to take whatever was available or given to them. In camp situations the men were better positioned to negotiate with authorities and were more likely to be consulted in decision making or asked to assist with camp matters. There was no definitive mechanism in place to ensure that women were also part of decision making processes in relation to camp administration and in relation to decisions with regard to the well being of the displaced."

Ethnic minorities more vulnerable to conflict, human rights violations and displacement (May 2008)

- Due to geographic concentration in the north and east, Tamils and Muslims who together constitute about one fourth of Sri Lanka's population are disproportionately displaced by the conflict
- Muslims and Tamils have been particularly impacted by the intense warfare, mass displacement, killings, abudctions and torture in Sri Lanka since 2007

SRSG, May 2008:

"The ethnic dimension of displacement cannot be ignored. Because of their geographic concentration on the North and East, Tamils have been disproportionately affected by the conflict. While Sinhalese, Tamils and Muslims constitute 74 per cent, 18 per cent and 7 per cent of the population as a whole, figures on the long-term displaced indicated that this population is to 78 per cent Tamil and 13 per cent Muslim. At the same time, the population of Trincomalee historically has been roughly balanced among the three groups. The Representative repeatedly heard IDPs describe their fears and patterns of displacement, organized returns and the designation of areas as High Security Zones, special economic zones or cultural and religious sites are affecting the prior distribution and balance of populations, and tensions among the communities are increasing."

MRGI, December 2007:

"On 6 December 2006, the Sri Lankan government promulgated a set of tough new laws to counter terrorism. The laws define a "terrorist" in very broad terms, giving wide powers to the police to arrest and detain on suspicion of terrorism. In the last 12 months the Sri Lankan government has not hesitated to use these laws, and the country's human rights situation has severely deteriorated. Under a general climate of impunity, 2007 has largely been marked by intense warfare, mass displacement, killings, abductions and torture in Sri Lanka. In all of this it is

the country's minorities – Muslims, and to a much greater extent, ethnic Tamils – who have been the worst affected.

[...]

It is undeniable that the impact of recent events on the two minority communities has been highly disproportionate to their population ratio. In almost every identifiable mass human rights violation, Tamils and Muslims constitute the largest number of victims; in some cases the majority community is unaffected.”

Children and adults vulnerable to forced recruitment (Special report, 2007)

Many IDPs are frightened to return home due to fear of forcible recruitment, particularly involving their children. Both the LTTE and Karuna factions are continuing to forcibly conscript children. The LTTE has reportedly recruited as many as 10,000 new members (above and below the age of 17) in the last six months, few of whom seem to have joined willingly. (International Crisis Group, *Sri Lanka's Human Rights Crisis*, 14 June 2007, p.12) In some instances, even national staff of humanitarian agencies operating in the Vanni area have been forcibly conscripted by the LTTE.

Following the November 2006 visit of the Special Advisor to the UN Special Representative on Children in Armed Conflict, there have been improvements in the LTTE's response to child recruitment. The LTTE set up a Child Protection Authority and raised its recruitment age to 17. The UN Children's Fund (UNICEF) has recorded a significant drop in the reported cases of LTTE recruitment of children, and noted that the recent releases of children from the group's ranks outstripped new recruitment. However, many child soldiers remain within the LTTE. By the end of July 2007, UNICEF had listed 1,518 outstanding cases of LTTE under-age recruitment, including 401 children currently under the age of 18 years, with 60 per cent of the recruits being male, and 40 per cent female.

Although the LTTE may no longer be conscripting children in large numbers, the threat to children living in areas under LTTE control has not necessarily decreased, impacting the return plans of IDP families. The LTTE has introduced a quota policy whereby one person per family has to join the group, and children are at risk of losing a parent or the family breadwinner. Under the one-person-per-family system, Tamils from 17 to 30 are at the highest risk of being recruited. Early marriages are on the rise with many under 17 marrying to escape recruitment although the average marriage age for Tamils is over 20.

The Karuna faction continues to actively recruit children with the government's knowledge and tacit support. (Human Rights Watch, *Complicit in Crime: State Collusion in Abductions and Child Recruitment by the Karuna Group*, January 2007, p.6) By the end of July 2007 there were 232 reported cases of under-age recruitment by the Karuna group, with the vast majority of recruits being male and only one reported case of female recruitment. The Karuna group was in July 2007 more frequently engaged in under-age recruitment than the LTTE. (Reuters, *Sri Lanka rebels, renegades still recruit kids- UN*, 2 July 2007) The children recruited by the Karuna faction are sometimes armed and act as local guards, especially in Batticaloa district. Although the Karuna faction has made assurances that it would cooperate in efforts to end the recruitment of children, there appears to be little commitment by the group to improve its practices. Agencies emphasise that the figures on forcible conscription are probably much lower than the actual numbers, as most families avoid reporting abductions to outsiders due to the possibility of reprisals.

Displaced Muslims in Puttalam (Special report, 2007)

In the western district of Puttalam, which is free from armed conflict, there were improvements in a protracted IDP situation involving more than 60,000 Muslim IDPs. The positive change came about as a result of the World Bank approving a \$32 million housing project in 2007 for the construction of 7,500 houses.

Ever since the IDPs moved to Puttalam in 1990, after being forced from their homes in Jaffna and Mannar by the LTTE, there have been tensions over resources between IDPs and their host community. Although the government allocates resources towards the IDPs living in Puttalam, the funds continue to be sent to their areas of origin, and the host community and IDPs in Puttalam are forced to compete for scarce resources in sectors such as health and education. IDPs have begun to talk of being “ethnically cleansed” by the LTTE, and there are concerns that the younger generation may become radicalised. (Information from IDMC interviews with internally displaced persons in western Sri Lanka and staff of international and local agencies assisting them, June and July 2007)

The IDPs have been living in 140 welfare centres and 60 relocation sites since 1990, and the World Bank grant will enable 40 per cent of the population to obtain housing in the next three years. The World Bank project is also assisting with the local host community’s infrastructure and water requirements.

Although conditions are expected to improve for the Puttalam IDPs, certain protection problems persist in the community. After 17 years of living as displaced persons, many of the IDPs’ traditional family structures are breaking down. Women and men have been forced to leave their families in search of a livelihood, with both going abroad in many cases, leaving the care and protection of children to elderly relatives or older siblings.

Displaced women in Puttalam face numerous difficulties. There have been instances of women being abandoned, with husbands remarrying overseas. Alcohol and drug abuse and early marriage are on the rise. The police have referred cases of domestic or gender-based violence to the mosque for justice, usually to the detriment of women plaintiffs.

Some IDP leaders maintain that as soon as conditions are safe for return, the entire group of IDPs will go back to its areas of origin. A small number of IDPs in Puttalam did return to Jaffna during the ceasefire years, only to come back to Puttalam soon thereafter. (Information from IDMC interviews with internally displaced persons in western Sri Lanka and staff of international and local agencies assisting them, June and July 2007)

IDP women suffer particularly from domestic and sexual violence (June 2006)

- Domestic and sexual violence in both tsunami and conflict IDP camps reported by Amnesty International
- Internally displaced women face loss of family members and male spouses, increased responsibility to provide for and protect children and family members, threats to physical safety, psychological insecurity, and more general issues of social marginalisation and lack of power.
- In Vavuniya District, a NGO indicated that 60 percent of IDP families were female-headed households (FHH)
- There are numerous Land and Property issues facing women both in ‘Welfare Centres’ and upon return

AI, June 2006, p. 17, 18:

There have been reports of high levels of sexual and domestic violence in both tsunami and conflict IDP camps. Women's groups claim that, in the north and east, decades of conflict and poverty has resulted in high levels of alcoholism and domestic violence and that this is worst among displaced communities. Many men displaced by the conflict and tsunami are unemployed and traumatised, which is resulting in higher levels of alcohol abuse and violence.

While cultural stigma and lack of appropriate services makes it difficult for women and children to report sexual and domestic violence, resulting in an underestimation of the problem, many IDPs told Amnesty International that these types of violence were taking place in their camps. The insecurity faced by women in IDP camps is further aggravated by their cramped living conditions. Many IDP women reported that they feel uncomfortable sharing small huts with male members of their extended family and that they lack privacy for bathing and have to walk a distance from their homes to go to the toilet at night. Many also expressed concern that the public areas of the camps are not lit.

[...]

Staff at the Sithamparapuram welfare centre for conflict-displaced people in Vavuniya told Amnesty International that there are very high levels of sexual and gender-based violence within the camp. They believe the high levels of alcohol use and violence among this conflict IDP community - some of whom have been in the welfare centre for over a decade - were fuelled by their poverty, cramped living conditions and hopelessness. UNHCR and camp authorities have initiated a number of projects to address the high levels of sexual and gender-based violence and some of the welfare centre's residents have been convicted and imprisoned on charges of rape and assault. Staff at the Sithamparapuram welfare centre also told Amnesty International that there is a serious problem of child neglect and abuse in the camp. Many female IDPs travel to the Middle East to work as domestic workers and their husbands often neglect the children in their absence. The Sithamparapuram welfare centre is very dilapidated, with cramped living conditions far inferior to those found in tsunami transitional camps and no electricity, adding to the insecurity of the residents.

CPA February 2003:

"Although women comprise a majority of the IDP population in Sri Lanka, the specific issues facing women IDPs are rarely highlighted or adequately addressed. Women face the loss of family members and male spouses, increased responsibility to provide for and protect children and family members, threats to physical safety, including rape and sexual violence, psychological insecurity, and more general issues of social marginalisation and lack of power. Land and property issues affecting women are intimately intertwined with women's human rights issues, living conditions, and questions regarding livelihood.

In one interview, members of the NGO Consortium in Vavuniya District stated that 60 percent of IDP families were female-headed households (FHH). Those interviewed expressed concern about discrimination against FHH, as well as economic, legal and family issues. Another person interviewed highlighted the fact that there were 21,400 widows in 1995, raising today's figure to more than 25,000. The Trincomalee District counts 8,757 widows heading households in its IDP population, out of a total of 56,745 families displaced between 1983-2001. These figures only further emphasise the need to better understand and begin to address issues affecting women IDPs as part of the transition toward an end to the conflict.

Land and property issues facing women both in 'Welfare Centres' and upon return are numerous, ranging from inequitable policies for distributing assistance and compensation, to possible obstacles to women gaining legal title to land and property, to practical challenges of clearing

land and rebuilding houses, to burdens of livelihood resulting from women becoming the sole providers for their families."

MRRR, UNHCR, WC survey, 2004

Of the population surveyed in Puttalam welfare centres in 2004, around 4% of all individuals were single women heading a household

Child soldiers recruited by both sides (November 2006)

- International monitors accuse the Sri Lankan army to recruit children for the Karuna faction
- LTTE recruits tsunami- and conflict-IDP children who can relatively easily be convinced to join the rebels, because of poverty
- The Sri Lankan Human Rights Commission reports an important increase in child soldier recruitment in the east
- In July, UNICEF reported increase in child recruitment by LTTE for first time since tsunami
- Ceasefire monitoring organization states that between February 2002 and April 2005, the LTTE recruited 1572 children
- According to UNICEF, recruitment of child soldiers remains a concern - almost 100 children were recruited per month in 2004
- UNICEF estimates that 50,000 children in the North and East remain out of school, around 140,000 have been displaced, while progress in reintegrating child soldiers
- Child soldier recruitment continues into 2005 and is strongly criticized by international organizations.
- LTTE regularly returns child soldiers to their families, parallel to new recruitments

BBC, 13 November 2006:

"Elements in the Sri Lankan military are helping a breakaway rebel faction to abduct children as soldiers to fight Tamil Tiger rebels, the UN has said. A senior UN official said there was "credible evidence" that troops had rounded up children to fight with the renegade rebel group led by Col Karuna. His faction split from the Tamil Tigers, long accused of using children. Sri Lankan security forces say they are "perturbed" by the "completely misleading" allegations. A Karuna spokesman also denied the allegations, saying his group merely offered protection to children fleeing fighting with the rival Tamil Tigers. "

UNICEF, 5 October 2006:

"The recruitment of children by the LTTE continues to be a major violation to children's rights in Sri Lanka with an average of 45 cases per month reported in 2006. Recruitment attributed to the Karuna Faction has also become significant, with 41 cases reported in August out of a total of 109 cases reported since March 2006.

[...]

Conflict and displacement present particular threats for children, such as separation from their families, recruitment by fighting forces and exposure to targeted violence or landmines/UXOs. At the same time, pre-existing threats – such as sexual and gender-based violence, labour exploitation or malnutrition and disease – often increase. Through its activities, UNICEF is striving to prevent and respond to all forms of violence, abuse and exploitation committed against the conflict affected children. UNICEF is continuously monitoring and reporting on underage

recruitment and is currently working with the Government and other agencies to set up a mechanism for monitoring and reporting other child rights violations particularly in conflict areas.

UNICEF has maintained a comprehensive database of underage recruitment since 2001, which is updated when the child's status changes. The database provides a record of known cases of recruitment and has proven to be an effective advocacy tool for the release of underage recruits.

UNICEF complements UNHCR's overall protection lead by providing coordination in child protection through district-led coordination of child protection agencies linked to national coordination. UNICEF is further collaborating with the Government in the rapid registration of separated and unaccompanied children at IDP sites in Jaffna, Kilinochchi and Batticaloa, with the aim of reunifying the children with family members or to find a safe temporary caretaker. In Trincomalee a total of 51 separated and 7 unaccompanied children were registered."

AI, June 2006, p. 12:

The LTTE has for a long time recruited Tamil children into its forces. Agencies working with children reported that, before the March 2004 split between the LTTE and the Karuna faction, there was a sense that the LTTE might be prepared to end this unlawful practice of child recruitment. However, following the split and Karuna's release of an estimated 1,800 child soldiers(31), there has been more widespread recruitment across the north and east.

According to agencies working on child recruitment in the east there is no evidence to suggest that children living in tsunami IDP camps have been particularly targeted by the LTTE for recruitment. They report that it is children living in remote areas of government controlled territory and areas bordering LTTE territory that are most at risk. However, there are reports of tsunami IDP children also being recruited by the LTTE.

NGO representatives in Vavuniya told Amnesty International that children living in local conflict IDP camps are targeted for recruitment. They reported that, as these children are mostly living in severe poverty and have few options for the future, it is relatively easy for the LTTE to persuade them to join its forces.

Xinhua News Agency, 17 August 2005:

"The Human Rights Commission of Sri Lanka (HRC) has expressed alarm at the increase in child recruitment by the Liberation Tigers of Tamil Eelam (LTTE) in the north and east, the Daily News newspaper reported Wednesday. It says that despite the decline in numbers of underage recruits post tsunami, recent reports indicate that the LTTE was again recruiting sufficient numbers of children. Chairman of the HRC Radhika Coomaraswamy said in a statement that in 2005 the HRC has received 141 reports of child recruitment at its Regional Offices in Jaffna, Vavuniya, Trincomalee, Batticaloa and Kalmunai.

There were at least 125 children aged 15 and under (the youngest reported to be 11 years), He said. Coomaraswamy, however, said it is not possible to know the full extent of the problem of underage recruitment since not all parents are aware of existing reporting mechanisms and that in some known cases the parents have not officially reported to the HRC due to fear of reprisals."

Asia Times, 29 Jul 2005:

"Last week the United Nations Children's Fund (UNICEF) said that for the first time since the tsunami late last year, recruitment of children by the Tigers had increased. Tamilselvan reportedly said this month that war is inevitable.

UNICEF spokesman Jeffery Keele said in July that 28 cases of child recruitment were reported, compared to 18 in June, with most of the recruitments taking place in the East. The Tigers said the children volunteered to join their ranks due to the prevalent situation."

Peace in Sri Lanka, 30 June 2005:

According to the Sri Lanka Monitoring Mission (SLMM), 1624 children have been recruited by the LTTE, which is in violation of the February 2002 cease fire agreement

UN Inter-Agency IDP Working Group, 9 February 2004:

"In January, UNICEF released a progress report on the Action Plan for Children Affected by War. The Action Plan is an outcome of the fifth round of peace talks in Berlin, at which UNICEF was asked to take a leading role in establishing shared programs to address the needs of up to 50,000 children affected by war.

In its report, UNICEF estimated that 50,000 children in the North and East remain out of school, around 140,000 have been displaced, and that in 2003 alone 20 were killed and 17 maimed by landmines. The North and East also faces a serious deficit of education and health staff, with a need for more than 5,800 additional Tamil medium and 200 Sinhala medium teachers.

Recruitment of children into the LTTE remains a major concern. According to UNICEF records, 709 children were recruited by the LTTE in 2003. Recruitment increased noticeably during August, September and October, with reports of 304 children taken into the organisation, before dropping off during November and December, when 31 cases were reported. The LTTE released 202 children during 2003. A quarter of these releases were made through a transit centre opened in Kilinochchi in October; the remainder were released straight to their families. From reports submitted by families, UNICEF said it knew of at least 1,301 children who remain in the LTTE."

UNICEF Progress Report Executive Summary, September 2004:

"A total number of 4,250 cases of under-age recruitment by the LTTE have been reported to, and verified by, UNICEF since April 2001. Of these, 488 children were recruited during the reporting period, from 1 January – 30 June 2004. At the same time, the LTTE released 449 children during the reporting period, and a total of 1,003 child soldiers since April 2001.¹ Significant progress has been made in providing children in the North East with basic services under the Action Plan, as well as facilitating the reintegration of former child soldiers. During the reporting period, 6,751 children enrolled back to school; 43,881 children received catch-up-education classes and 241 school buildings damaged or destroyed in the war were repaired or reconstructed. Five hundred and eighty (580) child soldiers and their families received social work assessments, while 410 children who were engaged in hazardous labour and or were living in the streets benefited from social work support. Two hundred and Thirty-four (234) children enrolled in vocational training, 22 families received micro-credit loans and a further 197 families were assessed for income generation support, 94 of whom were waiting to be issued a loan at the end of the reporting period. Thirty extremely vulnerable families also received special assistance. Forty-two Gramodaya Health Centres (GHC's) were repaired or reconstructed and 212 schools benefited from improved water and sanitation facilities. Thirty-one children's homes have been supported under the Action Plan, with special assistance given to disabled children and 94 children received psycho-social support.

[...]

This number does not include the more than 1,600 former child soldiers who left the LTTE in April 2004 in the East following the split in the LTTE and who have registered with UNICEF but have not been issued with formal release papers from the LTTE."

UNICEF, webpage, April 2004:

"Returning children are especially vulnerable. UNICEF estimates that in the LTTE-controlled areas of the north, one third of school-aged children have dropped out or have never attended school. The IDPs and refugees are moving back to areas that are contaminated with landmines and unexploded ordinance. The physical destruction of these areas means that they are returning to towns and villages that lack basic infrastructure, such as shelter, water and sanitation, education and health facilities.

In terms of health, the North and the East suffer from a lack of health professionals and medical supplies. Communicable and infectious diseases are expected to increase with the return of the IDPs, as is the risk of HIV/AIDS with the return of refugees from India. Chronic malnutrition among women and children is high in parts of Sri Lanka, but is worse among returning IDPs."

Around 80,000 Muslims have been displaced since 1990 (September 2006)

- Many Muslim tsunami victims have previously fled fighting, abandoning their inland farms
- 100,000 Muslims displaced by the LTTE in 1990, around 46,000 continue to live in camps in Puttalam and Anuradhapura districts (80'000 in total, according to UNHCR statistics)
- Intimidation by LTTE of eastern Muslims part of strategy to clear north and east of persons not sympathetic to the cause of the LTTE
- Following an agreement in April 2002, LTTE promised that Muslims would not be harassed and that they could start returning
- Muslims seem to prefer group returns rather than individual returns, for reasons of safety and integrity of the community and on guarantees of social and economic sustainability
- Property owned by Muslims in several areas of the north is occupied by Tamil IDPs, who after ten years of occupation have acquired titles to land and buildings
- Muslim returnees to Batticaloa and Ampara may experience discriminatory treatment

RI, 11 September 2006:

"Muslims, who make up approximately eight percent of Sri Lanka's population of twenty million, are especially vulnerable in the context of the struggle between the government and LTTE. Although Tamil is the native language of the Muslims, they have never identified themselves with the separatist aspirations of the LTTE and their adherents. In the east, where all three ethnic and religious groups are present in significant numbers, inter-communal tension is acute and the Muslims find themselves caught in between, suspected by both parties."

AI, June 2006, p. 29:

"Muslim communities expressed great bitterness about the way in which they had been pushed from their inland agricultural land to the coast, in order to escape fighting, by LTTE land-grabbing and by government-sponsored colonisation by Sinhalese communities, resulting in heavy casualties among the Muslim community in the tsunami. Muslim tsunami-displaced people in Ampara and Batticaloa told Amnesty International delegates that they are being severely discriminated against in the allocation of land, that the LTTE is using the tsunami displacement to appropriate land which belongs to them, and that the government is failing to protect them from this."

USDS, Country Report on HR Practices 2004, Feb 2005:

"Most of the 46'000 Muslims expelled by the LTTE since 1990 remain displaced. During the year, the LTTE continued the intimidation of Muslims in the east, although LTTE extortion of Muslims lessened. It appeared that attacks by the LTTE against Muslims were not religiously motivated but were, instead, part of an overall strategy to clear the north and east of persons not sympathetic to the cause of an independent Tamil state. The LTTE made some conciliatory statements to the Muslim community, but most Muslims viewed the statements with skepticism. "

BRC July 2002, pp. 17-18:

"An estimated 100,000 Muslim people were displaced from the north, after an LTTE ultimatum in October 1990, ordering them to leave the region. Most of them now reside in refugee camps in Puttalam and Anuradhapura districts. In December 2001, dry food rations issued to these refugees were stopped. Following a meeting chaired by Rehabilitation minister Jayalath Jayawardena at the Puttalam *Kachcheri* (Government administration office), assurance was given that dry rations for the months of January and February will be issued in April. Refugees say that no dry rations had been issued by the end of May 2002.

Under an agreement between the LTTE chief V Prabhakaran and Sri Lanka Muslim Congress (SLMC) leader Rauf Hakeem on 15 April 2002, Muslims will be encouraged to return. The LTTE have assured that the Muslim people will not be harassed. Earlier attempts of Muslims to return to their home areas were not successful, because of continuing fears for safety. Muslim IDPs have welcomed the agreement, but many remain sceptical, pointing to an agreement between the LTTE and Muslim leaders in 1988 regarding safety of the Muslim community, which was not implemented. Seventy two Muslim families which returned to Jaffna after the ceasefire agreement this year, faced severe restrictions from the LTTE in carrying on their trades. As a result, 55 families have gone back to Puttalam.

After an absence of more than eleven years, Muslims seem to prefer group returns rather than individual returns, for reasons of safety and integrity of the community and on guarantees of social and economic sustainability. The living and economic environment in the original settlements of Muslim IDPs have suffered a state of natural destruction. Muslims are waiting for the root causes of displacement to be addressed: to allow them to begin a fresh life in an atmosphere of peace and stability without the uncertainty over the peace process.

Land and buildings, such as houses and shops, owned by Muslims in several areas of the north are occupied by internally displaced Tamils. Some people are in occupation for more than ten years and may have acquired title to land and buildings under the laws of prescription. It has been suggested that prescription laws should be amended so that the Muslims and other IDPs have title to their property when they return to their home areas."

NRC background document, August 2005:

"Muslims who return to their place of origin sometimes get discriminatory responses from the local authorities. Local authorities often get pressurized by local people not to accept the returnees. 60 Muslim families were displaced from Araympathy during the 1990's communal riot and settled in Katankudy. Last December they got badly affected by Tsunami, and decided to come back to their pre 1990 settlement in Araympathy. They came back and got transitional shelters from Oxfam. However, they are not getting any support from the DS office. There is only one well for 60 families and virtually no NGO activity. Apparently DS office is not happy about their return after 15 years. Under the current government scheme, these people are entitled to 100,000 to 250,000 Rs. housing assistance. The DS office is not cooperating. Moreover, the DS office is not referring their information to development NGOs. It is pertinent to mention that development NGOs depend on DS's referrals."

No information available on the situation of Sinhalese displaced from Jaffna (October 2006)

- No information is available about the estimated 25,000 Sinhalese who fled mainly to Polonnaruwa, Anuradhapura and Amparai districts at the onset of the war. They have been displaced by LTTE attacks on Sinhalese villages on the border of the north-east region.
- It is hard to envisage the return of Sinhalese IDPs to their home areas, particularly those which lie within the north-east and may come under the control of the LTTE in an interim administration

As of October 2006, IDMC had no updated information on Sinhalese IDPs.

CHA, 12 December 2003

"No information was available about the Sinhalese who were displaced from Jaffna at the onset of the war. However, the Buddhist high priest [...] explained that of approximate 100,000 of Bussists who lived in the District prior to 1983, only about 10,000 remain."

BRC July 2002, p. 18

"According to the Rehabilitation Ministry, there are some 25,000 Sinhalese IDPs mainly living in Polonnaruwa, Anuradhapura and Amparai districts. In December 2001, dry food rations to Sinhalese IDPs were also stopped, but restored later for a period of six months. The displacement of the Sinhalese took place after the LTTE carried out many attacks on Sinhalese villages on the border of the north-east region.

There has been no official statement by the LTTE similar to that relating to Muslim refugees, encouraging return to their home areas and guaranteeing their safety, although press reports say that the Tiger leader V Prabhakaran has welcomed the Sinhalese refugees. Without a successful peace agreement between the government and the LTTE on substantive political issues, which incorporates safety elements for all communities, it is hard to envisage the return of Sinhalese IDPs to their home areas, particularly those which lie within the north-east and may come under the control of the LTTE in an interim administration."

Men and women affected differently by displacement (May 2000)

- Men are more likely to be suspected of belonging to one of the warring parties and this influences negatively the authorities' response to the needs of the displaced family
- Displacement often affects gender roles.
- Widows are particularly at risk of being socially stigmatized and economically deprived

DRC May 2000, p. 20

"Women and men are affected differently by displacement and play different roles in the resettlement process. During conflict men, more than women are generally at risk of being suspected of belonging to one of the warring fractions or of being forcefully included in an armed group. This often reduces their mobility. And according to many of the displaced families in Vavuniya and Mannar districts, suspicion of a husband or a son being associated with the LTTE influences their security and the authorities' response to their situation. When a household is displaced and loses access to its main productive assets (e.g. land or business) this not only

affects their economic situation, but also the gender roles and relationships among its members. In many cases men face serious identity problems as they can no longer provide the daily meals and income for the family and become increasingly dependent on the female members of the household. Accordingly, women often have to resume extra responsibilities for their family, including taking up areas of activities that have so far been considered “male domains”. This has for instance been the case with some of the displaced Muslim families in Puttalam, where women have found it easier to find employment in onion production, because they demand lower salary, and where men suddenly found themselves idle and with added responsibilities for home and children. And in the case of Sri Lanka, where some of the IDPs settle in areas dominated by a different ethnic group with differing social and cultural values and practices, there may be an additional “attack” on gender identities.

Some women come out stronger with new skills, ideas and a strong self-esteem. But many also find it difficult to deal with their new role in society. Especially **widows** are facing many problems. Not only have they lost the economic and social support of their husband and have to take overall responsibility for the household, but in many cases they simultaneously have to come to terms with a socially stigmatised position. This has for example been clearly illustrated in a relocation project for widows in Vavuniya, where the some people in the vicinity have referred to the widows as 'prostitutes' and also intruded the community."

PATTERNS OF DISPLACEMENT

General

Six IDP situations identified by Special Representative on human rights of IDPs (May 2008)

- The displacement situation in Sri Lanka is fluid and unpredictable and there are six distinct situations of displacement
- One of these is the IDP returns in the Eastern province where at the height of conflict between April 2006-March 2007, more than 220,000 people had fled their homes
- Another is continuing displacement since 2006 and 2007 in the Eastern districts where roughly 188,000 of the 300,000 displaced since the resumption of hostilities in 2006 are living as IDPs
- The third situation is of recent displacement in the Northern province, in Mannar and Vavuniya districts, and the Vanni and Jaffna peninsula, due to military operations in north and northwest Sri Lanka
- Another displacement category is of IDPs inside the LTTE-controlled Vanni, where up to a third of the population may have been uprooted.
- A fifth category is of protracted displacement in Jaffna, Mannar, Puttalam and Vavuniya where there are communities of displaced persons who fled their homes due to conflict 6-17 years ago
- The final category is of those displaced by the December 2004 tsunami and natural disasters

SRSG, May 2008:

“Displacement in Sri Lanka is characterized by its fluidity and unpredictability. Mass returns were prioritized by the Government and carried out extremely quickly in the East during 2007. In a period of months in mid-2007, more than half of the 308,000 newly displaced returned home. Meanwhile as military activities have intensified in the North, there has been more displacement. Finally, some IDPs have been displaced more than once, i.e., some of those displaced prior to 2002, or displaced by the tsunami, were again displaced by the resumption of the armed conflict. In total, however, as of December 2007, the Government estimated that there were 577,000 IDPs in Sri Lanka.”

Six situations have been identified by the Special Representative of the Secretary General on IDPs

“(a) IDP returns in Trincomalee and Batticaloa districts. In the period between April 2006 and March 2007, more than 220,000 persons had to flee their homes as a result of military operations in Trincomalee and Batticaloa districts. At the height of the crisis, Batticaloa district alone had more than 160,000 IDPs living in 96 temporary IDP sites. Due to government policy, since August 2006, roughly 170,000 of these IDPs have returned to their divisions of origin;

(b) Continuing displacement since 2006 and 2007 in the Eastern districts. Roughly 188,000 of the 300,000 displaced since the resumption of hostilities remain in displacement in both the North and the East. Those who remain displaced in the East are primarily those from areas where there

are (i) high security zones, (ii) zones awaiting demining, or (iii) houses or villages occupied by security forces. Many of these IDPs are concerned about security, access to services and livelihoods. Most are in camps or host families in Batticaloa district, although some are in “transit camps” in Trincomalee district;

(c) Recent displacement in the Northern Province. As a consequence of military operations along the FDL (Forward Defence Line), Mannar and Vavuniya districts, the Vanni and the Jaffna Peninsula have been the locus of the most recent displacements. By August 2006, 51,000 persons had registered as newly displaced in Jaffna district, of which 31,000 currently remain displaced. Nearly 3,000 newly displaced persons registered in Puttalam during 2006-2007. Since September 2007, another 22,500 persons were displaced by fighting in the north, mostly in Mannar district but also within the Vanni and some within Jaffna and Vavuniya;

(d) Displacement inside the Vanni. In the areas under LTTE control, covering Mullaitivu and Kilinochchi districts and parts of Mannar, Vavuniya and Jaffna districts, estimates indicate 106,000 IDPs, or perhaps one third of the total population. This category overlaps with categories (c), (e) and (f) but warrants attention as a distinct category, because these IDPs face additional challenges related to freedom of movement and access to services and livelihoods. In particular, Kilinochchi and Mullaitivu districts experienced large influxes of IDPs from Jaffna in 1995 and 1999. The two districts have experienced new displacement since 2006, of 81,000 arriving from Jaffna, from within the districts, and recently Mannar;

(e) Protracted displacement. In Jaffna, Mannar, Puttalam and Vavuniya, there are communities of displaced persons who fled their homes due to the conflict 6 to 17 years ago. Approximately 312,000 IDPs are in this category. Puttalam and Jaffna provide striking cases. Approximately 63,000 northern Muslims have remained in displacement since 1990, living today in 141 Government-maintained welfare centres in Puttalam. Another 57,000 are displaced on the Jaffna Peninsula, many unable to return because their homes are encompassed in High Security Zones which, cumulatively, cover one fifth of the peninsula. Vavuniya hosts more than 36,000 IDPs, many of whom fled military operations in Jaffna, Mullaitivu, Kilinochchi and Mannar districts in the mid- and late-1990s;

(f) Displacement caused by the tsunami and other natural disasters. Presently, 9,000 families remain displaced from the 2004 tsunami and live in 58 welfare camps, primarily in the North and East. Up to another 2,000 families have found other living arrangements.”

Duration and multiple displacements characterize displacement in Sri Lanka (June 2006)

- Many of the newly displaced live in public buildings such as mosques and churches, or schools
- During the 2006 conflict, many IDPs have been re-displaced
- Most IDPs have found shelter with friends and relatives or have settled on unoccupied land; about 20% of all displaced are living in ‘Welfare Centres’ provided by the Government
- Two features characteristic of displacement in Sri Lanka are duration and the pattern of multiple displacement.
- Return movements picked up in 2002 but slowed again in 2003, due to insecurity
- Those who have not returned yet are facing increasing difficulties to return, due mostly to property issues

Reuters, 30 August 2006:

"Hundreds of troops, Tamil Tiger rebels and civilians have been killed in the fighting in the past month, and more than 200,000 civilians have been displaced from their homes and are living in tent cities, churches and mosques across the island."

AI, June 2006, p.44:

"As the security situation continues to deteriorate, agencies working with IDPs report that a significant number of those who do return, locally integrate in their place of displacement or resettle in another part of the country are being re-displaced by fear of conflict or human rights abuses. For example, local NGOs in Batticaloa told Amnesty International that one third of those resettled in LTTE controlled areas were moving back to government-controlled areas because they feared harassment and killings. People have also been re-displaced in the opposite direction as many Tamils from Jaffna and Trincomalee - including IDPs who had returned or resettled - have reportedly moved into LTTE areas in fear of arrests and "disappearances" by the security forces and the renewed hostilities between the security forces and LTTE."

BRC, September 2003, p.26

"Displaced families are in government and other welfare centres, or they have found accommodation by themselves with friends or relatives. Some have settled and built houses on unoccupied lands, often without government assistance. A large number of IDPs have lived in welfare centres for more than nine years and some for more than 15 years."

CPA February 2003, pp. 24-25

"Some displaced persons, such as "day and night IDPs" in border villages, mostly in the Eastern Province, live within the district of their former residence and may have access to their property during the day.

Two features characteristic of displacement in Sri Lanka are duration and the pattern of multiple displacement. Some IDPs, such as Northern Muslim displaced families, have been unable to return to their former area of residence for more than 10 years, while some Sinhalese IDPs in Trincomalee District were displaced as far back as 1985. Many IDPs in camps have been displaced for 5 years or more. Statistics gathered by UNHCR in 2000 in the LTTE controlled area of Madhu show that 22% of displaced families have been displaced more than five times and 31% have been displaced three times."

NRC, April 2005, p. 25

"Although there has been significant return since the cease-fire of 2002, the process of return has slowed and those who have not yet attempted to return will increasingly find major legal difficulties as time goes on and more land becomes reoccupied. At the same time there are possible problems arising out of the many legal and practical issues with land rights such as disputes over land boundaries, identifying property for second generation IDPs and former homes having been occupied by new tenants, as well as tensions between resettled families and host communities. "

Complex displacement situation needs group-specific solutions (January 2005)

RCSS, January 2005:

Displacement producing situations are usually mired in such diverse contextures that, more as a rule than an exception, they defy simple generalisations. For instance, the majority of the Tamil displaced persons from the northern peninsula wish to return to their original places or areas where they lived prior to displacement; but many of the up-country 'estate Tamils' who had migrated south and then displaced after 1983 have, perhaps out of choice, no qualms about settling down anywhere of the island provided they are not 'bonded' to supply labour and not treated as social outcasts; the Sinhalese IDPs insist on remaining in areas where there is visible SL army presence; some of the elderly Muslims now living mainly in the NWP would like to return to their old avocations back at home, but the youth among them would have none of it.

Main problems faced by internally displaced (September 2003)

- Many displaced are affected by problems such as disability, loss of income and livelihood, damage to/loss of production and personal assets and lack of social status
- Many also suffer from psychological and psychiatric problems

The Refugee Council, September 2003, p. 21:

" Many IDPs have been displaced several times, and are affected by various problems such as disability, loss of income and livelihood, damage to/loss of production and personal assets and lack of social status or in extreme cases loss of life. A large number have been living in welfare centres. Refugee camps run by the government and international agencies are officially known as 'welfare centres'. For several years without basic facilities, in spite of enjoying a reasonable standard of living before displacement.

It is recognized that displaced people suffer from psychological and psychiatric problems. The sudden separation from their traditional neighbourhood and their way of life has a traumatic effect on the victims of displacement. The normal daily routine of life and economic activities are disrupted, leaving people in a state of physical and psychological limbo.

The main problems faced by the displaced people are summarised as follows:

The inability to satisfy basic needs such as food, water, shelter, sanitation, privacy, family life and medical treatment.

The lack of educational facilities for children and the burden placed on the existing schools in areas where there are welfare centres.

Harassment and intimidation by the security forces.

Moral and cultural problems created in welfare centre areas where a lowering of moral and ethical standards is discernible.

Tension between welfare centre dwellers and local inhabitants, in areas where welfare centres are located.

Psychological and psychiatric problems as a result of displacement and the sudden separation from traditional neighbourhoods and the new way of life having traumatic effects.

The normal daily routine of life and economic activities coming to a standstill.

The lack of information on events and the situation in home areas and other information affecting their lives, due to lack of communication facilities.

Inability to obtain gainful employment competing with local residents.

Forced child labour and abuse of women and children. "

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

General

Noticeable improvement in the human right situation since the ceasefire but still a lot to be done (June 2005)

- Cease fire violations keep occurring on a regular basis
- Improvements in the area of Human Rights have been observed since the cease-fire, although no measures have been taken to redress past human rights abuses
- There are concerns that efforts being made by the GSL, including the SLA, to prevent further violations of human rights, are not necessarily replicated by the LTTE
- Freedom of movement remains restricted in the LTTE-controlled Vanni
- Recurring acts of intimidation and repression of the civilian population, the extortion of 'war taxes', forced recruitment and abductions for ransom, are still being reported
- There have been reports of further child recruitment, particularly by the LTTE
- Issues related to domestic and/or sexual violence, principally in the welfare centers, also need to be addressed
- There is limited programming to establish national protection and conflict resolution mechanisms

SLMM, 30 June 2005:

A list of cease fire violations committed by both the government side and the LTTE is continuously updated by the Sri Lanka Monitoring Mission (SLMM). The cumulative numbers as of 30 June 2005 show that the army is mostly accused of harrassment (51 cases), the LTTE of child soldier recruitment (1624), abduction of adults (493) and children (93) and harrassment (234). Most CFA violations by the government forces occurred in Jaffna, most violations by the LTTE in Batticaloa and Jaffna.

CHA 4 March 2004, pp. 2-3:

"At the conclusion of the March [2003] Sessions of the Peace Talks, the Government and the LTTE requested their International Human Rights Advisor to develop three aspects of a proposed road map on Human Rights for adoption at the 7th Session due in April 2003 [*delaid to June and inconclusive*]. These aspects included:

1. The drafting of a Declaration of Human Rights and Humanitarian Principles to ensure respect for until an eventual Constitutional arrangement provides for Federal and local law;
2. The planning of Human Rights Training Programs for LTTE cadre, Government Officials, Police and Prison officials as well as Human Rights Education and Awareness for other sections of the population and
3. A Proposal for the strengthening of the Human Rights Commission to develop their capacity for effective monitoring.

[...]

Despite the developments of the Peace Talks and the resultant rehabilitation, reconstruction and relief efforts undertaken by various authorities of the Government, Donor as well as the

humanitarian community ie. Ministry of Rehabilitation, Resettlement & Refugees, Ministry Assisting Vanni Rehabilitation, Ministry of Eastern Development & Muslim Religious Affairs, North East Provincial Council, Ministry of Home Affairs, Provincial Councils and Local Government, UNHCR, UNICEF, World Bank, ADB, Norwegian People's Aid (NPA), Mines Advisory Group (MAG), Mine Awareness Trust (MAT), Halo Trust etc, incidents of human rights violations which amounts to *fears* of the peoples in terms of human security continued to be reported."

US DoS, 25 February 2004:

"[During 2003] The Government generally respected the human rights of its citizens; however, there were serious problems in some areas. There were no reports of security forces committing politically motivated killings and no reports of disappearances; however, the military and police reportedly tortured, killed and raped detainees. Prison conditions remained poor. There were reports of arbitrary arrest during the year. During 2002, the Government released more than 750 Tamils held under the Prevention of Terrorism Act (PTA). Only 65 Tamils held under the PTA remained in custody. The PTA, like the Emergency Regulations (ER) repealed in 2001, permitted warrantless arrests and nonaccountable detentions. Unlike in the recent past, there were few reports that security forces harassed journalists during the year. Violence and discrimination against women, child prostitution, child labor, limitations of worker rights, especially in the Export Processing Zones (EPZs), and discrimination against persons with disabilities continued to be problems. Violence against religious minorities increased, and institutionalized ethnic discrimination against Tamils remained a problem. Trafficking in women and children for the purpose of forced labor occurred, and there was some trafficking of women and children for the commercial sex industry.

[...]

The LTTE continued to commit serious human rights abuses. The LTTE was responsible for arbitrary arrest, torture, harassment, disappearances, extortion, and detention. Through a campaign of intimidation, the LTTE continued to undermine the work of elected local government bodies in Jaffna and the east. On occasion, the LTTE prevented political and governmental activities from occurring in the north and east. There was overwhelming evidence that the LTTE killed more than 36 members of anti-LTTE Tamil political groups and alleged informants during the year. There were also instances of intimidation of Muslims by the LTTE, and there was fighting between LTTE personnel in the east and Muslims that left several Muslims dead. The LTTE continued to control large sections of the north and east. The LTTE permitted journalists some access to the areas of the country it controlled. Some LTTE-imposed restrictions remained on freedom of movement of citizens. The LTTE denied those under its control the right to change their government, did not provide for fair trials, infringed on privacy rights, used child soldiers, and discriminated against ethnic and religious minorities."

Almost 70 percent of the internally displaced are concerned about the security and shelter situation in return areas (2004)

- A large number are concerned about safety and security in their home areas and believe that they are safer in their current places of residence

MRRR, UNHCR, Puttalam WC survey, 2004

The 2004 survey of IDPs in Puttalam's welfare centres shows that security and protection concerns are by far the most important reasons for people not to return.

The Refugee Council, September 2003, p. 32:

"The IDP Survey conducted by the Ministry of Rehabilitation and UNHCR indicates that almost 70% of the IDPs surveyed expressed concern about security and shelter in places of return. The largest number (37%) are concerned about safety and security in their home areas and seem to believe that they are safer in their current places of residence and would not be returning unless these issues are resolved.

According to UNHCR, security issues include lack of differentiation in police and military roles, lack of control by government of large sections of the country and lack of accountability of conduct by armed groups. UNHCR's programme for internally displaced persons in Sri Lanka – Report of a joint appraisal mission by the UK Department for International Development and UNHCR, May 2002."

IDPs in 'un-cleared' or 'liberated' areas particularly at risk (May 2004)

- One third of Sri Lanka's IDPs live in LTTE-controlled areas ('uncleared areas' or 'liberated areas') in the Vanni, where they face particular risks

Jayatilaka and Muggah, FMR 20:

"Among the many challenges facing those responding to internal displacement is the question of information. Amidst loud calls to ensure the rights and entitlements of IDPs, little is actually known about the type and scale of their vulnerability. Monitoring capacities in areas affected by war-induced displacement are often limited, if they exist at all. National-level studies may be available on the internet but district civil servants and NGO field workers in areas of displacement are rarely able to access them or to undertake data collection. In the rare cases where action research is undertaken, it is often sector-specific or once-off. Studies have rarely assessed the dimensions of the displacement continuum from a holistic perspective.

There has been a significant number of attempts to appraise the risks and vulnerabilities facing Sri Lankan IDPs. Many have lacked rigour due to the logistical and resource constraints that invariably accompany research projects in the context of conflict. Few of these studies have paid adequate attention to the situation of IDPs in liberated/uncleared areas of the country."

Violence against displaced women not addressed by Government (September 2003, February 2004)

- Displaced children in Welfare Centers vulnerable to abuse.
- Displaced women subject to sexual harassment.
- Government has done nothing to address the very serious issue of violence against displaced women.
- Conditions of existence of most of those resident in camps has resulted in particularly severe invasions of privacy, especially for women.

The Refugee Council, September 2003, p.26:

"Around 58% of the displaced population are women. In welfare centres, women have been subject to sexual harassment, abuse and rape by the security forces and paramilitary groups as well as by other men. Women are also affected by domestic violence. These issues are not adequately addressed during or after displacement."

Gomez, Mario July 2002, pp. 11-12:

"In addition to the problems shared by other internally displaced persons, women also face gender-based discrimination and are exposed to gender-specific violence and exploitation. In 1993, the Representative of the Secretary-General reported that some women had been raped prior to being displaced. Incidents of rape in the conflict areas continue to increase. A recent Amnesty International report notes a '*marked rise*' in allegations of rape by police, army and navy personnel in 2001 and observes that among the victims of rape by security forces are '*many internally displaced women*.' The UN Committee on the Elimination of Discrimination against Women (CEDAW Committee) in its recent Concluding Comments on Sri Lanka noted with alarm '*the high and severe incidences of rape and other forms of violence targeted against Tamil women by the police and security forces in the conflict areas*.'

The USCR team which visited Jaffna in November 1996 quoted an 'international organization official' who observed that '*rape in Jaffna is widespread*' and also a 'woman in Jaffna' who pointed out that women are '*scared to come out of their homes because of the fear of rape*.' The report went on to note that many instances have not been reported because of the fear of retribution and the social stigma attached to rape.

The collapse of community and family structures, including the support provided by the extended family, has made displaced women even more vulnerable. The UN Special Rapporteur on Violence against Women observed that lack of access to health care and food has been one of the main problems faced by refugee and internally displaced women generally. Women have also been forced to assume many of the responsibilities of family life after displacement. In some cases women have lost their husbands and thus the burden of carrying on with family life has fallen exclusively on them. In other cases their husbands have been otherwise preoccupied and it is the wife who has had to shoulder the responsibility. The Sri Lankan experience shows that displaced women are more likely to seek work or engage in economic activity than men. There has also been a large increase in the number of female-headed households in the country. The UN CEDAW Committee noted with concern the high percentage of households headed by women, '*half of whom are elderly, many illiterate and have meager means of income*.' International human rights law recognizes the family as the basic unit of society and in need of protection and support."

USDS, 28 February 2005:

According to the US Department of State, sexual harassment of women in welfare centres is still widespread in 2004 .

Resettlement and protection needs in Puttalam, Anuradhapura, Polonnaruwa and Moneragala (2004)

- In Puttalam there are urban problems (tensions and clashes) due to competition for resources between the displaced and host community.
- IDPs face problems of sexual and gender-based violence, child labour, high unemployment, poor infrastructure and inconsistent provision of basic services.
- There is also a socio-religious dimension to the situation as many IDPs are Muslim and have indicated their preference to integrate rather than return.
- Half of the 22,000 IDPs in Anuradhapura are expected to integrate.

- Heavy military presence has created a number of social problems including sexual and gender based violence and female abandonment.
- There are security concern for the Sinhalese IDP minority.
- In Polonnaruwa, reports of abductions from border Divisions have made physical security a key issue

MRRR, Puttalam WC survey, 2004:

Some 7% of the 61,000 IDPs in Puttalam are considered vulnerable, 4% are single women.

ADB, UN & WB 9 May 2003, pp. 7-8:

"Each of the four Districts has different needs in relation to protection and resettlement:

In **Puttalam** the effects of the conflict are most evident due to the large displaced population. There are an estimated 66,200 displaced persons in Puttalam of whom approximately 12,900 have indicated a preference to remain, while many have indicated that they are undecided about whether to return

home or integrate locally. Here there are several urban problems including tension and in some cases violent clashes due to competition for resources between the displaced and host community. Problems of sexual and gender-based violence, child labour, high unemployment, poor infrastructure

and inconsistent provision of basic services for the displaced population also exist. As the majority of the displaced in this district are Muslim, there is also a socio-religious dimension to the situation. Many displaced Muslims in the district have indicated that they would prefer to "integrate" (resettle)

in Puttalam, rather than return home to the North East. Addressing the needs of this population requires targeted attention to guarantee their rights, including the right to resettle in the place of displacement. In this context, reconciliation initiatives to strengthen peaceful co-existence will also be important.

In **Anuradhapura** the effects of the conflict are particularly evident in the northern Divisions. There are approximately 22,700 displaced persons in this district, of which 11,700 are expected to remain. A heavy military presence has created a number of social problems including sexual and gender based

violence and female abandonment. There is also a security concern for minority displaced populations (in particular Sinhalese). Psychosocial problems are an issue for some IDPs, concentrated amongst the vulnerable groups.

In **Polonnaruwa** the effects of the conflict are less pronounced than in Puttalam or Anuradhapura, though they still exist. Approximately 4,100 persons were displaced in this District. Of these half have expressed an interest to remain. Polonnaruwa District is traditionally agricultural, and depends upon major and minor irrigation works for the water supply for paddy crops. Fighting from the conflict has damaged many of the irrigation systems, thus affecting the livelihoods of the population. Reports of abductions from border Divisions have made physical security a key issue. Assistance for local integration or relocation within the District are recommended solutions for IDPs in this area.

Of the four Districts, the effects of war are least pronounced in **Moneragala**. This district is one of the poorest in the country. Most people are engaged in agriculture and the greatest needs are in relation to agriculture and poverty alleviation. It is noted that programmes for integrated local

economic development in this area should be envisaged as part of the country strategy as outlined in the Poverty Reduction Strategy."

National Commission on Human Rights examined the status of internally displaced (July 2002)

- Human Rights Commission established in 1997 has until 2000 only had a marginal impact on the advancement of human rights in the country.
- In 2000, the Commission identified IDPs as a particularly vulnerable group and a segment of the population that required its attention and decided to initiate a study into the status of the displaced.
- The study was intended to advise the Commission on the activities it could initiate, both in the short term and medium term, prioritize areas of intervention and identify possible areas of collaboration between the Commission and other organizations working in the IDP area. Also it sought to ascertain the potential to apply the Guiding Principles on Internal Displacement.
- The results of the study contained a number of recommendations for strengthening the capacity of the Human Rights Commission in the area of internal displacement

Gomez, Mario July 2002, pp. 4-8:

"In response to both international and domestic pressures, the Sri Lankan Parliament passed legislation in 1996 establishing a permanent Human Rights Commission (HRC)..

[...]

The new group of Human Rights Commissioners who took office in 2000 and who for the first time included a woman, envisaged a broader role for the Human Rights Commission. Apart from investigating and mediating individual complaints, the new Commission decided at an early stage to engage in and promote human rights education, investigate systemic and group violations of human rights and to examine law and policy for their compatibility with international human rights norms. The Commission also decided to work in partnership with NGOs and other civil society organizations in implementing its mandate.

One of the Commission's early decisions was to examine the status of vulnerable groups and to consider the role that the Commission could play with regard to these groups. At least three groups were identified: women, persons with disabilities, and internally displaced persons. The Commission saw IDPs as a particularly vulnerable group and a segment of the population that required its attention. Until that time the Sri Lankan Commission had not examined human rights violations pertaining to IDPs although Sri Lanka had a fluctuating population of between 500,000 to one million IDPs for more than twenty years and the conditions under which they lived were harsh.

The new Commission decided to initiate a study into the status of the displaced. It should be noted that under the Human Rights Commission Act of 1996, the Commission was given the power to undertake research with regard to human rights and to disseminate and distribute the results of such research. It also was authorized to advise and assist the government in formulating legislation and administrative directives and procedures with a view to promote and protect fundamental rights.

[...]

Overall, the study contained a number of recommendations for strengthening the capacity of the Human Rights Commission in the area of internal displacement."

Freedom of movement

IDPs experiencing constraints on their freedom of movement (July 2008)

- Since March 2008 authorities have detained IDPs fleeing from the LTTE-controlled areas at a welfare centre in Mannar district
- The military has imposed severe restrictions on their freedom of movement even though no court has authorized the detention
- High Security Zones, in Jaffna and Sampur in Trincomalee district, have restricted the freedom of movement of displaced persons and prevented them from returning home
- In Trincomalee district, the military has also taken over 35 square mile area of land, covering 15 villages, and designated it a High Security Zone, barring 15,000 IDPs from returning to their homes.

HRW, July 2008:

"Since March 2008, the government of Sri Lanka has detained civilians fleeing areas controlled by the rebel Liberation Tigers of Tamil Eelam (LTTE) at a so-called welfare center in Kalimodai, Mannar district. The Sri Lankan armed forces have imposed severe restrictions on freedom of movement, instituting a daily pass system that limits to 30 the number of people who can leave the camp each day, and only if a family member remains behind to guarantee the detainees return in the evening. No court has authorized their detention and no charges have been filed against any of the camp's occupants, in violation of international human rights law.

[...]

Sri Lankan authorities maintain that detention at the camp is a security measure to protect displaced persons from possible LTTE reprisals. While the government has an obligation to protect internally displaced persons (IDPs), it cannot do so at the expense of their lawful rights to liberty and freedom of movement, Human Rights Watch said."

CPA, December 2007:

"The establishment of High Security Zones (HSZs) in Jaffna and most recently in Sampur in the Trincomalee district are other extreme examples of restrictions on movement. Many thousands of Tamil people have lost their land, homes and livelihoods due to the demarcation of particular areas as off limit to civilian access. HSZs account for some 18% of the entire Jaffna Peninsula and are the primary cause for the non-return of the majority of persons in Jaffna's welfare centres."

MRGI, December 2007:

"In Sampur, close to the north-eastern port city Trincomalee, the military has taken over a 35 square mile area of land, covering 15 villages, barring 15,000, mostly Tamil civilians, from their homes. Military HSZs are not uncommon in Sri Lanka's wartorn areas. But none in recent times has caused such a huge scale of eviction and displacement in a largely civilian area, an area that the government claims is returning to normalcy. The government has identified a new site to resettle people whose homes have been claimed for the HSZ, but this has been done without proper consultation. Those evicted have told human rights activists that they strictly oppose being settled in another location."

Eviction of Tamils in Colombo (Special report, 2007)

On 7 June 2007, the army and police in Colombo carried out an operation to evict Tamil civilians. A total of 376 people, 291 men and 85 women, were taken from lodgings and boarding houses frequented by Tamil visitors to Colombo. The evictees were given a few minutes to pack their belongings and leave on the basis that they were staying in Colombo “without valid reasons”. They were put on buses which took them 250 kilometres north to Vavuniya district near the boundary of the LTTE-controlled territory, and to Trincomalee district where some were then transported to Jaffna by boat.

The Centre for Policy Alternatives filed a fundamental rights petition with the Supreme Court to stop the Tamil expulsions from Colombo. The Court issued an interim order to end the expulsions and stop the government controlling the movement of Tamils in any part of Colombo. Following the interim order, many of the evicted Tamils were brought back by the police to their lodging houses. The Supreme Court is scheduled to hear the case on all grounds in November 2007.

A few days after the expulsions, the Prime Minister expressed regret to the hundreds of Tamils who had been evicted, saying it was a “big mistake” by the government. (Centre for Policy Alternatives Press Release, *Supreme Court grants leave to proceed to case filed by CPA on the evictions of Tamils from Colombo*, 26 July 2007)

Freedom of movement (Special report, 2007)

Freedom of movement - despite being enshrined in the Constitution of Sri Lanka – has been severely restricted as a result of the renewed conflict and the climate of insecurity. In several instances in 2006-2007, restrictions were placed on the right of people to seek safety in other parts of the country. In violation of the Constitution, international human rights standards and the Guiding Principles on Internal Displacement, both government and LTTE policies have prevented people from fleeing their places of origin even when their lives were threatened. However, it is likely that this has in fact encouraged civilians to flee for fear of being trapped in the midst of fighting. It also validates widespread concerns that IDPs are coerced into returning to areas which observers suggest are still unsafe.

Restrictions imposed by the government

In September 2006, in Muttur town in Trincomalee district, Muslim families tried to flee after receiving a leaflet warning of an LTTE attack. A first group was able to leave the town, but the army and navy stopped later groups of people from fleeing by blockading land and sea routes. (Inter-Agency Standing Committee, *Conflict-Related Internal Displacement in Sri Lanka, A Study on Forced Displacement, Freedom of Movement, Return and Relocation [April 2006-April 2007]*, July 2007, p.16)

The August 2006 closure by the government of the A9 highway linking Jaffna peninsula to the rest of the country paralysed much of the travel in and out of Jaffna. Most of the 600,000 residents of the peninsula were stranded in the face of shelling, widespread abductions and disappearances, and severe shortages of food, medicines and basic supplies. (Inter-Agency Standing Committee, p.18) Long curfews were also imposed by government authorities in Jaffna from August 2006 onwards, preventing many people from earning a living.

Movement in and out of Jaffna is still only possible by sea or air. Civilians who want to leave the peninsula have to obtain permission from the army's civil affairs unit. In June 2007, at least

15,000 people were waiting to board government ships to leave Jaffna for the relative safety of Colombo. (The New York Times, *Sri Lanka 's Scars Trace Lines of War Without End*, 15 June 2007, section A, p.1)

Restrictions imposed by the LTTE

The LTTE continues to maintain draconian restrictions on people living in the Vanni. Each person exiting the LTTE-controlled area has to leave family members behind as a guarantee of their return. The group also only issues passes on the day of travel, limiting the movement of civilians and supplies.

The LTTE has also placed restrictions on the freedom of movement of civilians wanting to escape the fighting in Batticaloa. After the shelling of the Kathiravelli school in Vaharai region, as panic spread and people tried to flee the area, the LTTE prevented 2,000 civilians from departing. UN Department of Public Information Press Release. In December 2006, as the security situation in the Vakarai region deteriorated, IDPs who were able to exit the area reported that the LTTE had tried to keep them back as human shields, believing that their presence would deter the army from bombarding the LTTE-controlled area. (Inter-Agency Standing Committee, p.17)

Restrictions resulting from insecurity

The Omanthai crossing between the government-controlled territory and the LTTE-controlled area in Vavuniya district was only open three days a week from June 2007, as the presence of ICRC observers was reduced as a result of a number of security incidents that jeopardised the safety of civilians crossing the line and that of ICRC personnel. In late August 2007, ICRC announced that its staff would be present at the crossing five days a week at the request of the government and the LTTE. (International Committee for the Red Cross, Sri Lanka: *ICRC personnel present at Omanthai crossing point five days a week*, 24 August 2007)

Government restrictions around military bases and high security zones

The freedom of movement remains limited near military bases and “high security zones” (HSZs) set up by the government to protect strategic installations. The HSZs extend up to four kilometres from the fences of most military camps. Some observers claim the HSZs unreasonably impact Tamil agricultural lands, particularly in Jaffna, where an estimated 18 HSZs have led to many farmers losing access to their lands and livelihoods. According to government officials, the HSZs occupy an area of over 60 square kilometres and have displaced over 109,000 people, with an additional 46,000 displaced since fighting broke out in August 2006. Although in 2004 the government loosened restrictions at one site in Chavakachcheri and allowed farmers and their families to return to their land at that site, the general public is still denied access to all HSZs. (US Department of State, Bureau of Democracy, Human Rights and Labor, *Sri Lanka: Country Report on Human Rights Practices [2006]*, 6 March 2007, p.10)

Most travel restrictions lifted (February 2005)

- Tamils moving around the country are no longer required to have passes
- Limited access to High Security Zones and adjacent areas, inhibiting the return of over 60,000 IDPs
- Commitment to freedom of movement and to voluntary and dignified return is not always applied in policy terms and at the local level

- Despite LTTE's invitation to Muslims to return, majority hesitates to return without government guarantees for their safety in LTTE-controlled areas
- LTTE reportedly occasionally disrupted the flow of persons exiting the Vanni region during 2004
- In 2002 the Supreme Court declared that the military pass violated the freedom of movement

USDS, country report, 28 February 2005:

"The Constitution grants every citizen "freedom of movement and of choosing his residence" and "freedom to return to [the country]", and the Government generally respected these rights in practice; however, it restricted the movement of Tamils. The war with the LTTE prompted the Government to impose more stringent checks on travelers from the north and the east and on movement in Colombo, particularly after dark. Unlike in previous years, Tamils no longer were required to obtain police-passes to move around the country; however, they were frequently harassed at checkpoints throughout the country.

Limited access continued to certain areas near military bases and High Security Zones, defined as areas near military emplacements, camps, barracks, or checkpoints where civilians could not enter. Some observers claimed the High Security Zones were excessive and unfairly affected Tamil agricultural lands, particularly in Jaffna. In August, the Government lessened restrictions at one site in Chavakachcheri and allowed farmers and their families to return to their land; however, the general public was still denied access to this area. The LTTE limited travel on the road connecting Jaffna to the rest of the country.

According to various sources, approximately 65,000 IDPs were unable to resettle as a result of the High Security Zones.

Most of the 46,000 Muslims expelled in 1990 by the LTTE remained displaced and lived in or near welfare centers. Unlike in previous years, the LTTE invited the Muslim IDPs to return home, asserting they would not be harmed. Although 500 Muslim IDPs returned home during the year, the majority did not move and awaited a guarantee from the Government for their safety in LTTE-controlled areas.

The LTTE occasionally disrupted the flow of persons exiting the Vanni region through the two established checkpoints. The LTTE taxed civilians traveling through areas it controlled."

The Refugee Council, September 2003, p.26:

"Tamil IDPs seeking safety from the northern districts during the 1990s were held by the security forces in Vavuniya welfare centres, some for more than five years, and prevented from proceeding to southern Sri Lanka. In February 2000, there were more than 22,000 people in six welfare centres in Vavuniya.[...] They were denied the freedom of movement by a strict pass system, treated almost like prisoners and were subject to harassment. The Sri Lankan Supreme Court declared in September 2002 that the military pass system in Vavuniya was illegal."

Government policy does not always respect the right to freedom of movement of internally displaced (February 2003)

- Commitment to freedom of movement and to voluntary and dignified return is not always applied in policy terms and at the local level.

- A Government policy detrimental to the freedom of movement of landless IDPs states that IDPs cannot be relocated on State land in any District other than that of their origin.
- This relocation policy will compel these landless IDPs to remain in camps, become homeless or return to an area against their will.
- Strategies used at the local level to force people to return include: threats of stopping dry food rations or closure of camps and camp facilities, such as schools.

CPA February 2003, pp. 7-8:

"UNHCR continues to advise against the organised return of IDPs and to monitor the voluntary nature of return. While the Central Government and the LTTE appear to be committed to respecting freedom of movement of IDPs, in practice, however, this commitment to freedom of movement and to voluntary and dignified return is not always applied in policy terms and at the local level.

For instance, a Government policy detrimental to the freedom of movement of landless IDPs states that IDPs cannot be relocated on State land in any District other than that of their origin. However, many landless IDPs expressed the wish to be granted land in the area where they are currently residing, in particular in Mannar island and Vavuniya town. As such, this relocation policy will compel these landless IDPs to remain in camps, become homeless or return to an area against their will. Landless IDPs include Upcountry Tamils who settled in the North and worked as tenant farmers prior to displacement; the new generation of displaced persons who reached adulthood during displacement and are propertyless; illegally or temporarily relocated landless persons; settlers without documentation and so-called "encroachers."

Interviews with IDPs reveal that a number of strategies have been used at local level to compel, or strongly encourage, IDPs to return to their areas of origin. These have included threats of stopping dry food rations or closure of camps and camp facilities, such as schools. At the end of September, the authorities closed the Madhu Church Welfare Centre, compelling 1,600 families to return to their areas of former origin."

The army pass system is still reality for people living in the Jaffna district (August 2005)

- Fishery representatives in Jaffna say the Sri Lanka Army has refused to stop the implementation of the security pass system
- They appealed to the Sri Lanka Army to replace the existing army pass system by recognizing the fisheries identity cards issued by the Department of Fisheries

NRC, telephone conversation, August 2005:

In 2005, the army pass system is still in use. While it primarily affects fishermen, it is not applied as strictly anymore as in the past .

TamilNet, 13 January 2004:

"Vadamarachchi North fisheries societies in Jaffna district appealed to the Sri Lanka Army to replace the existing army pass system by recognizing the fisheries identity cards issued by the Department of Fisheries. The appeal was made at a conference held last week at the 52-4 brigade headquarters of the SLA in Point Pedro, security sources said.

The conference was attended by fisheries societies' representatives, fisheries department officials and army officials led by Jaffna district area commander Major General Susil Chandrapala, sources said.

Major General Susil Chandrapala gave assurances to the fisheries representatives that he would take necessary action to find amicable solutions to problems and difficulties confronted by Vadamarachchi north fisher folk in carrying out their profession, fisheries sources said.

Fisheries representatives said that although more than two years have passed since the signing of the ceasefire agreement by the government and the LTTE, the SLA has refused to stop the implementation of their security pass system. They said the new Jaffna area commander of the SLA also has not taken any favourable steps regarding their request for eliminating existing army pass system and recognizing the fisheries identity cards, sources said.

Major General Susil Chandrapala is reported to have rejected another request made by the fisheries societies representatives that internally displaced fisher families from Myliddy village should be allowed to resettle in their own lands, which come under the high security zone of Palaly."

Physical security

Physical security remains a big concern for IDPs (May 2008)

- There remains a fear among IDPs and returnees due to extrajudicial killings, physical assault, abduction, disappearances, forced recruitment and harassment
- IDP camps and transit areas in the east are especially vulnerable to harassment by paramilitaries, particularly the TMVP and Pillaiyan groups
- Abductions and forced recruitment by the Karuna group have occurred in IDP camps in Batticaloa and Trincomalee districts
- Suspected LTTE presence in IDP camps has led the army to attack some camps and safe havens, killing a number of civilians
- The attacks are either targeted due to affiliations or former affiliations of IDPs, mistaken identity or random attacks

SRSG, May 2008:

"The first and overwhelming concern of both returnees and those still in displacement is physical security. The Representative was struck by the pervasive, often disabling, sense of fear among those he met. Whether they have returned to their communities, are in camps or transit sites, or are travelling, IDPs feel at risk. This is not limited to the newly cleared areas of the East; rather, he received reports of extrajudicial killings, physical assault, abduction, disappearances, forced recruitment and harassment in all areas he visited. He was particularly affected by the many women among the IDPs and returnees who told him about husbands or sons who had been murdered, abducted or arrested with no information on their whereabouts.

Sources of insecurity are varied. They include disappearances allegedly by all parties; abductions by unidentified actors; continued incursions and attacks by the LTTE, including claymore mine explosions; threats and attacks by irregular armed groups including the TMVP; tactics used by

security forces including roundups, identification techniques, and detentions without notification to family of the reasons for and location of detention; looting; and incomplete mine-clearance.

Camps and transit sites in the East, in particular, are subject to harassment by paramilitaries, primarily the TMVP. The Representative received reports about lootings in plain sight as well as abductions. Shelter material has been stolen in large quantities. At one camp, metal sheeting protecting the toilets and bathing area was completely gone, and women had nowhere to go in safety and privacy. Where residents witnessed an abduction or killing and admitted knowing the responsible party, they stated that they would be killed if they spoke of it. IDPs reported abductions by armed elements for forced labour; they also complained of common practice among TMVP and Special Task Force (STF) to appropriate IDPs' bicycles for their own use. IDPs complained that civilian police refuse to enter the camps at night, although in many instances there are army or STF outposts nearby."

USG, March 2008:

"In the east, the Karuna group and the Pillaiyan group often operated without hindrance in internally displaced persons (IDP) camps under government control and restricted humanitarian access. Abductions and forced recruitment by the Karuna group took place in IDP camps in Batticaloa and Trincomalee districts. According to SLMM, the Karuna and Pillaiyan groups were responsible for numerous abductions of male children and adults in Ampara and Batticaloa districts. The LTTE allegedly used civilians as human shields. Suspected LTTE presence among the IDPs led the Sri Lanka Army (SLA) to attack some IDP camps and safe havens, killing a number of civilians."

CPA, December 2007:

"The attacks are either targeted due to affiliations or former affiliations of IDPs, mistaken identity or random attacks. In Batticaloa, this has been most severe with IDPs and civilians being identified as either supporters of the LTTE, Karuna faction or others. Attacks have not been solely targeted towards adults, with children also at the receiving end."

Physical security (Special report, 2007)

With the sharp deterioration in the security situation in Sri Lanka from 2006 onwards, civilians have become increasingly vulnerable. The conflict has not only disrupted the lives of hundreds of thousands of people, but dealt new blows to those who had already faced tremendous adversity during the previous phase of the war from 1983-2002 and as a result of the tsunami. Displaced people have been at particular risk, with the Guiding Principles on Internal Displacement, the basic international framework for the protection of IDPs, frequently disregarded.

The infiltration of armed men into IDP camps and cases of abductions have demonstrated the challenges of protecting IDPs. In March 2007, it was reported that armed men, some wearing the uniform of the Karuna faction, were roaming camps and even taking over the distribution of relief goods. It was further noted that the Karuna faction was operating in Batticaloa town with the complicity of government officials. (Amnesty International Press Release, *Sri Lanka: Armed groups infiltrating refugee camps*, 14 March 2007)

Landmines and UXO's are the main safety threats to IDPs and returnees (July 2005)

- Landmines (NGOs estimate 1.5 million, government 1 million) strewn across the war-torn north and east are one of the biggest obstacles to families going home
- Government is implementing comprehensive Mine Action Programme
- Problem of dislocated mines after the tsunami is less acute than initially perceived
- De-mining plays a key role to clear land in the North and East for resettlement and cultivation
- The Government of Sri Lanka and the LTTE have not reached any agreement on a landmine ban and this is seriously hampering demining efforts
- In Vavuniya, demining paves the road to return

Xinhua News Agency, 6 July 2005, Reliefweb:

"The first weeks of July and August have been designated as "National Mine Action" weeks to raise awareness about landmines that continue to kill in Sri Lanka's north and east. According to the Sri Lanka National Steering Committee on Mine Action, the months of July, August and September are the most dangerous for landmine injuries [as] people return to their fields to begin planting and harvesting crops."

Sri Lanka Development Forum, MRRR, presentation, May 2005:

"During the last two decades of the civil war, the Sri Lanka Army and the LTTE have planted several anti personnel mines as defensive weapons. There are an estimated 1.0 million mines in the North-East in about 640 villages. Of this, about 500,000 landmines are in the Jaffna district. The experience of other countries having to cope with landmines infestation, indicates that preparations for the rapid clearance of contaminated areas should be undertaken well ahead of the advent of peace. Delays have often crippled vital rehabilitation and development work. With this mind, the GOSL is implementing a comprehensive Mine Action Programme with the assistance of the UNDP, UNICEF and NGOs. The programme targets a mine- free North-East area and border districts by the end of 2006. About 40% of the mines have been cleared. In order to coordinate mine action, a National Steering Committee on Mine Action had been established. [...] With the assistance of UNICEF, a Mine Risk Education (MRE) Programme is being undertaken by the GOSL. MRE is being done in the field, in schools, and in other areas. This MRE Programme has reduced the number of mine accidents from 20 per month, to 5 to 7 per month. The MRE Community-based programme is well established in the North-East areas through a network of local NGOs. Adequate coverage on IDPs and affected communities has been possible through this programme."

OCHA, April 2005:

"In the North and East, the demining and marking/mapping of dislodged mines and UXOs started shortly after the tsunami and is still ongoing. Mine Risk Education (MRE) programmes are also ongoing in all relevant districts. The issue is, however not as large as initially perceived. Integrating Mine Action requirements into the overall reconstruction and development efforts would serve to address long-standing pre-tsunami challenges."

Alertnet, 30 June 2004:

"Although both sides are clearing mines, neither government forces nor the Tamil Tiger armed movement is prepared to promise not to lay any more. "We still need landmines to defend our bases. They provide us with an early warning of an enemy attack," Major Peiris of the Sri Lankan army told AlertNet."

NGOs say that an estimated 1.5 million landmines strewn across the war-torn north and east are one of the biggest obstacles to families going home. Most of the mines are in the north, where the heaviest fighting took place and both sides used mines to fortify their positions as they wrestled over territory.

[...]

Landmines are not on the agenda in negotiations, and foreign funding for mine clearance is severely limited by both sides' failure to agree a landmine ban. Until the mines are cleared, hundreds of thousands of people remain in camps. Those that can return are terrorised by mines all around them, around their homes, on their farming land and by their schools."

CPA February 2003, p.7:

"Landmines render large expanses of land unusable for agriculture and cattle grazing. Mine Action activities by the LTTE, the SLA and INGOs, including surveying, marking, education and demining, have started in conflict affected areas. There appears, however, to be regional discrepancies in the focus of demining efforts. In certain areas, such as the LTTE controlled Vanni, surveying, marking, Mines Risk Education and de-mining are underway, and local personnel have been trained in demining to international standards. However, in Government-controlled areas and the Eastern Province, with the exception of the Jaffna peninsula, only *ad hoc* Mine Action work is being undertaken, mostly by the Sri Lankan Army.

The lack of demining in Government-controlled areas is compounded by a dearth of Mine Risk Education for potential returnees. Thus, it appears that only when IDPs actually return are the areas surveyed and education provided. As far as could be ascertained, no Mine Risk Education is provided in IDP camps or settlements prior to return."

ICRC 28 June 2004:

ICRC says there were relatively few mine injuries in 2003, despite large-scale return of displaced people:

"In spite of large-scale return of displaced people to former battle zones, relatively few mine injuries were reported. Both sides undertook mine clearance (expected to last four years) and there was considerable international support for mine action."

CHA, Sit. Rep, January 2004:

Vavuniya:

"De-mining Activities; Mine Action Achievement - A ceremony to notify that an area of 55,000sq feet in Omantai was cleared of landmines, was held on December 12th. The GA Vavuniya received the certificate of Successful Mine Clearance of the above area and it is proposed that IDPs will soon be settled in the area."

SUBSISTENCE NEEDS

General

Living conditions and livelihood opportunities (Special report, 2007)

Living conditions

The humanitarian situation of those living in some IDP camps in the eastern districts of Batticaloa and Trincomalee presents cause for concern. Fact-finding missions by human rights groups revealed that the unexpected influx had led to poor conditions in some of the larger camps, with overcrowding and shortages in shelter and toilets. Additionally, IDPs living outside the camps with host families faced hardships as they were wholly reliant on their host families for support in the absence of any schemes to ensure that they were receiving rations from the government. (Centre for Policy Alternatives, INFORM Human Rights Documentation Centre, Law and Society Trust, Women and Media Collective, *Report of the Fact-Finding Visit to Batticaloa and Vakkarai*, April 2007, p.3)

Livelihood opportunities

The productivity of farmers and farm labourers was hard hit by the lack of fertiliser and other farm inputs, and by lack of access to land in the high security zones (HSZs) around military installations. Severe restrictions imposed by the army also limited the livelihoods of the 17,500 fishing families (nine per cent of the entire population) of Jaffna, whose production was estimated at one point at only ten per cent of pre-conflict levels. With the ongoing security problems and transportation issues, many IDPs from Jaffna have no livelihood opportunities and are unable to go back to their homes to restart businesses. (UN Office for the Coordination of Humanitarian Affairs IRIN News, *Sri Lanka: Malnutrition rising in Jaffna, aid deliveries struggling*, 18 July 2007)

Dire humanitarian situation for newly displaced in 2006 (October 2006)

UNICEF, 5 October 2006:

"Food and other items are in extreme shortage in those areas due to access restrictions for suppliers and civilians. There is a continued need for sanitation and hygiene related interventions in IDP concentration points. The imminent monsoon requires rapid action as many of the IDP sites provide inadequate shelter and are prone to flooding."

For a detailed account of the humanitarian situation of the Muslims displaced from Muttur to Kantalai in August 2006, please see CPA, 25 August 2006 (sources).

The devastating impact of both war and tsunami is felt most directly by populations in the north and east (April 2005)

- The tsunami has hit the north and east of Sri Lanka, which was already hardest hit by the war
- Many of those affected by the tsunami were conflict-IDPs

- Income poverty, healthcare, education and economic conditions are far worse in areas racked by war than in other parts of the nation
- Among the worst affected groups are households that have been displaced, sometimes repeatedly
- Nearly all households in the north-east (97 percent) that moved due to the war suffered loss of property

INFORM, April 2005, p. 8:

"[...] There still seems to be less emphasis than is called for on the fact that the majority of affected communities constitute the poorest segments of the island's population. In addition, the fact that in the north and east the communities affected by the tsunami were already those affected by the conflict and that there remain 360,000 persons displaced by the conflict who are awaiting resettlement must be factored into whatever plans are made for resettlement of tsunami-affected populations. If not, a further arena of conflict and tension will be opened up in these very fragile areas"

GoSL, PRSP, 2002, p.122:

"Sri Lanka has been immersed in war for the last 19 years. The humanitarian, social and economic impact of the war is felt most directly by populations in the North and East and the areas bordering it. The effects of the conflict have far reaching economic, social, and psychological repercussions that extend beyond the theatre of battle. Some of the effects of the conflict include: loss of civilian lives and psychological trauma, damage to infrastructure and homes, displacement, restricted mobility in some areas in the country, disruption of local economies, disruption of community and institutional networks, disruption of children's education, high dependence on relief, deterioration in the health status of the population, and widespread vulnerability and insecurity among the population. Qualitative reports suggest that income poverty, healthcare, education and economic conditions are far worse in areas racked by war than in other parts of the nation.

[...]

Among the worst affected groups are households that have been displaced, sometimes repeatedly, as a result of conflict in or threats to their home villages. Displaced families have lost productive assets (agricultural equipment, livestock, shops, and mills), including in some cases lands they had cultivated before being displaced. Some of the displaced remain in welfare camps, often for years. Those who eventually return to their home villages sometimes find that their lands have been appropriated by other households. The Sri Lanka Integrated Survey (SLIS) found that nearly all households in the Northeast (97 percent) that moved due to the war suffered loss of property."

The ICRC is assisting conflict- and tsunami-affected communities (August 2005)

- The ICRC's approach is to balance aid between coastal areas and the neighbouring inland areas
- Particular attention is paid to food security, shelter and income-generating activities
- Many returnees in Jaffna again lost all their recently built-up belongings to the tsunami

ICRC, 9 August 2005:

"The ICRC is assisting some 120 rural communities in Trincomalee, Kilinochchi, Mullaitivu and Jaffna districts in north and east Sri Lanka to re-establish livelihoods of people suffering from

years of conflict and the effect of the tsunami that devastated coastal towns throughout the island last December. More than 30,000 people were killed in the disaster and some 500,000 left homeless and displaced.

A vital aspect of the ICRC approach is to balance aid between the coastal areas that were destroyed by the tidal wave, and the neighbouring inland areas that, while not directly affected by the disaster, have close economic links with the coastal communities and have experienced serious economic repercussions.

The ICRC programme is twofold: it is targeting some 20 coastal communities in addition to 5,000 families that will be equipped with fishing nets, and reinforcing livelihoods or starting income-generating activities in 100 vulnerable inland-communities that have suffered economic effects of the tsunami.

While designing the programme, an ICRC team consulted the selected communities so as to set up projects that would meet their specific needs:

- In Trincomalee, over 180 households will be provided with traditional canoes and nets to enable them to catch and sell sweet-water fish in nearby markets, while 80 households will be assisted to clear farmland for additional paddy cultivation.
- In Jaffna, some 500 families will be supported through cash-for-work projects. These include reviving farmland for use by displaced communities, and one-off grants to individual households to help them set up small businesses, or raise poultry or livestock.
- In the Vanni, the stronghold of the Liberation Tigers of Tamil Eelam (LTTE) in the north of Sri Lanka, some 370 families in Mullaitivu district will benefit from cash-for-work projects while fertilizers and seeds will be provided for subsistence farmers in Mullaitivu and Kilinochchi for home gardening and paddy cultivation.

'It is estimated that more than 40 percent of the total population living in the Vanni has been displaced by the conflict between the LTTE and the Sri Lankan Army. The local communities have also been severely affected, as they are supporting large numbers of displaced people despite their limited resources,' explains Jean Pierre Nereyabagabo, an ICRC specialist at Kilinochchi.

'The core objective of the livelihood programme is to improve the food security of rural communities whose hardship from years of conflict has been made worse by the tsunami.'

The ICRC is starting another cash-for-work project in coming days in the neighbouring village of Vaddakadu, where 61 displaced families have been living in makeshift camp on privately owned land since they left Jaffna in 1995. The landowners have now claimed it back, but the local authorities have granted the families another location where they can settle permanently.

They will get daily rates for clearing the land to make it habitable and better suited for home gardening. As a result, they will increase their own food security, as most of them now exist on a meagre income from collecting and selling firewood. They may also qualify for a small-scale income-generating project, such as raising livestock or poultry.

In the north and the east, the ICRC will also be distributing nets to fishermen who have not yet received assistance from other aid agencies. In the Vanni, the ICRC will concentrate its assistance on Vadamarachchi East, a Jaffna district in the LTTE-controlled area.

Some 16 villages located in a 2 km stretch were destroyed by the tsunami, over 1,200 people were killed and the 3,000 families that survived are all still living in temporary shelters. Most of the families had been displaced in Jaffna or the Vanni for over 12 years due to the conflict, before returning to their villages in 2002 when the Sri Lankan government and the LTTE signed the

ceasefire agreement. Little by little they had been restoring their trade of fishing over the past couple of years, but lost everything when the tidal wave hit the island. “

Addressing subsistence needs of tsunami-affected populations (April 2005)

- Immediate emergency humanitarian needs have generally been met, disease outbreaks could be avoided
- Most people have access to adequate water supplies while standard of sanitation facilities is not acceptable yet

OCHA, April 2005:

“Immediate emergency humanitarian needs have generally been met in terms of quantity. Vast operations in the aftermath of the disaster succeeded in preventing further deaths. Direct food distribution and the introduction of ration cards served to avoid famine and collective health initiatives managed to stop any outbreaks of disease. As the Flash Appeal was launched on 6 January, 637 camps and welfare centres as well as thousands of relatives and friends provided temporary shelter to 572,578 displaced persons.

To date, in most affected areas, people have been given access to sufficient and adequate water supplies, although in many camps, the standard of sanitation facilities has not yet reached an acceptable level. The clearing of debris has been completed along the main roads and temporary measures are in place where road access is deemed essential. Early recovery efforts have included capacity building and the restoration of health and educational facilities, infrastructure and sanitation. More than 85% of the children in tsunami-affected areas are back in school. Furthermore, general food distribution is gradually shifting towards more targeted feeding programmes for vulnerable groups and self-sustainability projects such as Food/Cash for Work.”

Conditions in welfare centres are precarious (September 2003)

- Welfare centers are characterised by inadequate access to basic health and educational facilities and over-crowded, unsanitary living conditions
- The space and facilities given to each family are totally inadequate and have led to health problems
- Children suffer from malnutrition and poor health conditions
- They are also unable to pursue proper education, the main reasons being poverty, lack of schools in the vicinity of welfare centres and shortage of teachers

GoSL, PRSP, p. 122:

“A large number of displaced persons (including Tamils, Muslims and Sinhalese) have sought shelter in welfare centers, which are characterized by inadequate access to basic health and educational facilities and over-crowded, unsanitary living conditions. The prevailing conditions are worse in the uncleared than in the cleared areas. Many peripheral health institutions have suffered extensive damage in the fighting and maternal and child health services have also deteriorated due to a variety of reasons, including shortage of qualified medical and para-medical officers, lack of field staff, transportation problems, loss of equipment, breakdown of water and sanitation facilities, and lack of electricity. Malaria is prevalent in the war zone and has the highest endemicity in the uncleared areas as control systems have broken down.”

The Refugee Council, September 2003, p.26:

"Some welfare centres are in buildings, and in other centres, IDPs live in thatched-roof shelters or tents provided by international agencies. In welfare centres, the space and facilities given to each family are totally inadequate and have led to health problems. The conditions of welfare centres are unhygienic and as such there is a greater vulnerability to disease. Health needs are often not met and only basic health facilities are available.[...]

An estimated 220,000 children were displaced in the north-east and another 16,000 lived in welfare centres in Puttalam. In the centres, children suffer from malnutrition and poor health conditions.[...] The IDP children are also unable to pursue proper education, the main reasons being poverty, lack of schools in the vicinity of welfare centres and shortage of teachers."

Government recovery policies and programmes (August 2004)

- During 2002-2003 the government developed the Relief, Rehabilitation and Reconciliation (RRR) framework
- The government provides basic services and relief food to IDPs in LTTE-controlled areas

WFP, August 2004:

"The Government provides nationwide assistance to civilians affected by the conflict and supports welfare programmes for the poorest people wherever they reside. During 2002-2003 the Government, with local donor support and participation, developed a broad-based relief, rehabilitation and reconciliation (RRR) framework to coordinate assistance to conflict-affected communities and guide efforts for reconciliation and partnership across ethnic lines as a basis for sustainable development.

Under the management of the Commissioner General of Essential Services (CGES), the Government maintains an administrative capacity in the LTTE-controlled areas to provide basic services and essential relief food to IDPs. Displaced families with monthly earnings of less than LKR1,500,1 about the eligibility level for the national welfare system of Samurdhi, are eligible for a monthly CGES dry ration. The Government also implements a nationwide programme that involves distributing a local blended food called thripasha to pregnant and lactating women and malnourished children under 5; but because current production meets less than 50 percent of national requirements, the thripasha programme does not cover the conflict-affected districts effectively."

Assistance to displaced families (August 2005)

- A 2004 survey of welfare centres in Puttalam reveals many poor IDPs
- IDP survey conducted in 2002 showed that 92% of internally displaced families required some kind of assistance.
- Cash is mostly needed to build houses, followed by building material and self-employment facilities

MRRR survey, 2004:

60% of IDPs in Puttalam live in cadjan huts, 15% in non-satisfactory houses. Many IDP families do own land in Puttalam district, but cannot afford building a house on it. There is

also a relatively high number of female and elderly heads of household (about 4% of the total population surveyed) Most IDPs willing to return or settle locally need financial support.

The registration of displaced persons undertaken by MRRR and UNHCR during 2002 revealed that a total of 148,520 IDP families or 92% of the total number of displaced families required assistance of various nature.

Jaffna cut off from supplies, in already precarious situation due to long conflict and tsunami (September 2006)

- Conflict in Jaffna has cut food supplies to tens of thousands of IDPs
- IDPs in Allaipity have received some humanitarian aid in May 2006
- IDP in camps in the the Jaffna peninsula reportedly suffer without basic facilities. Shelters in the camps are dilapidated and lack water or sanitary facilities.
- There are more than 8,000 refugees in 72 camps in north-eastern Vadamaratchy and western Valikamam and 25,773 widows in the peninsula, many without income.
- Many of the IDPs who live in precarious conditions in the camps wish to return but the HSZ hamper their return.
- Displaced people who returned from the Vanni, even a day before 22 February 2002, the date of the ceasefire agreement, are denied any resettlement assistance

AFP, 25 October 2006:

Sri Lanka has airlifted hundreds of tons of food and other essential items to Jaffna, which was cut off more than two months ago by fighting with Tamil rebels, the defense ministry said Wednesday.

The military operated emergency flights Tuesday and Wednesday and was expected to ferry more goods to the northern area by boat as the A9 highway linking the peninsula to the rest of the island remains closed.

Both the government and the Tamil Tiger rebels blame each other for closing the main north-south road, a move which has "wreaked havoc" in Jaffna, where more than 40,000 people have sought refuge from the fighting, the pro-rebel Tamilnet.com website said.

Hundreds of thousands of people normally living on the Tamil-majority peninsula are also dependent on government and NGO aid, putting enormous strain on efforts to keep people fed.

UN News Sercive, 22 September 2006:

"A "serious problem" is looming in Sri Lanka's northern Jaffna peninsula where escalating violence between the separatist Liberation Tigers of Tamil Eelam and Government forces has cut food supplies and driven 60,000 people, nearly half of them children, into displaced persons camps, United Nations agencies have warned. "The power has been cut," the head of UN Children's Fund Jaffna office, Judith Bruno, said. "In the last few days we have only one hour of electricity. There is no petrol in Jaffna. There are no construction activities. Everything has stopped."

Roads to Jaffna are blockaded because of the increased violence, which started on 11 August, and emergency supplies are not getting into the district by land. Ms. Bruno said two boatloads of government provisions had been delivered, including a total of 5,000 metric tons of food.

~~"This is against a need of more than 10,000 metric tons for the whole population for a month," she noted. "If food shortages continue, children and mothers will face serious effects on their health. We are on the verge of a serious problem."~~
~~Children are the ones most affected by displacement, suffering from the scarcity of water and sanitation facilities, lack of adequate food, no electricity and conditions too dangerous to attend school. "You must remember that last year they were displaced by the tsunami," Ms. Bruno said. "And now again they are displaced, and many of them have lost family members in the conflict. It will take some time to be able to deal with this emotional stress." "~~

CHA, May 2006:

"The displaced persons of Allaipity received assistance in various forms from several organisations. CHA has donated dry rations to displaced persons of Allaipity, staying at OLR and Navanthurai Churches. World Vision has supplied a hygiene kit to the displaced persons of Allaipity. Sri Lanka Red Cross have supplied the essential medical kits to displaced persons of Allaipity. UNICEF has run a number of programmes in these two camps in order to make sure that the displaced children occupied. For three days, the GA provided food to the displaced persons. After rehabilitation, Necord will be handing over ten schools to the administration. The total spent on rehabilitation of the schools amounts to Rs. 80 million."

TamilNet:

Reports from 2005 indicate that the living conditions in Jaffna's IDP camps remain precarious and have been exacerbated by the effect of the tsunami .

BRC March 2003

"Reports say that the internally displaced people (IDP) in camps in the the Jaffna peninsula continue to suffer without basic facilities. There are more than 8,000 refugees in 72 camps in north-eastern Vadammaratchy and western Valikamam. In addition, a government survey says there are 25,773 widows in the peninsula, including 3,368 in southern Thenmaratchy. The widows are between the ages of 16 and 50 and many are without any income.

Shelters in the camps are dilapidated and lack water or sanitary facilities. Residents of some camps walk several miles in search of drinking water. The government secretariat says that 'needs assessments' from *Pradeshiya Sabhas* (regional councils) for repair of shelters have not been received. IDPs want to return to their home areas, but these lie in military high security zones (HSZ).

In March, the Jaffna NGO consortium sent a letter to all foreign diplomatic missions in Colombo highlighting that the conditions of the people, after a year of ceasefire, have not improved. The problems relating to health, education, employment, transport, agriculture, fishing and HSZs remain. Prime Minister Ranil Wickremasinghe, on a visit to India, said that the LTTE was justified in insisting that the people of the north-east have not reaped the benefits of peace.

The North-East Fishermen Union began repairing a sea food processing plant in Jaffna town at a cost of Rs 2.1 million, but the Army have ordered the Union to suspend repairs alleging security reasons. People say that in some areas the Army is continuing to fell palmyrah and coconut trees despite a strict order by Defence Secretary Austin Fernando, and are extending military camps.

The perimeter of the Army camp in Ariyalai, three miles east of Jaffna town, has been extended, affecting some 1,000 fishermen. Local NGOs have cabled the Prime Minister, protesting against

the construction of a new Army camp in an important area of Jaffna town. They say that a library, two schools, a church and a temple are in the vicinity and the camp would affect normal life in the area. The Jaffna Catholic Bishop has also expressed his opposition to the camp.

[...]

NGOs have also expressed concern over complaints of discrimination in government payments to resettling IDPs. Those arriving from the Vanni mainland have priority over IDPs in Jaffna. Displaced people who returned from the Vanni, even a day before 22 February 2002, the date of the ceasefire agreement, are denied any resettlement assistance."

Large numbers of vulnerable people remain in Sri Lanka's conflict-affected areas (August 2004)

- Many families require shelter and security, as well as the opportunity to earn a living, access health care and educate their children
- Studies indicate that displaced families live in abject poverty and it is clear that the food assistance provided by the government does not reach all those in need
- Many displaced families, especially those in LTTE controlled areas do not receive any assistance
- During the war, the situation of the internally displaced in the LTTE-controlled areas was worse than those in government-controlled areas

WFP August 2004:

"Millions of Sri Lankans have been adversely affected by nearly two decades of conflict, but the people most directly affected and vulnerable are resettled/relocated families who wish to resume their livelihoods, local populations in returnee/relocation areas, IDPs living in welfare centres, and children and young people traumatized by the conflict.

Among these groups, children under 5, schoolchildren, pregnant and lactating women and vulnerable women in welfare centres are particularly vulnerable."

UN Inter-Agency IDP Working Group 9 February 2004:

"With so many still displaced – and almost as many recently returned – it is clear that there remain large numbers of vulnerable people in Sri Lanka's conflict-affected areas. In this regard, the growing focus on development activities should not distract attention from the ongoing need for humanitarian assistance, particularly to IDPs still residing in welfare centres and to returnees who remain in a vulnerable situation. Many families require shelter and security, as well as the opportunity to earn a living, access health care and educate their children."

The Refugee Council, September 2003, p.26:

"Studies indicate that displaced families live in abject poverty and it is clear that the food assistance provided by the government does not reach all those in need. There are delays and shortages in distribution and the food supplied is often insufficient and of poor quality. Many displaced families, especially those in LTTE controlled areas do not receive any assistance. Further, when marriage takes place, the new IDP couple is sometimes refused registration by government officers as a separate family unit and forced to depend on rations issued to their parents.

[...]

In some respects, the situation of the IDPs in the LTTE-controlled areas was worse than those in government-controlled areas. No productive employment was available to them in these areas

and government assistance never reached them in full. In addition, the government and the security forces imposed an economic blockade on the north-east, denying or restricting food, medicines, medical equipment and fuel.[...] Poor hospitals and transport facilities have further affected the health of civilians and IDPs in these areas. Rise of diseases such as malaria was noted due to absence of proper disease control activities."

Food

Displacements increasing reliance on relief aid (February 2008)

- Displacements, fishing bans and the inability to access agricultural plots and markets have increased dependence on relief assistance
- Approximately half the population of the Vanni is dependent on food aid, and Jaffna, Batticaloa and Trincomalee record similar levels of dependence

CHAP, February 2008:

"Displacements, fishing bans and the inability to access agricultural plots and markets have increased dependence on relief assistance. Emergency food assessments conducted by World Food Programme /Food and Agriculture Organization (WFP/FAO) in Batticaloa, Trincomalee and Jaffna during 2006/2007 clearly indicated the negative impact the fighting has had on food security. Approximately half of the population of the Vanni – which is comprised of the districts Mullaitivu and Kilinochchi, and parts of Vavuniya, Mannar and Jaffna – is dependent on food assistance and Jaffna, Batticaloa and Trincomalee record similar levels of dependence. Emergency food security assessments conducted by WFP and FAO and other agencies. As fighting has reduced access to food and standards of living have deteriorated, so has the nutritional status among the population, with 2003 malnutrition rates in the North and East almost double the national average."

Nutrition (Special report, 2007)

In March 2007, the World Food Programme (WFP) reported that the recent near-doubling of the IDP population had created a major humanitarian challenge for the agency. In some districts WFP had been forced to put on hold its mother-and-child nutrition and school feeding programmes so as to redirect limited resources to the newly displaced. (World Food Programme Press Release, *WFP ramps up food aid for thousands fleeing conflict in eastern Sri Lanka*, 20 March 2007)

Nutrition surveys by the government and international agencies showed rising levels of acute malnutrition in the northern Jaffna district as a result of conflict-related disruption of livelihoods and markets, the closure of the A9 highway, and security-related restrictions on farming and fishing. Food assistance for the internally displaced and other vulnerable groups was in short supply for months after the A9 closure, since WFP was only able to transport 20 per cent of the required rations to Jaffna. (UN Office for the Coordination of Humanitarian Affairs IRIN News, *Sri Lanka: Malnutrition rising in Jaffna, aid deliveries struggling*, 18 July 2007)

Chronic food insecurity widespread, particularly in conflict-affected areas (August 2004)

- 25% live below national poverty line, one third of children under 5 are underweight
- Livelihoods in conflict areas have been seriously affected
- Malnutrition affects health situation, in particular of mothers and babies

WFP, August 2004:

"Sri Lanka is a low-income food-deficit country; a quarter of the population live below the national poverty line. The extent of food insecurity is reflected in serious malnutrition rates: 29 percent of children under 5 are underweight, 15 percent are wasted, 14 percent stunted and 16 percent born weighing less than 2.5 kg. Malnutrition rates in conflict-affected districts in the north and east are alarming at double the national average.

The conflict has affected all facets of Sri Lankan life, but the worst cases of poverty and food insecurity exist in the north and east and adjoining conflict-affected districts. Frequent dry spells and drought exacerbate the situation in two of the four adjoining districts.

Following the ceasefire agreement, the A-9 north-south highway opened up the former LTTE-controlled areas after two decades of isolation, revealing large-scale destruction of private property and community infrastructure. The conflict has seriously affected the livelihoods and food security of rural families: displacement and denial of access to agriculture, livestock, forest assets and opportunities have led to loss of production, income and employment; large tracts of agricultural land have been rendered inaccessible by landmines or have deteriorated into bush; farming equipment and infrastructure, including irrigation tanks, are in need of repair or rehabilitation. These deteriorating conditions limited the capacity of vulnerable households to maintain adequate food security and caused unprecedented poverty.

The conflict-affected areas lack adequate public services, particularly health services. The high malnutrition rates attest to the severity of conditions: high percentages of low-birth-weight babies are the norm; anaemia rates of 50 percent are common among women and adolescent girls. Malnourished women give birth to children whose start in life is compromised by small size and low weight, which transmits malnutrition from one generation to the next.

Over 20 percent of households in conflict-affected areas are headed by women. Many households headed by women lost male breadwinners in the conflict and are trying to cope materially and psychologically. During the ceasefire period, however, opportunities and support to re-establish their livelihoods and food security have been limited."

Government's policy on distribution of food to IDPs is inconsistent (June 2006)

- Many conflict IDPs do not receive the financial and food support they are entitled to
- Sources indicated that the government may cut dry food rations for some IDPs in Puttalam in 2005
- IDPs earning less than Rs. 1,500 a month are entitled to receive dry rations from CGES or WFP.
- Rs 1260 is the ceiling of government food assistance and applicable to families of 5 and more. IDPs entitled to CGES food assistance receive either cash or a ration card with coupons which they may exchange in Multi Purpose Cooperative Society outlets for food stuffs, or other items.

AI, June 2006, p. 23:

Those displaced by the conflict and living with friends or in welfare centres are supposed to receive Rs. 1,260 of dry rations per month for a family of five people. In theory these rations should continue for up to 15 months after the family have returned or relocated; however many conflict-displaced people told Amnesty International delegates that this was not the case. [in contrast, tsunami displaced received better and more consistent support, see same report, p. 22]

In summer 2005, all IDPs in Puttalam receive monthly dry rations. Some sources suggested that the government may cut dry rations for some locally integrated groups of IDPs in Puttalam. (July 2005)

WFP, August 2004

"The Government entitles IDPs earning Rs 1,500 or less a month to receive dry rations either from the Commissioner General of Essential Services (CGES) or from the United Nations' World Food Programme"

CPA October 2001, p. 35

"The Director of Social Services is the implementing partner of the WFP. The Department distributes WFP food assistance to IDPs in Welfare Centres in the cleared areas in six districts, namely Vavuniya, Mannar, Anuradhapura, Puttalam, Trincomalee and Ampara. The WFP undertakes projects in Jaffna since 2000. WFP dry food assistance to Polonnaruwa was withdrawn recently and skills training programmes introduced instead. The WFP however does not provide assistance to IDPs in the uncleared areas. IDPs living in welfare centres in the uncleared areas, and IDPs living with relatives and friends are provided food rations by the CGES.

The value of the CGES rations is as follows: Rs 1260 for a five member family per month; Rs 1008 for 4 members; Rs 840 for 3 members; Rs 610 for 2 members; Rs 336 for 1 member. Rs 1260 is the ceiling of government food assistance and applicable to families of 5 and more. IDPs entitled to CGES food assistance receive either cash or a ration card with coupons which they may exchange in Multi Purpose Cooperative Society outlets for food stuffs, or other items. In emergencies, the CGES may provide IDPs with a cooked meal at a cost of Rs 45 per adult and Rs 25 per child which may then be followed by dry rations. "

Inconsistent and late distribution of dry rations in Puttalam creates problems for IDPs (July 2006)

- Dry rations to Puttalam IDPs are often delivered late due to administrative hurdles
- Rising hostilities against IDPs add to the insufficient and late rations delivery
- Changes in rations lists are difficult to make, which causes IDPs who are re-displaced to wait for a long time before being recognised on the distribution list of their new place of residence.
-

CPA, 19 July 2006:

"Dry Rations:

Many amongst the recently displaced we spoke to had yet to get back on the ration list and, given the difficulties in finding employment, are dependent on the goodwill of family and other members of their communities. The delay seems to be administrative, largely due to the notification system where IDPs who have resettled have to be registered with the respective District Secretariat in the area of resettlement and receive dry rations in that area.

If there is displacement, including sudden movement, several weeks are needed to process the displacement with IDPs having to re-register in the new area, ensuring that their names are removed from the list in the area of resettlement. The District Secretary Mr H.M. Herath admitted that there have been delays in providing dry rations to the recently displaced due to administrative reasons where the displacement has to be verified. **The relevant authorities need to take into consideration the new wave of displacement and the hardships caused by the rising hostilities and revise administrative measures accordingly.** Further, all effort needs to be taken to ensure that **dry rations are provided speedily** by all key actors such as NGOs, INGOs and other agencies, even as a stop-gap measure.

The organizations and the communities we spoke to all complained of problems in the ration system. These include delays in receiving dry rations, dry rations being substandard, insufficient quantities provided to families that are based on a 1995 circular with no provisions for price inflation regulations, as well as inefficiency in distribution and corruption. Among the IDPs who were displaced in Puttalam in the 1990s, there is a large proportion who are dependent on the rations as they are unable to find viable or secure livelihoods. Some of the problems may be localized to particular camps, others common to Puttalam at large, but given that these complaints were made by a number of actors they seem to be problems shared by a significant proportion of the population.

We were told of instances where some IDPs had to deal with a six month delays. In some of these cases of the six month delays, IDPs did not receive full arrears and were only provided with dry rations for three months giving room for misappropriation of these monthly rations. IDPs also complained of difficulties in obtaining rations having to stay the entire day to receive dry rations and having to beg the staff working at the cooperatives to provide them with dry rations which is their legal entitlement. Another was shortages. When IDPs went to claim their rations the cooperatives claimed they had run out of supplies and would not be distributing supplies, forcing the IDPs to make a costly second trip. [...]

The poor quality of the food was raised several times, where the displaced claimed the dry rations were not suitable for consumption. The Puttalam District Secretary admitted that there were problems in relation to checking the quality of dry rations mainly due to the time factor and lack of trained staff. There were also no specific regulations on distributing dry rations with no specific dates given for the distribution.

The asymmetric power relations between the IDPs, the Cooperative Managers, and the Grama Sevakas create a situation where the IDPs are afraid to challenge these individuals and demand their entitlements. It was reported that IDPs did not question authorities on the quality of food but merely took whatever was offered. There were also reports of IDPs being treated shabbily by the staff at the cooperative, the Grama Sevaka (GS) and the Divisional Secretary/Assistant. Further, we were informed of cases where the manager of the cooperative has sometimes retained a certain percentage of the dry rations entitled to families.
[...]

We were informed that there have been attempts at reviewing and reforming the dry ration distribution system. Currently the distribution point is the cooperative. The cost of the rations is covered by the Government through the District Secretary, but the supplier and the person to operate the cooperative is selected through a tendering process. There has been a move to introduce the call for tenders in relation to dry rations which is the responsibility of the

Commissioner General in each district. Tenders are called by cooperatives, the tender board comprising of cooperative members with a representative of the District Secretary being present as an observer. The problems and discrepancies in this regard need to be considered by the authorities and measures introduced to address the problems

The current dry ration quota needs to be reviewed. The current dry ration quota is based on a circular formulated in 1995. [...] Efforts have been made to improve the rations. [...] Over the years more essential items have been added but within the same ceiling. While acknowledging the difficulties and problems faced by the authorities in ensuring the continued provision of dry rations, with the rising cost of living the rations keep dwindling.

- A revision of the circular regarding rations is overdue.

An additional problem we were told about was related to changes in the ration lists. IDPs who had resettled in one area but were still receiving dry rations in areas where they had originally registered was one such problem. Another issue raised was that new born children are not taken into consideration and therefore the dry ration quota does not change even with new additions to the family. Similarly, there were problems for newly married couples in receiving dry rations, with many facing delays. What is of interest is that when a person died there was allegedly immediate action by the authorities to remove the deceased from the list, but there were long delays in adding new people to the list. We were also informed by sources that new born children are entitled to receive milk powder, but the GS had informed IDPs in certain areas that providing milk powder entitlement was only to Samurdhi recipients and not to IDPs.

[...]

On the road to Kalpitiya we passed a group of thatched houses, home to some 40 Sinhala and Tamil families. Some of the Sinhala families were from the adjoining village and others were displaced from Batticaloa. They complained of the lack of water, adequate shelter and livelihoods, as they were not allowed to fish in the lagoon. While depending on Samurdhi rations and the wages from daily labour, when work was available, their situation clearly demonstrated the problems that Puttalam District faces, host to both a large displaced population and locals who fall below the poverty line.

Discrepancies in the types of assistance available to various categories of people have been raised through a number of post-tsunami reports, in particular referring to the importance of equity. Compared to the assistance being provided to tsunami affected persons, where a tsunami affected individual receives Rs.375 worth per week, the assistance being provided to the conflict affected is much less."

WFP plans to extend post-tsunami food aid to conflict IDPs (May 2005)

- WFP Post-tsunami food distribution to eventually include conflict IDPs
- Current food distribution often adhoc and not in an equitable manner
- WFP had a Protracted Relief and Recovery Operation (PRRO) in 2004 and 2005, targeting vulnerable groups

INFORM, April 2005:

"By the end of April, WFP had dispatched over 35,000 tonnes of food to communities in all 12 affected districts to all 910,000 beneficiaries. Following the recommendations of an Needs Assessment mission, the emergency operation has been extended until the end of the year. [...] After June the operation will concentrate primarily on recovery rather than relief. During this recovery phase, WFP's response will involve a shift from targeting only tsunami-affected households to a more inclusive approach that considers pre-disaster vulnerabilities in the affected

areas. The number of beneficiaries is expected to fall since many tsunami-affected people will hopefully be able to resume work and begin to fend for themselves again." (OCHA, Post-Tsunami Update May 2005)

"The rations distributed to displaced persons by the state continues to be the same: Rs. 200 in cash and Rs. 175 in dry goods (rice, dhal, sugar, oil) per week per family. In addition, various civil society organizations continue to provide displaced communities with their other dietary needs such as vegetables, coconuts and fruit. However this is done in an ad hoc manner and thus there is no equitable distribution."

OCHA, April 2005:

"The overall household food availability and nutritional status of the affected population have been stabilised over the first months of action through general food distribution. The level of food supply is deemed generally adequate though most vulnerable groups, such as women and children, as well as poor households, will need particular attention. This was reflected by the results of the joint Medical Research Institute/UNICEF/WFP nutrition assessment in IDP camps, which showed that malnutrition rates are 3.4% above the national average. A food coupon system recently introduced by the Government has caused some confusion among IDPs on how to obtain food supplies, and there have been delays in the issuing of coupons. WFP is working closely with the local Government authorities to address this issue.

[...]

Links with longer-term reconstruction and development: Within the GoSL reconstruction strategy for tsunami-affected areas of Sri Lanka, key actors such as WFP will contribute to the resettlement and livelihood recovery of affected populations in ways that promote sustainable food security. [...] Recovery assistance in this sector will involve a shift to a more inclusive approach that considers pre-disaster vulnerabilities in the affected areas."

WFP, 30 August 2004:

"The goal of the operation is to improve the food security of vulnerable people in conflict-affected areas and develop social cohesion contributing to the peace-building process. The immediate objectives are: (i) to improve access to food for conflict-affected people through food-for-work schemes to rehabilitate communal and individual assets; (ii) to improve the nutritional status of pregnant and lactating women, children under 5 and vulnerable women in the remaining welfare centres for internally displaced people; (iii) to reduce short-term hunger and improve the diet of school children and increase attendance and retention in schools; and (iv) to improve access to counselling services and skills training by people most affected by the conflict, including former child soldiers, households headed by women, unemployed young people and traumatized children. Targeted beneficiaries will include internally displaced people, returnees integrating into society and host communities to foster reconciliation and contribute to peace-building. This two-year operation will run in the eight districts of the northeast and the conflict-affected divisions of the four bordering districts. It will assist an average of 800,000 people per year."

Health

Mental health (Special report, 2007)

The conflict situation has caused widespread mental health problems among IDPs and hosts. In December 2006, the World Health Organization noted that an estimated two per cent of the population could be in need of mental health services, and warned of an increase in the number

of suicides, even though Sri Lanka already has one of the highest suicide rates in the world. (World Health Organisation, *Response to the Crisis in Sri Lanka*, 15 December 2006, p.1)

Health and nutrition interventions 2006 (October 2006)

UNICEF, 5 October 2006:

"UNICEF is actively promoting the access of Internally Displaced Persons to quality health and nutrition services. Technical assistance is currently provided to support the government to coordinate health emergency response at field level in partnership with WHO at the national level. The basic health needs of 5,000 IDPs are ensured for three months in Trincomalee district through the distribution of emergency health kits. UNICEF has further provided 5,980 mosquito nets for families with children below 5 years; and neonatal, post natal and pregnant mothers in the IDP camps and coastal communities. In addition, 2,763 baby hygiene kits containing baby nappies, baby soap, shampoo, a towel, baby cream, zinc oxide, toothbrush and paste have been distributed along with the registration of children under the age of 5. In Batticaloa, UNICEF has ensured the vaccination against measles of all children 96 months to 14 years) in IDP camps. UNICEF is supporting health promotion through community level health promoters in IDP locations. Key messages focus on ORS preparation, breastfeeding and complementary feeding, hygiene promotion, immunization, vitamin A and deworming.

The upcoming monsoon period will be a challenge for the health sector. Precautionary measures to control diseases are currently being taken. To date, there have not been any disease outbreaks amongst the IDPs. Challenges include the shortage of medical supplies and staff as well as the access to the conflict affected population. In Jaffna, UNICEF is continuously facilitating the approval of curfew passes for the primary health inspectors and midwives to ensure health services to the displaced people in the temporary accommodation centres. UNICEF is also supplying de-worming tablets for pregnant women and vitamin A supplementation in all IDP areas. The establishment of mother and child corners for breastfeeding in IDP camps will be facilitated in collaboration with the Ministry of Health. Nutrition surveillance to monitor the nutrition status of IDPs is under preparation together with WFP and Medical Research Institute (MRI)."

Fear of monsoon epidemics in IDP camps (August 2006)

Reuters, 30 August 2006:

"Doctors treating hundreds of sick and injured war-displaced in northeast Sri Lanka worry the arrival of monsoon rains could trigger epidemics such as chicken pox in overcrowded refugee camps.

Staff at hospitals and camps clinics in and around the town of Kantale, around 125 miles (200 km) northeast of the capital Colombo, are already stretched trying to cope with diarrhoea, respiratory problems and wounds.

There are 29,000 newly displaced living in dozens of camps here in a town that normally caters to 45,000 inhabitants. "With the rains, I think there will be a problem. Just now the rainy season has started. We may get malaria and possibly dengue also. In addition to that, we have diarrhoea," said Dr. D.G.M. Costa, medical superintendent at Kantale Base Hospital. "In the camps people are in a very congested area, and a lot of children are there. Because of the congestion, we might get some form of epidemics, like chicken pox and other communicable diseases." Heavy rains

have already started in some areas in the northeast and are expected to take hold in earnest in September and run for around two months.

[...]

Some displaced are already leaving the tent cities in Kantale to move to camps nearer to their homes in areas left ravaged by fighting between the rebels and the military.

Doctors say many camp dwellers, including a large number of Muslims, are reluctant to take medical treatment. Others are simply ignorant, compounding the threat of an epidemic.

[...]

"Most of our cases are airway diseases, allergic reactions, bronchitis. We also see old shrapnel wounds," said Dr. Susantha Amarasinghe, inspecting an 11-day-old infant with an umbilical cord infection. "We've had no epidemics yet."

Puttalam IDPs' access to medical care (July 2006)

- 800 Muslims families who were relocated to the northwestern district of Puttalam have access to free medical facilities after 14 years of displacement
- The areas covered by the project include ante and post maternal care, family planning, nutrition and health education

CPA, 19 July 2006, p.7:

"In addition to the trauma of moving from their homes and communities once again, the displaced find that little has changed in the displacement camps from when they left. While housing has been raised, there are other issues such as health and education facilities continue to be substandard. As a result of the large influx of displaced into Puttalam in 1990, its services were placed under severe strain, as the district was not provided additional resources to deal with the added population. Government Hospitals would often run out of medical supplies. The DMO of Kalpitiya District Hospital for instance stated that every year the medical supplies run out. Last year, however he stated he had no problems due to the excess medical supplies that came in for tsunami victims. He however, stated that the hospital has additional problems as Kalpitiya is perceived as an undesirable location for employment hence there is considerable turn over of staff.

- Reviewing the quota of medical supplies to Puttalam District and particular hospitals that have to cater to both locals and displaced should be immediately done."

OneWorld South Asia, 2 April 2004 (*no information in 2006 on the state of this initiative*)

"Fourteen years after they were displaced from their homes by a civil war, around 800 Muslim families in northwestern Sri Lanka finally have access to free medical facilities, thanks to a largely US initiative.

The impoverished Muslims had to flee their lands in the northern part of the country because of the two-decades old conflict with the Liberation Tigers of Tamil Eelam (LTTE). The victims of war, referred to as Internally Displaced Persons (IDPs), were relocated to 11 villages in the arid Kalpitiya peninsula in the northwestern district of Puttalam.

The new free polyclinic there, established with a grant of US \$34,000 from the USAID and the help of local nongovernmental organizations, is a boon for the IDPs. Some recount horror stories of having to travel 45 kilometers to the nearest maternity clinic. Most people went to hospital only for vaccinations, using home remedies to cure other ailments.

[...]

A local mosque donated land, local residents from three ethnic groups -- Tamils, Sinhallas and Muslims -- provided the labor, while the ministry of health financed the furniture and promised to bear future expenses.

Apart from the 800 IDPs, Kalpitiya is home to 740 Muslim native families, nearly 100 Sinhalese and 80 Tamil native families.

[...]

The areas covered by the project include ante and post maternal care, family planning, nutrition and health education, much to the relief of people in the area.

[...]

The polyclinic project was funded through the USAID's Office of Transition Initiatives (OTI), whose prime goal is to reduce conflict.

According to the OTI, providing better health care for women and children is just one of the clinic's goals."

Tsunami damages health infrastructure in affected districts (April 2005)

Tsunami-CAP review April 2005:

"The tsunami caused considerable damage to the health infrastructure in affected districts, with many health clinics and hospitals completely or partially damaged. Initial emergency lifesaving objectives have been adequately met. Under the leadership of the Ministry of Health coordination mechanisms were put into place both at the central and district levels to ensure effective and efficient emergency response with all stakeholders involved. Serious outbreaks of diseases were prevented and all injured victims were given treatment.

[...]

The emergency activities are being integrated into the Government's long-term public health strategy. Support to restore damaged and destroyed health facilities and to re-establish health sector functions in affected areas are underway. In addition, UNICEF will focus on psychosocial support to children through the provision of recreational materials, through training and support to teachers and other community leaders, through the establishment and facilitation of children's clubs, including child-friendly spaces in IDP camps and youth centres in communities of return, and through the launching of a tsunami-awareness campaign aimed at getting children to discuss their fears and questions as they relate to the tsunami and to natural disasters in general. A number of UN agencies, supporting relevant authorities, have taken actions to indirectly reduce the threat of sexually transmitted diseases (STD) and HIV, including measures for the protection of women and children from sexual assault, assurance of safe deliveries and safe blood transfusion, provision of HIV/AIDS information, and universal precautions in medical settings.

The longer-term challenge is to ensure that assistance provided during the acute response to the tsunami disaster leads to a sustainable long-term improvement in the health services of the whole country. A plan for reconstruction of health facilities has already been developed and is supported by other donors. Recently, UNICEF signed a Memorandum of Understanding with the MoH for the rehabilitation of damaged hospitals, health clinics and drug stores."

High rates of malnutrition among children (August 2004)

- Schoolchildren in conflict-affected areas of Sri Lanka suffer from alarming levels of malnutrition
- WFP survey concluded that nearly one in three children were far too thin for their height in the north and east
- In Trincomalee, preliminary surveys reveal that over 75 percent of displaced children under five living in conflict zones of the northeastern province suffer from malnutrition

WFP, August 2004:

"WFP surveys in schools in the north and east and adjoining districts in September 2003 revealed alarming rates of malnutrition: 30 percent of children were wasted, 27 percent were stunted and 51 percent were underweight — nearly twice the national averages. Many children have a low attention span because they come to school on an empty stomach."

TamilNet 14 March 2003:

"Over 75 percent of refugee children under five living in conflict zones of the northeastern province suffer from malnutrition, according to preliminary surveys by government and NGO officials presented at a three-day workshop inaugurated Wednesday morning at Trincomalee Town Hall under the auspices of Sri Lanka's Ministry of Planning and Implementation. The surveys indicate that the majority of mothers among the displaced in these regions suffer from malnutrition during pregnancy and after childbirth.

The Second Secretary (Development) of the British High Commission Ms Penny Thorpe and the Special Assistant to the Japanese Embassy Ms Aiyako Tanaka based in Colombo accompanied by the UNICEF 's Trincomalee representative Ms Gabrielli attended the inaugural event of the workshop.

Mr.N.Puhendran, Deputy Director of Planning in Trincomalee, delivered the keynote address.

'We are unable to close down welfare centers until normalcy returns. Until the displaced community returns to normal life we have to provide them with better food, health and other facilities in welfare centers,' said Mr.Puhendran.

[...]

There are fifteen refugee camps Trincomalee district. There are 4099 persons belonging to 1091 families residing in these centers. All were displaced due to the war.

Widespread malnutrition among women and children is mainly due to the dearth of nutritious food and the lack of knowledge among the displaced in selecting the nutritious food supplied to them or bought by them.

Hence the prevalence of severe health problems and malnutrition among the displaced people, say officials."

High levels of traumatic stress and suicide among displaced (November 2004)

- Suicide rate in Vavuniya above national average and particularly high among displaced
- Suicide among young persons in Jaffna is relatively higher in areas where many refugees live
- Social workers attribute the phenomenon to disruptions in families caused by displacement and refugee camp environments, poverty, dowry and lack of counselling facilities for young persons in welfare centres
- A MSF survey from 2001 revealed that most respondents living in the Welfare Centres were likely to been subjected to several traumatic experiences
- The population in the WFC is 'guarded' without a reasonable chance to rebuild their lives
- The high prevalence of suicide (3 times higher) among the population of the Welfare Centres bears out to the desperate situation of the internally displaced

WFP, August 2004:

"Children were worst affected by the conflict: psycho-social trauma is widespread and a generation has grown up knowing only conflict. Children are particularly at risk, because many have suffered prolonged homelessness or are orphans; they have received little or no education, lack health facilities and have experienced violence-induced trauma. Many are deprived of normal childhood and the basic conditions for growth and development in their formative years and need to recover lost years of formal education. Underage soldiers are being sent back to their families under a programme supported by the United Nations Children's Fund (UNICEF); vocational training programmes targeting these children are being developed."

Vavuniya Plan, MRRR, November 2004:

"Suicide rate remains high in Vavuniya District compared to the national level. It is higher among the displaced people than the host population. The losses, displacement and psychological trauma due to the conflict situation might have contributed to the high prevalence. But it is heartening to observe that the suicide rate is declining gradually following the peace process."

TamilNet 10 April 2003:

"Suicide among young persons in Jaffna is relatively higher in areas where many refugees live, according to court records in the northern peninsula. Twelve in the Jaffna division, ten in the Sandilipay-Masiyapiddy area and thirteen in the Chunnakam –Uduvil area committed suicide in 2001-2002. All were young persons under 20.

A social worker in Jaffna attributed the phenomenon to disruptions in families caused by displacement and refugee camp environments, poverty, dowry and lack of counselling facilities for young persons in welfare centres.

Jaffna hospital sources said there was an equally large number of attempted suicides among young persons. But they said no area specific statistics were available.

A sociologist working as a consultant to an international NGO in Jaffna said the problem can also be traced to the erosion of the traditional family and local kinship networks which acted as a psychological fall back option for troubled young persons. 'In Jaffna these networks have been disrupted not only by war but due to extensive migration to the West', he added."

MSF 31 May 2001, p 25:

"The survey among respondents from the Welfare Centres indicates high levels of traumatic stress among the population. Every indicator used in the survey (Appraisal of Traumatic experiences, Impact of Event Scale and Physical Health) points in the same direction. The indicators are discussed below.

The responses on the second section appraise the traumatic experiences of the respondents. The high percentages on certain events (starvation (94%), witnessing wounded people (60%), having lost someone close (at least 37%) results in a clear conclusion that most respondents living in the Welfare Centres have experienced at least one traumatic experience. It is likely they have been subjected to many more.

In addition to these past experiences a majority of the respondents indicate a constant feeling of being unsafe (87%). It can be concluded that the population does not only carry a heavy burden of past traumatic experiences. They are chronically under pressure because they do not feel safe at present.

The possibility to start a meaningful life with self-control through for instance an own income is small. The pass system did not allow them to leave the camp. Subsequently only 6% has full time

work. The rest (94%) is highly dependent on the WFC facilities and a small government allowance. It can be concluded that the population in the WFC is 'guarded' without a reasonable chance to rebuild their lives."."

Some improvement of medical situation in north and east since 2002, after severe damage due to conflict (2004)

- In March 2004, MSF-H hands over its activities to a local NGO
- As the health system is slowly being reestablished in the north and east, health personnel are returning to resume work
- In 2002, 55 out of 400 health institutions in the North East were totally destroyed and 49 were not functioning
- In 2002, 41% of the 11,132 posts in health care are vacant, mainly in the skilled and professional categories
- The health system suffered immensely as a result of severe restrictions leading to a lack of medical supplies, medicines, equipment, human resources and other necessities

MSF-USA, 2004:

"The 2002 ceasefire between LTTE rebels (Tamil Tigers) in the north of the country and the government held firm in 2003. As a result of the truce, the humanitarian situation in the north has improved. For the first time in years, hospitals are adequately supplied with medicines, and most people who had fled their villages have been able to return home. As a result of the improved conditions, MSF spent much of 2003 preparing for its departure and ended its work in the country in March 2004.

During 2003, MSF continued to support regional hospitals in the northern Wanni region. In Mallavi, the organization assisted the surgical and maternity departments, completed the training of supplementary staff and constructed a modern system for processing medical waste. A similar system was installed in the hospital in Puthukkudiyiruppu. In December 2003, an MSF doctor worked in the latter hospital to help the nursing department and to prepare the maternity department for the organization's departure. From August until November, MSF supplied a doctor to the outpatient department of the hospital in Mullaitivu. In September and October, the organization provided training courses for laboratory technicians at the hospitals at Mullaitivu and Puthukkudiyiruppu. In the town of Vavuniya, just outside of the Wanni region, MSF continued a project providing psychosocial care and health information for traumatized people who had been displaced from their homes in the north.

In March 2004, MSF handed over its activities to a new Sri Lankan NGO. This organization is comprised of Sri Lankans who had worked for MSF and who will continue the psychosocial program in the town and district of Vavuniya. The activities in Mullaitivu district have been handed over to medical staff working for the national ministry of health. MSF started working in Sri Lanka in 1986."

MSF-H temporarily returned to Sri Lanka in January 2005 to contribute to the post-tsunami relief efforts.

ADB, UN & WB May 2003, pp. 22-24:

"The two-decade long conflict has pushed the health sector in the North East to the brink of collapse. It has completely reversed the earlier achievements of good health care. Availability, accessibility and quality of health care have all been severely affected leading to increased mortality and morbidity and rising infant and maternal mortality. The incidence of vaccine preventable diseases such as measles and communicable diseases such as TB, respiratory tract infections, diarrhoeal diseases, vector borne diseases, and infectious hepatitis have all registered an upward trend. The lack of family planning has also led to an increase in fertility in the many already very poor households.

Health infrastructures have suffered heavy damages or destruction in the North East, particularly in the North. Out of 400 health institutions, 55 are totally destroyed and 49 are not functioning. Many others are in disarray due to absence of maintenance. Damage extends to the water supply and sanitation systems. Lack of safe facilities to treat health care wastes poses a serious environmental hazard.

Out of the 11,132 posts in the health care, 4,522 posts (41%) are vacant, mainly in the skilled and professional categories. There is an immediate need to provide grade medical officers, basic specialists and some paramedical workers to conduct the basic health services. Human resources development plans and projections need to be developed, including staffing strategies for a transitional period. Effort needs to be made to enhance and regularise the role of auxiliary (volunteer) health workers in the formal health sector.

As a result of the disruption of the health facilities and lack of personnel, the referral system has broken down. The disease surveillance system that was in place before the conflict has all but collapsed. The availability of basic health information, needed to monitor health trends and promote appropriate healthy living and behaviour patterns, is very poor. Even though the Government provided some basic services to the areas most affected by the conflict, including the LTTE controlled areas, the health system suffered immensely as a result of severe restrictions leading to a lack of medical supplies, medicines, equipment, human resources and other necessities. The international NGOs in collaboration with their local counterparts have been playing a vital role in stabilising the unprecedented crisis faced by the health sector, particularly in the severely affected areas. A major part of the work carried out by trained Primary Health workers before the conflict was replaced by teams of dedicated volunteers supported by NGOs and UN agencies.

[...]

The National Immunisation Programme, which supports the prevention of six vaccine-preventable diseases, has continued although under serious constraints.

[...]

The delivery of the reproductive health care services in the North East, which had been one of the best in the country, has suffered severe setbacks.."

Water & sanitation

Increased displacement in 2007 has led to more watsan needs (February 2008)

- Major displacements during 2007 have led to increased need for shelter locations with adequate water, toilet and sanitation facilities
- Aid agencies' watsan programs have faced severe challenges in the Vanni where importation of construction material is restricted

- As of October 2007, an estimated 27,000 IDP families remained without adequate access to toilets
- More than 60 IDP camps and communal places in Mannar, Vavuniya, Kilinochchi, and Mullaitivu still required additional sanitation facilities to comply with SPHERE standards
- Challenge facing agencies was to access IDPs in the Vanni living with host families and ensure adequate water supply and availability of sanitation and hygiene services

CHAP, February 2008:

"Significant new displacements during 2007 have translated into an increased need for shelter locations with adequate water, toilet and sanitation facilities. The shelter and WASH sectors have faced particular several challenges in meeting SPHERE standards for programme operations in the Vanni, where importation of construction materials has been severely restricted. Fluctuating prices and a shortage of skilled labour has also hindered programme implementation.

[...]

According to October 2007 monitoring update of the WASH sector, an estimated 27,000 IDP families remain without adequate access to toilets and 70% of IDPs have not yet been exposed to hygiene awareness activities. More than 60 IDP camps and communal places in Mannar, Vavuniya, Killinochchi and Mullaitivu still require additional sanitation facilities to comply with the SPHERE standards of one toilet for 20 persons. Septage collection and sanitary disposal of faecal sludge constitute a major gap in all affected districts. Garbage collection from camps sites and sanitary disposal of solid waste is another major service gap.

Approximately 50% of IDPs now reside in the Vanni districts, with an estimated 105,000 accommodated with host families in these districts as well as in Jaffna. The main challenge over the next six months will be to access these IDPs and their host families to ensure delivery of adequate water supplies and availability of sanitation and hygiene services."

Response to WatSan needs of newly displaced (October 2006)

UNICEF, 5 October 2006:

"Based on lessons learnt from the tsunami crisis, the WASH Emergency Preparedness and Response Plan was immediately initiated. Action was taken to facilitate effective sector coordination and an appropriate response, ensuring access to safe water and adequate sanitation services in camps, ensuring adequate WASH staffing and the delivery of WASH emergency supplies to the accessible affected population without delays.

The displaced persons have settled in over 170 locations as well as with family and friends. In Trincomalee district for instance, under the overall coordination of UNICEF, the WASH sector partners have assessed the 56 existing IDP locations and found that most are schools or public buildings. Preexisting toilets and water sources exist in all locations but need to be supplemented to cover the needs of IDP populations. The assessments concluded that 131 additional toilets are needed for the sites and that water bowers need to deliver 320 m3 per day. In Batticaloa, 554 toilets are needed in the Vaharai area. UNICEF is currently constructing emergency temporary toilets at IDP locations and providing safe water to displaced people through support for water bowers (19,000 litres) and supply of water tanks. UNICEF is further supporting waste management activities and providing water quality monitoring training and instruments for water quality testing. Rehabilitation of toilet and bathing spaces is ongoing in IDP camps. Tarpaulins have been distributed to ensure the privacy, dignity and security of women and girls. Emergency hygiene promotion activities are conducted by health animators, particularly with children in the schools where IDPs are temporarily located in Kilinochchi, Trincomalee and Batticaloa district."

CHA, July 2006:

"National Water Supply and Drainage Board will be stopping water delivery to displaced people as there is no financial allocation for them to carryout water distribution. They have submitted bills and estimates to RADA to do necessary arrangements for payments, but there is no response from RADA yet. The GA requested representatives from RADA to go to Colombo and finalise issues pertaining to payments."

Structural water shortages in north and east pose additional challenge to IDP response (August 2006)

- Water shortage in large parts of the north and east poses great challenges to IDP response
- Yearly water shortage in Ampara affects villages in particular

UN OCHA, 30 August 2006, p.6:

"The increasing number of IDPs will result in a greater strain on the already inadequate water and sanitation services available to the communities in the North and East. Furthermore, the current IDP locations are often congested, thus causing a risk of an outbreak of water-borne diseases. Addressing this situation will require: a) establishing water sources for drinking, b) washing and personal hygiene, c) constructing temporary latrines and making provisions for waste disposal, as well as d) systems for proper drainage and garbage disposal, to avoid deterioration of the health and sanitation situation in the congested IDP concentrations. In the planning and design of water and sanitation facilities, women and women leaders will be particularly consulted. In addition, both host and IDP communities will participate in the hygiene promotion activities. Ensuring adequate water supply, sanitation and hygiene is essential to prevent larger-scale humanitarian consequences of the continued displacement."

CHA, July 2006:

"Despite the scattered showers on the coastal belt and some interior places in the district, dry weather prevails as there are no heavy rains. There is a scarcity for drinking water even though there is a massive water project, yet to be completed, to provide drinking water to people living in the coastal area. Once the project is in operation, it will benefit only the residents of the towns and suburbs. The remote villages will not benefit from it. The areas with irrigation facilities are being cultivated whereas the other areas are not.

[...]

Scarcity of water in the district is a major problem as this is the dry season. Valathapitty, Navithanveli, Central Camp, Natpittymunai, Chenaikudiyiruppu, Thandyady and Manalchenai are some of the villages which are affected by the scarcity of water every year."

ADB, UN & WB May 2003, p. 49:

"235. Limited piped water is available in all major towns except Kilinochchi and Mullaitivu. In most towns this service is limited to one to two hours per day in a limited service area. In many urban schemes the overhead water reservoirs and the distribution networks have been damaged or destroyed. Most rural water facilities are also in a depleted state. Water supply and sanitation facilities in most of hospitals have been destroyed or neglected. Ground water contamination in urban areas due to the use of soakage pits has been identified as a major health hazard, especially in Jaffna and in densely populated coastal areas. The proportion of households that have access to safe water supply is only 20 percent as compared 45 percent nationally. The percentage of households who have access to sanitation is 25 per cent compared to the national average of 72 per cent.

236. All districts confirm the presence of preventable intestinal disease. Additionally, many districts report the emergence of typhoid and cholera in epidemic proportions, which are clear indications of faecal pollution of the shallow ground water resource. These are said to occur in two peaks, the first of which is at the beginning of the rainy season and the second at the time of flooding when open wells also get inundated by surplus surface runoff."

Tsunami creates further setback to already precarious water situation for many IDPs (August 2005)

- Damaged water supply networks and sources increase already existing water shortage
- Inadequate access to water and sanitation remains a key issue in the reconstruction phase
- Providing sanitation in urban areas, particularly Jaffna, is difficult due to land scarcity

OCHA, April 2005:

"The tsunami damaged water supply networks, contaminated water sources, and demolished sanitation facilities, leaving survivors vulnerable to disease. From the very beginning of the tsunami response UNICEF has played a lead role in coordinating the activities of the different agencies working in the sector and has also conducted a water and sanitation survey in IDP camps country-wide to assess gaps in the response. According to a UNICEF water and sanitation survey completed in February, approximately 1,800 water tanks have been supplied in camps, nearly 4,500 temporary toilets have been constructed, and 5,500 wells cleaned. Some 50% of IDPs in camps have been reached with a minimum supply of 20 litres per day of fresh water; nearly 44% of IDPs in camps have access to one toilet per 20 persons; and 75% of persons are estimated to have been reached with hygiene promotion messages. Water and sanitation facilities have been repaired in a significant number of affected schools.

Key challenges remain in maintaining the supply of adequate fresh water, particularly in the east where the dry season approaches; the emptying of temporary toilets in the camps; the construction of household toilets in communities where many IDPs are hosted; the rehabilitation of wells; and the safe disposal of waste".

UNHCR Transitional Shelter Update, August 2005:

"Inadequate access to water & sanitation for those living in transitional shelter has been identified as a key issue, despite it being made clear early on that all NGOs providing transitional shelter must identify another organization who will provide water and sanitation⁴. It is understood that UNICEF as Lead UN Agency for water and sanitation are assisting GoSL and the Water Board to identify needs and establish an action plan in each district, with assistance from Oxfam GB and other NGOs as required. UNHCR and UNICEF have agreed that co-ordination between shelter and wat-san sectors, in conjunction with TAP, are required at district level, and cross-sectorial meetings have already taken place in most districts.

The shortfall in water and sanitation has not yet been quantified. Some shelters have been built without any access to water and sanitation; notably shelters constructed illegally by the JVP and others in the coastal zone in Galle. In some camps sanitation was provided but the toilets have limited lifespan, or greater numbers are required. More often, provision of water and sanitation is simply lagging shelter construction, in part due to pressure put on NGOs by GoSL and the District Secretariats to build shelters quickly.

Difficulties have been encountered providing toilets in urban areas such as in Jaffna and Kalmunai, due to reluctance of landowners, and limited space. Water supply is frequently reliant on bowsering, and dependant on regular deliveries, which are negatively affected by hartals or public holidays. As new water treatment plants have been developed, and transitional shelters constructed the needs have evolved. An overview is required which incorporates these into a strategic divisional plan, which can be implemented and monitored. Whilst ownership of the plan should rest with the Water Board and other local authorities, assistance may be required to build their capacity in terms of both human resource and equipment, and to carry out assessments."

Water crisis in Jaffna hinders return of internally displaced (January 2004)

- The return of 200,000 internally displaced people to Jaffna is threatened by an acute water crisis
- The water in Jaffna - a city of 100,000 people - is highly unhygienic for human consumption
- Apart from making drinking water unhygienic, saline water has laid waste thousands of acres of land
- Donors wait for further progress in the peace process before invest in water reparations

OneWorld, 4 January 2004 :

"With the return of 200,000 Internally Displaced People (IDPs), Sri Lanka's war-torn Northern province - Jaffna - is threatened by an acute water crisis, even as the saline, already scarce water supply is contaminated by a dangerous cocktail of pollutants.

According to a recent study by the German nongovernmental organization (NGO), GTZ, the water in Jaffna - a city of 100,000 people - is highly unhygienic for human consumption, mainly because the city does not have a sewage system.

[...]

Health authorities are now reconsidering an earlier abandoned plan to build a pipeline across the mainland to the Jaffna peninsula in order to draw water from the Iranamadu tank, located 50 kilometers away.

[...]

"The government of Japan has offered to bear the cost of the project to draw water from Iranamadu and a team of Japanese experts visited the site a few months ago," says the acting manager (Jaffna office) of the Water Supply and Drainage Board, A. Paramanathan.

The only hitch: since it's a big-ticket project, Japan has decided to wait till the peace process enters a more stable stage before it ventures into insurgency's heartland.

[...]

Another hydra is the growing salinity of inland waterways and fresh water sources, which has hit almost 60 per cent of Jaffna district, home to 500,000 people.

Apart from making drinking water unhygienic, this has laid waste thousands of acres of land. "Nearly 12,000 acres of land have turned unsuitable for cultivation during the last two decades due to salination," says a spokesperson for the district agricultural society.

During the war, which broke out in 1983, anti-salinity mechanisms built by the Irrigation Department in the 1950s, were wrecked by lack of maintenance.

In addition, several dozen sluices and dams that prevented salt water from the lagoons seeping into fresh water sources were damaged during the war.

Apart from this, the project officer of the government's office in Jaffna, P.Sundarampillai, the military's construction of bunkers, blocking fresh waterways, increased water salinity in some areas.

Since the February 2002 ceasefire, the arrival of the IDPs, without a proper reconstruction plan for the district, is bound to exacerbate the water scarcity.

The returning IDPs, the majority of whom are cultivators, have been waiting for months for the authorities to repair the damaged sluice gates and dams and remove the bunkers."

Shelter and non-food items

Shelter (Special report, 2007)

During the bombardments in the Vanni area, the IDPs who were trying to rebuild their lives after the tsunami had to abandon homes in various states of reconstruction. A government embargo on construction materials such as cement, steel and fuel has also forced aid agencies to halt or abandon development projects in the LTTE-controlled areas. (Reuters, *Tamils in rebel-held Sri Lanka sick of civil war*, 18 July 2007) The price of cement has increased by 500 per cent and is beyond the reach of most of the people wanting to build shelters in the Vanni area.

Conflict IDPs receive less attention than tsunami IDPs (June 2006)

- There was a clear discrepancy in the scale and quality of response to tsunami displacement and conflict displacement, in terms of temporary shelter and housing

AI, June 2006, p.18:

"The well-funded and relatively swift response to the tsunami stands in stark contrast to the inadequate support that conflict IDPs have received for many years.(39) Across the north and east, conflict-affected communities, representatives of civil society and national and international NGOs, and government officials all expressed concern that there is a serious disparity in humanitarian assistance between the two groups of IDPs that could lead to resentment and conflict.

[...]

Although the emergency shelters in which tsunami-displaced people were housed, including public buildings and tents, were very basic and not fit for long-term habitation, by November 2005 all tsunami displaced people had been moved from emergency shelters to transitional housing. These transitional houses are small and generally made of wood, although sometimes also of tin or thatch, with one or two rooms and some kitchen space. In most cases each family has their own separate house. Most of the transitional camps visited by Amnesty International were of a reasonable standard, with basic sanitation, washing facilities and paths around the camp.

In contrast to the situation of those displaced by the tsunami, those displaced by conflict, where they are not living with family or friends, are accommodated in 'welfare centres', which are effectively large camps. According to the Ministry of Relief, Rehabilitation and Reconciliation there are 143 'welfare centres' in the north and east. In comparison to the transitional camps for tsunami-displaced people, the welfare centres visited by Amnesty International were very

dilapidated, cramped and lacking in privacy and infrastructure. Many people have lived in these welfare centres for over a decade. In addition, where conflict-displaced people have returned to their land or resettled to new land and are still waiting for permanent housing, they are often living in very poor conditions."

For monthly updates on housing and shelter provided to conflict and tsunami IDPs in the north and east, please consult the Situation Reports published by the [Consortium of Humanitarian Agencies \(CHA, www.humanitarian-srilanka.org\)](http://www.humanitarian-srilanka.org).

Tsunami worsens already precarious housing situation in north and east (August 2005)

- Tsunami destroyed around 100,000 houses
- Transitional shelter needed to bridge the multi-year reconstruction phase
- GoSL establishes Transitional Accommodation Project in February 2005
- Ownership of shelters on private land will be unclear after a period of 18 months
- Due to large number of organizations in the shelter sector, standards for temporary housing vary considerably, giving rise to irritation among some IDP groups

UNHCR Transitional Shelter Update August 2005:

"On 26th December 2004, approximately 500,000 families were displaced as a result of the tsunami, and around 100,000 houses were destroyed. Emergency accommodation was provided in welfare centres, either in tents or public buildings, whilst others sought refuge with friends and family. It was recognised early on that re-construction would take several years, and that transitional shelter was required to bridge the gap between emergency accommodation and durable housing being available. Transitional shelter should provide secure, habitable living space, which promotes health and well-being, enables normal household duties to be carried out, and provides a platform for re-establishing livelihoods. Consequently, it serves as a catalyst enabling families affected by disaster to make a step change from dependence on external assistance to understanding and meeting their own needs. Consequently, provision of transitional shelter represents a milestone in post-emergency response.

The Transitional Accommodation Project (TAP) was established in February 2005 by GoSL to facilitate the construction of transitional shelters. UNHCR, together with Lead Agencies for shelter in each of the 11 affected districts have assisted TAP to co-ordinate and monitor progress of more than 100 organisations (INGOs, NGOs, UN Agencies, private donors, NHDA) who have implementation programmes.

[...]

Current progress of construction of transitional shelters, based on information obtained from the Lead Agency in each district following the weekly co-ordination meetings is given is summarised in Table 1. The initial TAP target of 30,000 shelters by end May was achieved. To date, a total of 45,676 shelters have been completed, against a figure of 55,181 for the number required. A further 4,928 shelters are reported as being in progress, indicating that the rate of construction which peaked last month is beginning to slow down.

In the south-west and north shelter construction is almost complete. Delays have been experienced in Colombo due to difficulty identifying land, however TAP have recently identified land and public buildings which are to be re-habilitated. In Jaffna, progress slowed due to difficulties identifying land and local shortages of materials, but this has largely been resolved, and all agencies have been requested to update their progress reports. In the east, where the

impact of the tsunami was greater, a larger number of shelters are required and to date about 80% of need has been met. Recently progress in Trincomalee has been affected by the security situation and numerous hartals there. UNHCR have analysed the more detailed district level matrices which identify progress by division and by agency, and it appears that the remaining needs are covered by existing programmes which are already underway. Most NGOs, who are still building transitional shelters, have advised that their programmes will complete in the next 2-3 weeks, and all programmes are planned to complete by the end-September/early-October, prior to the monsoon rains."

UNHCR, Ownership of transitional shelters on private land, May 2005:

"According to the Project Director of the Transitional Accommodation Project (TAP) when transitional shelters are built on crown/state land there is no problem because the state will not evict the IDPs. However, he states that the norm is to have an agreement covering a period of at least 18 months. He himself states that these agreements differ from organization to organization and that although they are in writing they are informal in nature in that they are not notarized or registered. He is of the opinion that this would not be a problem. However, it should be noted that it is becoming clearer by the day that the reconstruction will probably take more than 18 months. The TAP Project Director states that in this instance new agreements will have to be made to extend the period of occupation.

There are a number of concerns as regards this situation as a great number of people are going to be in transitional shelters for a long time as the realistic time frame given for the reconstruction phase is from two to three years. Once the owners of the land recognize this reality will they be willing to give up the use of their land for such a long period of time?"

UNHCR Transitional Shelter Update August 2005:

Earlier in 2005, the government declared its intention to implement a non-reconstruction policy within a 100-200m coastal buffer zone. Such a policy would mean long-term displacement for many who owned land in that coastal zone. "The Presidential Committee looking at flexibility of the coastal zone policy is due to report imminently. Already it has been indicated that there may be reductions in the coastal zone policy in Jaffna, Trincomalee and Ampara. If so, many families will be entitled to return to their own land, and may wish to relocate their shelter there whilst they re-construct. They may require assistance to do so, and this will need to be carefully managed and co-ordinated."

INFORM, April 2005, p. 6:

"At the end of the fourth month after the tsunami, most displaced persons have been resettled in tent villages and temporarily constructed shelters pending permanent resettlement. This process has for the most part gone forward with minimal consultation with affected persons regarding the sites and available choices. Some communities remain in schools since no suitable site for their temporary relocation has yet been found, while others continue to live with family members or friends.

[...]

The state has handed over the reconstructions of schools and temporary shelters entirely to the private sector and to non-governmental organizations. While the Ministry of Education has set in place some standards for reconstruction of schools, there are reports of disparities in the types of temporary shelters that have been put up for displaced persons. There has been no emphasis on the fact that permanent resettlement may take some time, up to six to eight months, due to problems with identifying suitable land, and that therefore these settlements should be equipped with the basic facilities that would enable people to live in them with some dignity over a reasonable length of time. While some agencies that took on the task of building have constructed sturdy structures with adequate space between houses, provision for a community

gathering place, and with toilets located some distance away from the living quarters others have erected structures that are cramped, with no consideration for dynamics of human-social interaction with such a settlement. These very visible disparities result in tensions among displaced communities.

The temporary relocation sites are almost all on extremely inhospitable ground, with no shade trees and no water at hand. In other places they are old storage sites, as for example in the Paddy Marketing Board Stores in Batticaloa that currently provide shelter for over 2000 persons. Provision of sanitation in many of the sites is inadequate and inappropriate."

Tsunami-CAP, April 2005:

"There are too many actors, often with large scale funding, in the shelter sector. The coordination of shelter construction, particularly with regard to international inputs, has, therefore, become a priority for some lead agencies. The objective is now to ensure the provision of government endorsed standardised shelter models and non-food items in accordance with international standards, and that related protection issues including documentation, registration, property rights, relocation and compensation are addressed."

Inadequate housing for IDPs in Puttalam (July 2006)

- The poor shelter conditions for many displaced has not improved since they arrived in Puttalam in 1990
- The recent (2006) influx of IDPs exacerbates the shelter problem
- The recently displaced need immediate assistance with regard to shelter

CPA, 19 July 2006, p.7:

"Inadequate housing for IDPs residing in Puttalam area has been raised previously, and this is an issue that came up during our visit. While the Ministry of Resettlement with the assistance of the World Bank has taken steps to address the issue, there does not seem to be much progress in the area. Many people have lived in shelters which were considered as temporary when they were initially displaced in 1990, with people still living in the same shelters more than 10 years after displacement. In some instances more permanent structures were provided in the late 1990s under Minister M.H.M Ashraf. The quality of the individual housing has not changed even with the increases in family members, many opting to extend the houses to make space for extra family members.

With the recent influx of IDPs, there is greater need to address this issue speedily. Many of the displaced are living with family and friends, in cramped living conditions. We were informed that several recent IDPs had land in Puttalam and Kalpitiya area but had sold their land and property to resettle in the original land. Being displaced yet again, they identify the land and houses they had sold, but are reduced to living with family and friends without having anything to call their own.

- The recently displaced need immediate assistance with regard to shelter.

The principle of equity is of particular relevance on the issue of housing. Many have lived in shelters which are temporary in nature for more than a decade. While some resettled with the signing of the CFA, there are many who chose to remain, at least temporarily in Puttalam and Kalpitiya area. With the tsunami, there was an influx of international and national actors agreeing to assist with housing construction, with several thousands of tsunami affected already receiving

permanent housing. Such disparity in the speed and quantum of assistance need to be addressed."

An estimated 90% of houses belonging to internally displaced have been damaged by the conflict (January 2004)

- Nearly 84% (144,890 units) of the housing owned by IDPs is located in the North-East and 90% of these houses were damaged during the conflict, constituting 43% of the total damaged units.
- The level of overcrowding in the North-East is estimated at be around 9% whereas at the national level it is 5%.
- Housing needs of new families is estimated at 49,400 units.
- Due to the high population growth rate of families in welfare centres, the actual number of people living in these centres is greater than the registered number, resulting in additional housing needs.
- Nearly 60% of the total damaged units in the North-East belong to non-displaced residents.
- 15 to 20% of the population in Jaffna town lives in slums and there is a need to provide access to basic utilities and services for them.
- The lack of adequate institutional capacity to manage large-scale reconstruction programmes remains an important concern
- It is estimated that the housing reconstruction program for displaced and non-displaced families would require nearly US\$100 million

ADB, UN & WB May 2003, pp. 32-35:

"140. A comprehensive and inclusive approach was adopted to determine the housing needs of IDPs, non-displaced persons, and vulnerable families living in welfare centres in the country and abroad, as well as housing needs of newly formed poor families and repair and reconstruction needs of public housing. The following factors are considered in identifying needs:

141. *Housing needs of IDP/Refugee returnees:* It is estimated that nearly 84% (144,890 units) of the housing owned by IDPs is located in the North East. It is further estimated that nearly 90% of these houses were damaged during the conflict, constituting 43% of the total damaged units. Nearly 45% of IDPs to be resettled will do so in Jaffna. A large percentage of IDPs originating from Batticaloa have returned.

142. *Housing needs of families formed after displacement:* Based on parameters such as privacy, affordability and quality of housing, the level of overcrowding in the North East is estimated at be around 9% whereas at the national level it is 5%. Since a majority of the districts in the North East were not covered in the 2001 national population and housing census, some of these parameters could not be updated. However, given that the housing supply situation in the North East has further deteriorated during the conflict, housing needs of new families is now estimated at 49,400 units.

143. *Housing needs of families in welfare centres:* Housing needs of vulnerable families such as the landless, families whose houses are located in high security zones, single-headed families, and elderly living in welfare centres is estimated as 18,500 units. Due to the higher population growth rate of families in welfare centres, the actual number of people living in these centres is greater than the registered number, resulting in additional housing needs.

144. *Housing needs of other conflict affected communities:* It is estimated that nearly 196,300 damaged units belong to non-displaced families, constituting nearly 60% of the total damaged units in the North East. Nearly 45% of these units were destroyed. Even though some of these houses will have already been rehabilitated with borrowed funds and resettlement assistance funds, a large percentage of these damaged belong to non-displaced families and require additional support to fully rehabilitate their houses.

145. *Damaged public housing:* While most of the damage has occurred in private residential properties, a few public housing schemes (multistoried as well as independent units) have also suffered serious damage. Damaged public housing includes quarters for administrative staff (staff quarters are also included education and health, Chapters 3B and 3C). Most are still under state ownership, and a special programme to address the reconstruction and rehabilitation needs of public housing is recommended.

146. *Community infrastructure services for the poor:* Lack of basic services such as access roads, potable water and sanitation, etc. is a critical issue to be addressed in resettling poor households in urban and rural areas. The conflict has contributed to the increase in slum populations in the North East: it is observed that 15 to 20% of the population in Jaffna town lives in slums and there is a need to provide access to basic utilities and services for them as an interim solution. A basic environmental infrastructure/services program is proposed for Mannar, Trincomalee and Vavuniya towns. Relocated rural settlements in the North East also require such infrastructures.

147. *Access to building materials and skilled labour:* The region is short of building materials such as bricks, tiles, wood, granite, sand and skilled labour. As a large percentage of families in the North East prefer traditional building materials (e.g. calicut tiles and wooden rafters) entrepreneurs could be encouraged to establish construction industries such as tile and brick making and quarrying. To address access to building materials, the program proposes to set up building material banks at divisional level to procure and supply building materials at affordable prices. Since tax and excise duties constitute nearly 20 to 25% of the cost of building materials, these could be reconsidered.

148. *Institutional capacity:* The lack of adequate institutional capacity to manage large-scale reconstruction programmes remains an important concern. Programme implementation requires partnerships at various levels. Community based organisations can be used for damage assessment, identification and prioritisation of beneficiaries through 'community listing', and they can be linked with reconstruction programmes through 'community contracting' and 'community monitoring'. It is therefore necessary to strengthen the capacities, institutions, and arrangements for NGOs/CBOs, and to promote private sector partnerships.

149. *Urban management and development:* International experience in the reconstruction of damaged properties suggests that the process of reconstruction housing in urban areas is fraught with delays, procedural bottlenecks, corruption and tenancy-related issues. One of the main areas for improvement is the administrative delay in granting building permission, and therefore it is proposed to streamline the building permission and development regulations being practised in the major urban areas to enable rapid implementation of an owner-driven reconstruction programme. Since the quality of habitat and sustainability of urban services provided to households depend on the management capacities of urban local governments and other service providers, institutional and operational capacities must be strengthened through specific development strategies and action plans. As a first step, a special urban management and development assistance program is proposed for the three major urban centres in the North East: Jaffna, Kilinochchi and Batticaloa.

[...]

151. Based on the prevailing policy for permanent housing assistance for displaced and other families in the North East, in addition to the financial needs (below) it is estimated that the housing reconstruction program would require nearly US\$100 million to be mobilised through non-budgetary sources such as counterpart contributions, commercial banks and housing finance institutions, and private sector/NGO partnerships. Strengthening the depth and coverage of the housing finance market is critical to achieve long-term sustainability in the sector. A large percentage of the housing investment needs of the higher-income households will be met through market instruments. However, particular attention is required to design and implement a community-based housing finance instrument to increase the access of poor households to market funds in the North East and elsewhere in the country. A specific need is to examine counterpart and private sector co-financing opportunities. To improve the operational effectiveness and efficiency of the program, the existing housing support package could be restructured to differentiate assistance based on technical damage assessments and the income level of beneficiaries.

152. *Investment Phasing:* Field level assessment and consultations indicate that the actual demand for housing assistance, both by displaced families and other families, will be spread out over the coming years. Lack of adequate institutional capacity at the local level to implement the massive reconstruction program, and uncertainties on the part some of the conflict affected families about returning and starting to build houses, will stagger the housing reconstruction needs. Therefore a portion of the financing needs will arise in the longer term. It is also assumed that a large percentage of housing needs of higher income families will be met through the financial market in the long term. It is also observed that as compared to the displaced families, the housing needs of families formed after the displacement could be undertaken over the medium and long-term."

ACCESS TO EDUCATION

General

Access to education remains limited (April 2008)

- During 2007, an estimated 300,000 children were impacted by the conflict
- The conflict has turned schools into military targets, IDP camps and military shelters
- Exceptionally high student dropout rates and absentee rates are prevalent in conflict areas, especially among displaced children
- A massive flow of educational staff has resulted in a serious lack of teachers in the North and East
- An estimated 1,800 teachers have been displaced and others have moved away from conflict-affected areas

CHAP, February 2008:

"During 2007, an estimated 300,000 children were affected by the conflict. Temporary learning structures, provision of essential learning materials, back-to-school campaigns and development of a consolidated syllabus supported conflict-affected children to resume schooling with minimal disruption. Despite significant achievements, the sector faced numerous constraints: the response in Jaffna and the Vanni was reliant on two organisations; school-based activities were delayed as emergency activities competed with regular programming in many zones; and significant funding shortfalls. In addition, the impact of multiple displacements and access difficulties to remote communities stretched existing resources."

Watchlist, April 2008:

"Sri Lanka's armed conflict has turned schools into military targets, IDP camps and military shelters. More than 250,000 children in Sri Lanka, mostly in the North and East, have been forced to interrupt their education due to renewed outbreak of armed conflict in 2006. Military attacks have damaged or destroyed 261 schools as of September 2007 and their reconstruction has been delayed due to insecurity. The massive outflow of educational staff in recent years from conflict-affected areas has resulted in a serious lack of teachers in the North and East. Exceptionally high student dropout and absentee rates are prevalent in conflict areas, particularly among displaced children. Many students who remain in school require special attention as a result of distress due to conflict-related experiences or because they missed years of education.

In addition to schools being destroyed or damaged by armed groups during attacks, many schools have been forced to close as thousands of displaced people have sought shelter in school buildings.

There has been a massive outflow of educational staff in recent years as a result of the armed conflict. An estimated 1,800 teachers have been displaced and others have moved away from conflict-affected areas to safer, more prosperous areas.

Recruiting and transferring new teachers to the North and East has proven difficult due to the general shortage of qualified teachers in Sri Lanka. Low teacher salaries is considered to be one

of the main reasons for this shortage, negatively impacting the performance of teachers and the quality of new applicants.

Exceptionally high student dropout and absentee rates are prevalent in the North and East. In 2003, the dropout rate for children in the North and East was estimated to be 15.8 percent, four times higher than the national rate...Dropout rates were highest among displaced children.

Many children who are able to remain in school must overcome multiple obstacles in order to continue their education. First, long and dangerous school routes put them at risk of abduction and recruitment. Once they arrive, classes usually take place in provisional huts with poor water and sanitation facilities. Additionally, classes are often overcrowded and noisy, making it difficult for students and teachers to concentrate.

Some children in conflict-affected districts also encounter problems in the enrollment process because they may not have received a birth certificate or they may have lost it due to displacement or related circumstances."

Education activities in 2006 (October 2006)

UNICEF, 5 October 2006:

"UNICEF is the lead agency for education and is actively supporting the Ministry of Education in coordination committees among participating partners at national, zonal and district levels. UNICEF participated in emergency education assessments and working with education authorities and school principals in all affected districts to plan for the re-opening of schools for displaced children and children in host communities where schools are currently occupied by IDPs. In Trincomalee district 15 schools are currently occupied by IDPs. The figure for Kilinochchi district is 12, while in Batticaloa district 7 schools are occupied by IDPs and 10,531 children are out of school.

UNICEF is setting up temporary learning spaces and providing tarpaulins and mats to enable classes to take place outside of school buildings. School-in-a-box kits, blackboards, uniforms, schoolbags and stationary are distributed in order to accelerate the integration of conflict affected children into learning environments. In districts like Trincomalee, the provision of learning materials for internally displaced children allows them to be temporarily integrated by host schools or for classes to be conducted through double shifts. There is however still a great need to rehabilitate damaged schools, provide temporary learning spaces, teacher and learning material and teacher training in order to ensure structured learning activities for all conflict affected children. Mine Risk Education and attention to overall accident prevention activities also need to be ensured".

CHA, July 2006:

"The school in Ralkuli, northwest LTTE controlled area, is not operating. Teacher who have been appointed to the school are not reporting to work due to the present situation. PIN is planning to arrange non-formal education for the displaced children in the Muttur town.."

Monthly updates on education activities, the handing over of newly built schools etc, can be found in the [Situation Reports](#) by the Consortium of Humanitarian Agencies (CHA, www.humanitarian-srilanka.lk)

War severely affects all levels of the educational system in north and east (August 2006)

- The 2006 displaced often reside in public buildings and schools, thereby preventing resident and displaced children attending school
- Displacement, poverty, single-headed households, damaged infrastructure and lack of human resources have aggravated non-enrolment, drop outs, absenteeism and poor learning quality in the North East.
- Also the violent environment has created psychosocial problems for children, showing symptoms of stress, insecurity and distress.
- Rate of student drop-out in the North East is 15%, almost 4 times the national average, with 50,000 students out of school.
- It is expected that the student numbers will increase overall by about 6% per year.
- Many students need psycho-social support, but which cannot be provided

UN OCHA, 30 August 2006, p.4:

"The recent displacement has seen large groups of civilians moving into adjacent areas, adding pressure to existing communities, already affected by the crisis. Schools and community buildings have so far been used for shelter creating problems for education of host populations as well as the children of displaced families.

p.7: Priorities for humanitarian response with regard to education:

Conflict and deteriorating security environment impact on access to education. Many school buildings are now often being used to house IDPs as temporary shelter sites. In other locations, the authorities decide to cancel classes due to unsafe security conditions and departure of the teaching staff. Disruption of education among displaced children and those affected living in host communities could lead to children not finishing their school years and result in a potential increase of overall school dropouts for the region. Monitoring of girls education is important at this point as many of them, while living in a camp-like situation, end up having additional workload and responsibilities. Children that are not able to attend school are deprived not only of their right to an educational cycle and qualifying for the labour market, but also are unable to mingle and play with their friends, which provides a powerful breathing space and venue to cope with the abnormal external environment."

WFP, August 2004:

"As a result of disruption of the education sector during the conflict, education performance indicators for the north and east are much worse than in the remainder of the country. An impact survey by the German Agency for Technical Cooperation (GTZ)⁴ at the end of 2002 showed erratic attendance and a drop-out rate of 30 percent among children aged 5–14 in the Vanni area."

ADB, UN & WB 9 May 2003. pp. 15-16 and 27:

"All aspects of the education system - pre-school, primary, secondary, tertiary and technical-vocational - are severely damaged in the North East. Problems such as non-enrolment, drop outs, absenteeism and poor learning quality are aggravated as a consequence of displacement, poverty, single-headed households, damaged infrastructure and lack of human resources. Further, many children and young people who have grown up in an environment of conflict and violence show symptoms of insecurity, stress and varying degrees of psychosocial distress.

There are 1,994 schools in the North East, with a total enrolment of about 648,000¹⁸, divided almost evenly between boys and girls. The rate of student drop-out is 15%, almost four times the national average. It is estimated that 50,000 children are out of school. The number of all school aged students in the North East is predicted, in revised enrolment projections, to increase to around 866,000 by 2007, as internally displaced persons return, drop out rates fall, and retention and transition rates rise. This means that student numbers are expected to increase overall by about 6% per year. The pattern is different according to different zones and districts. In areas highly affected by the conflict, such as Jaffna and Kilinochchi, enrolment growth would be over 9%. In areas least affected, such as Ampara and Trincomalee, it is expected to be less than 4%.

The increase in the highly affected areas would be mainly from returning IDPs, and therefore mostly in the coming two years (2003-2004), whereas in the least affected areas most of the increase would be coming from out-of-school children which is expected to pick up in the later years 2005-2007. Overall increases in enrolment will require an increase in school capital stock, such as buildings, basic facilities, furniture, equipment, literature and material. It will also require an increase in qualified and trained teachers. Beyond 2006, school enrolment is expected to stabilise, as in the rest of the country.

The rehabilitation and restoration of the education system, both formal and non-formal, deserves high priority and must place the best interests of the child at the centre. Education is of paramount importance for restoring normalcy and security to communities in general and to children in particular. Schooling is a basic right of all children, playing an important role in a child's social and psychosocial well-being. Education also provides an entry point to reach children, and through them their parents, on issues relating to protection, water sanitation, health, nutrition, landmine awareness and life skills. Rehabilitation of the educational system will therefore be very important in the overall processes of peace building and reconciliation.

While priority should be given to the compulsory education cycle for the 5 to 14 year age group (typically grades 1-9), the needs of pre-school education and higher education should also be addressed. The need for non-formal education for non-enrolled and dropped-out children, and educational opportunities for children with special needs, is also a priority.

A number of children and students need *psychosocial care and support*, but this is not available. Conflict affected children mostly display behavioural changes as a manifestation of distress, and need support to improve their coping capacity and resilience. Regular schooling which is 'child friendly' with caring teachers and other supportive activities such as sports, music, art and drama can itself make a huge difference to the psychosocial well-being of young children."

Tsunami affects school system in affected areas (April 2005)

- Post-Tsunami school reconstruction, as existing school often still home to the displaced
- Low school attendance and poor performances due to classroom shortage

INFORM, April 2005, p. 8/9:

"Schools officially resumed classes on January 25. However, attendance has been low in many tsunami-affected areas and schools remain ill-equipped to provide the psychological support needed by students and teachers who are survivors of the tsunami.

The Ministry of Education has handed over the reconstruction of schools entirely to the private sector (NGOs and the business community, local and international). Of the 176 schools scheduled for reconstruction, 72 have been completely destroyed and 73 require relocation. A special unit has been set up within the Ministry of Education to monitor this process.

Throughout the East and in some scattered parts of the south, including Moratuwa which is a town peripheral to the capital, Colombo, schools remain occupied by displaced persons. Students and teachers are compelled to carry on with school while being surrounded by the IDPs. In February, in Kinniya (Trincomalee, EP) angry families re-occupied the public school that they had vacated since the resettlement location they were taken to was a bit of barren ground with no facilities whatsoever. In Batticaloa, three large schools (Hindu College, Central College and Janaraja Vidyalaya) continued to be occupied by displaced persons. These schools are now technically in session; this means that students attend classes while parts of their school are occupied by displaced persons. This leads to a number of flashpoints for tension but the fact that children are going to school has managed to divert attention away from the fact that these displaced persons are in dire need of relocation."

OCHA, April 2005:

"In the immediate phase, great strides were made by UNICEF and other agencies to return to learning approximately 200,000 children. Essential items for schools, such as emergency education kits, furniture, stationary, and uniforms were supplied. To date, over 160 schools have been cleared of rubble, cleaned and in some cases been given minor repairs including to water and sanitation facilities. Efforts were also made to repair minor damage to buildings, including water and sanitation facilities, and to construct temporary school shelters as required. Initial steps were taken to train teachers in psychosocial support and to establish teacher support groups for the improved psychosocial monitoring of school-age children. UNICEF has played a lead role in the coordination of the education sector emergency response and this will continue through the relief and reconstruction phases.

The rehabilitation and reconstruction of 184 schools before the end of the year will be one of the main thrusts of longer-term reconstruction and development objectives in 2005."

UNICEF Action Plan supports efforts to improve education (September 2004)

- In 2003, an estimated 50,000 children were not attending school in the north-east as a result of war
- UNICEF assists in enrolling children back to school and in special catch-up education

UNICEF, September 2004:

"The overall objective of the education component of the Action Plan is to support efforts to improve the quality of education and ensure that all children are back in school in the North East. At the time the Action Plan was initiated [May 2003], an estimated 50,000 children were not attending school in the North East as a result of the war. Children have dropped out of school, or attend irregularly, for a variety of reasons related to the conflict in the North East, including: displacement, destruction of school buildings, shortages of teachers, poor quality of schooling, poverty, lack of school infrastructure, unfriendly school environments and child recruitment.

At the end of [June 2004] a total of 6,751 children had enrolled back in school. At the same time, through the Zonal Departments of Education (ZDE), UNICEF and GTZ are supporting emergency Catch-Up-Education (CUE) classes for children who have missed several years of schooling and

need accelerated learning opportunities to catch up with their peers. UNICEF and the National Institute of Education (NIE), alongside the Provincial and Zonal education authorities and Tamil Eelam Education Society are developing standardized materials for catch-up-education in all districts. In addition, they are developing an intensive teacher training programme to ensure sufficient numbers of qualified teachers to implement the programme. At the end of the reporting period, 43,881 children were enrolled in CUE classes throughout the North East.

[...]

UNICEF is also assisting with the repair and reconstruction of the estimated 500 school buildings in the North East that were damaged or completely destroyed during the war, and the construction of temporary school shelters where necessary. In addition, UNICEF provides school stationery kits and material for school uniforms to particularly vulnerable children throughout the North East. At the end of [June 2004], UNICEF had distributed 11,599 school kits and assisted with the repair and reconstruction of 241 school buildings.

The World Food Programme is running a school feeding programme in several districts of the North East. Many children leave home without a proper meal and providing a school meal helps with their concentration and general nutrition and health. School meals are also provided to children who stay behind after school for CUE classes. At the end of the reporting period, 21,548 children were receiving WFP school meals.

UNICEF is currently discussing a proposal with the National Youth Services Council (NYSC) to establish a package of vocational training, adolescence life skills, literacy and recreational activities in the North East. In the interim, UNICEF has agreed to fund a proposal from the Provincial Youth Services Council in Batticaloa for capacity building and life skills and vocational education development for 40 youth clubs in 14 GS divisions in Batticaloa and Ampara Districts."

Obstacles to education

Education disruption during conflict (Special report, 2007)

Education

At the height of the conflict between the army and the LTTE in the east over the past year, more than a quarter of a million children experienced partial or complete disruption of their education. In Batticaloa district alone, the education of at least 135,000 students was affected. Many schools were closed as they were used as shelters for IDPs. To meet the challenge of educating IDP children, child protection agencies devised a two-shift school day at temporary buildings, where local children attended school in the morning and IDPs in the afternoon. (UN Office for the Coordination of Humanitarian Affairs IRIN News, *Sri Lanka: Many schools in east reopen, though fear persists*, 21 May 2007)

Teacher shortage and school occupation by army are obstacles to education (May 2003)

- A significant number of teachers, principals and other school personnel were either displaced as a result of the damage to their schools, or were transferred to other parts of the country.
- The shortage of Tamil medium teachers is 4,650 and the shortage of Sinhala medium is about 240.
- In some areas there are less than 5% of the teaching staff needed

- Over 74 schools in the north-east are occupied by the security forces and of these only 11 have been handed back to the school authorities up to 10 June 2002. A further 160 schools, including 130 primary schools are unable to function because they are near military installations or lie within security zones.

ADB, UN & WB May 2003, p. 28:

"120. The teaching cadre has suffered as a result of the conflict, in addition to existing systemic problems of teacher availability. A significant number of teachers, principals and other school personnel were either displaced as a result of the damage to their schools, or were transferred to other parts of the country. A sizeable number have left the teaching profession altogether. The numbers of teachers in the North East in 2002 was about 22,000, of whom approximately 19,000 were Tamil medium teachers and 3,500 Sinhala medium teachers. The shortage of Tamil medium teachers is 4,650 and the shortage of Sinhala medium is about 240. The need for teachers will also increase as enrolment rises. The largest vacancies appear to be in the area of trained Primary teachers and English teachers (both around 40%). Vacancies are highest in Kilinochchi and Mullaitivu (47%) followed by Mannar (40%) and Vavuniya (31%)."

BRC, 2002:

"Over 74 schools in the north-east are occupied by the security forces and of these only 11 have been handed back to the school authorities up to 10 June 2002. A further 160 schools, including 130 primary schools are unable to function because they are near military installations or lie within security zones."

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-reliance

Scarce opportunities to restart a livelihood upon return in the north-east (February 2003)

- Difficulty in restarting economic activity is one of the main issues slowing return.
- Aside from the Productive Enterprise Grant given to a handful of families, there is presently little help from the Government while some NGOs have provided IDPs with livestock and skill training
- Farmers, fishermen, businessmen have lost their means of livelihood due to displacement and war and face acute financial problems
- Other impediments to economic activity include lack of infrastructure, lack and loss of skills, LTTE taxation, lack of market to sell products, few employment opportunities for wage labourer, fishing restrictions by the SLA, lack of identity and property documents
- Women and single heads of households, the elderly and the disabled are unable to work or cannot find suitable employment

These excerpts describe the slow economic recovery, with many setbacks, after the 2002 ceasefire. Most of what was achieved has been destroyed again during the 2006 violence.

GoSL, PRSP, December 2002, p.122:

"According to a recent study [...] conducted in the uncleared areas of the Wanni (Northern Province), the internally displaced persons (IDPs) in settlement villages and in settlements attached to existing communities are the most significant vulnerable group. They are food insecure year round, as they must depend on an inadequate ration for survival. While daily wage labor is the best option for increased IDP household income, opportunities are sporadic and/or seasonal, wages are low, and preference is given to residents over IDPs for the few jobs available. Not unexpectedly, the assessment results show a multitude of significant ways in which the conflict and restricted access are negatively affecting communities. Fishermen are excluded from productive fishing zones, cannot transport their catch to lucrative markets, must pay artificially high prices for gear and fuel, and live in communities that are periodically displaced by the conflict. Farmers cannot buy the agricultural inputs that their production depends on, cannot always send their produce to the most appropriate market, and must compete with the large influx of IDPs for scarce agricultural labor jobs. Virtually everyone in the Wanni suffers from the inadequate medical and educational services that the conflict has caused."

CPA February 2003, pp. 39-40:

"While, prior to displacement, residents of the North East had been engaged in all sectors of economic activity, fishing, agriculture and business were the main occupations. The difficulty in restarting economic activity is one of the main issues slowing return. There is at present scarce assistance to returnees from the Government aside from the Productive Enterprise Grant given to a handful of families (see section 3.4). Some NGOs have provided IDPs with livestock or skills training. However, assistance is much needed as the loss of economic assets due to

displacement and conflict is colossal and the majority of returnees need to restart their livelihood from scratch.

In addition to the loss of revenue due to displacement, farmers have lost their livestock –cattle, goats, chicken – agricultural implements, tractors, carts, sprayers, fertiliser, herbicide, seeds, harvest, etc. The land has been taken over by overgrowth and needs re-conditioning before it can be used for agricultural purposes. Coconut plantations have been devastated by aerial bombing and shelling. Fishermen have lost their boats, motors, nets and other fishing equipment. Business persons have lost their stock, equipment and premises. In addition to property loss, financial difficulties and lack of assistance, a number of other obstacles impede economic activity, in particular in the North. These are not listed in order of priority."

The Refugee Council, September 2003, p.26:

"Lack of income is another major problem. Displaced persons have always attempted to maximize families' basic needs or to supplement the meagre rations they receive. But in finding employment, they often face competition from members of local communities. Lack of work, restriction on movement and inadequate government assistance, such as day care facilities for children, have meant that most are unable to engage fully in income generating activities.

Vulnerable sections of the IDPs, such as women and single heads of households, the elderly and the disabled are unable to work or cannot find suitable employment. As a result, they are entirely dependent on the dry food rations issued by the World Food Programme (WFP) or the government. IDPs are not provided cash and are unable to purchase other basic necessities."

Public participation

Government's policy on voting rights for internally displaced (April 2006)

- In theory, IDPs are allowed to vote while in displacement. A ranges of factors impede on this right, however.
- IDPs are allowed to vote in their actual place of residence for the district where they were registered prior to displacement, given special ballot boxes are made available.
- IDP voting rights seem to vary depending on the district of temporary residence of the displaced person.
- People not registered prior to displacement cannot do so after being displaced. Thus, children who turned 18 in the camps are excluded from voting.

IOM, April 2006, p.4:

Sri Lanka held parliamentary elections in 2004 and presidential elections in 2005. Both of these programs included impressive mechanisms designed to provide IDPs with the opportunity to vote. In accordance with best practices, displaced voters are eligible (in theory) to cast ballots while in their temporary homes for either their current constituency or for their constituency of origin. In addition, international monitors and domestic observers were guaranteed unimpeded access to election facilities. Thus, with the exception of some important technical flaws and localized problems of inadequate implementation, the legal framework governing IDP voting could serve as an example of best practices for other countries with substantial numbers of IDPs.

Unfortunately, a number of obstacles continue to impede the ability of Sri Lankan IDPs to realize their full electoral rights. These include:

- The division of the country into areas of control, and the inability of the Department of Elections to administer polling stations or regulate campaigning in areas controlled by the LTTE;
- The totalitarian nature of the LTTE and its intimidation and targeting of opposition Tamil political parties and civil society organizations;
- Broader issues of political and election-related violence that have plagued Sri Lanka's experience with democracy going back to its early years of independence;
- Difficulties that IDPs confront in terms of securing documentation;
- Regional variations in implementing electoral regulations governing IDP voting rights, particularly in relation to obtaining an absentee ballot;
- The marginalization of Muslim IDPs;
- Weaknesses in the compilation and maintenance of the voters register;
- Severe mal-apportionment resulting from population movements and the lack of a functional institutionalized process for re-districting.

CPA October 2001, pp. 49-50. *This part is still valid in 2006*

"Following a 1988 Amendment to the Parliamentary Elections Act 15 of 1988, a displaced person can vote in her actual place of temporary residence for the district where that person was registered as a voter prior to displacement. For that purpose, special ballot boxes are made available in polling stations or if the number of such voters is large enough, a separate booth is set up.

According to Deputy Election Commissioner Arun Thavachelvam, IDPs can vote for the district where they are currently residing on request, regardless of whether they are receiving government assistance. Such a policy is contradicted by Vavuniya Assistant Election Commissioner Tiranagama Sampanthan who stated that only IDPs who have opted for and become permanent residents could register on the local electoral list. This would thus exclude IDPs in WCs or those receiving food assistance.

IDPs who were not registered as voters prior to displacement cannot be registered from the area where they are now residing. Neither will the children of such IDPs be registered when they turn 18.

The voters list is updated every June. IDPs who do not however appear on the electoral list can complain to the Election Commissioner or file a complaint to the District Court with a Rs 5 stamp.

Upon receipt of a complaint, the Assistant Commissioner should hold an inquiry. However, he/she has no mandate to enquire into non registration in other districts. In practise, there is no redress available for an IDP in Puttalam, for instance, if he/she is not registered due to a failure of the Puttalam officials.

Voting could not be organised in the uncleared areas for the last parliamentary elections though cluster polling stations were set up for voters living in areas bordering the conflict."

District Protection Reporting Mechanism planned (August 2005)

Together with the government, UNHCR Field Office Colombo is working on a District Protection Reporting Mechanism, functioning at village, division and district level, with direct input from IDPs at village level. (UNHCR internal document, 2005)

Special arrangements to let internally displaced vote during elections 2 April 2004

- Internally displaced were able to apply for alternative ways of voting prior to the elections in April 2004
- Arrangements for polling stations in the electorates of Jaffna, Batticaloa and the Wanni were reported to be problematic
- One month before elections, around 30,000 applications had been received for alternative voter arrangements

"[...] arrangements are now being made to ensure unimpeded conduct of the election in the Northeast.

Mr. Dissanayake said polling stations in these areas would be set up in a way that would minimize the difficulties of voters and guarantee their safety. He said the setting up of polling stations in the electorates of Jaffna, Batticaloa and the Wanni has been a problem.

The Elections Chief said however that he was duty-bound to ensure that the voters in these areas are able to cast their votes. He therefore said the possibility of setting up cluster polling stations is under consideration.

Mr. Dissanayake also said displaced voters will get until tomorrow [2 March 2004] to apply for alternative arrangements to cast their votes. Around 30,000 such applications have already been received. The Elections Chief also said a private company would assist him in monitoring the media during the polls. He is due to receive a preview report tomorrow." (1 March 2004)

Muslim IDPs in Puttalam reportedly denied basic rights, including right to vote (May 2003)

- There are reports that the provision of services to the IDPs and certain basic rights of displaced citizens have been denied on administrative grounds in Puttalam.
- It is also reported that voting rights have been denied to newly eligible voters among the IDPs.

"145. There are reports that the administration in Puttalam has faced difficulties in ensuring the provision of services to the IDPs and that the certain basic rights of displaced citizens have been denied on administrative grounds. For example, access to employment in the public service (including teachers) in Puttalam has been poor since the IDPs are considered to have access to the non-transferable quota of jobs in Mannar. It is also reported that voting rights have been denied to newly eligible voters among the IDPs. Finally, the IDPs in Puttalam have reported difficulties in accessing basic administrative services in the Tamil language medium." (ADB, UN & WB 9 May 2003, p. 34)

DOCUMENTATION NEEDS AND CITIZENSHIP

Documentation Needs

Documentation barriers for IDPs and returnees (May 2008)

- There have been difficulties for IDPs to obtain and retain needed documentation
- Documentation has been used inappropriately by authorities in some cases
- Clear and accessible procedures are needed to replace documents, such as the National Identity Card, lost in flight
- Varying standards are applied for registration and deregistration of IDPs, resulting in difficulties for displaced
- Additional registration and identification documents are imposed on returnees in the east
- The returnee ID cards required by security forces in some areas do not serve a legitimate purpose

SRSG, May 2008:

“Documentation is especially important for IDPs because it is often instrumental in assuring their access to public services, entitlement to humanitarian assistance, and ability to exercise freedom of movement. Without extreme care, procedures and systems relating to documentation can effectively deny IDPs these rights or become vehicles for discrimination and abuse. The Representative found not only that there were difficulties for IDPs to obtain and retain needed documentation, but also that documentation was used inappropriately by some authorities. The National Identity Card (NIC) is the key piece of personal identification for Sri Lankans. It is used for all official interaction the individual has with the State. Because IDPs commonly have lost personal documentation, authorities must provide clear and accessible procedures for the prompt replacement of NICs at the site of displacement.

IDP registration may be used as a temporary form of identification, but cannot substitute for prompt replacement of the IDP's NIC, to which IDPs are entitled as citizens. Not all countries use IDP registration, but where it is used, registration can be important in its own right: for the IDP, it is a marker of entitlement to assistance, and for the government and humanitarian community, it is a powerful tool for planning and delivering assistance. Aggregated data supports the adequacy and appropriateness of emergency response, allocation of central resources for public services and planning for durable solutions.

Presently there is no comprehensive, uniform system of registration [in Sri Lanka], resulting in a number of difficulties, since registration is used to establish entitlement to government assistance. Varying standards are applied for registration and deregistration. IDPs staying with friends or families, as well as those originating from areas approved for return, are not registered. In accordance with the principle of non-discrimination, where aid eligibility is dependant upon registration status, all IDPs meeting the factual description in the Guiding Principles should be eligible for registration, regardless of date or place of displacement or place of accommodation.

Registration cards should be issued to each IDP individually and in the case of women, in their own names. Finally, procedures should be simplified and information centralized such that IDPs can move freely and not risk losing their assistance. IDPs reported difficulty with a requirement

that they deregister at the first site of displacement before registering at the second site because either they could not return in safety, or the local authority was reluctant to deregister the IDP because it would reduce the amount of assistance the area received. A centralized system would facilitate a single step to transfer registrations, and uniform standards would prevent premature deregistration or manipulation.

The Representative was concerned that additional registration and identification requirements were imposed on returnees in the East. There was a practice to screen, register and issue family photo ID cards during the process of return. Screening often involved the use of masked men to identify individuals who were then photographed and fingerprinted. Lists were then distributed among checkpoints. Individuals have been closely monitored upon their return, with some men required to report to security forces on a daily basis; villages are checked to ensure everyone returns at night and that only those on the ID card are present. Many IDPs indicated that they limited their movements, lest they be asked for these ID cards at checkpoints and then questioned or harassed.

These ID cards, and ID cards required by the Army or STF in some areas, do not appear to serve a legitimate purpose. IDP or returnee status per se is not a reasonable basis for suspicion of illegal activity, nor for restricting freedom of movement. For identification and freedom of movement, it should be sufficient that IDPs carry a NIC. Requiring IDPs/returnees to show. Emergency assistance prior to receiving the registration card is provided by NGOs and international organizations.

The Government must clarify the purpose of any registration, identification or data collection. There may be important and appropriate reasons for doing so, but these must serve the purpose of meeting the needs and fulfilling the rights of IDPs."

MRGI, December 2007:

"Another aspect of the government's counter-terrorism strategy has been to provide Identity Cards (IDs) to all the people who have returned to their homes. This is in addition to the national security card that all Sri Lankans carry. This new ID has a photograph and basic details of the person including their ethnicity. The ID is meant to prevent rebel infiltration into the villages. However, villagers have expressed their nervousness about the system, fearing it would restrict family visitors, mobility and schooling of children who travel out of their neighbourhood."

Documentation (Special report, 2007)

Lack of documentation has proved to be a hindrance for many IDPs. Frequently IDPs fled their homes during shelling or fighting with no time to collect the documents needed to navigate through numerous security checkpoints, and to access relief provisions. The process of acquiring duplicate documentation was complicated by the need to first obtain clearance from the displaced persons' areas of origin, where in some cases the civil machinery had collapsed during the conflict (IDMC, July 2007).

Many internally displaced have lost personal and property documents during conflict displacement (September 2006)

- Many find it difficult to prove ownership as they have lost property documents during displacement.

- In addition, many government institutions have lost volumes and records in the North-East, making it difficult to obtain copies of their documents.
- Also Land Registries and Divisional Secretaries face a sharp increase in the volume of demand for certified copies and do not have the capacity to respond.
- Also, many have lost proof of identity such as National Identity Cards or Birth Certificates, which are necessary to obtain copies of property documents.

UNHCR, September 2006, p.2:

"The majority of people have fled with little more than they were able to carry and loss of civil documentation is a particular concern at a time when the security forces have increased their checks on civilians and authorities require identity documents to access services."

GoSL, December 2002, p. 52

"One immediate measure that can help foster ethnic reconciliation is to ensure that all citizens have ready access to identity cards. Delays in issuing identity cards for large numbers of internally displaced persons, as well as other members of the minority community, have hindered movement and access to public services. Government will mount a special effort aimed at expediting the provision of identity cards, particularly to conflict-displaced persons and Estate workers. Over the next few years, Government will introduce a computerized system to issue trilingual identity cards for ensuring equivalent identification procedures for all citizens."

UN Inter-Agency IDP Working Group, 9 February 2004

"Because of the tumultuous ordeal of displacement, IDPs regularly find basic documents such as birth, death and marriage certificates, land title deeds and identity cards have been left behind, destroyed or lost. These documents provide a legal basis for people to enforce a whole range of rights and entitlements. Without a birth certificate, for instance, children are unable to enrol for school. Without an identity card, it is not possible to vote. Without title deeds, it can be extremely difficult to prove ownership of land or property.

UNHCR therefore supports mobile registration clinics, where IDPs and returnees can seek assistance from a range of government and non-government organisations to obtain basic documentation. In November 2003, for example, over 2,000 people sought assistance at a clinic in Vavuniya for refugees who had returned from India."

CPA February 2003, p. 11

"Obtaining copies of property documents is complicated by the fact that in the North East, Government institutions, such as the Land Registries and Divisional Secretariats, which keep copies of such documents, have lost volumes and records as a consequence of the conflict or of natural disasters. Copies of private deeds as well as State Permits and Grants are not kept centrally. Residents of the North are all the more affected as public buildings of Northern Districts were severely damaged during the conflict. On the other hand, most property documents of the Eastern Province are intact.

Even when duplicates of documents are available, it is unclear whether Land Registries or Divisional Secretaries have the capacity to respond to the number of demands for certified copies. The volume of demands has sharply increased since the signing of the Cease Fire Agreement in February 2002 and the subsequent return of IDPs to their property. These demands are likely to increase further.

Compounding the matter, many IDPs have lost proof of identity such as National Identity Cards or Birth Certificates, which are necessary to obtain copies of property documents. Property inheritance may also be impeded by the loss of Marriage or Death Certificates.

Some IDPs were in the process of regularising their occupation of State land when they were displaced. They have therefore no documentary proof that they were in occupation of the land in question prior to displacement. Current procedures for proving occupation need to be revised to assist these people in resuming their applications."

Vavuniya: "There are number of IDPs who have no birth certificates in the welfare centres. The SEED, WDC and RDF took action to provide birth certificate to them with the collaboration of the Asst. District Registrar. However, there are still inadequacies in the process." (CHA, January 2004)"While the law protects property rights, proving ownership may be problematic, as many IDPs have lost property documents during displacement." (CHA 2 February 2004)

Tsunami exacerbates the already serious need of documentation (August 2005)

- Tsunami-affected communities face difficulties obtaining lost documents
- NGOs experience a great number of document requests

INFORM, April 2005, p. 5:

"Tsunami-affected communities are still facing difficulties in obtaining their lost documents such as National Identity Cards as well as educational certificates. The Dept. for the Registration of Persons and various other government agencies have been conducting mobile services in the tsunami affected Districts trying to place the process of obtaining these documents on the fast track."

NRC background note, August 2005:

"There are huge needs for documents. This is evident from the fact that over 90% of the 3000 cases received so far by NRC Batticaloa and Ampara offices are for documents. Birth, marriage and death certificate, property deed/permit, and national identity card are the most popular document requests.

Capacity of local registry offices is the major impediment in obtaining documents. Most registry offices have huge backlog of cases. Some of them do not have photo copy machines or the necessary staffs to search the archive, which has to be done manually."

Citizenship

System of 'local citizenship' prevents certain groups of IDPs from accessing full national citizenship (2003)

- The Sri Lankan system of provincial devolution creates 'local citizens'

- IDPs residing in provinces other than their original one are not regarded as full citizens
- Questions of ethnic equilibrium and livelihoods hamper the willingness of the host administrative region to grant IDPs full local citizenship.
- IDPs themselves may also have an interest – mostly related to free food rations and other welfare benefits – in not giving up their IDP status

Brun, 2003, pp. 382-384:

"The Sri Lankan state may be described as ethnic majoritarian because the Sri Lankan polity is a one person-one vote system, which enables the ethnic majority to monopolise power and rule over the ethnic minorities. The administrative system is based on the division of the island's territory into provinces and districts that later came to be regarded as natural or given. In the 1980s, the Sri Lankan government gave greater devolution of power to the provinces to accommodate separatist demands in the north and east of the island. Democratically elected provincial councils [...] were granted legislative powers over all residents – or local citizens – registered in their province, and a divisional secretariat (sub-regional level) was appointed as the main implementing arm of the provincial council.

However, the provincial council system has proved to be inefficient, and only added one more level to the highly bureaucratic administrative system in Sri Lanka. Ironically, the areas for which provincial devolution was intended (the north and east) have not had any effective regional or local democracy because of the continuing ethnic conflict. Despite their ineffectiveness, the establishment of the provincial councils and other structures of local administration may be seen to have 'fixed' the local citizens more clearly in the regions where they were registered, which has made the situation problematic for internally displaced persons who find themselves outside 'their' regions. [...]

This means that those IDPs who find themselves outside the administrative regions where they are registered have problems in keeping up the relationship with the state which characterizes Sri Lankan citizenship. Accordingly, their access to significant citizenship rights is restricted. For example, government institutions in the provinces where the IDPs live as displaced, but where they are not registered as local citizens, do not extend their services to the displaced on the grounds that they 'belong to' other provinces. On the other hand, the government institutions on the province of origin state that they have no mandate to deal with those who have displaced to other provinces."Another dimension to the tension between IDP status and citizenship status is the involvement of the local people who live where the IDPs arrive [...] and commonly have to struggle to obtain the same rights to livelihoods, education and social security that those in the host community have access to.

[...]

p. 386/7

The Northern Muslims have not been officially denied the right to register in Puttalam, but have decided not to, for several reasons. Many IDPs feel that they belong to the north, and do not want to register in Puttalam. If they do, they are afraid of losing their status as IDPs, which could mean losing the right to rations and the possibility of receiving assistance to rebuild their homes in the north if they return. There is also a more practical reason for not registering. To register in Puttalam they have to go back to the north, to the areas where they are presently registered, to collect a letter of confirmation. The war, and the fact that the Northern Muslims were not welcome in the north by the LTTE, made it both dangerous and difficult for the majority to go back to collect such letters of confirmation.

Another reason is that the central government has an interest in keeping the IDPs registered in the Northern Province to prevent the emergence of a 'purely' Tamil province without the presence of any other ethnic groups. At the same time, both local authorities and Sinhalese politicians

resist the registration of Northern Muslims in Puttalam because it would alter the ethnic composition, and result in a Muslim majority."

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

General

Some displaced Muslims in Puttalam identifying with extremist elements (December 2007)

- Almost two decades since being displaced from Sri Lanka's northern province, many IDPs in Puttalam are surviving through charity or manual labor.
- Observers worry that some of the Muslim IDPs in Puttalam are channeling their frustration over poverty and their inability to return into more fundamentalist versions of Islam

CSM, December 2007:

"Seventeen years ago, all the Muslims from Sri Lanka's northern province, at least 75,000 of them, were expelled by the Liberation Tigers of Tamil Eelam (LTTE), also known as the Tamil Tigers. Fleeing the rebels, most ended up in Puttalam, already a predominantly Muslim region, where thousands still live in basic leaf huts, depending on charity and the odd day of manual labor to survive.

The Tigers' anti-Muslim campaign of 1990 is a largely forgotten chapter in Sri Lanka's long ethnic war between the Tigers, who are fighting for a northeastern homeland for the minority Tamils, and the government, which mostly represents the Sinhalese majority.

Observers worry that some of the displaced Muslims here are channeling their frustration – over their poverty and living conditions and their inability to return home – into more fundamentalist versions of Islam. Most Sri Lankan Muslim women cover their heads with their saris, but in the east, women have started to wear the long black *abaya* for the first time. More fundamentalist Islamic groups – like the Jamaat-i Islamiya and the Tabligh al-Jamaat – are growing more popular here, according to the ICG.

Part of the problem is that, due to the geographical dispersal of Muslims in Sri Lanka, there is little sense of a Sri Lankan Muslim identity; indeed, this is in part why their suffering has received so little attention from the international community.

While Tamils and Sinhalese define themselves in terms of their language and history, Muslims are only distinguishable from their fellow Sri Lankans by their religion. This, as well as a global resurgence in more orthodox forms of Islam, has intensified the religious beliefs and practices of some Muslims here.

Muslims are also the island's smallest minority: Tamils constitute 12 percent of the population; Muslims 8. And yet Shahul Hasbullah, senior lecturer in geography at the University of Peradeniya in Kandy, says a disproportionately high number of those currently displaced by the war are Muslim – "perhaps as many as 25 percent."

Conflict has eroded traditional social structures but also triggers sense of solidarity (August 2006)

- The tensions of conflict could lead to a breakdown of community structures, including reduced trading, higher prices, and less solidarity between groups
- On the other hand, the conflict has also spurred solidarity with displaced populations
- The psycho-social effects of the conflict are serious, leading to increased levels of suicide

UN OCHA, 30 August 2006, p.4:

"Breakdown of community structures:

Recurrent conflict resulted in a breakdown of family structures and social safety nets. Coping mechanisms and resilience are pushed to the limits if not shattered exposing individuals to extreme vulnerability. Together with the children and the women in reproductive age, the elderly and the chronic patients (e.g. diabetics) are especially vulnerable. Pressures exerted on ethnic groups could also lead to polarisation of the communities risking explosions of communal riots and endangerment of existing local markets and economic structures due to the creation of false markets, price inflations, goods shortages, and restricted cross-ethnic trading."

CHA, August 2006:

"During displacement from Muttur, a number of places in Puttalam were reported to have conducted relief collection campaigns and have taken relief items to Kantale camps. Mosques and youth groups in Naththandiya, Puttalam, Chilaw and Madampe areas have made dry rations packages and collected money in those areas and have taken it to Muttur for disbursement."

TamilNet, 10 April 2003:

A sociologist working as a consultant to an international NGO in Jaffna said that [psychological problems] can also be traced to the erosion of the traditional family and local kinship networks which acted as a psychological fall back option for troubled young persons. 'In Jaffna these networks have been disrupted not only by war but due to extensive migration to the West', he added."

Ethnic relations are tenuous in conflict-affected districts (August 2006)

- Conflict has negative effect on social fabric and cohabitation of different ethnic groups
- Overview of the districts of Jaffna, Mannar, Puttalam, Trincomalee, Batticaloa, Ampara and Vavuniya

UN OCHA, 30 August 2006, p.4:

"The United Nations recently reaffirmed the need for the protection of civilians in armed conflict, as well as the interlinking and mutually reinforcing nature of human rights, peace and security. It called for the need of a comprehensive approach through respect for and protection of human rights, national reconciliation and good governance/rule of law, while ensuring that basic social and economic rights are upheld and promoting broader sustainable development principles. Current developments in Sri

Lanka contribute to further polarisation of the communities. The worrying signs of human rights violations enacted with impunity are increasing the mistrust amongst local residents. This mistrust

is breaking down the fabric of society and will have to be firmly addressed. Equity in assistance is yet another feature calling for attention. Initiatives need to assure fair distribution between conflict and Tsunami IDPs as well as civilians in their host communities."

Asia Foundation, January 2004:

P.9:

Human Security:

Many of the Easterners we interviewed say they feel more secure on a day-to-day basis since the ceasefire started. In particular, many report that they have fewer restrictions on their movements, and feel safer when traveling to and through other ethnic communities.

„X However, many jV particularly those in trade, agriculture, and fishing jV report there are still significant threats to their personal security when they attempt to travel and work outside their immediate area. Additionally, there is a feeling among many Easterners that their current sense of security is far from permanent, and could quickly take a turn for the worse if conflicts escalate into violence.

p.10:

Representation/Expression:

Within their immediate community ethnic, many report feeling free to express their political opinions, and the general sense is that this feeling has increased since the ceasefire began. However, many also report that they feel limited in expressing their opinions outside of their own ethnic community. Some express concern about the immediate implications of expressing opinions that might offend members of other ethnic groups, while others are concerned that expressing their opinions now could lead to retaliation if a riot or other conflict takes place. Political alienation is fairly common among Easterners, as is the sense that elected and appointed officials are not responsive to the needs and concerns of average citizens. These attitudes appear to cut across ethnic groups, and are no doubt related to a general feeling of instability in the region.

Ethnic Relations

„X Most interviewed report that there are fewer tensions between the ethnic groups than in the past, but it is clear that there still are deep rifts between the communities. For many, the events of the past two decades jV including abductions and murders of family members have seriously eroded their ability and willingness to trust members of other ethnic groups.

It is important to note, however, that many we spoke with say they have frequent interactions with members of other ethnic groups, and that these are largely positive experiences. Business/trade interactions are commonplace, and many frequently participate in social interactions (weddings, birthdays, sporting events, etc.) with members from other communities. For the most part, those we spoke with say that more interaction between members of different ethnic groups would be a positive development. Nevertheless, the events of the past are hard to forget for some, and the result is a lingering mistrust between the ethnic groups.

p.11:

Ethnic Groups Impressions:

Sinhalese:

In general, the Sinhalese we spoke with are very apprehensive about their future in the region. On the one hand, most feel relatively secure because of the presence of the army and STF. On the other hand, many feel that without these forces in place, they are dubious that they could continue to live in the East. Viewed in this light, it is perhaps not surprising that even though most welcome the end to violence that the cease-fire has brought, they are unlikely to report that their situation has improved over the past year.

A large factor in the trepidation that many Sinhalese we interviewed feel is due to what they perceive as a very clear transfer of power to the Tamils. These Sinhalese, particularly in Trincomalee, report that they have little political representation, and that the Liberation Tamil Tigers of Eelam (LTTE) has become the ruling authority.

Tamils

Most of the Tamils we spoke with tend to report that life has improved since the cease-fire, and perhaps not surprisingly, they tend to be the most optimistic about the future of the Eastern Province.

Still, despite recent improvements, many Tamils interviewed continue to feel a deep sense of discrimination. Some of the most common complaints are related to a lack of economic opportunities and no official recognition of the Tamil language. Many Tamils see the LTTE as their primary source of security, and they are most likely to turn to the LTTE with problems. Quite a few interviewees expressed a sense of deep gratitude toward the LTTE, saying that they likely would not be alive if the Tigers had not intervened on their behalf.

Several of the Tamils we interviewed report a deep mistrust of Muslims based on past experiences. These feelings are based not only on past conflict and personal loss at the hands of Muslims, but also on the current economic and political situation. Other Tamils interviewed have less strident views of Muslims, and tend to see the differences between the groups occurring more at the political level. And, some say they want Muslims to be given fair treatment in Tamil controlled areas in the future.

Muslims

Many Muslims are concerned that they do not have a place in determining the future of the Eastern province. They see the government representing the Sinhalese and the LTTE representing the Tamils in peace talks, but do not see any corresponding entity representing their needs. Some also express deep concern that the LTTE can or will represent them now or in the case of an Interim Administration. While Muslims generally feel the government is providing them with security now, they are skeptical that this will continue in the future. Many are fearful about their future in a 'Tamil' state.

Some Muslims wish security came from within their own community. While most express this as a general concept, there are some who say that unless an acceptable compromise can be attained, Muslims should form armed groups. It is important to note that while a few Sinhalese and Tamils interviewed speculated about the existence of armed Muslim groups, none of the Muslims we spoke with reported experience with groups of this sort.

Conflict Escalation/Triggers

Rumors and a lack of credible information are often cited as key factors in the escalation of conflict. Relatively few of those we interviewed feel that the news media (or any other organization, for that matter) provides enough unfiltered and timely information about local conflicts. This information vacuum appears to enhance the importance of word-of-mouth sources, which are more likely to spawn rumors.

There is also a fairly widespread perception that "ethnic conflicts" often begin as personal grievances or other suspicious activities, and then evolve or are manipulated into conflict between ethnic groups. In particular, many think politicians use these situations to advance their own political agenda.

Some of those we interviewed also point to third party actors (spoilers) as a source of ethnic conflict. While these claims tend to be fairly general, the perception is that the actions of these individuals are motivated by selfishness and a desire for personal gain.

There is a fairly common perception among respondents that politicians often play a role in the escalation of conflict. According to many in this study, there are some politicians bent on keeping their position of authority who maintain a constant stream of negativity toward the other ethnic groups, and thereby help set the stage for conflict. Many believe that when specific situations arise, there are politicians who irresponsibly point the finger at opposition groups in order to incite violence, which will prolong the status quo and keep them in power.

Conflict Prevention/Alleviation

Many of those we interviewed, particularly those involved with business/civic/religious organizations, report that both formal and informal dispute mechanisms have helped and continue to help prevent conflict escalation. This typically involves taking grievances to community representatives who in turn address these issues with Peace Committees or other organizations comprised of representatives from the different ethnic group.

For the most part, those interviewed appear receptive to the idea of Peace Committees, and many have heard of them or had some experience with them. There is also a general sense that, if these committees are to be successful, they need to be an active part of the community.

Muslims religious leaders, typically associated with Mosques, are credited for often helping to keep simmering tensions from boiling over. These leaders are often involved with peace committees that not only counsel their followers to exercise restraint in tense situations, but also help negotiate solutions with the LTTE. Religious leaders appear to play a less prominent role in keeping the peace within the Tamil and Sinhalese communities. But the exact reason for this is not apparent from these interviews.

According to many, the police are not always effective in responding to or preventing conflict. Some say this is because they can only do so much in certain situations and are concerned about their own security. Others are more skeptical in general about the resolve of the police in these situations, pointing to the problems of corruption. Indeed, some report that the lack of faith in the responsiveness of the police drives people to take matters into their own hands.

Impressions of NGOs are generally favorable, although there are some who feel they have demonstrated favoritism. The positive associations appear to be based on both humanitarian activities and the work NGOs have done on behalf of peace in the region. While criticisms of NGOs are relatively rare, some Sinhalese and Muslims claim that they have demonstrated favoritism toward or are lenient with the LTTE.

Those we interviewed tend to have mixed to negative impressions about the Sri Lankan Monitoring Mission (SLMM). Some feel the SLMM is having a positive impact in their area, but it is more common to here criticisms of their efforts. The most common complaints are that the SLMM is not effective and is unlikely to be so in the future. Some are skeptical that foreigners are able to adequately understand the situation, while others say that the organization's mandate is unclear, and that they are unable to enforce their recommendations. A significant number also perceive the SLMM to be biased, usually in favor of the LTTE.

CPA, 2003:

Jaffna:

Jaffna has seen multiple displacements involving the shifting of whole populations within and outside the peninsula. As control of the peninsula has swung between the government, LTTE and paramilitary groups the people of Jaffna have had to deal with a number of local structures. In

post-CFA environment the authority of the army, police and the EPDP has ebbed in favour of the LTTE which has taken on an increasing role in addressing local disputes and problems, particularly related to kassippu and women. At the local level the authority of the old elites has waned and power has become fragmented with younger members from marginalised groups such as the lower castes taking on a more active role. High Security Zones or the exclusive occupation of a considerable portion of Jaffna land by the security forces has meant a large number of IDPs cannot even access their homes while other returnees' properties are presently occupied by these displaced people. In addition to land occupation disputes, inter-and intra-caste disputes are common in Jaffna.

Mannar:

The district consists of Mannar island which is under government control, and the mainland, part of which, especially north of the Mannar-Vavuniya road, is under LTTE control. It is a predominantly Tamil district, with a large Catholic community. The Catholic church is one of the most active in Sri Lanka and is involved in community affairs, including mediation both within the community and on its behalf, be the disputes over communal fishing rights or inter-ethnic violence. Following the CFA large numbers of displaced Tamils are returning to LTTE-held areas and areas close to the forward defence lines. Before the 1990 eviction by the LTTE, Mannar was home to a large Muslim population. A small number have returned and are laying claim to their properties that in the interim have been occupied by other displaced people either from other districts or from within Mannar district. While the field work suggests that the main concerns of returnees are resource shortages and the lack of support structures, the violence in Veppankulum village a week after the fieldwork was completed suggests that underlying ethnic tensions with the capacity for violence are not just a potential but real danger.

Puttalam:

Despite its distance from the battle lines, Puttalam District provides insight into the potential disputes and problems resulting from large IDP populations choosing to relocate. The arrival in Puttalam of the vast bulk of Muslims evicted by the LTTE from the North in 1990 exacerbated existing resource shortages. The result was discrimination of IDPs in their access to these resources and to opportunities to rebuild their lives; scarcity and loss of opportunities for the host populations; and an environment of tension, hostility and sometimes violence between the IDP and host populations. Traditional methods of dispute resolution are prevalent throughout Puttalam and have played a key role in resolving disputes within their respective communities. NGOs and local citizens have tried to play a more prominent role in trying to respond to inter-community disputes and violence by trying to create peace committees, forums for discussions and multi-ethnic development projects but have found it difficult to control the violence and to sustain these structures.

Trincomalee:

Trincomalee is characterised by the near equal proportions of and the mutual dependency for economic activity of all three ethnic groups. Each group is perceived by the others as benefiting from patronage from the army and government, politicians and the Ministry of Eastern Rehabilitation and Muslim Affairs, and the LTTE. The potential for incidents to escalate into full scale ethnic violence is high. Land and water matters are particularly controversial issues. Government-sponsored colonisation schemes of Sinhalese farmers in the district, along with the blocking of water up-stream (usually in Sinhalese areas) to the detriment of down-stream Tamil farmers, has exacerbated the grievances of Tamil villagers. Muslim villagers complain about occupation of or lack of access to their lands in grey and LTTE-controlled areas. Sinhalese villagers have suffered threats and attacks at the hands of the LTTE. Ethnic tension manifests itself in the form of hartals organized by the aggrieved ethnic group and may lead to street violence. At the time of the research, two incidents prompted hartals: the abduction of Sinhalese persons from Trincomalee town and of Muslim persons from Muttur, both allegedly carried out by the LTTE.

Batticaloa:

Batticaloa District consists of both densely populated Tamil and Muslim ethnic majority areas and the coastal regions which tend to be more evenly populated. Abductions, land occupations, personal vendettas and trade issues have created tensions, disputes and local conflicts between the Tamil and Muslim communities. The two main ethnic groups in the area have their own systems of redress, with the mosque committee and hierarchy playing a key role in Muslim communities, and village committees and the LTTE being the most significant actors in the Tamil community. Local village leaderships have responded to the conflict environment by creating village committees responsive to the environment; for instance incorporating LTTE members.

Ampara:

In Ampara District, Muslim and Tamil villages are located side by side. Similarly, in the inland border villages of Ampara, the Sinhalese communities live in the proximity of the other ethnic communities. The three communities' frequent points of contacts revolve around farming, fishing and trade. There are a substantial number of disputes related to land, in particular the encroachment of lands belonging to Muslims by the LTTE and by Tamils. The present CFA has motivated the Muslims to reclaim their lands and re-settle. Rumours and the speed with which ethnic tensions travel contribute significantly to local conflicts between communities.

Vavuniya:

In Vavuniya, [...] the traditional social structures, such as the elder systems, seem to have eroded as a result of the conflict. Multiple displacement, the militarisation of the youth, and the fear caused by the conflict has all contributed to the elders taking a less prominent role within communities. Local disputes, if they do get resolved, are therefore more likely to be addressed by the disputants themselves or taken to a more powerful local actor such as paramilitary groups, the LTTE or the armed forces. While the elder systems in some villages have been replaced by a younger generation, in other societies there is a complete absence of such structures.

The welfare camps are a key example of this. Vavuniya is home to nine major welfare centres. Camp officers run the campus and are approached by camp inmates with their disputes and problems. Structures such as camp committees did not exist in the welfare camps to provide some representation of the residents' needs. The Human Rights Commission has taken a leading role in one of the main camps to form a committee for people to voice their concerns.

Informal dispute resolution in conflict-affected areas (2003)

- Tensions among IDP populations and between IDPs and their hosts are common
- Tensions may also arise in return situations
- Resolving local conflicts is essential to sustainable reintegration
- Especially in eastern province, conflict resolution is essential
- After the ceasefire agreement in 2002, shifting power balance had great impact on informal conflict resolution
- The dissolution of social and cultural coherence greatly impacts on the efficiency of community-based conflict resolution

CPA, Informal Dispute Resolution, 2003:

"Harsh living conditions, extensive damage to housing and infrastructure, loss and lack of economic opportunities and land occupation are all sources of tension for IDPs, returnees and their communities. Ethnic tensions, which are both a cause and consequence of this protracted

war, continue to be a key source of local conflicts. The return of IDPs and refugees to areas in which they are ethnic or religious minorities may further exacerbate existing communal tensions and hostility. As some IDPs have already settled in the districts that they displaced to and many more have indicated their desire to do so, tensions and disputes between these returnees and the host community are probable.

Resolving local conflicts is essential to ensure the sustainable reintegration of displaced communities and the reconciliation of divided communities. However, the law enforcement and judicial authorities lack both the legitimacy and the capacity to deal with the increased level of disputes. Difficult access to the judicial system, high cost of litigation and prolonged proceedings make recourse to the judicial system cumbersome. Informal dispute resolution seemingly offers many advantages over formal means of redress. In particular, informal dispute resolution is more flexible than the judicial system and can tackle issues which may not be addressed by formal mechanisms. Informal dispute resolution mechanisms can also respond and resolve disputes expeditiously. The nonadversarial nature of informal dispute resolution is a further advantage over formal mechanisms, and may foster reconciliation between disputants and community links.

Types of dispute:

Various types of disputes are dealt with informally. Among those encountered were intra-family disputes (domestic violence, inheritance, alcoholism, etc.), intra-village disputes either between individuals or village wide (fence disputes, financial transactions, caste or ethnicity-related disputes, etc.), or inter-village disputes (denial of access to resources, ethnic disputes, host-IDP disputes). Incidents may escalate into mob violence, as a result of the influence of politics and group identity. Politicians, businessmen and militants may play a key role in exploiting individual incidents. In the Eastern Province, incidents have a greater tendency to escalate due to exacerbated long-standing communal distrust. Any incident involving more than one community will be interpreted as being a communal issue, thereby necessitating a communal response.

Informal dispute resolution mechanisms encountered appeared to share similar procedures for dealing with disputes. Disputants inform bodies or leaders of their complaint either orally or in written form. In small rural villages, community problems and disputes are common knowledge. Some cases are also referred from one informal dispute resolution mechanism to another.

Mediation or arbitration were the usual informal dispute resolution processes encountered. Typically, a complaint would be investigated, the parties summoned, together or separately and a solution devised, by or for the disputants.

Different informal dispute resolution mechanisms solve different disputes. For instance fence disputes will commonly be tackled by the GS, whereas harassment may be brought to the attention of religious committees, local NGOs with women's programmes, or the LTTE. It must be noted that problems frequently get resolved informally on a one-to-one basis and without the assistance of a third party. There are also wide regional variations in the mechanisms people use. Disputants may in fact access multiple means of redress, sometimes using both formal and informal mechanisms in order to get the result most in their interest.

Factors influencing conflict resolution mechanisms:

There are numerous factors which influence disputants with regard to which redress mechanism they choose to approach: ethnicity, religion, strength of village committees, caste, type of dispute, strength of the LTTE presence, access to law enforcement and judicial authorities, and the impact of the conflict on local village societies. People's motivation to approach a particular mechanism depends on whichever mechanism they believe will solve the dispute and is most likely to favour

their side. Furthermore, people may resort to informal dispute resolution mechanisms, simply because more formal mechanisms are not willing or able to assist.

The Cease Fire Agreement (CFA) has had wide ranging repercussions on which mechanisms people decide to use, due to the resulting changes in the types of problems and disputes, the rise of the LTTE, and the loss of power of other actors and the changing power dynamics as a result of the conflict.

Factors influencing choice of resolution mechanism:

There are key factors that determine which mechanisms aggrieved parties approach for redress in each district. These include: type of disputes, mandate and strength of village committees, ethnicity and religion of disputants/affected parties, strength of LTTE presence, access to law enforcement and judicial authorities, and the impact of conflict on the local socio-political environment.

Below are illustrations of these factors:

Access to law enforcement and judicial authorities: Given the largely urban setting of these institutions, rural communities are less likely to seek redress from them. Lack of transport and adequate roads, in addition to the high cost of litigation, corruption, backlog of cases and lengthy procedures, act as deterrents to seeking this form of redress.

Type of dispute: Family disputes are more likely to be addressed within the community through mechanisms such as religious committees. In the case of land disputes, disputants turn to the GS or other relevant authority.

Strength of village committees: In villages with loose social structures, such as relocated villages of IDPs from different areas of origin village, indigenous committees may lack the authority to be approached by disputants. Similarly, externally-created local committees that are more representative in nature may have less legitimacy and authority compared to those run by local leaders and may therefore be sidelined in more critical disputes.

Ethnicity and religion: These factors to a large extent determine which mechanisms disputants use. For instance Tamils are more likely to go to the LTTE than to the police, while Muslims would turn to the mosque committee. The Sinhalese may turn to the police or army to address their grievances. Particularly in intra-family disputes, people turn to their own representatives. However, where a party to a dispute is from a different ethnic or religious group than the other, s/he may approach the informal dispute resolution mechanism most representative of their opponent. For instance, a Tamil would appeal to the mosque committee to solve his/her dispute if the other party to the dispute is a Muslim.

Strength of the LTTE presence: In government-controlled areas, where the LTTE's political officers are present, Tamil disputants often turn to them for redress. The key reasons cited were a lack of trust in the police's effectiveness and integrity, compounded by language barriers. Members of other ethnic groups may approach the LTTE in cases where the LTTE is a party to the dispute or has the capacity to influence and solve the dispute. For example, Muslims returning to areas from which they were evicted may go to the LTTE to intervene should their property be occupied and the occupiers are unwilling to move.

The impact of conflict on the local socio-political environment: Depending on the way local communities in each district experienced conflict, they react to incidents and seek redress differently. For instance, in Jaffna before 1995, people approached the LTTE with their disputes. Following the take-over of Jaffna by government forces, people responded by turning to the army

or by developing informal mechanisms. Since the CFA and the return of the LTTE, Jaffna residents have increasingly sought redress from the LTTE.

Less influence of village elders due to unravelling of traditional social structures:

Social dislocation and disintegration have led to the unravelling of traditional social structures, making disputants less likely to turn to village elders and local community organisations, such as RDS, than they were prior to the conflict. The impact of the conflict upon certain areas has substantially altered the nature of disputes as well as the ways in which these disputes are addressed. For instance:

Local communities in areas which have been subject to large-scale displacement, such as Vavuniya and Jaffna, appear to be more tolerant of the presence of populations of displaced persons. By contrast, in Puttalam tension between the host community and IDPs have been more commonplace and have altered the type and number of disputes.

Eastern Province:

In the Eastern Province, host to the three main ethnic communities, the conflict has exacerbated communal tensions to such an extent that most disputes have become ethnicised. Incidents escalate into violence, consolidating the pattern of communal violence witnessed in these three districts during the conflict.

In villages that have been subject to multiple displacement, indigenous committees and traditional leadership/elders have lost their prominence due to the unravelling of the social fabric. Thus, in Jaffna, compared to other government-controlled areas, the LTTE is often approached to solve disputes. The main reason given is the common distrust of the police and the pre-1995 experience of Jaffna residents of the efficiency of LTTE law enforcement. In addition, traditional village committees have become defunct due to the scattering of village leaders and the loss of community cohesiveness.

Church influence in Mannar:

In Mannar, the church, as opposed to other traditional structures, has maintained strong leadership throughout the conflict and has therefore been able to play an active role in informal dispute resolution.

In Trincomalee, where displacement has been less widespread, traditional mechanisms, such as Rural Development Societies and mosque committees, continue to play a central role in solving community problems and disputes.

In Vavuniya, in most welfare centres residents were not allowed to form any committees, thus forcing them to rely exclusively on the discretion of the Camp Officer.

In LTTE-controlled areas, the LTTE plays the main role in dispute resolution through its police and judicial structures, while in government-controlled areas it has to rely on its political officers to carry out these functions.

Ethnicity and religion:

Ethnicity and religion also determine which informal dispute resolution mechanisms are utilised. Particular ethnic and religious groups tend to approach different mechanisms. For instance, Sinhalese persons tend to appeal to State authorities for redress. Muslims almost always approach their mosque committee. Catholics will often approach their priest as a first point of call. As the Hindu priest performs a ceremonial role and the kovil trustee board is involved mainly in the temple upkeep, Hindu Tamils will often use a variety of mechanisms including the LTTE. In

cases where the disputants belong to different ethnic or religious communities or live in mixed villages, the parties will often approach each others. systems of redress.

Local demography and politics:

Local demography and politics affect not only the nature of disputes, but also the means of redress available. Access to or involvement of powerful political actors, such as MPs, Ministers or the LTTE often leads to villagers resorting to these actors for redress rather than other mechanisms. Thus, in Puttalam, displaced people originating from the constituency of a Member of Parliament appeal to him to solve community or intercommunity disputes. Local minorities may be compelled to seek and accept redress from the informal dispute resolution mechanisms of the local majority.

There are other notable social differences.

In Jaffna, for instance, caste is a major source of tension and disputes. Hindu areas have a significantly high number of temple disputes, particularly in the Jaffna and Batticaloa Districts.

Harassment of women from other ethnic communities by Muslim youth was a problem repeatedly mentioned by mosque committees in Mannar and Puttalam Districts.

Rampant alcoholism and other social problems were observed as being particularly problematic in displaced communities and recent returnees from welfare centres. The general pattern with regard to urban communities, was for disputants to approach more formal systems of redress, such as the law enforcement or judicial authorities. Rural communities, having less access to such means of redress due to financial constraints and problems of mobility, tended to rely more on traditional mechanisms. "

PROPERTY ISSUES

General

Property disputes continue to create tensions between different ethnic communities (December 2007)

- Land has been a key cause of tension between ethnic groups in Sri Lanka and one of the factors fueling the conflict
- Nearly 80% of the land in Sri Lanka is state owned
- The lack of suitable land, competition for economic resources, land alienations and the traditional habitation of land have heightened ethnic tensions and conflict
- Allocation of land for return, relocation or local integration are highly sensitive issues, especially in areas where all three major ethnic groups are present
- Despite an ongoing problem of displacement spanning over 20 years, there is currently no comprehensive restitution policy for the whole of Sri Lanka
- Land disputes between Muslims and Tamils in the east have been exacerbated by government policies denying them access to Sinhalese areas for cultivation, and leading them to dispute the narrow coastal areas where they reside

AI, June 2006:

"Land has been a key cause of tension between ethnic groups in Sri Lanka for many decades and is one of the factors fuelling the conflict. Each ethnic community has lost land through forced displacement and encroachment by other communities. For this reason displacement and the identification of land for the return and resettlement of IDPs are highly sensitive and ethnically charged issues. Concerns within government authorities and among other parties to ensure particular ethnic population balances in particular areas have been one of the main barriers to the effective resettlement or local integration of many conflict displaced people. This is particularly true in areas such as Trincomalee, where all three ethnic groups are present and there is significant tension between them."

COHRE, December 2007:

"Nearly 80% of land in Sri Lanka is State owned. In the past, there has been much alienation in order to address landlessness and poverty. However, often the needs and ethnic diversity of the people were not taken into account in the process and the GoSL was criticised for discriminating on the basis of ethnicity. Many land alienations, such as the 'Gal-Oya project' in the 1950s, thus resulted in growing tensions between individuals and communities. Land grabbing, which as opposed to land alienation takes place in an illegal context, is also a significant problem. In Trincomalee district for example, Tamil conflict IDPs have built houses on land earmarked for the relocation of Muslim tsunami IDPs."

The lack of suitable land, the competition for economic resources, land alienations and the traditional habitation of land are and have proven to be fuel for ethnic tensions and conflict. Consequently, the allocation of land for return, relocation or local integration as well as restoring what was damaged or lost are highly sensitive issues, especially in areas where all three major

ethnic groups are present. Each community is concerned over others living in areas they have traditionally inhabited.

The armed conflict itself is of course central to housing, land and property problems in Sri Lanka. The conflict has affected people from all ethnic groups and has caused further tension between the communities. It is a significant cause for much of the displacement, damage and destruction of homes, infrastructure and livelihood options and for mining of areas. It also resulted in the destruction of documentation and cadastral information. Many homes or areas have been reoccupied by another ethnic group, by the SLA or the LTTE as a result of the creation of High Security or military zones.

[...]

Despite an ongoing problem of displacement spanning over 20 years, there is currently no comprehensive restitution policy for the whole of Sri Lanka that can address the rights of displaced persons to return home and to have their housing, land and property restored to them. The return and restitution process after the tsunami opened up a space for the topic in Sri Lanka and a basis on which the Government of Sri Lanka can formulate a comprehensive national restitution policy.”

ICG, May 2007:

“[In the east] Muslims live in crowded urban and semi-urban areas on the coastal strip but most of their agricultural lands are inland, in Tamil areas. When the conflict broke out in the early 1990s, it became much more difficult to access these lands, since they had to pass through Tamil areas where the LTTE was active. Some Tamils claim that Muslims had encroached on Tamil land or bought it illegally, and that they have merely reclaimed traditional Tamil lands. In reality, there has clearly been a significant loss of rural Muslim lands to Tamils. Some of this had been held by Muslims for many years, while other areas were bought by Muslims – who tended to be better off economically than most Tamils – in the 1970s and 1980s.

Tamils suffered considerable displacement in the past, largely at the hands of the government, and many of their villages are impoverished. As a result, Muslims were often able to buy Tamil land cheaply. In most cases, such deals were probably legal but that does not remove the resentment felt, particularly when Tamils have found themselves working as labourers on land they previously owned. In some cases, Muslim owners were virtually absentee landlords, who visited at harvest time, but mostly employed Tamil labourers for cultivation. When the security situation made travel through LTTE areas dangerous for Muslims in the early 1990s, these labourers tended to take over, leaving Muslims with very little available land for cultivation.

These disputes have been exacerbated by government policies over several decades. There is no real shortage of land in the east, although large tracts are not cultivated. However, as noted above, Muslims and Tamils are in effect barred by informal restrictions from cultivation in Sinhalese areas, forcing them to dispute the narrow coastal strips where they reside. The tenure system – much of it left from the colonial period – provides too much leeway for government interference and has insufficient land under private title. In addition, huge swathes in the east are controlled by centralised government agencies. The Ports Authority, for example, controls large parts of Trincomalee district. The Forestry Commission is also a major landholder. This central control ensures that local government institutions have very limited powers to provide new land for cultivation. There needs to be a complete review of land issues in the Eastern province by an independent commission with equal representation from all communities and input from civil society. The state should disinvest more land and develop new mechanisms to permit transfer to private owners in a transparent, equitable manner. But many of these issues await a political settlement of the conflict, since provincial-level government, in concert with local authorities, should be primarily involved in solving complex land issues.”

Tsunami exacerbates land disputes (June 2006)

AI, June 2006, p.7

The large-scale relocation caused by the tsunami and the subsequent application of the coastal buffer zone dramatically altered the dynamics of displacement in Sri Lanka and exacerbated disputes over land, which have been linked to ongoing ethnic conflict. Moreover, there has been widespread concern among coastal communities that this forced relocation away from the sea will erode their livelihoods and traditional way of life.

High Security Zones prevent IDPs from regaining their property (February 2005)

- In 2004, the SLA loosens some of the restrictions on travel in HSZ and allows some IDPs to return
- Alternatives to return to HSZ are not always acceptable to the internally displaced
- In 2003, about 14,000 Tamils remain displaced in northern Jaffna, SLA fears infiltration by LTTE
- A substantial land area is occupied by the SLA and the Police in the North-East, in particular in Mannar and Jaffna Districts
- A high number of Army and Police posts located on people's properties have not been vacated and payment of rent for occupation of property by the Army appears to be ad hoc
- A Sub Committee on De-Escalation and Normalisation (SDN) was set up to tackle the HSZ issue, but the SDN was later on deactivated, disputes are resolved at District level
- No solutions have been devised to assist IDPs unable to return because of the HSZ
- Army requires proof of ownership before allowing IDPs to enter HSZ, which, in many cases, IDPs cannot provide due to the loss of documents.

USDS, Feb 2005:

"The Constitution grants every citizen "freedom of movement and of choosing his residence" and "freedom to return to [the country]", and the Government generally respected these rights in practice; however, it restricted the movement of Tamils. The war with the LTTE prompted the Government to impose more stringent checks on travelers from the north and the east and on movement in Colombo, particularly after dark. Unlike in previous years, Tamils no longer were required to obtain police-passes to move around the country; however, they were frequently harassed at checkpoints throughout the country.

Limited access continued to certain areas near military bases and High Security Zones, defined as areas near military emplacements, camps, barracks, or checkpoints where civilians could not enter. Some observers claimed the High Security Zones were excessive and unfairly affected Tamil agricultural lands, particularly in Jaffna. In August, the Government lessened restrictions at one site in Chavakachcheri and allowed farmers and their families to return to their land; however, the general public was still denied access to this area. The LTTE limited travel on the road connecting Jaffna to the rest of the country."

TamilNet, 5 November 2004:

In Jaffna, people who were displaced from the Valikamam North Military High Security Zones 14 years ago have categorically rejected a government offer to be resettled elsewhere, arguing that the land being offered is barren and not at all suitable either for cultivation or for building homes

(TamilNet, 9 February 2005). Efforts by the Government to resettle people from welfare centres in the Vavuniya district to the Manikfarm area were also met with protests as the displaced argued that they would not feel secure as three army camp are located in proximity to the resettlement area

OneWorld, 13 February 2004:

"Government troops in Sri Lanka's war-ravaged Northern Jaffna district are caught in a cleft stick between security concerns and demands from Internally Displaced People (IDPs) for the return of their homes. While about 14,000 families from the minority Tamil community have still to get their lands and houses back, last weekend, the army gave back nearly 70 houses to IDPs. Significantly, this action forced the military to pull back its Forward Defense Locality (FDL) in the strategically important Chavakachcheri division, by 400 meters.

The soldiers fear the LTTE will infiltrate the released areas, taking advantage of the prevailing truce. The rebels have traditionally done this in the past - a practice which poses a major security threat to the government troops."

CPA February 2003, pp. 49-50:

"A substantial land area is occupied by the Sri Lankan Army (SLA) and the Police in the North-East, in particular in Mannar and Jaffna Districts. The Ceasefire Agreement requires parties to the conflict to list their High Security Zones. In practice, however, the SLA continues to occupy areas which are not listed as HSZ. There are also concerns that the Army has been expanding or creating new High Security Zones. In addition to HSZ, a high number of Army and Police posts located on people's properties have still not been vacated.

A Sub Committee on De-Escalation and Normalisation (SDN) was set up following the second session of the first round of the Peace Talks with a mandate to look into the issue of, *inter alia*, High Security Zones. Following the fourth session of the first round of peace talks, the SDN was deactivated, leaving the issue in limbo. The parties agreed, however, on an Action Plan for the Accelerated Resettlement of the Jaffna District, which will look into the vacating of areas in the vicinity of High Security Zones. Disputes over occupation by the Armed Forces is presently resolved at District Level.

As a consequence of Army occupation, many IDPs are unable to return. Some IDPs remain stranded in camps located a few hundred metres from their properties, such as in Point Pedro. No solutions have been devised to assist these people through relocation or compensation. A number of IDPs whose property is situated in the vicinity of Army-occupied areas also mentioned that they were not returning out of fear for the security of female family members.

In Mannar District, Army and police occupation of property is a serious impediment to resettlement. The Navy continues to occupy the Western-most area of the island in Thalaimannar. The Army also occupies areas on both sides of the Vavuniya Mannar Road, a section of which runs parallel to the Forward Defence Line. Pockets of the coastal areas are also occupied.

In Jaffna, an estimated 30% of the peninsula is occupied by the Army. Army presence is not only an impediment to the resettlement of IDPs but also to economic activity in the peninsula, in particular fishing.

In Batticaloa, the SLA occupies between 200 and 342 houses, according to the Government and the LTTE respectively, mostly in so-called Border Areas, coastal areas and the airport. In addition, the SLA occupies numerous public buildings. [...] , In a few cases, in the Jaffna

Peninsula, the Army has been conciliatory and has either reduced the extent of its HSZ or allowed owners to check on their property. It must be noted, however, that the Army requires proof of ownership before allowing IDPs to enter HSZ, which, in many cases, IDPs cannot provide due to the loss of documents. In Batticaloa, no access is granted to IDPs.

With regard to payment of rent for occupation of property, the policy of the Army appears to be *ad hoc*. Business owners whose premises are occupied by the SLA appear to be paid rent while only certain house owners are paid rent. Due to insufficiency of funds, rent pledged is not always forthcoming. Owners whose houses are located within HSZ but are not occupied by the Army are not paid rent."

Land issues involving conflict-IDPs in Batticaloa and Ampara (August 2005)

- Resettled IDPs often do not have land titles
- Discrimination in home reconstruction schemes between tsunami- and conflict-IDPs
- At times, abandoned permit land of IDPs is subsequently reallocated by the government to others

NRC background document, August 2005:

"In Batticaloa and Ampara Districts conflict IDPs live in resettled villages or with host families. Those who resettled in secondary locations often do not have proper title or license (permit) to land. Some of them were given land permits by the government. Those who were not granted land permits bought lands from private individuals or just occupied government land. Many of the private land transactions did not adhere to proper procedure. Some of them bought land permits from others which, under law, could not be bought. In village Vipulanthapuram, Mylambuvaly, under Chankalady Division, 32 families bought land from local villagers in 1996, but did not register those. The sellers are now claiming the lands back putting the 32 families in a vulnerable position.

Housing Assistance: There is apparent discrimination treatment between Tsunami and Conflict IDPs in regard to house reconstruction assistance. Tsunami IDPs are entitled to Rs. 100,000 to 250,000 reconstruction assistance from the government. If the house is damaged in Tsunami not more than 40%, the IDP family is entitled to Rs. 100,000 (1,000 USD) reconstruction grant. If it is damaged more than 40% by Tsunami, it is treated as total destruction and the IDP family is entitled to Rs. 250,000 (2,500 USD). Given that reconstruction is sometimes costlier than 250,000, NGOs sometimes add additional money to the government assistance to complete reconstruction. As a practice, NGOs reconstruct houses using their own money and then get reimbursement from the government according to the entitlement of the beneficiaries.

There is no corresponding scheme for the conflict IDPs. Conflict IDPs who left camps to resettle in original or secondary locations got a meager Rs. 25,000 (250 USD) livelihood assistance (Many resettled IDPs got caught in the loopholes of the law and got nothing. For example, IDPs who left the welfare camps before the scheme was introduced were left out). The World Bank backed North East Housing Reconstruction Program (NEHRP) program allowed Rs. 110,000 (1,100 USD) housing assistance to those whose family income was less than Rs. 2,500 (25 dollar) a month. We have not seen any beneficiary of this scheme in the conflict villages we have visited so far.

Abandoned land of conflict IDPs: There are examples that the abandoned permit land of the IDPs are subsequently reallocated by the government to others. Around 90 Muslim families were displaced from Parathypurm in Batticaloa town during the communal riots of the 1990s. These people had their houses build on permit lands. Their houses were destroyed and looted during the riot. After they moved to Navatkudah in Tamil Manmunai North Division of Batticaloa District, their abandoned permit lands were reallocated by the government to others (to their Tamil neighbors). At their resettlement place, they built houses on government land. Last year, their houses got washed away by Tsunami and they are not receiving the Tsunami housing assistance as they do not hold title or permit to the land. "

According to the same document, tsunami victims also do not receive compensation money if they do not have valid land titles

Law and policy

Remaining IDPs will face increasing legal difficulties to return and reclaim property (April 2005)

- After many years of absence, many IDPs will face increasing legal hurdles to reclaiming their properties

NRC, April 2005, p. 25:

"Policy responses to the land and property rights of IDPs involve several issue areas, including transitional shelter and resettlement programs, restitution of property, identity and property documentation and registration, boundaries, women IDPs, financial and social assistance, freedom of movement, landmines and unexploded ordnance and High Security Zones.

[...] Although there has been significant return since the cease-fire of 2002, the process of return has slowed and those who have not yet attempted to return will increasingly find major legal difficulties as time goes on and more land becomes reoccupied. At the same time there are possible problems arising out of the many legal and practical issues with land rights such as disputes over land boundaries, identifying property for second generation IDPs and former homes having been occupied by new tenants, as well as tensions between resettled families and host communities."

UNHCR discussion paper, April 2005, p. 17:

"Although some 300,000 IDPs have returned to their original homes or otherwise have found durable solutions during the past three years, it is widely agreed that the remaining caseload faces significant obstacles to returning home. According to one study, more than 75% of Conflict-IDPs wish to return to their former homes and lands. (Resources Development Consultants Ltd (2004). North East Housing Reconstruction Programme 'Report on The Land Survey North' presented to North-East Provincial Council'. Several of the most fundamental impediments to sustainable return include: the continued prevention of return for those whose places of habitual residence are found within 'high-security zones'; security concerns of those who would otherwise return to their former homes; illegal secondary occupation of houses; disputes regarding private, alienated and State lands; the lack of an adequate institutional and legal framework for protecting the land, housing and property rights of returning IDPs and refugees and resolving related disputes; an inadequate legislative framework to deal with secondary occupants; an inadequate policy on repairing damaged and destroyed housing and property; applications of legislation

effectively limiting the rights of returning refugees and IDPs; landmines and unexploded ordinance; the inadequate response to the administration of state lands in relation to alienation or the regularising of encroachments; uncleared lands, housing and property transactions; the loss and/or destruction of basic documents in relation to property and persons; and the lack of livelihood options for returnees.”

Government-proposed post-tsunami Coastal Buffer Zone may bring additional suffering to IDPs (August 2005)

- The government may enforce the Coastal Conservation Act, enforcing a 100m/200m coastal buffer zone, promising free new housing to thus permanently displaced tsunami victims
- World Bank considers measures as threatening recovery and reconstruction process
- Critics further evoke human right issues, prolongation of displacement, lack of community consultation and participation in the decision-making process
- Political reasons may be the reason for potentially enforcing a broader buffer zone in the north and east.
- Policy would have a disproportionately negative effect on Tamil and Muslim fisherfolk (200m-zone)
- The government may revise its buffer zone policy in the course of 2005

Post-Tsunami needs assessment report:

“The Ministry of Finance & Planning, the Ministry of Urban Development and Water Supply and the Task Force for Rebuilding the Nation’s (TAFREN) notice in the Daily News on 2nd March entitled Let us rebuild our houses affected by the Tsunami stipulated that the buffer zone is 100 meters in Kilinochchi, Mannar, Puttalam, Gampaha, Colombo, Kalutara, Galle, Matara and Hambantota and 200 meters in Jaffna, Mullaitivu, Trincomalee, Batticaloa and Ampara. [...]

In a previous notice by the Presidential Secretariat on 3rd February the Government made the bold promise that it would identify lands closest to the affected village and build a house for every affected house owner who lived within the said 100 metres. The Government will provide these houses free of charge. Privately owned land within the 100 metre zone will remain the property of the original owner.

[...]

The authorities are relying on the Coastal Conservation Act, No 57 of 1981 to implement the guidelines. The Coastal Conservation Act regulates development activities within the Coastal Zone[...] The Urban Development Authority (UDA) has already started to demarcate both the 100m and 200m zones along roughly 1000 km of Sri Lanka’s coastline. The area between these markers and the shoreline, therefore, will constitute the exclusionary zone where people displaced by the Tsunami will not be allowed to rebuild their damaged or destroyed homes or to return to reside upon the land on which they lived at the time of the disaster, notwithstanding whatever legal rights they may have to do so. Tens of thousands of people (if not more) will be forced to relocate if the new policy is enforced.

[...]

[T]he World Bank (et al) [...] asserted in reference to the 100/200m rule that: “Left pending, this issue poses the single most critical threat to the entire recovery and reconstruction process”.

UNHCR, April 2005:

"In seeking to justify the controversial 100/200m rule, the Government has reiterated the need to protect the public from future Tsunamis or cyclones and the need to uphold existing law.

[...]

Survivors interviewed in the preparation of this report, particularly fishermen and their communities, indicated a very strong wish to return to their former homes or land plots and to begin their lives again from the very same location.

[...]

The imposition of the 100/200m rule removes the principle of voluntary return from the reconstruction equation; effectively preventing large numbers of people – including those with recognised legal rights of ownership to housing, land and property and those with related prescription rights – from returning to their homes or places of habitual residence. Those affected by the rule have not been sufficiently consulted in the development of the proposed policy.

[...]

The right to adequate housing under the ICESCR must also be taken into account. [...] The strict implementation of the 100/200m rule will effectively require the relevant authorities to carry out forced evictions of those who continue to reside within the buffer zone and those who have already returned and chosen to re-build their damaged or destroyed homes.

The 100/200m proposal may also generate circumstances and practices which are discriminatory in application, and possibly, even intent. Firstly, it is clear that these rules will disproportionately impact upon fishing communities, who constitute a large majority of the displaced and homeless. Most of the affected fishing communities lie within the 100/200m buffer zone and thus the impact of the rule on them will be considerable. If the 100/200m rule disproportionately, unreasonably or inequitably impacts upon the rights of fisher folk communities, discrimination will have occurred and will need to be rectified.

Coastal Muslims (many of who are also fisher folk) suffered by far the largest number of casualties as a result of the Tsunami. The effect of the 100/200m rule on the Muslim community should also be assessed and if they, like the fishing communities, are affected more than other communities and groups the same principle should be applied to them.

[...]

Another concern of the 100/200m proposal will be the impact such a measure will have on unnecessarily prolonging the period of displacement by those who will be prevented from returning home. [...] Even in the best possible scenarios, it will be years rather than months before all of the displaced find permanent housing solutions. The displaced within the 100/200m zone are not able to access housing loans or credits at the moment; they are not given planning permission to rebuild their homes and are essentially forced to wait until new housing is provided for them.

Of all the concerns that have arisen in the re-housing process, the prevailing lack of community participation and consultation is perhaps the most pressing. Experiences in a range of post-disaster situations throughout the world clearly reveal that consultative and participatory approaches to housing reconstruction have shown time and again to be the most effective and productive ways to securing access to new housing resources by displaced and homeless communities. Conversely, the reconstruction process in Sri Lanka has yet to adequately involve the displaced in their housing future."

INFORM, HR in Sri Lanka, April 2005, p. 6:

"Issues of land allocation for permanent resettlement continue to be fraught, especially in the Eastern Province. While the state authorities are identifying land owned by the state, set aside for other development projects and allocated to government agencies as well as land owned by private individuals in the tsunami-affected areas, the reality is that much of this land is situated at a distance from the beach. Therefore, the process of relocation and resettlement has to be

carried out with care and in constant consultation with the affected communities. However this does not seem to be the practice so far. [...] On the northern and eastern coast, the process of temporary resettlement is proceeding slowly, due to land scarcity, especially in the Eastern Province."

NCR background paper, August 2005:

"Many people believe this is a government plan to disintegrate the Tamil fishermen communities. Government has policy to make separate grant of land to these buffer zone people to allow them to rebuild houses elsewhere. However, the fishermen are likely to lose their profession being far from the sea. It is hard to formulate a convincing argument against the buffer zone policy except that there are different treatments for the people of the eastern and western coasts. In the eastern coast, which is overwhelmingly Tamil and Muslim dominated area, the buffer zone is 200 meter from the coastal line. In the Sinhala dominated southern and western parts, it is 100 meter. The only explanation about this different treatment is that the east was hurt severely and it is more likely to get bigger hurts in any potential future Tsunami. There has not been any scientific proof of this view."

UNHCR, Shelter update, August 2005:

The government is expected to decide on its further actions regarding the coastal buffer zone in August or September and may revise its current policy

Temporary shelters on private and state-owned land (May 2005)

- The state claims not to evict IDPs living temporarily on its land
- This state obligation is only for 18 months and will then have to be reviewed
- There are concerns of legal gaps in the agreements made between the state and shelter population
- Agreements with conflict-IDPs often don't state a time limit which could be used by the land owner to enforce eviction

UNHCR, 14 May 2005:

According to the Project Director of the Transitional Accommodation Project (TAP) when transitional shelters are built on crown/state land there is no problem because the state will not evict the IDPs. However, he states that the norm is to have an agreement covering a period of at least 18 months. He himself states that these agreements differ from organization to organization and that although they are in writing they are informal in nature in that they are not notarized or registered. He is of the opinion that this would not be a problem. However, it should be noted that it is becoming clearer by the day that the reconstruction will probably take more than 18 months. The TAP Project Director states that in this instance new agreements will have to be made to extend the period of occupation.

There are a number of concerns as regards this situation as a great number of people are going to be in transitional shelters for a long time as the realistic time frame given for the reconstruction phase is from two to three years. Once the owners of the land recognize this reality will they be willing to give up the use of their land for such a long period of time?

A legally binding agreement should normally carry the signatures of both parties to the contract, the date and place at which it is signed, the terms and conditions of the agreement, be witnessed by at least two witnesses and be authorized usually by a notary. However, it is of course understandable that when dealing with such large numbers of people it is not feasible to notarize and register each and every agreement.

Various forms have been used however, for the improved security of the beneficiary it is advised that in the future the attached form containing the signatures of both parties with the date and place of signing and the terms and conditions of the agreement witnessed by at least two witnesses with a Government official (like the DS) authorizing it should be used. The terms and conditions of the agreement should also state the specific period of time during which the beneficiary should be allowed to remain on the land (which should be a minimum of eighteen months) and also that the materials used to construct the transitional shelter belong to the beneficiary and not the owner of the land.

However, UNHCR has found that in relation to the beneficiary forms used by conflict IDPs that not specifying a time period has worked well as there is concern that specifying a time period could also make the beneficiary vulnerable to being evicted at the end of the specified time.

State land and displacement (August 2005)

- With the exception of case of special relocation or resettlement programmes, state land can only be granted to persons who settled on the land before 15 June 1995.
- If IDPs who were in the process of applying for a permit prior to their displacement can prove that they had settled on the land prior to 15 June 1995, they may have their 'encroachment' regularised by a Permit.
- Persons who have lost their Permits may apply for certified copies at the Divisional Secretariats. However, many District and Divisional Secretariats, in particular those of Mullaitivu and Kilinochchi Districts, were seriously damaged during the conflict, as a consequence of which land documents were lost.

CPA February 2003, pp. 55-57:

"An estimated 82% of the land mass in Sri Lanka is owned by the State.

Under the Land Development Ordinance (LDO), certain families may be granted State land vested with the Land Commissioner. State land can only be granted to persons who settled on the land before 15 June 1995, except in the case of special relocation or resettlement programmes.

[...]

State Land of IDPs

A Circular issued last year forbids the cancellation of the Permits of displaced persons. According to the North East Land Commissioner, Permits of IDPs were not cancelled prior to the Circular. It appears, however, that to reinstate the land, enquiries will be made as to whether the claimant was genuinely displaced due to the conflict.

A number of displaced persons interviewed were in the process of applying for Permits when they were displaced. According to the North East Province Land Commissioner, if such persons can prove that they were settled on the land prior to 15 June 1995, they may continue with their application and have their 'encroachment' regularised by a Permit. Proof includes election

registers, electricity and water bills and other official documents. The North East Province Land Commissioner also has a list of “encroachers” prior to 1995 and may check that the claimant is on the list. It has to be noted, however, that the list is not comprehensive as the survey was not carried out in some areas due to the conflict. In addition, by virtue of the unlawfulness of their occupation of State land it is unlikely that “encroachers” have been registered on the voters’ list or have had any official documents. The North East Province Land Commissioner will not accept statements by Grama Niladharis or neighbours as evidence in favour of a claimant.

It is unclear what the policy will be for IDPs who were living on leased land. Where their lease expired, they may have wanted to but been unable to renew it. The same applies to leases for business or agricultural purposes.

Obtaining copies of Permits, Grants and Leases

Persons who have lost their Permits may apply for certified copies at the Divisional Secretariats. After 1989/1990, Divisional Secretariats were required to keep copies of all Permits, Grants and Leases. District Secretariats, which had kept documents until then, were required to hand over all documents to the Divisional Secretariats, though even at the time of writing, not all documents had been transferred. Many District and Divisional Secretariats, in particular those of Mullaitivu and Kilinochchi Districts, were seriously damaged during the conflict, as a consequence of which land documents were lost. This is particularly problematic for Permits as no other copies are available in other State bodies.

According to the North East Province Land Commissioner, plans from the Survey Department may assist in determining whether a claimant is the genuine Permit holder of a plot of land. Neighbours who have kept copies of their Permits may also assist claimants in proving ownership, as the plan in the Grant documents mentions the ownership of neighbouring lands.

Persons who have lost their Grants may apply for certified copies at the Land Registries and the Divisional Secretariats. Only State land granted or leased under the State Land Ordinance is recorded centrally at the Land Commissioner’s Office in Colombo."

Women face obstacles in gaining legal title to land and property (February 2003)

- Without legal ownership of property, persons cannot receive loans, subsidies or credit, all of which may be necessary for building on, improving, and repairing land and property.
- Women face problems when gaining legal title to land and property. If the spouse is missing or his death not documented the women will be legally unable to hold title to the property.
- There is no joint ownership for property and land, therefore the woman will have no legal control over the property, and therefore no control over its use.
- Widows are not able to inherit from their deceased husbands unless they are nominated by the husband to receive the land.

CPA February 2003, p. 46:

"Women potentially face obstacles in gaining legal title to land and property, whether it is acquired through transfer of land, resettlement schemes, or inheritance. Without legal ownership of property, persons cannot receive loans, subsidies or credit, all of which may be necessary for building on, improving, and repairing land and property.

For state land distributed under the Land Development Ordinance, there is no joint ownership of land, so the title is held only by the head of household. This has implications for situations in

which a woman's spouse has been killed or disappeared. If women are the heads of household, but are not recognised as such, they will be unable to legally hold title to the property. This is especially a concern for situations in which the husband's death is not documented or the man is missing. If both spouses survived the conflict, the man, as head of household, will have legal ownership over property. Thus, without the possibility for joint ownership, the woman will have no legal control over the property, and therefore no control over its use.

While the government does not officially discriminate with regard to access to land for settlement schemes, women often are under the impression that they will not receive land, and therefore do not ask for it. Women's entitlement to land in resettlement schemes should be widely publicised to alleviate this problem.

Another property issue that might arise as families resolve matters relating to the conflict involves inheritance rights. Upon the death of the Grant holder, the property is inherited by one nominee. Widows are not able to inherit from their deceased husbands unless they are nominated by the husband to receive the land. Different inheritance issues arise for private ownership under the Common Law, the law of Tesawalamai, and Muslim law."

Policy changes encouraging privatization may hinder resettlement of internally displaced (February 2003)

- Development and land use policy pursued by the Government may hinder the sustainable resettlement of internally displaced
- In line with the World Bank recommendations, the Government plans to decrease its support to farmers and favor privatization

CPA February 2003, p. 13:

"The current development and land use policy pursued by the Government may hinder the sustainable resettlement of displaced communities, in particular in the case of small land holders.

A number of legal and policy changes which confirm the Government's aim to encourage privatisation and rural to urban migration, in line with the World Bank recommendations have been, or are in the process of being, introduced. These changes emphasise the shift in Government policy towards a decrease in state subsidies for, and assistance to farmers and a greater role of the private sector, including in reconstruction and rehabilitation of the North East. Returnees, however, in particular farmers, need the assistance of the State to restart their economic activities in the form of subsidies, land grants, etc. Reforms and amendments of concern include amendments to the Land Development Ordinance and land titling, the Agrarian Law, which endangers the rights of share croppers, the possible introduction of water property rights and of a Seeds Act which aims at privatising the sector." (CPA February 2003, p. 13)

No clear stance on the issue of prescription by either the state or the LTTE (November 2002)

- Current Sri Lankan law regarding claims to land and property is based on the principle of prescription, which offers a defendant to acquire property after ten years of uninterrupted possession
- For lawyers in the LTTE area, the applicability of the law of prescription depends on the reasons for leaving the land

Premaratne, Eranthi November 2002, pp. 11-12:

"The Sri Lankan law as it stands today under the Prescription Ordinance offers the defence of prescription when defending claims to land and property. Where a defendant can prove enjoyment of uninterrupted and undisputed possession of immovable property for a period of 10 years or more that person may stand to acquire the right to the property though lacking formal title. In the situation at hand where owners have been forced to stay away for over 20 years prescription as a defence could be freely raised when staking a claim to other people's land.

There is no clear stance on the issue of prescription by either the state or the LTTE. Despite the legal position as it stands there are informal understandings among different stakeholders. Certain lawyers practicing in the regions have come to the understanding that they will refrain from employing prescription as a defense. The lawyers practicing in the LTTE controlled areas are ambiguous on this issue. There is the view among them that the prescription period will be extended to 20 years from the existing 10 years. However this 10 year extension is insufficient. Further according to the lawyers practicing in the LTTE controlled areas the applicability of the law of Prescription also seem to depend on the reasons the owners left. For example if the owners have left the shores of the country seeking greener pastures the prescriptive period applicable will be 10 years, whereas if the owner has left to escape the war a 20 year period will apply.

Another important point that needs attention at this stage is the Tesawalami Law (Tesawalamai is a customary law applicable to those who fall within the description of Malabar inhabitants of the province of Jaffna. This law also has a territorial application in that it is applicable to land that is situated within the Northern province regardless of the race or nationality of the owner.) that has been modified by the LTTE. Tesawalamai law imposes severe restrictions on women even when dealing with their own property. Such discriminatory provisions of the law have been made inapplicable by the LTTE in areas under their administration.

These are but a few legal issues that figures prominently at present. There lies a whole gamut of issue that need to be resolved if normalcy is to be restored."

Institutions

Government institutions and NGOs assisting IDPs in the restitution of property in government-controlled areas (April 2005)

- NRC and COHRE intend to start a litigation mechanism for property restitution to IDPs
- There are a number of government institutions and NGOs involved in assisting IDPs regain their properties, including District Courts, the Bar Association of Sri Lanka, the Legal Aid Foundation, the Human Rights Commission, Mediation Boards, the Legal Aid Commission and the Police
- 20 years of war have changed the distribution of, and access to, land and resources in conflict affected areas. Therefore, flexible and informal initiatives that factor in the experiences of both occupiers and title holders to amicably resolve property issues are important
- There is a concern that these institutions lack the capacity or the mandate to respond to the rising demand for redress as the return of people increases

NRC, April 2005:

NRC's ICLA programme, together with the Centre on Housing Rights and Evictions (COHRE) intend to set up a litigation process in order to enable IDPs to reclaim their properties through the official legal way.

NRC, April 2005, p. 25, 26:

"At present, a number of State institutions and NGOs are involved in assisting in the restitution of property of the internally displaced. These include District Courts, the Bar Association of Sri Lankan, the Legal Aid Foundation, the Human Rights Commission, Mediation Boards, the Legal Aid Commission and the Police. While some of these institutions have adopted a strictly legal approach to resolving issues concerning land and property, others have been creative and applied principles of conflict resolution that factor in the experiences of both occupiers and title holders to amicably resolve property issues.

Such flexible and informal initiatives are to be encouraged. Twenty years of conflict have changed the distribution of, and access to, land and resources in conflict affected areas. Such changes must be taken into account in resolving land and property disputes. Principles of law applicable in peace times may result in substantial injustice if applied uncritically to disputes arising as a direct result of the conflict. The situation of landless or displaced occupiers is a case in point. A legal redress mechanism which simply restores an occupied property to its legal owner without assessing the situation of the current occupiers and providing alternatives or sustainable solutions for all concerned would exacerbate local conflicts and result in injustice. Furthermore, access to land and resources has been at the centre of the conflict itself. Redistributing land and property along the identical ethnic and class lines as before the conflict would also engender grievances and injustice.

With regard to formal dispute resolution mechanisms, existing institutions or organizations often lack the capacity to respond to the demands that may be made on them as the movements of people increase. Aside from problems of capacity, these institutions may not have an adequate mandate or sufficient flexibility to perform these functions. What follows is a brief description of institutions currently involved in formal dispute resolution.

District Courts

District Courts deal with cases relating to ownership of land, actions by landlords to eject tenants and actions to recover debts in excess of Rs 1,500. A person faced with a problem with regard to land and property can file a case in a District Court to vindicate his/her rights, recover property, enforce a legally binding obligation, obtain compensation for an injury done or for a threatened wrong. However, litigation is expensive and time consuming, and the results, which are based on principles of law, are never wholly predictable. The Courts also recognise the unrestrained right of appeal, which often means that it could take many years before the issue at hand is resolved and redress obtained.

Bar Association of Sri Lanka, Legal Aid Foundation

In 2001, the Bar Association of Sri Lanka, with the assistance of UNHCR, launched a legal aid programme to assist internally displaced persons. IDPs earning less than Rs 6,000 a month are eligible for assistance. While the Association has a field presence in Jaffna, Mannar, Puttalam, Trincomalee, Vavuniya, Anuradhapura, Polonnaruwa and Batticaloa, it has no presence in the LTTE-controlled parts of the North. Further, the Association is represented by only one lawyer in each of these areas, raising questions as to their capacity to deal with problems that might arise in areas where there are large concentrations of IDPs and possibly large movements of people in the foreseeable future. At present the Association attempts to resolve issues through means of litigation.

Human Rights Commission

The Human Rights Commission (HRC) is a statutory body that was established by Act No 21 of 1996. Its powers and functions are enumerated in the Act. Accordingly, the Commission can accept complaints about violations of Fundamental Rights enshrined in the Sri Lankan Constitution. The Commission is empowered to resolve such issues through mediation and conciliation. The Commission can engage in research, monitor welfare of detainees and carry out human rights education. The Commission is also empowered to inquire and investigate into procedures of State bodies to ensure their compliance with fundamental rights enshrined in the Constitution and to advise and assist the government in formulating legislative and administrative directives and procedures to promote and protect fundamental rights.

The HRC's capacity and mandate to deal with complaints of land and property is limited. For instance, in Jaffna, the Commission attempts to find a solution when the complaint is against the State. When the complaint is against a private individual, it is forwarded to the (BASL) Legal Aid Foundation. The Commission states, however, that it is unable to intervene when the complaint is against the LTTE.

In the Jaffna peninsula the HRC regional office mediates between the owners and the SLA in a bid to get the army to vacate property. On complaints being lodged by the owners, the HRC liaises with the Commanding Officers to facilitate a quick return of property. However the HRC regional offices do not have the mandate to mediate in instances where the LTTE is the party occupying. Complaints are then referred to the HRC Head Office.

Mediation Boards

Mediation Boards have been introduced in much of the south and west of the country and it is compulsory to take minor civil cases (where the value of the goods in dispute is under \$250) to a Mediation Board before the courts will consider it. The Mediation Boards successfully resolve around 60 per cent of the cases submitted to them. However, they have been accused of bias by some observers who say that they sometimes operate in a politically partisan way.

There are very few Mediation Boards currently operating in the north of the country and there are very few Tamil speaking mediators. Another problem with introducing them to the north of the country is that they are perceived as being part of the machinery of the GoSL. Since the 2002 cease-fire, the LTTE has established Political Offices in some GoSL-controlled – but majority Tamil – areas such as Vavuniya, Trincomalee and Batticaloa. These offices play a significant role in settling disputes informally – through a mixture of both mediation and coercion.

A law passed in 2003 provides for the establishment of Special Mediation Boards, but none have been established to date. In the wake of the tsunami disaster it has been proposed that Special Mediation Boards should be established to sort out tsunami-related land disputes."

CPA February 2003, pp. 57-59:

"Legal Aid Commission

The Legal Aid Commission is a state-funded body established by Act No 27 of 1978. Its objectives are to provide legal aid to deserving persons. To be eligible for legal aid, the litigant's income must be less than Rs 5,000 a month. The head office of the Commission is in Hulftsdorp, Colombo. The Commission has five branches, located in Galle, Anuradhpura, Kandy, Kurunegala and Trincomalee. The Commission also has representatives in Hamabatota, Ampara, Monaragala, Kegalle, Chilaw, Matale, Batticaloa, Mt. Lavinia, Moratuwa and Nuwara Eliya.¹²² In 1999, the Commission established a Bureau to assist women and children. The Legal Aid Commission does not have a presence in the North East.

Police

The duty of the police is primarily to maintain law and order and preserve peace. As such, the main mandate of the police is to ensure compliance with the criminal law of the country. With regard to civil complaints, however, the police can record complaints, which can later be used as evidence in courts.

In Jaffna, the police attempts to assist in resolving disputes over land and property. Police officers state that when they receive complaints that persons are in occupation of an owner's house, they advise such persons to leave. In some instances they suggest that the owner pay the occupiers a sum to leave. Their intervention is not always successful, particularly as occupiers are aware that they do not have a mandate to intervene in such matters and are therefore not bound to abide with agreements entered into with the police in this regard."

In LTTE-controlled areas land and property issues come under the purview of both government and LTTE administration (April 2005)

- In the LTTE-controlled Vanni, land occupation is an issue resolved by the Government administrative structures along with the Tamil Eelam Police Force.
- IDPs occupying property are permitted to remain until the owners make a claim for the property.
- If improvements have been made to the property, the claimant will be expected to pay the occupiers some compensation.
- It is unknown whether or what type of redress will be afforded to owners by Tamil Eelam Courts in cases where land has been taken over by the LTTE.
- Prescription may not be applicable for displaced persons and refugees or when the occupant is paying rent to the LTTE

NRC, April 2005, p. 26

"In the LTTE-controlled areas, the LTTE has its own set of laws, structures and courts that run parallel to the overarching framework for land and land use planning. The 'Head Office' functions as the central office for all judicial institutions. Legislation is drafted by the legislative branch, and is then sent to the Committee for the Review of Legislation. After review, the final draft is sent to the 'National Leader' for approval. The LTTE has legislation covering a broad range of issues including dowry, national property and evidence, and is presently in the process of drafting legislation related to land. The courts work together with the Tamil Eelam Police to enforce LTTE laws. In the 'uncleared' areas on the Eastern coast, both the courts administered by the GoSL and the courts administered by the LTTE operate. This situation has created confusion among civilians regarding the effectiveness and jurisdiction of the judicial system."

CPA February 2003, p. 60:

"Reportedly, IDPs occupying property are permitted to remain until the owners make a claim for the property. Claimants first approach the Village Committees, which operate in LTTE-controlled areas. The Tamil Eelam police also attempts to resolve property disputes, failing which cases are filed in Tamil Eelam Courts. The lawyer's fee is reportedly Rs 150 per appearance.

If the occupiers have made improvements to the property, such as clearing forest or farming, the claimant will be expected to pay the occupiers some compensation.

Without further research on the link between the judiciary and the executive in LTTE controlled areas, it is unknown whether or what type of redress will be afforded to owners by Tamil Eelam Courts in cases where land has been taken over by the LTTE. In one instance in Killinochchi, the

LTTE took over approximately 70 acres of coconut land from a private individual and is refusing to return it. The owner has been left with no choice but to file action in the District Court which is under the LTTE administration.

According to lawyers in Kilinochchi Courts, with regard to the application of prescription, the practice in LTTE-controlled areas appears to be that, if for a period of 20 years from the time of leaving a property, the owner has made no inquiries about, or visits to, the property in question, the person occupying should be able to claim prescription. Prescription will be applied in the case of economic migrants, however, prescription may not be applicable for displaced persons and refugees or when the occupant is paying rent to the LTTE."

Restitution

NRC and COHRE to set up litigation strategy for restitution to IDPs (April 2005)

- NRC and COHRE intend to develop a litigation strategy aimed at defending the rights of IDPs to return and restitution through the official courts, thereby hoping to profit from the Sri Lanka law tradition of evolving law through judicial interpretation

NRC, April 2005, p. 26:

"Sri Lanka has a written constitution – which guarantees certain 'fundamental rights' – and a Roman Dutch Legal framework. It also inherited a common law tradition from the British colonial period, in which the law evolves through judicial interpretation. Sri Lanka's courts are independent and widely recognized to be fair. The Supreme Court often draws on international human rights jurisprudence in its judgments. The main criticism of the Sri Lankan courts is that they are very slow and, therefore, costly. It takes years to get a final decision from the courts and, for this reason, many people prefer to settle disputes using more informal methods.

[...]

NRC's ICLA program in Sri Lanka will be seeking to develop a litigation strategy, in conjunction with COHRE, aimed at defending the rights of IDPs to return and restitution through the official courts. Part of this strategy is likely to include challenging the prevention of return to some parts of the High Security Zones, the occupation of civilian houses by the military and other discriminatory or arbitrary obstacles to people returning to their own homes. The program will also be promoting 'rights awareness' training in conjunction with the LAF.

The biggest challenges facing the program are likely to be how best to resolve cases for its clients where it is judged that the actions of the official courts are likely to be either too slow or ineffective. NRC has experience of using traditional and informal justice mechanisms in other parts of the world, but also respects the sovereign authority of the government in all the countries where it operates. Where cases can be solved through mediation NRC's legal counselors will promote such efforts and it will also provide legal advice to potential beneficiaries about their options in different parts of the country. NRC will not recognize the legitimacy of any unofficial quasi-judicial bodies, but it may monitor such bodies and seek to promote higher standards of justice in them, based on the principles of international human rights law. "

Many discover upon return that their houses are occupied by other internally displaced people (February 2003)

- Many IDPs have no choice but to occupy other people's premises.
- The disputes appear to be generally settled amicably, with payment of rent or time given to leave.
- However there are also examples, as in Jaffna town where illegal occupation is used by some to earn money or settle old scores

CPA February 2003, p. 48:

"An issue which has arisen and is likely to come to the fore as more IDPs return is the occupation of both private and state owned property by displaced persons who often have no choice but to occupy other people's premises.

The relationship between returnees and occupiers often seems to be cordial and it appears that, at least for the time being, conflicts will be resolved amicably. In some instances the occupiers have been given a time period to move out by displaced owners who now wish to return. In other cases the occupiers have been asked to buy the property or to pay rent. Since the signing of the CFA, some Sinhala owners in Trincomalee have been paid Rs 1,000 per acre for their land, which is currently occupied by Tamil farmers.

At times, occupation is with the consent of the owners who have moved and settled in other parts of the country or abroad. For instance, many of the returnees in the Kaaraitivu and Kayts islands are living on and cultivating their former neighbour's land with the latter's consent. Consent is often given with conditions attached, such as that the occupiers will leave on request by the owner or as soon as they have rebuilt their own dwellings.

Some Sinhalese IDPs in Morawewa, Trincomalee District, are now occupying land and buildings belonging to the Tamil people of the area. Occupation appears to be with the consent of the owners and so far has been without any conditions attached. None of the occupiers have been requested to leave or pay rent.

On the other hand, there are certain instances where disputes have arisen with regard to illegal occupation. This appears to be the case when the occupiers cannot return to their own properties or when they have worked on the land or house which they are occupying and now consider it to be their own. Some demand payment before handing over the property or raise legal defences such as prescription (see section 8.1).

There is also evidence that, in Jaffna town, illegal occupation is used by some to earn money or settle old scores. When news of the return of the owners is received, some people start occupying the particular property and demand money in return for vacating."

Muslim internally displaced who were evicted in 1990 ask for restitution and compensation (February 2003)

- The property left behind by Muslim IDPs from the northern province in 1991 is estimated at \$110 million.
- Compensation currently paid to the Muslim IDPs is reportedly inadequate. CPA recommends compensation be increased from Rs. 65,000 to Rs. 200,000.

- Freedom of movement is reportedly not complete in the North East and entry to the Vanni is still difficult with long delays at check points.

BRC February 2003:

"THE Muslim Rights Organisation's MIM Mohideen told a seminar on 10 February in Colombo on IDPs that Muslims had left behind property worth \$110 million when evicted from the northern province in May 1991 by the LTTE. He urged that the property in the hands of the Tigers should be returned to the rightful owners and compensation paid for losses.

Seminar participants stressed that the compensation currently paid to IDPs was inadequate for any meaningful resettlement. Colombo-based Centre for Policy Alternatives said that most IDPs had lost all means of livelihood and compensation should be increased from the current Rs 65,000 to Rs 200,000 (\$2060), in addition to assistance to resume occupations. Seminar participants also urged the Army and the LTTE to allow IDPs more freedom of movement in the north-east to enable them to identify their lands.

Passengers continue to face long delays at LTTE checkpoints to enter the Vanni. Vavuniya businessmen made representations to Vanni Army commander Susil Chandrapala on 12 February on restrictions faced in their trades. Lorries with commodities to southern Sri Lanka are checked at Eeratperiyakulam Army camp between 9am and 8pm. Maj. Gen. Chandrapala assured that the checkpoint would be open for 24 hours a day. The commander said that resettlement of IDPs had been allowed in 33 villages in high security zones (HSZ) of Vavuniya."

Many displaced have lost their property documents making it difficult to prove ownership (February 2003)

- Many IDPs have lost property documents during displacement.
- Obtaining copies of the property documents is made difficult by the fact that the institutions which keep copies of such documents, have lost volumes and records as a consequence of the conflict. Most affected residents are in the North while the East has been relatively spared.
- With the return of IDPs, it is unclear whether Land Registries or Divisional Secretaries have the capacity to respond to the number of demands for certified copies.
- Also, many IDPs have lost proof of identity, such as National Identity Cards or Birth Certificates, which would be necessary to obtain copies of property documents.

CPA February 2003, pp. 51-52:

"While the law protects property rights, proving ownership may be problematic, as many IDPs have lost property documents during displacement.

As is detailed below, obtaining copies of property documents is complicated by the fact that in the North East, Government institutions, such as the Land Registries and Divisional Secretariats, which keep copies of such documents, have lost volumes and records as a consequence of the conflict or of natural disasters. Copies of private deeds as well as State Permits and Grants are not kept centrally. Residents of the North are all the more affected as public buildings of Northern Districts were severely damaged during the conflict. Most property documents of the Eastern Province are intact.

Even when documents are available, it is unclear whether Land Registries or Divisional Secretaries have the capacity to respond to the number of demands for certified copies. The volume of demands has sharply increased since the signing of the Cease Fire Agreement and the subsequent return of IDPs to their property, and demands are likely to increase further. In the Musali Division of Mannar District, there is currently no Divisional or Assistant Divisional Secretary, and 15 key administrative posts are vacant in the District. The Mannar Government Agent notes that “even retired persons are not available in the District for recommendation to the RRR Secretariat.” Similarly, there are no Divisional or Assistant Divisional Secretaries in Vavuniya North Division.

Moreover, many IDPs have lost proof of identity, such as National Identity Cards or Birth Certificates, which would be necessary to obtain copies of property documents. Legal claims to property inheritance may also be impeded by the loss of Marriage or Death Certificates.

Lastly, many displaced persons do not appear to be aware of the importance of, and the procedure for, locating or obtaining copies of their documents.

"

Restitution of land and property to Muslims in LTTE-controlled areas might be problematic (February 2003)

- Most abandoned lands in the LTTE-controlled areas have been taken over by LTTE. It is believed that some LTTE camps are situated on IDP land.
- Many Muslim lands, houses and business premises were taken over by the LTTE
- It appears that Muslim IDPs in Kilinochchi have not been allowed to resettled.
- There are rumours that Muslims will not return to Mullaitivu.
- During the third session of the peace round the LTTE has indicated that it was be prepared to hand over Muslim lands, however Tamil occupiers and the LTTE have not vacated the properties so far.

CPA February 2003, pp. 50-51:

"Most abandoned lands in the LTTE-controlled North East have been taken over by the LTTE, in particular the properties of Muslims evicted in 1990, refugees in India and emigrants. The land has been subsequently either rented, given to the families of LTTE cadres or used by the LTTE to host their administrative structures. Though CPA could not gather any evidence of this, it is to be assumed that some LTTE camps are also located on the land of IDPs. The LTTE has also allowed IDPs to settle on other people's lands. In Batticaloa, some Muslim lands are being farmed by, or with the knowledge of, the LTTE.

Restitution of property of Muslim IDPs in LTTE-controlled areas

Following the eviction of Muslims from the North, many Muslim lands, houses and business premises were taken over by the LTTE. The properties were subsequently either used by the LTTE, as in Kilinochchi, or rented to others. It appears that the LTTE has instructed occupiers of Muslim lands to vacate the properties. In many cases, Muslim families who had visited their former homes stated that the occupiers had agreed to leave when they returned and/or would pay

rent. In Veppankulam, where a number of Muslim men have returned to work on their lands, the Tamil occupiers who were farming Muslim lands left the properties without any problems. It is noteworthy however that the former occupiers are now unemployed and that no arrangements have been made to cater to their needs. In other cases, the occupiers have agreed to pay rent.

In the LTTE-controlled Vanni, the movements of Muslims appear to be closely monitored; in Kilinochchi, there are indications that they may not be allowed to resettle. It is noteworthy that while a handful of Muslims entered into agreements to receive rent from persons occupying their business premises in Kilinochchi town, none are expected by the occupiers to return permanently. There are rumours that Muslims will not return to Mullaitivu.

A number of Muslim lands have been used to build LTTE administrative or other structures and it appears unlikely that the land will be returned to the owners. For instance, the grounds of the newly completed LTTE guesthouse, Kamathenu, belongs to Muslim IDPs.

According to the Northern Muslims' Rights Organisation, even though the LTTE has stated it would give Muslim lands back, Tamil occupiers and the LTTE have not vacated the properties. The Organisation stated that it favoured peaceful informal solutions rather than resorting to the judicial system.

Following the third session of the first round of the Peace Talks held in Oslo, the LTTE reiterated that it was prepared to hand over Muslim lands. The LTTE had however asked that a list detailing the particulars, names, locations and extent of land be submitted to them. The Muslim Rights Organisation has been charged with this task."

PATTERNS OF RETURN AND RESETTLEMENT

General

Problems with IDP returns (Special report, 2007)

Problems with IDP returns

During 2007, as the army has gained significant victories and territory in the east and north-east, the government policy appears to have aimed to avoid a long-term displacement situation by returning IDPs to areas it deemed safe since they are now under its control.

Enforced returns to unsafe areas of origin

Humanitarian agencies, however, have viewed these returns as premature in many cases, as the general situation in many IDPs' areas of origin has reportedly remained unsafe, due either to ongoing military operations or frequent security incidents. Many humanitarian agencies have been denied permission to visit and monitor the returnee areas, particularly in the early phases of return, and although the situation has improved, access still remains a problem.

In September 2006, after the army took control of Muttur town, the authorities, security forces, Muslim community leaders and politicians began to exercise various levels of coercion and intimidation on the predominantly Muslim IDPs to return to Muttur from across Trincomalee district. An initial group of IDPs returned voluntarily from Kantale to Muttur in early September, and those who remained at IDP sites were instructed by officials to return, and received threats of withdrawal of food, water, electricity and basic assistance. Military and police presence at IDP sites was stepped up, and humanitarian agencies instructed to stop providing services. Consequently, by mid-September, 35,000 Muslim IDPs had returned to Muttur. (Inter-Agency Standing Committee, *Conflict-Related Internal Displacement in Sri Lanka: A Study on Forced Displacement, Freedom of Movement, Return and Relocation*, July 2007, p.22)

The coercion was repeated in March 2007, when the government launched a massive return programme in the east during which reports surfaced of IDPs being forcibly returned to their areas of origin. The Sri Lankan national Human Rights Commission (HRC) in Batticaloa received several complaints and even the Resettlement and Relief Services Minister admitted that around ten per cent of the people who were moved to a halfway transit site were sent there against their will, although insisting that this had happened only on one day. (Daily Mirror, *IDPs moved against their will?*, 20 March 2007)

International and local agencies assisting IDPs in Batticaloa district reported displaced persons being forced onto buses and sent back to the Vakara area and to Trincomalee district. IDPs who were sent back to Vakara reported being rounded up by the army without warning, with families being separated in the rush to force people onto the buses. (Centre for Policy Alternatives, INFORM Human Rights Documentation Centre, Law and Society Trust, Women and Media Collective, *Report of the Fact-Finding visit to Batticaloa and Vakara*, April 2007, p.5)

Involvement of IDPs in return decisions

The IDPs were not provided with the information to decide whether this was the appropriate time for them to return, and they were not informed that they had an option to remain at the camps. Only in rare cases were exceptions made and IDPs were permitted to stay back, for reasons such as children taking exams. (Information from IDMC interviews with internally displaced persons in eastern Sri Lanka and staff of international and local agencies assisting them, June and July 2007)

Although most IDPs did want to go back eventually, many were not prepared to return at the time the government launched its drive, with concerns including lack of security in areas of origin with ongoing shelling and large military presence, lack of shelter, infrastructure and basic facilities following the conflict, a fear of forced recruitment of adults and children by the LTTE and the Karuna group, and concern about landmines and unexploded ordnance. (IDMC, June 2007)

The government agreed to the principle of “go and see” visits, whereby representatives elected from within the IDP community would go to their area of origin to evaluate if conditions were fit for return. In practice, this was permitted in very few cases and even when the IDP representative reported that the area was not fit for return, the government nevertheless put pressure on IDPs to go back. (IDMC, June 2007)

Involvement of civil and humanitarian agencies

The return process was heavily militarised and although there were civil administrators present, they were largely marginalised and on the periphery of the process. Besides the army, a “special task force”, armed police, and in some cases armed and unarmed members of the Karuna group were also clearly present at the IDP camps and welfare centres.

It appears that there was a decision to exclude the civil administration and humanitarian agencies from playing any meaningful role in the return process. Decisions about the process were taken within the security hierarchy and NGOs working with the IDPs claimed that they first heard about the returns from IDPs themselves during or immediately before the event. In some cases, no international or local agency was given authorisation to accompany the IDPs back to their areas of origin and agencies accused the government of using blanket security to deny monitoring of the return process. (Centre for Policy Alternatives, INFORM Human Rights Documentation Centre, The International Movement Against Discrimination and Racism, Law and Society Trust, *Batticaloa Field Mission* [May 2007], 4 June 2007, pp.5-6) Agencies also reported that mine-clearing organisations were under pressure from the government to declare certain areas as having been cleared of all mines so the return of IDPs could be expedited.

Developments in response to concerns

In response to the reports of forced returns, the Inter-Agency Standing Committee country team in Sri Lanka printed and distributed leaflets in three languages to IDPs in Batticaloa district in March 2007, demanding that all parties respect the IDPs’ right to voluntary return. On 16 March 2007, the Office of the UN High Commissioner for Refugees (UNHCR) announced that it had raised concerns with the government after receiving reports of increased police presence around IDP sites in eastern Batticaloa, and that it had received assurances that the agency would be fully engaged in any further returns to ensure they are voluntary and safe. In May 2007, UNHCR announced that its monitors on the ground were reporting that the majority of people were eager to return home, and that the returns were voluntary and in line with international standards.

From May 2007 onwards, the coercion and violations in the early phases of return declined, but as recently as July some IDPs at camps maintained that the special task force had visited them on several nights and warned them that there would be problems if they did not return. Other IDPs reported being informed by local authorities that the government wanted them to leave or

lose their IDP status and all assistance. Despite declarations by the government that it would be informing IDPs of their rights regarding return, and ensuring that returns were voluntary, many of the displaced people have remained unaware of these rights well into the later phases of the return process.

By 10 July 2007, over 90,000 IDPs had returned to Batticaloa district and almost 52,000 IDPs remained in the district. In Trincomalee district, over 8,000 IDPs had returned and the number of displaced was over 6,000.

Denial of return to a high security zone

While the government on one hand strongly encouraged IDPs to return to their homes in unsafe areas, on the other, it prevented the return of IDPs to a much safer area of origin. In May 2007, the government declared Muttur East area of Trincomalee district a High Security Zone. This prevented IDPs living in welfare centres or transit sites in other parts of the district from returning to their homes. As the government cordoned off Muttur East for military reasons, it also declared the area to be a Special Economic Zone open to large local and foreign investment.

It remains unclear why an area open for investment should be closed to people whose original homes are located there. The government has not yet addressed the issue of compensation for the 4,250 (largely Tamil) families who will not be able to return to their homes in Muttur East. Many of them were in August 2007 continuing to live at a transit site in Kiliveddy in Trincomalee district, which was not designed for long term habitation.

The Centre for Policy Alternatives, a Sri Lankan NGO, filed a petition with the Supreme Court on the issue of the Muttur East High Security Zone. Although the court dismissed the petition, it called for speedy action to resettle the people from Muttur East. The government had identified land in Raalkuli and Eechilampattai areas of Trincomalee district to resettle IDPs, but they were never consulted about this decision, and the land is grossly incommensurate with the property lost to the High Security Zone, and also vulnerable to flooding. (University Teachers for Human Rights [Jaffna], *Can the East be won through Human Culling? Special Economic Zones- An Ideological Journey Back to 1983*, Special Report no. 26, August 2007)

Security concerns and lack of opportunities slow down or even reverse IDP returns and resettlement (June 2006)

- While the government does not consider returnees who leave their home again because of lack of opportunities as IDPs, some welfare centres take them back if they wish that
- Insecurity, property issues and unemployment remain reasons not to return
- Unified Assistance Scheme (UAS) for resettlement needs revision
- In 2002, to prompt returns, local authorities resorted to scaling down food rations and closing welfare centres

AI, June 2006, p.46:

When Amnesty International raised the problem of re-displacement of those who have returned or resettled because of lack of possibilities to realise economic and social rights, the Ministry of Relief, Rehabilitation and Reconciliation responded that such people are not considered IDPs and that there is no state support available to them. However, staff at some conflict IDP welfare centres told Amnesty International that in such cases they do sometimes allow these people to

return to their old welfare centres on an ad hoc basis if their attempts at return or resettlement have failed.

CPA February 2003, pp. 34-35

"Local government authorities assist IDPs during resettlement, which includes a Unified Assistance Scheme (UAS) financial package consisting of a settling-in allowance, temporary shelter, a productive enterprise grant and an allocation for the purchase of tools. The package has not been revised recently and is no longer sufficient to meet the needs of a resettling family.

"A number of strategies have been used at the local level to compel, or strongly encourage, IDPs to return to their areas of origin. These have included threats of stopping dry food rations or closure of camps and camp facilities, such as schools. In November 2002, there appeared to be plans to close Pesalai and T-Madhu 'Welfare Centres'. The Government Agent, Vavuniya, and TRO have been providing transport to spontaneous returnees, while the scaling down in the distribution of dry ration is interpreted by some as a national policy to incite IDPs to return to their areas of origin. In November 2002, in T-Madhu, IDPs complained to CPA that 'foreigners' had asked them to vacate the camp by January.

At the end of September 2002, 1,600 families returned to Manthai West and Kilinochchi from Madhu Church. The Madhu Church Welfare Centre which once hosted some 8,455 persons, was reportedly closed by the Church authorities. The Government Agent used a UNHCR truck to transport IDPs to Kilinochchi where they were left in the District Secretariat grounds. IDPs were told to go as their rations would be stopped and no transport would be arranged for them at a later date if they remained. The Kilinochchi Government Agent was given no notice of the arrival of those families. Following protest by UNHCR, the use of the truck to forcibly resettle IDPs has been stopped. While the Government states that IDPs from Madhu Church ORC wished to return to their areas of former origin, it remains the case that the centre was closed, leaving no choice to the residents but to return. A handful of families remain in the centre as they are unable to return or are employed there. The school is not functioning and their rations have been stopped. They have also been asked to leave."

According to a 2004 internal Welfare Centre survey, about one third of the 62,000 IDPs in Puttalam would consider returning in conditions of safety and dignity, most seem to prefer local integration in Puttalam. Most of them travel regularly to their place of origin and could return without problem, but they have over the years become integrated in Puttalam.

MRRR, 2004

"According to the IDP survey conducted in 2002, 34.7% of registered IDPs from Polonnaruwa, Anuradhapura and Puttalam Districts indicated their preference to return to their places of origin. 23% of the IDPs registered indicated that they would prefer to remain in their present locations. The latter group comprises mainly Muslim IDPs in Puttalam.

A more recent IDP survey of IDPs in Puttalam Welfare Centres shows that only slightly more than 2% would return immediately, while 60% would return in the future. 38.5% would prefer to integrate locally.

ADB, UN & WB 9 May 2003, p. 6

Most of the IDPs who expressed a preference to remain in their current locations are of a younger generation and a number of them run small businesses or have other means of livelihood in the places where they are currently living. For them it is less attractive to return to the North East, even after normalcy is restored, than firmly settling into their place of displacement. For those indicating that they would like to return to their places of origin, the guarantee of safety and

assistance are pre-requisites. Of the remaining registered IDPs, 26% indicated that they were undecided on whether to move or stay in their current locations, in the future and only 2% expressed an interest to be relocated to another destination."

Muttur and Batticaloa: Growing insecurity in return areas prohibit returns and prompt people to flee again (September 2006)

- Muttur IDPs returning in September 2006 face insecure environment

The South Asian, 10 September 2006

While the Sri Lankan government has presented that Muttur is cleared for displaced Muslims who have moved back, various sources in Sri Lanka suggest that the displaced communities are being forced back into Muttur as part of its propaganda.

Right now Kantale Muslim IDPs are forced to go back to Muttur and Thopur. Many of us see this as part of the government propaganda of winning the war. Today alone they have sent over 100 buses to transfer Kantale IDPs back to Muttur and there is heavy government media presence in Kantale (where were all these buses and attention on the 04th of August when the Muttur civilians decided to walk towards Kantale, one journalist questioned).

A local NGO staff who took photographs of people being forced to move from camps has been assaulted and arrested by the Sri Lankan military.

Some civil society members called the Defense Ministry with regard to the security issues of returnees and the ministry's response was that:

Muttur and Thopur are cleared by the military for the people and the civilians should go back now. The defense ministry representative also told that the Government ministers are going to be there with returnees "reassuring" their safety. We see this forceful return as a military strategy mainly to give morale boost to the army. The government clearly wants to use IDPs as human shield by transporting them back to a potential war zone.

Defense ministry also stated that it is a disgrace for the government to keep Muttur Muslims in Kantale as IDPs. Government clearly doesn't want Kantale to become another Puttalam (where the north evicted Muslims are in the last 16 years). The publicity they gain by resettling the IDPs in Muttur overshadows the civilian security issues.

They also said it is an INGO+NGO agenda to keep the Muttur Muslims as permanent IDPs in Kantale for their fundraising purposes.

There were 72 Muttur displaced families at Al Hikma (known as Camp-98). This camp was run by Rural Development Foundation (RDF). On Thursday night IDP families were given notice by the Muttur Pradesha Shaba Vice Chairman (Jamil Gafoor) and Kantale police that they should go back to Muttur by Friday morning. They have also been told that the school keys have to be handed over to Kantale GS by Friday noon. The IDP families were further warned that their access to relief including water will be stopped by Friday.

On Friday morning 24 families decided to move back to Muttur and got into buses provided by the government. Rest of the families considering the security situation in their villages stayed back. Around 3.00pm (Friday) Kantale DS and the OIC of Thampalagamum police station stormed into Camp-98 and ordered IDPs to get into buses that they brought. Few families that refused to move were forced (some were physically dragged) and the police threw their meager possession on to the street. It was raining heavily at this moment.

Currently 03 families from this camp remain in Kantale and they have sought shelter in the neighborhood. Two of these families have children who got injured when Multi-Barrels fall onto Nathvathul Ulama Arabic School in Mutur on 3rd of August.

IDPs in Kandale have complained that the DS and Trincomalee GA have refused to send water from national water board today, which is a move to cut their access to drinking water. NGOs have been asked to move from Kandale to Mutur which will eventually remove these IDPs access to dry- rations as well. "

AI, June 2006, p.13

Organisations working with IDPs told Amnesty International delegates that the growing violence and insecurity is hampering the successful return of conflict IDPs to their homes of origin. NGOs in Batticaloa reported that approximately one third of families displaced by the conflict who had returned to their homes in LTTE-controlled areas following the ceasefire had felt unable to stay there due to the threat of harassment, violence and child recruitment. These families had again left their home areas to return to government controlled areas where they felt safer.

Internally displaced women face numerous difficulties upon return (February 2003)

- Upon return, women face many problems including security threats lack of infrastructure, health care, education opportunities for their children.
- Women and femal-headed households returning have to take on tasks that are typically for men, like clearing and rebuilding on the land, farming and maintaining structures.
- Income generation projects provided by NGOs not only serve as a source of income, but also to empower women.
- In Vavuniya District it was mentioned that 65-70 percent of employed women are self-employed in the non-traditional sphere.
- However, major livelihood and employment problems remain for women affected by displacement.
- There are limited options available for wage labour in general and for wage labour for women in particular.
- Salaries given to men and women for the same work is different.

CPA February 2003, pp. 46-48:

"Beyond these issues relating to property acquisition and ownership, women IDPs face numerous difficulties upon return to their land, with human rights and security questions intertwined with needs relating specifically to property and land.

Security

One element preventing women IDPs and their families from returning to their land is the issue of security. When families send the men to clear the land, the women fear the separation because of the large number of disappearances in the past. Returning to land in LTTEcontrolled areas raises fears of child recruitment. When women travel back and forth between their lands and the 'Welfare Centres', they face potential harassment and the threat of sexual violence at checkpoints.

Infrastructure

Another problem facing women is the destruction of infrastructure in the war-torn areas. This often disproportionately affects women, as they generally bear the responsibility for child care and accessing health care. Without schools and medical facilities, women would have to handle these responsibilities at home. Female headed households would be responsible for these duties in addition to financial support. Many IDPs reported that they will not return until infrastructure is developed and facilities have been rebuilt. The lack of influence of women, especially women IDPs, in shaping policy priorities means they are less able to propose how and when infrastructure will be rebuilt.

Landmines, Land Clearance and Rebuilding

Once families resettle on the land, women generally and FHH in particular face the challenge of clearing and rebuilding on the land. Men have traditionally taken responsibility for farming and maintaining structures on the land. Women who have lost spouses and other male family members must decide how they will farm their land and use it to support their family. One person interviewed by the Centre for the Study of Human Rights for its report on displaced women said, "Who is going to clear the land and build for the women? There would be so much gossip if a woman engaged labour from men, even if she could afford it."

Livelihood and Employment

Some positive developments have been made in the areas of employment and livelihood. The non-traditional sphere is expanding, and women are finding employment through various income generation projects and activities. NGOs are training women in jobs tailored for their needs and skills, both in the traditional sphere of women's activities (sewing, weaving, animal raising, cooking) and in jobs not traditionally held by women (mechanical work). Where infrastructure requires development, women are using new skills to help to set up and manage various facilities. In these situations, women often face fewer prejudices and stereotypes because of the overwhelming need. Generally, income generation projects not only serve as a source of income, but also to empower women. One person interviewed mentioned how, before displacement, women did not come out and were afraid to speak, whereas now they have organisations and are involved, working in government factories, NGOs, and shops and going to meetings and seminars. Another person interviewed in the Vavuniya District mentioned that 65-70 percent of employed women are self-employed in the non-traditional sphere.

Despite these positive developments, major livelihood and employment problems remain for women affected by displacement. Where male spouses have been lost, women become the principal income generators in a household, adding to their traditional duties of sustaining and supporting the welfare of children and extended family. One of the main problems is that there are limited options available for wage labour in general and for wage labour for women in particular. For instance, in Vavuniya, men were employed for an average of 5-15 days per month; the figures were lower for women. The Trincomalee District reports declining fish production from 1980 through 1998, a reduction in the cultivation of paddy land, and declining milk production from 1981 through 2001. Where wage labour options are available, they generally go to men. In addition, many people interviewed reported that salaries given to men and women for the same work is different. One NGO in the Puttalam District said that IDPs receive the same as the local salary, but women are paid less for the same work. Thus men receive on average Rs 170 per day and women Rs 90 per day. Women residents of a resettlement village in the Vavuniya District stated that women were paid only Rs 100 per day where men were paid Rs 200 per day."

Return

Difficulty for returning conflict IDPs to obtain the help they are entitled to (July 2006)

- Muslims who have returned to Jaffna from Puttalam are returning to Puttalam. Those who stay in Jaffna face a very difficult situation
- In contrast to tsunami IDPs, conflict IDPs often do not receive the financial support they are entitled to when rebuilding their lives upon return

CPA, 19 July 2006:

"According to organizations working with recently displaced from other areas in the North, the climate of fear and violence has prompted returnees to give up and return to Puttalam. The migration from areas such as Jaffna, Kilinochchi and Vavuniya seem to have begun soon after the shooting of a Muslim youth in Jaffna Town on 14th April. Though the shooting occurred in Jaffna, the fear and insecurity seems to have spread among Muslims in other areas with increasing numbers moving to Puttalam and Kalpitya since April.

Present Situation: Those who have returned find themselves in an extremely difficult position. When they chose to resettle in the North, many of the returnees transferred their names to the ration lists in the North. Some families sold their homes in order to rebuild their new houses in the North. The families we met are all living with their relatives, and at the moment have no idea where they will live in the long term. An added hardship they face is obtaining dry rations due to administrative obstacles. The returnees we met stated that they are yet to get back on the ration system in Puttalam since this requires notification from the Divisional Secretary of the District from where they were displaced, with the procedure being time consuming."

AI, June 2006, p.20, 21:

"The official package of housing support being provided to tsunami-displaced people who are relocated away from the buffer zone is a transitional shelter, followed by a permanent house(41) with a minimum value of Rs. 250,000(42). However, while this minimum standard has been set at Rs. 250,000 by the government, it is reported that many NGOs are building permanent housing for tsunami displaced people with a value of up to Rs. 500,000. Those living outside the buffer zone whose houses were destroyed by the tsunami receive Rs. 250,000 to rebuild their houses, or if their houses were only partially destroyed they receive Rs. 100,000.

In contrast, [if] conflict-displaced people [...] return to their home area or resettle elsewhere they receive Rs. 25,000 when they initially move in order to build a basic shelter (a number of agencies working with conflict-displaced people told Amnesty International delegates that, in practice, it can take up to two years for this payment to come through and sometimes it never does). The conflict-displaced people are then supposed to be given money to build a house. Until recently the money given for this was very little, but it has risen in the last few years. It was 75,000 until 2004, when it was raised to Rs. 150,000 and then to 250,000 (to ensure parity with tsunami displaced people) in 2005. However, the Ministry of Relief, Rehabilitation and Reconciliation informed Amnesty International that there is not enough money available to provide this Rs. 250,000 to all those who are returning or resettling and therefore only some receive it."

UN return figures as of 31 May 2005

UNHCR, MRRR, 31 May 2005

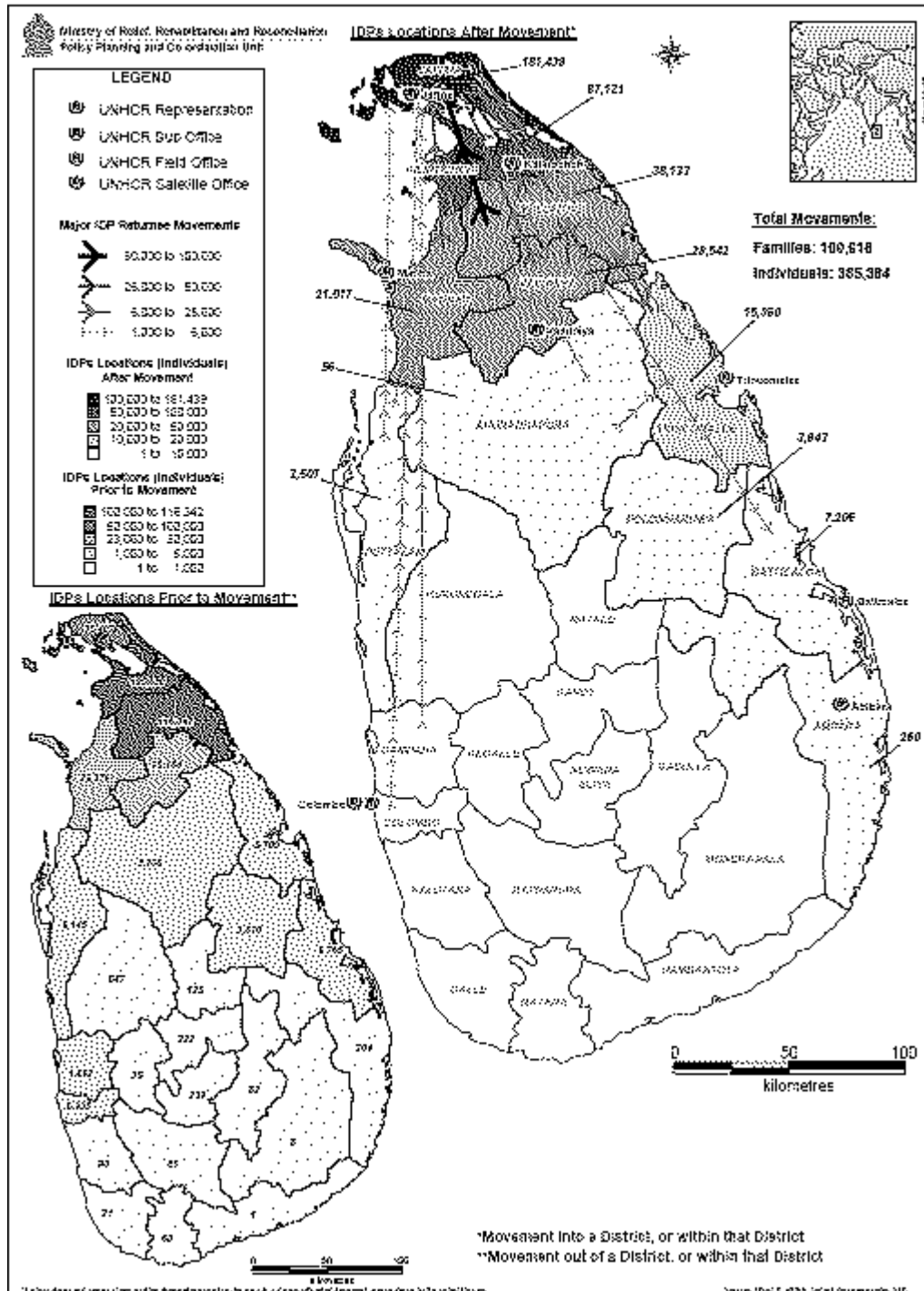
SUMMARY OF RETURNS OF INTERNALLY DISPLACED PERSONS WITHIN SRI LANKA as of 31 May 2005

District of Return	Year	Month												Total
		Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec	
Jaffna	2002-2003	5,657	4,561	5,458	4,545	1,438	62,747	23,501	12,191	18,035	15,883	7,424	7,165	176,426
	2004	838	553	335	368	548	529	735	124	577	193	227	89	4,783
	2005			211	52									263
	Total	6,495	5,216	7,018	5,965	1,986	63,376	24,236	12,315	18,612	16,076	7,651	7,254	181,472
Kilinochchi	2002-2003	4,515	2,721	1,458	851	585	32,331	1,623	862	7,427	7,373	5,776	3,555	59,678
	2004	6,367	973	2,275	193	1,675	453	206	353	229	483	231	169	15,363
	2005	162	271	206	210	228								1,083
	Total	11,044	3,965	4,043	1,054	2,688	33,784	1,829	1,170	7,656	7,856	6,007	3,724	76,124
Mullaitivu	2002-2003	225	233	355	31	621	24,574	5,695	362	214	1,582	953	773	35,677
	2004	197	223	115	115	30	265	414	152	235	232	138		2,251
	2005		235											205
	Total	422	671	470	246	651	24,839	6,109	514	449	1,814	1,091	773	38,133
Mannar	2002-2003	317	63	156	423	211	5,553	442	2,757	1,652	385	847	704	15,255
	2004	202	170	261	1,151	297	133	627	454	456	561	227	269	4,933
	2005	187	272	115	103	143								819
	Total	706	505	532	1,677	651	5,741	1,069	3,211	2,108	1,446	1,074	973	21,007
Vavuniya	2002-2003	522	338	1,853	425	1,245	12,211	637	342	628	2,233	1,219	215	24,020
	2004	145	295	178	223	155	105	112	127	111	145	58	75	1,729
	2005	554	472	211	468	89								2,793
	Total	1,221	1,105	2,642	1,116	1,489	13,316	749	469	739	2,378	1,277	290	28,542
Trincormalee	2002-2003	422	881	443	166	345	4,357	985	917	1,050	529	155	702	11,254
	2004	191	255	315	353	135	163	676	543	522	373	79	145	3,951
	2005		59	44	22									125
	Total	613	1,195	802	544	485	4,520	1,661	1,460	1,572	902	234	847	15,330
Batticaloa	2002-2003	530	21	1,198	81	1,775	354	105	43			64		6,591
	2004	22				23	11						35	57
	2005			34	18	56								112
	Total	552	21	1,232	99	1,854	365	105	43			64		6,760
Ampara	2002-2003	8							5	7	22	21	115	175
	2004	3									5	42	5	60
	2005	27												27
	Total	38							5	7	27	63	115	262
Puttalam	2002-2003						421						2186	2,607
	2004													
	2005													
	Total						421						2,186	2,607
Anuradhapura	2002-2003													
	2004	55												55
	2005													
	Total	55												55
Polonnaruwa	2002-2003	232	548	254	391	325	562	437	432	259	134	129		3,623
	2004													
	2005													
	Total	232	548	254	391	325	562	437	432	259	134	129		3,623
Total	2002-2003	12,238	8,563	12,253	6,916	5,525	146,720	32,134	24,552	29,542	28,710	15,565	18,652	545,724
	2004	10,631	2,482	3,635	2,375	2,858	1,755	2,873	1,741	1,950	1,596	1,042	755	34,223
	2005	1,336	1,279	1,421	873	531								5,438
	Total	24,175	12,324	17,309	10,164	8,874	148,505	35,007	26,493	31,492	30,306	16,607	19,407	585,385

Source: UNHCR, MRRR, 31 May 2005

SRI LANKA IDP MOVEMENTS BY DISTRICT (between January 2002 - May 2005)

UNHCR
GSR 1004
06-12-05



Policy

Government policy favouring return over resettlement is not always in IDPs' best interest (June 2006)

- For political and ethnic reasons, the government favours return to resettlement, even if this may not be in the IDPs' best interest
- A Government relocation policy currently threatens the right to freedom of movement of landless IDPs.
- The vast majority of landless IDPs interviewed expressed the wish to be granted land in the area where they are currently residing, in particular in Mannar island and Vavuniya town.
- However, a Government policy stipulates that IDPs cannot be relocated on State land in any District other than that of their origin.
- The majority of IDPs, regardless of how long they have resided in a District, are not considered by the local authorities as permanent residents and therefore are disentitled from benefiting from current "resettlement" programmes.
- Relocation policy will compel landless IDPs to either remain in camps or return to an area against their will.

AI, June 2006, p.40:

UNHCR told Amnesty International that, while in general the most favoured option for IDPs in any setting is return to their homes of origin, the Sri Lankan government stresses return even when other options may be more appropriate, because it is the least politically sensitive option. Resettlement to other areas within Sri Lanka is only undertaken in limited cases, while local integration is usually not permitted. According to UNHCR the reason for this is that the government and other parties do not wish to change the ethnic status quo in any area by settling people from another ethnic group there. This is not only because of ethnic tensions over land, but also because allowing IDPs to resettle or locally integrate in an area would change the make-up of the electorate, as currently IDPs are transported back to their place of origin to vote. In this way possible durable solutions for some IDP families are being blocked for political reasons.

An example of the government's reluctance to resettle IDPs can be seen in Trincomalee where UNHCR has tried for some time to get local government authorities to allocate land for the resettlement of conflict-displaced people, but they have consistently refused as they did not want to change the ethnic make up of the local community. Likewise, according to UNHCR, many conflict-displaced people in Puttalam have built new lives in the area where they are now living and would prefer to integrate locally, but are not being allowed to do this for the same reason. Such reluctance to consider alternatives for those who cannot or do not wish to return home, including for those with compelling protection reasons, is forcing many people to continue living with an IDP status and is denying them the right to choose their place of residence and the opportunity to fully rebuild their lives.

It also appears that some communities are more likely to get help with returns or resettlement than others. Agencies working with IDPs in Trincomalee told Amnesty International that there has been far more organised resettlement of Sinhalese and Muslim communities than of Tamils displaced by the conflict. This is despite the fact that Tamils make up the majority of conflict-displaced people in the district.

CPA February 2003, p. 32-34

"A considerable number of IDPs do not own land to which they could return. A Government relocation policy currently threatens the right to freedom of movement of landless IDPs. There are different categories of *de facto* and *de jure* landless persons:

Upcountry Tamils who settled in the North and worked primarily as tenant farmers prior to displacement.

Following independence, migration of Tamils from the Sinhalese-dominated South, in particular the Hill Country, occurred due to periodic anti-Tamil riots. It is estimated that 40% to 45% of the families in 'Welfare Centres' in Vavuniya are of Up Country origin. They fled the Up Country, *inter alia*, in 1971, 1977, 1981 and 1983 and settled in Northern Districts working as tenant farmers or occupying vacant State land, and were subsequently displaced due to the conflict.

The new generation of displaced persons who reached adulthood during displacement and are property-less.

Many IDPs have married following displacement or grown up in their areas of displacement and do not own land. This is particularly true in the case of the Muslims who have been displaced for more than 12 years, but also in the Eastern Province where some IDPs have been displaced since 1985. For instance, the number of Muslim displaced families in Puttalam has increased from 14,000 at the time of displacement to 17,000 at present due to population increase. RDF estimates that 50% of the new generation in Puttalam has no land to return to and no wish to settle in the North.

Illegally or temporarily relocated landless persons.

In some cases, local holders of State Permits or Grants (see section 6.3) have fragmented and sold their land to IDPs for relocation purposes, even though State land cannot be legally sold. Thus in Puttalam, it is estimated that 60% of the land on which IDPs were relocated as part of a State-sponsored programme in 1995 is state land illegally transferred (see section 5.4 on illegal alienation). In Vavuniya, political parties/paramilitary groups have settled landless IDPs in 8 colonies on land which belonged to others. IDPs from Mannar District who were temporarily relocated, such as those relocated on Church land as part of the 100 Housing Scheme, are also uncertain about their future. Some IDPs have been relocated in various areas in the Vanni by the State or NGOs. Many of the relocation villages appear to be temporary measures and no documents have been handed over to the residents.

Settlers without documentation and so-called "encroachers," some of which were in the process of regularising their situation when they were displaced.

Landless IDPs who were previously occupying State or private land fear to return as they are uncertain of regaining the land they were occupying. Some landless persons had been in the process of applying for Land Development Ordinance Permits for the land they were occupying when they were forced to leave. These people hope that they will be given the opportunity to continue with the application process from where they stopped (see section 5.3) or be given alternative land.

While some landless IDPs wish to return to their area of former residence, the vast majority of those interviewed by CPA expressed the wish to be granted land in the area where they are currently residing, in particular in Mannar island and Vavuniya town. This is confirmed in Vavuniya by UNHCR. According to a Government policy, however, IDPs cannot be relocated on State land in any District other than that of their origin. This policy, which originates from the 13th Amendment³⁰ to the Constitution, appears to be motivated by the wish not to alter the ethnic

ratios of Northern and Eastern Districts. In the case of multi-ethnic Vavuniya this would imply not increasing the number of Tamil residents.

In the 13th Amendment to the Constitution, this principle applies to displacement caused by irrigation and development projects and not to conflict induced displacement. While the principle may have been devised to protect communities from politically motivated population settlements, it is discriminatory towards landless persons displaced due to the conflict and inadequate to address the particular situation facing them at present. In Vavuniya, a number of relocation programmes have been carried out for landless IDPs from the District. The latter have been granted between $\frac{1}{4}$ and $\frac{1}{2}$ an acre of State land under the Land Development Ordinance. According to the Vavuniya Project Director for Rehabilitation, however, there are no relocation programmes planned for this year. It appears that the authorities have renamed the process of relocating landless IDPs from the District as "resettlement." Six hundred and four landless families from Vavuniya District have indeed been relocated as part of special "resettlement" programmes within the District.

In Puttalam, since the 1995 relocation programme, it appears the policy has been to not issue state land to IDPs. There are allegations that this policy is applied in a discriminatory manner as 35 Sinhalese displaced families were granted state land to relocate. Furthermore, in Kalpitiya, people from outside the Puttalam District, but not from the North, were issued Permits for State land.

The majority of IDPs, regardless of how long they have resided in a District, are not considered by the local authorities as permanent residents and therefore are disentitled from benefiting from current "resettlement" programmes. Proof of residency in a District is determined by whether or not the name of the person has been included in the electoral register of the said District. Most IDPs, however, have not been included in the voting lists of their District of displacement since they were considered to be only temporary residents.

While the Government remains officially committed to respecting the choices of IDPs, this relocation policy will compel landless IDPs to either remain in camps or return to an area against their will.

A further argument put forward by the authorities to justify this policy is the dearth of State land in Sri Lanka. It is noteworthy, however, that CPA was unable to obtain even estimates of land already alienated by the State, land privately owned and available State land from any department under the Ministry of Lands or any District officials. While there is available State land for relocation purposes in Vavuniya District, there are no statistics as to the number of people requiring relocation and the extent of available land. In Mannar District, due to the absence of survey maps and statistics, it is similarly unclear how much State land would be available for relocating landless displaced persons. According to one lawyer, the landless in the LTTE-controlled Vanni will be given $\frac{1}{4}$ acre up to a maximum of 1 acre, depending on the purpose for which the land is to be used."

Post-Tsunami situation poses unique challenges and opportunities (April 2005)

- Any attempts to find solutions to internal displacement must address both conflict and tsunami-IDPs.
- Relocation or resettlement should only be used in the last resort and not without IDP's consent
- Consultation and participation of affected populations and communities are crucial

- Financial aid to returnees who were displaced by conflict is often not paid out due to administrative difficulties, says government official

UNHCR, April 2005, p. 17, 18:

"Finding durable and rights-based solutions to the current displacement crisis in Sri Lanka presents a major challenge. At the same time, it also offers a unique opportunity to develop a longer-term plan to find durable solutions for *both* Conflict-IDPs and Tsunami-IDPs simultaneously. [...]"

UNHCR will look at its capacity to assist the Government in developing a rights-based approach to the reconstruction process, including offering technical advice, supporting local agencies in monitoring the human rights involved, providing legal aid and conducting investigations.

In addition, UNHCR and the international community should firmly uphold the position that *all* IDPs (both Tsunami- and Conflict-induced) to the maximum extent possible have **the right to voluntary return** (housing, land and property restitution), without discrimination, to the homes from which they were displaced. The fact that *in situ* rehousing efforts have proven the most efficient and effective means of providing relief to victims in other post-disaster settings should be continuously relayed to the relevant authorities to support this position.

The final policy or law of the GoSL should recognise that **relocation or resettlement should only occur as a last resort**, and only after all possible alternatives have been thoroughly explored. [...] In the reconstruction process, **security of tenure** should be granted to all affected persons or communities, including temporary or communal forms of tenure until a more formal status can be agreed or existing tenure rights confirmed.

The tsunami also provides the GoSL with an opportunity to remove any discriminatory inheritance and property ownership laws that may prevent the equitable transfer of property to survivors, particularly women and girls, and should ensure that women and girls do not suffer direct or indirect discrimination as a result of the relief and reconstruction efforts. Women should be accorded housing or land titles in their name and be assisted in acquiring lost or destroyed housing, land or property documentation. In addition, all reconstruction efforts should take into account **the needs of especially vulnerable or marginalised [...]**.

The international community should consistently support the dual processes of **consultation and participation by affected persons and communities in the reconstruction and rehousing effort**, including the full participation of displaced persons in the planning and management of their return or resettlement. The rehabilitation should be driven by the wishes and needs of local communities. People should be centrally involved in planning the rehabilitation of their own communities, including decisions on location, infrastructure and housing design.

[...] New efforts will be required to reinvigorate efforts designed to assist Conflict-IDPs to return voluntarily to their original homes and lands, even in the absence of a peace agreement between the GoSL and the LTTE, should this be their wish."

GoSL, development forum, May 2005:

*Regarding financial assistance to returnees, the government acknowledges that assistance to IDP returnees has only been paid out to a very small number of IDPs (Government presentation at Sri Lanka Development Forum, May 2005). The government **said** it would make an effort to improve the situation.*

Obstacles to return and resettlement

HSZs continuing to prevent return of IDPs in Jaffna and Trincomalee (May 2008)

- Collectively High Security Zones in the north and east of Sri Lanka have displaced more than 120,000 people
- Families displaced due to High Security Zones that cover 18% of the land area in Jaffna are continuing to live in welfare centres in the Northern Province
- Those who remain displaced in the east are primarily from areas where there are high security zones, zones awaiting demining and houses or villages occupied by security forces
- Many of these IDPs unable to return are concerned about security, access to services and livelihoods
- The High Security Zone created by the government in May 2007 in Muttur East/Sampur has prevented more than 15,000 people, mostly Tamil, from returning to their homes
- While the zone in Muttur East/Sampur prohibits IDPs from returning, the authorities have planned to establish a Special Economic Zone and permit big businesses to operate there
- Petitions on the Muttur East/Sampur zone filed by IDPs and a NGO were dismissed by the Supreme Court citing national security

SRSG, May 2008:

“Roughly 188,000 of the 300,000 displaced since the resumption of hostilities remain in displacement in both the North and the East. Those who remain displaced in the East are primarily those from areas where there are (i) high security zones, (ii) zones awaiting demining, or (iii) houses or villages occupied by security forces. Many of these IDPs are concerned about security, access to services and livelihoods. Most are in camps or host families in Batticaloa district, although some are in “transit camps” in Trincomalee district.”

[...]

A much larger group of IDPs have been affected by the establishment of HSZs in Jaffna and, more recently, in Muttur East/Sampur, Trincomalee. Collectively, HSZs in the North and East have displaced more than 120,000 people. Though the Government indicated plans to release some land in the Muttur East zone, IDPs in the transit sites had not themselves been informed of this fact or the time frame for return. To the Representative’s knowledge, no one had received compensation for loss of their land or home in an HSZ.”

CPA, May 2008:

“High Security Zones are a significant challenge to the resettlement of IDPs in the North and the East. Jaffna has the largest extent of land covered by HSZs. There are 18 HSZs covering roughly 190 sq kms in Jaffna or 18% of the land area. This is an area where 30,338 families lived. With the creation of HSZ, especially from the mid 1990s onwards, many people in Jaffna have lost access to their homes and lands. A large number of these affected families currently live in welfare centres in the Jaffna Peninsula and other welfare centres in the Northern Province. Further an 81.5 sq km sea area is out of bounds for fishermen and 12,259 acres of land cannot be used for agriculture due to the security situation. This has resulted in serious loss of livelihood. Most of the HSZs are located in and around army camps and key location such as harbours and airstrips in the peninsula, and in areas bordering LTTE-controlled area.

In May 2007, a HSZ was established by the Government in Muttur East and Sampur in the Trincomalee district. [...] The HSZ as created in May 2007 covered 11 Grama Sevaka divisions in

their entirety...there are 4249 families amounting to 15648 individuals who fall within the HSZ as gazetted...many of the civilians owning land in the HSZ are Tamil.

The main reason behind the establishment of the HSZ in Eastern Trincomalee is due to the strategic importance of the area- at the mouth of the Trincomalee harbour."

CPA, December 2007:

"...A contrary position was taken when the HSZ in Sampur was challenged by two petitions in June 2007, one filed by CPA and the other by four affected IDPs of the area. The Supreme Court held that this was a matter of national security and that resettlement will take place in due course. What is significant with the Sampur HSZ is that it was created under Emergency Regulations, making it extremely difficult for parties to challenge it and thereby providing the space for the authorities to continue maintaining it as a security measure. What is not well known is that while the HSZ in Sampur prohibits civilians of that area from entering their own land, the authorities have also planned to establish a Special Economic Zone (SEZ). There is clear evidence of the discriminatory nature of what is happening in Sampur, with civilians not being allowed to enter their land and homes, while potentially big businesses can establish their economic ventures."

USG, March 2008:

"Limited access continued to certain areas near military bases and HSZs, defined as areas near military camps, barracks, or checkpoints where civilians could not enter. HSZs extended up to a four-kilometer radius from the fences of most military camps. Some observers claimed the HSZs were excessive and unfairly affected Tamil agricultural lands, particularly in Jaffna. In Trincomalee, the president announced the creation of a new HSZ on the land previously inhabited by Tamils before fighting between government security forces and the LTTE caused the Tamils to abandon their homes. The Supreme Court dismissed lawsuits challenging the Trincomalee HSZ under the rationale that allowing them to proceed would inspire more lawsuits than the government could reasonably handle. In addition, the court held that government security measures could not be the subject of a private lawsuit. By year's end, no plan for compensation existed."

Challenges facing returnees (Special report, 2007)

The IDPs who returned to their homes in 2006 and 2007 faced numerous severe challenges. Many arrived home to find shelters and infrastructure damaged and their livelihoods inaccessible as a result of looted tools and equipment and lack of funds to replace them. WFP warned in mid-2007 that the returnees to Batticaloa would face a food shortage if they were not assisted in growing local produce, and that they were in urgent need of livelihood assistance as well as food aid from WFP and the government if they were to resume their regular coping mechanisms. (Daily Mirror, *Sri Lanka among UN hunger hot spots*, 25 July 2007)

Property restitution has continued to be complicated, especially for people who have been displaced more than once. More than 80 per cent of the total land area of Sri Lanka is owned by the state, and private ownership of land can be only established if it has been occupied for an uninterrupted period of ten years. Loss of documents to establish land title remained common as a result of displacement or destruction of homes and government land ownership offices.

The lack of state-owned land suitable for the resettlement and relocation of IDPs is a major problem. Host communities are often unwilling to receive IDPs for resettlement due to their fear of

a negative economic impact or their ethnic or religious prejudices against those being resettled. (UN Country Team, *Sri Lanka: Common Country Assessment Part II*, October 2006, p.7)

Landmines remain as a threat to returnees. At the time of the 2002 ceasefire, 1.5 million mines and other unexploded ordnance littered ten districts in the north-east, covering a total area of 202 square kilometres. Although mine clearance agencies were able to remove mines from many areas, more than a million mines and unexploded ordnances are unaccounted for, and at least 95 square kilometres remain contaminated. (UN Office for Coordination of Humanitarian Affairs IRIN News, *Sri Lanka: Conflict disrupts ongoing demining efforts*, 2 August 2007)

The general security situation in many return areas remains of concern. Civilians continue to risk death and injury, intimidation, abductions and forced disappearance, loss of shelter, livelihoods, and the breakdown of essential community and family structures. In addition they have only limited access to basic services.

The recent wave of displacement, return and resettlement have led to fears among minority communities of state-sponsored colonisation programmes which they believe are designed to change the ethnic demography of the province. (South Asians for Human Rights, *Report on the Fact Finding Mission to the North and East of Sri Lanka to Assess the State of Displaced Persons*, August 2007, p.10) Some residents in the eastern provinces cite as examples of the ongoing Sinhalisation of eastern Sri Lanka the government-sponsored movement of Sinhalese settlers into Tamil and Muslim areas, movement of administrative boundaries so as to reduce the size of minority populations in certain areas, and the declaration of minorities' land as sacred land for construction of Buddhist temples. (South Asians for Human Rights, pp.25-26)

Landlessness, High Security Zones, landmines and unemployment are some major factors hindering large-scale return (January 2004)

- Many find that houses and surrounding areas are either destroyed or occupied by armed forces or paramilitary groups or by other displaced persons
- Many areas are contaminated by landmines and unexploded ordnances
- Lack of humanitarian assistance and continuing human rights violations are other major factors affecting returns
- The breakdown in peace negotiations has engendered uncertainty in the whole peace process and a sense of insecurity discouraging return
- Return also depend upon the restauration of damaged or destroyed infrastructure in war-affected areas
- A May 2003 study by the Asian Development, UN and the World Bank concluded that conditions are not yet conducive to large-scale, organised resettlement of IDPs and refugees, mainly because of high security zones, mine contaminated areas, land and property rights issues including landlessness and the lack of infrastructure and basic services.
- Difficulties in accessing key documents, such as birth certificates, national identity cards, marriage certificates and death certificates continues to present problems.

SAAG, 31 January 2003

"The majority of the remaining IDPs have expressed willingness to return home. But they are unable to do so immediately because their homes and surrounding areas are affected by one or more of the following: They are (a) in the High Security Zones (HSZ) of the Sri Lankan armed

forces where civilians are not permitted to enter; (b) occupied by the Sri Lankan armed forces or paramilitary groups or by other displaced persons; (c) contaminated by an estimated 2 million landmines and unexploded ordnances; (d) partially or fully destroyed or overgrown by jungle and populated by wild animals; (e) the main places for the presence and activities of the armed forces or the LTTE or other militant groups, resulting in insecurity.

("The Sri Lankan Army has occupied large tracts of territory in the Jaffna Peninsula and media reports indicate that the "no go" areas constitute 190 sq .kms of the total area of 880 sq.kms and there are in all 18 HSZs in the Jaffna Peninsula alone".

The Refugee Council, September 2003, p. 8:

Most recent returnees face many problems in re-integrating in the places of origin because a) they have not been assisted financially or otherwise; b) they cannot regain assets and properties; or c) they are unable to resume economic livelihoods.

The planned immediate humanitarian and rehabilitation work has been terminated because of the suspension of the peace talks and is affecting the returnees and IDPs who wish to return.

Following the signing of the ceasefire agreement, large-scale killings and destruction have stopped. However, killings, abduction, harassment, recruitment of children, illegal taxing, extortion and other forms of human rights violations and violations of fundamental rights have continued. These violations are widespread especially in the north-east in the areas where the displaced have returned.

Those who have not yet returned face continuing problems of displacement and uncertainty about their future. There is a discernible lack of interest in their situation from the state and other agencies. They also continue to experience hostility from host communities.

Ethnic violence, which erupted in the Eastern Province during the ceasefire period, resulted in the displacement of nearly 40,000 people belonging to Tamil and Muslim communities and the ethnic tensions continue to affect the normal lives of the people in these areas.

The Sri Lankan government has declared that its priority is the resettlement of IDPs and then the return of Sri Lankan refugees from India. The government has also stated that once peace is established it expects the economy to boom and that the resultant large-scale development in the infrastructure will lead to the return of Sri Lankan refugees from abroad through voluntary assisted return programmes.

The present situation and current conditions of the country warrant planned and managed movement of the return of IDPs and refugees to their places of origin. Mass, sudden and unplanned returns will bring great pressure on the available infrastructure, such as schools and hospitals, and will in turn affect local communities, particularly in view of the lack of capital, personnel and expertise needed to revitalize local economies. The resulting tensions may have an impact on the peace process itself."

RI 6 January 2004:

"Displaced persons cited a number of reasons why they have not been able to return to their homes. First, the government has designated large areas of the north, especially around the city of Jaffna, as "high security zones" controlled by the army where civilians are not permitted to reside. Fishermen are especially affected as many of the "high security areas" encompass coastal areas. Second, about a million landmines over broad expanses of former battlefields prevent farmers from returning to their lands, and although various agencies are working to demine these areas, the work will not be completed prior to 2006. Third, new residents often

occupy the former homes and lands of the displaced. The problem of determining ownership of lands and houses is not being addressed. And fourth, many of the displaced were landless at the time of their displacement and have no place to return to; they remain in the welfare centers because they have no alternative. The government insists that displaced persons return to their district of origin as a condition of aid, thus discouraging any relocation or local integration of displaced persons who do not wish to return to their district of origin.

Another factor discouraging many displaced persons from returning to their former homes is that many of the displaced are from areas under LTTE control or influence. Living standards and economic opportunities in LTTE-controlled areas are lower than in the rest of Sri Lanka, and the poor quality of schools in those areas is another factor keeping many families from returning. Spoken of only obliquely is the fear of many families that their sons, including teenagers, will be induced to join or will be impressed into the LTTE's army. The use of child soldiers by the LTTE is well documented and, according to some observers, recruitment has increased since the ceasefire. Many of the displaced may have fled in the first place to keep their sons out of the ranks of the rebel army. UNICEF, which has a program to demobilize child soldiers, is appropriately taking a hard line with the LTTE about the recruitment and use of child soldiers."

ADB, UN & WB May 2003, pp. 11-12

"55. Conditions are not yet conducive to large-scale, organised resettlement of IDPs and refugees, though the situation is evolving rapidly. Security concerns, high security zones and mine contaminated areas, and land and property rights issues including landlessness, are notable impediments, as are the lack of infrastructure and basic services.

56. Progress towards attaining full respect for the rights of the individual, including the right of access to basic necessities, will be reached principally through progress in the peace talks. This, in turn, should permit the authorities and other actors to more effectively undertake work in development sectors. In the interim, however, there will be a continuing need for humanitarian assistance, particularly among IDPs and communities, in areas where returnees can be expected to integrate or to resettle, and attention must be given to immediate protection concerns and near-term integration/ reintegration assistance.

57. Difficulties in accessing key documents, such as birth certificates, national identity cards, marriage certificates and death certificates continues to present problems. The physical destruction of housing and other property is the most visible consequence of the conflict. Problems and disputes are arising out of destruction of boundary lines, loss of ownership and other land related rights as a result of non-occupation/non-use due to displacement, loss of property deeds, secondary occupation, transfers made under duress and landlessness. The special concerns of second-generation IDPs regarding integration or return to their ancestral district, and succession and inheritance related issues, will need to be addressed if sustainable IDP and refugee return is to become a reality. Situations where minority ethnic communities have been collectively displaced and their land subsequently occupied by another ethnic community pose particular challenges, which need to be addressed urgently to ensure that these people can also exercise their right to return in safety and dignity."

The Refugee Council, September 2003, p.38

"Apart from those who owned assets and property before displacement, there are many other IDPs who have no place to go and no means to begin a livelihood. They include the following:

Hill Country Tamils who settled in the north and worked as tenant farmers prior to displacement. These Tamils originally lived in tea and rubber plantation areas but sought safety in the Vanni region following violence against them in 1977, 1981, and 1983.

A new generation of displaced persons who reached adulthood during displacement and do not own any property.

People who lived in rented accommodation before displacement.

People who lived on state lands before displacement, whose properties are now occupied by others.

Landless IDPs.

These categories of IDPs consist a significant proportion of the total number of IDPs and their problems also need to be addressed in resettlement and rehabilitation work. In some places, new housing schemes or villages have sprung up with the assistance of local and international NGOs, on state lands where permit holders were in occupation prior to displacement. 'Permit holder' means a person who has been legally authorized to be in occupation of a state land in terms of the provisions of Section 19(4) of the Land Development Ordinance."

UNHCR surveys among IDP populations indicate great variations regarding returns - more surveys needed (August 2005)

- Of the 613,220 who voluntarily registered in an IDP survey by the UNHCR and the Ministry for Rehabilitation, Resettlement and Refugees in 2002, 390,000 (63%) wanted to return home, 20,300 (3%) preferred to move to a new place, 155,400 (25%) wanted to remain where they were
- UNHCR has since undertaken informal surveys of welfare centres to map main obstacles to return and willingness to return
- UNHCR wishes to undertake more surveys of IDP populations and their specific protection needs, but depends on government support

MRRR&UNHCR, 2004; UNHCR, Colombo office, August 2005:

"How many of these remaining 373,079 IDPs want to return home? The best available guide comes from a survey of IDPs conducted in mid-2002 by UNHCR and the Ministry for Rehabilitation, Resettlement and Refugees. Of 613,220 IDPs surveyed, 155,372 – or a quarter of all those surveyed – said they did not intend to return home. A further 20,293 said they wanted to move elsewhere. Together, that makes 175,665 IDPs who indicated they did not wish to return to their place of origin.

A follow-up survey of MRRR and UNHCR, conducted in 2004 in Puttalam welfare centres, provides similar results, 60% wanting to return, 38,5% wanting to integrate locally. UNHCR had the intention of expanding this sort of surveys to other IDP groups, but will depend on the support of the government to do so. As of August 2005, no new surveys have been planned.

UN Inter-Agency IDP Working Group, 29 April 2004:

To gain a greater understanding of the causes of ongoing displacement, UNHCR has been conducting informal surveys of welfare centres. Such a survey was completed recently in Mannar District, with five of the six welfare centres in the District covered.

A similar survey conducted last year in welfare centres in Vavuniya District identified "landlessness" as the main reason for people not to return home. The same conclusion was reached in Mannar, where 30 per cent of respondents cited landlessness in their place of origin as the key obstacle to return, followed by "House in High Security Zone or occupied by the Security Forces" (19 per cent) and "Joblessness in place of origin" (17 per cent). However, only 36 per cent of those who cited landlessness and 18 per cent of those who cited joblessness said

they would be willing to return home if that problem were resolved. These results suggest that people are far less willing to return home if they had little prior to their displacement.

[...]

obstacles to return and willingness to return differ greatly from one District to another. For IDPs from Mullaitivu and Kilinochchi, landlessness in place of origin is clearly the main obstacle to return – and most of those citing landlessness said that even if this problem were resolved, they would still not be willing to return home. One possible explanation is that many IDPs originating from the Vanni were already IDPs in that region, having been displaced to the Vanni from upcountry and Colombo following the communal riots of 1977 and 1983. As IDPs in the Vanni, they were often without land or stable jobs.

But of those IDPs originating from Vavuniya and Mannar who cited landlessness as their main obstacle to return, most said they would be willing to return if this problem were resolved. Indeed, in these Districts, the problem of land being occupied by High Security Zones or by the Security Forces was considered an obstacle of equal, if not greater, significance as landlessness, and one that if resolved should lead to people returning home. By contrast, of those IDPs who cited joblessness as their primary obstacle to return, almost none said they would be willing to return if this problem were resolved."

UN IDP Working Group, 10 November 2003:

"In recent months, UNHCR has been conducting a number of informal surveys of IDPs residing in welfare centres. The aim is to assess the needs of these people and to explore why, at this stage, they have not returned home.

One such survey, completed in Vavuniya District, identified lack of land as a key obstacle to return.

There are many causes of landlessness, including lack of documentation and property disputes (see case study later in this Bulletin). In addition, a significant number of the landless people in the welfare centres in Vavuniya are up-country Tamil families who fled to the Vanni in the 1970s.

As well as landlessness, commonly cited reasons for not returning included:

concern about children's safety;
not wanting to leave behind family and friends;
lack of education facilities in return areas;
female head of house;
old age, health problems and disabilities;
houses or property occupied by the army or police, or located within high security zones;
lack of job opportunities in return areas."

Jaffna: the most important factor hindering return is the existence of the military High Security Zones (June 2006)

- The majority of IDPs now living in refugee camps in Jaffna were originally displaced from High Security Zones (HSZs)
- As of June 2003, a government report said that 94% of those IDPs who were displaced from their homes within the HSZs and currently live in welfare centres, were unable to return to home areas
- The security forces are also occupying many houses belonging to IDPs outside the HSZs
- The existence of landmines is another factor that prevents the return of IDPs within the Jaffna peninsula

- Other factors include damaged and destroyed assets and properties, no access to livelihood and no access to medical and other facilities upon return

AI, June 2006:

One of the most common reasons why conflict-displaced people remain displaced is because their homes are in HSZs or are in other ways being used by the military. For example, UNHCR reported that in Trincomalee a community of Muslim conflict-displaced people are being prevented from returning to their land as the SLA claim that it needs the water supply there. Such military occupation of private land has caused great controversy and is a major issue of contention between the LTTE and government. However, it is also the case that some IDPs are unable to return home because the LTTE is using their land for military activities, for example in Trincomalee where Muslim and Tamil IDPs currently living in the Kinniya area are reportedly being prevented from returning because their homes are near an LTTE training camp. Until there is a permanent peace settlement it is unlikely that either party will relinquish occupied private land and therefore in the current climate of increasing tension the prospects of return for these IDPs are dim. For other IDPs returning home is impossible because there are landmines or unexploded ordinance on their land.

These IDPs whose land is used for military purposes or is mined are among those for whom the government sees resettlement as an option, although in practice it is not always available. However, many of these IDPs are reluctant to resettle as they fear that by doing this they may lose the right to return to their original land. The LTTE also opposes the resettlement of conflict-displaced people whose land is in HSZs, insisting that the HSZ should be removed and the IDPs' land returned to them. It appears that, in order to allow these people to leave the welfare centres and build some kind of permanent life in the absence of any withdrawal of the HSZs, provisions are needed that allow resettlement while guaranteeing IDPs the right and support to return to their homes of origin or places of habitual residence if this becomes possible.

On 8 May 2006 the Supreme Court of Sri Lanka ordered the District Secretary of Jaffna to seek the possibility of resettling 7,000 families who have been displaced from the Palali High Security Zone.⁽⁵⁰⁾ Under the decision, the Attorney General's Department is to consult the Defence Ministry to obtain information about the number of persons who had been forced to vacate the area due to military activity. In Jaffna District as a whole, according to UNHCR, over 8,242 persons (2,197 families) are currently living in 69 welfare centres in the district.

IDP WG, 29 April 2004:

The most important reason for the inability of the IDPs to return is the existence of the military HSZs. In fact, the majority of IDPs now living in refugee camps in Jaffna were originally displaced from HSZs. An IDPs information report of the Jaffna Government Agent [...] on 1 June 2003 says that 94% of those IDPs who were displaced from their homes within the HSZs and currently live in welfare centres, are unable to return to home areas (Table 7). In addition, IDPs living within half a kilometre radius of a HSZ, are not permitted to engage in any economic activity within that area. The security forces are also occupying many houses belonging to IDPs outside the HSZs.

The existence of landmines is another factor that prevents the return of IDPs within the Jaffna peninsula, an area formerly largely occupied by the people or used for economic activities. The following areas of the peninsula are contaminated by landmines:

Jaffna and Nallur Divisional Secretary's Division (DSD)[...]- most of the Muslim areas of Jaffna Town, Ariyali and Columbuthurai.

Uduvil DSD - concentrated around security structures erected during the fighting and mainly found in Erlalai North, Kuppilan North and Punnalaikadduvan North. Around 50% of the total area of this DSD is identified as dangerous.

Thellipalai DSD - out of 17 Grama Niladhari (Village Headman) Divisions (GND), 13 are known or suspected to have areas contaminated with mines.

Chankanai and Sandilipai DSDs - 15 GNDs of these areas are suspected to have landmines.

Kopai, Karaveddy, southern region of Thenmaratchi (Chavakachcheri) and other areas where military bases were established are also known to have mines.

In the islands west of the Jaffna peninsula, mines have been placed by both parties.

Point Pedro in north-eastern Vadamarchy.

The Refugee Council, September 2003, p.30

During the war and in the prevailing period of peace, it is the civilians who have been most affected by mines. While the scale of the problem of landmines is not known, it is estimated that 20 sq km in the Jaffna District are affected by over 500,000 landmines.

Apart from the above-mentioned reasons, there are other factors which prevent the return of IDPs and refugees to their homes in Jaffna. They are the following:

Damaged or destroyed assets and properties: In areas of intense fighting, no permanent structure has been spared. Along the A9 road and roads leading to Palaly Airport and to the sea port such as Kankesanthurai and in parts of Jaffna town facing Mandativu Island and large areas of north-eastern Vadamarchy, most of the permanent structures (houses, schools, hospitals and factories, etc.) have suffered severe damage or destruction. People displaced from these areas cannot return for the reason that they will have no shelter.

Access to agricultural areas occupied by armed forces: Large tracts of agricultural land are occupied by the security forces, particularly in north-western Valikamam and southern Thenmaratchy areas.

Restrictions on fishing: The armed forces do not allow fishing in areas near HSZs. In March 2003, the perimeter of the Army camp at Ariyalai in Thenmaratchy was extended, affecting some 1,000 fishermen.[...]. In almost all the areas, fishermen must obtain permits from the armed forces to go to sea for fishing. Apart from these restrictions, the LTTE have decreed that some types of fish can only be sold through middlemen appointed by them.

No access to education, medical and other facilities on return. Because of lack of access to these basic facilities, IDPs continue to live in the areas where they have been displaced.

Slow process of resettlement allowance. Due to red tape and lack of funds, many returnees were not able to obtain government assistance on return. This situation has forced some people to go back to the places of displacement and has discouraged those who intend to return home.

Discrimination in resettlement allowance. Complaints have been made that current returnees receive a higher resettlement allowance than those who returned before February 2002. [Those who returned before February 2002 were paid the Rs 25,000 housing allowance in instalments and have received only a part of the total allowance and were unable to complete their houses. Returnees after February 2002 are entitled to Rs 75,000 based on current costs]. Further, many returnees have not been provided any assistance and in Jaffna those returnees from the Vanni are given the allowance while some people displaced within the Jaffna peninsula are denied. Government officers in some areas of the north-east are also not accepting letters proving residence of the IDPs, issued by *Pradeshiya Sabha* (Regional Council) secretaries outside the north-east region. [...]

Read also:

Jaffna: not all government offers for resettlement and relocation are acceptable to IDPs (April 2005)

- Displaced People Welfare Association in Jaffna rejects Government land offer
- Fishermen demand return to their homes in HSZ, and same relief and rehabilitation assistance as tsunami-IDPs in South
- Following the fishermen's demands the SLA allows IDPs to settle in no-man's land near HSZ

TamilNet, 9 February 2005:

"Mr N Ganesh, president of the displaced people welfare association in Jaffna said that the displaced people of Valikamam North Military High Security Zones categorically reject Sri Lankan governments recently announced offer of alternative lands in place of the lands occupied by the Sri Lankan armed forces in High Security Zones in Valikamam north, sources in Jaffna said.

Most of the lands occupied by the Sri Lankan armed forces in Valikamam north are the best arable high yielding red soil lands in the Jaffna Peninsula. Residents of these areas depended on cultivation for their living. This people who were displaced 14 years ago due to the military occupation of the lands have still not been able to return to their homes and they are living without employment opportunities.

Mr. Ganesh also said that the land which the government proposes to offer is barren and is not at all suitable either for cultivation or for building homes. Settling in these areas which do not even have drinking water would be worse than living in the present displaced camps, he added."

TamilNet, 6 March 2005:

"Vadamaradchi East Fisheries Co-operative Societies Union (VEFCSU) has requested the Government of Sri Lanka to take immediate steps to allow all Internally Displaced Peoples (IDPs) to resettle in their own lands in Nagarkovil West, Nagarkovil East, Nagarkovil South and Amban East, which are located inside the high security zone (HSZ) [and are occupied by the Sri Lanka Army], sources said. [...]

VEFCSU has asked the government why the tsunami affected people of the north coastal areas are not provided with relief, and rehabilitation assistance on the same level as with the people of the south."

TamilNet, 3 April 2005:

"Jaffna area command of the Sri Lanka Army has given permission to the Jaffna district secretariat to relocate a section of the internally displaced families (IDPs) in an area located close to northeast of Palaly High Security Zone (HSZ) following threats by the Valigamam north fisheries societies that they would launch an agitation campaign if their demand were not met, secretariat sources said.

Earlier the IDP families living in coastal areas of Vadamaradchchi division for about fifteen years demanded that they should be allowed to resettle in Manpainthaveli area between Thondamannaru west lagoon and Valalai. No SLA camp is currently located in the said area.

Valigamam north fisheries societies are now preparing lists of names of IDPs who are willing to relocate themselves in the no-man land, sources said. A section of IDP families now residing in coastal villages in Vadamaradchchi division are preparing to relocate to the said no-man land, sources said."

TamilNet, 5 November 2004:

Efforts by the Government to resettle people from welfare centres in the Vavuniya district to the Manikfarm area were also met with protests as the displaced argued that they would not feel secure as three army camp are located in proximity to the resettlement area.

Vavuniya plan to address plight of IDPs and returnees (2004)

- Vavuniya resettlement programmes can only apply to IDPs originating from Vavuniya district
- It is important to provide for adequate water and sanitation in locations of resettlement
- Re-construction, both of the infrastructure and the social fabric, is important to achieve lasting solution

MRRR, 2004:

"A total of 10,740 families with 41,878 persons are displaced and living in the welfare camps or with friends and relatives as at May 2004. Out of this total only 10,972 persons from 3,302 families are from Vavuniya district. The balance 30,906 persons from 7,484 families are from other districts of the North. As most of the IDPP are from the other districts, the resettlement programmes initiated by the Government Agent, Vavuniya will encounter serious difficulties depending on various factors prevailing in the districts of origin of IDPP rather than the situation in the Vavuniya district itself. A total of 30,235 families were displaced in Vavuniya district. Out of the total displaced families 24,536 have been resettled up to 5,800 families to be resettled in the 4 D.S. divisions.

The total No. of families that have to be resettled as well as the funds required for payment of resettlement allowances and the housing grant on the basis of current government policy is as follows: Resettlement allowances to 5,728 families and part payment to 2,036 resettled Families on the basis of Rs. 25,000/- per family amount to Rs. 145,592,000/-. Housing grant has to be paid to 7,640 families at the rate of Rs. 150,000/- per family. This amounts to Rs. 1,146,000,000/-. Total amount of funds required - Rs. 1,291,592,000/-

There is a need to provide water as well as sanitation facilities. Inadequacy of sanitation facilities in areas where resettlement has taken place has lead to environmental pollution in the district.

The resettlement package of assistance given to resettled families up to end of 2001 was Rs. 65,000/-. This was revised in 2003 and it was increased to Rs. 100,000 This scheme was again revised and now it is Rs. 175,000/- of which Rs. 25,000/- is for initial settlement allowance and Rs. 150,000/- is for housing grant. there is a worrying increase in the balance between rising needs and available resources to meet them. If this is not redressed, it not only undermines durable solutions for the returning population and sustainable development in the conflict area, but risks loss of popular support for the peace process. Closer co-operation to ensure a smooth transition from relief to development is therefore critical to support the peace and reconciliation process in Sri Lanka – which despite current optimism among the population is unlikely to be smooth. In general terms, the government lacks adequate mechanisms to respond to the increasing needs.

Major constraints in implementing programmes connected with Resettlement of Displaced Persons

Resettlement of Displaced Persons in their original areas is not immediately possible.

Relocation is the other alternative, but suitable lands are not available always and the displaced persons prefer to go back to their original homes.

Presence of mines too prevent access to original fertile agricultural lands as well.

Payment made to rebuild houses is not adequate. Building materials are costly and skilled personnel are in short supply. It costs at least Rs. 150,000 to build a house with basic facilities.

Compensation paid to damaged houses and business premises do not reflect the actual damage sustained by the owners and compensation payments have to be made to all affected and needy and it is long overdue.

Environmental degradation largely due to depopulation is a major hazard. Access to necessary health services and educational facilities are not available to resettled families.

Lack of opportunities for economic initiatives and income generating activities. Assistance given is hardly adequate. Infrastructural facilities and support services have still to be developed.

Marketing linkages have been disrupted and travel restriction on movement of persons and goods make it difficult for marketing channels to develop.

The loss of nutritional and health status and total impoverishment are some major consequences of the conflict and ensuing displacement. In addition to the massive displacement and increase in the number of women headed families, the poverty rate and the unemployment rate in the district have increased. It has created segments of poverty and vulnerable groups which have been issues of serious concern to the government and the community as a whole and a major issue in the rehabilitation and developmental process.

Post Conflict Preparedness and the Need for Social Integration

The protracted conflict had damaged the social fabric and structure and the need of the society would not only include reconstruction and development of the material base but also the 'rebuilding' of people, families and communities. A programme for revival and rehabilitation therefore has to pay special attention to the integration into the main stream of economic activities, groups such as long term displaced people resettled in new areas, people who have lost their production base, women headed families, unemployed

youth and ex-combatants. The major social impact of displacement and resettlement are security concerns, lack of selfreliance particularly among those in welfare camps and vulnerable groups to whom the basic services are less accessible and opportunities for economic activities are totally limited.

Post-disaster rehabilitation and revival must also plan for the integration of displaced and other vulnerable groups into the mainstream of social and economic life. Rehabilitation and reconstruction of infrastructure is essentially important and a challenging task that needs immediate attention. In this context Relief, Resettlement and Reconstruction has to be integrated with the development process. "

Manna and Jaffna districts: occupation of land by government forces and LTTE hampers return of the displaced (February 2003)

- Many people in the North remain IDPs because their property has been taken over by the LTTE or government forces.
- In addition, property owners are not allowed to live within the vicinity of areas declared as High Security Zones (HSZ)

- Rent is sometimes paid by the military to the owners.
- In the Jaffna peninsula the HRC regional office mediates between the owners and the SLA, however the HRC regional offices do not have the mandate to mediate in instances where the LTTE is the party occupying
- LTTE pays rent to some owners while some property has been taken over by force.

CPA February 2003, pp. 10-11:

" [...] a substantial land area is occupied by the Sri Lankan Army (SLA) and the Police in the North-East, in particular in Mannar and Jaffna Districts. There are also concerns that the Army has been expanding or creating new High Security Zones (HSZ). In addition to HSZs, a high number of Army and Police posts located on people's properties have still not been vacated.

As a consequence of Army and police occupation, many IDPs are unable to return. At the time of writing no solutions had been devised to assist affected IDPs through relocation programmes or compensation packages. The policy of the Army with regard to the payment of rent for occupation of property appears to be *ad hoc*, with only certain affected IDPs being granted rent.

A Sub Committee on De-Escalation and Normalisation (SDN) was set up following the second session of the first round of the Peace Talks with a mandate to look into the issue of, *inter alia*, High Security Zones. Following the fourth session of the first round of peace talks, the SDN was deactivated, leaving the issue in limbo. The parties agreed, however, on an Action Plan for the Accelerated Resettlement of the Jaffna District, which will look into the vacating of areas in the vicinity of High Security Zones. Disputes over occupation by the Armed Forces is presently resolved at District Level.

LTTE occupation

Most abandoned lands in LTTE-controlled areas have been taken over by the LTTE, in particular the properties of Muslims evicted in 1990, refugees in India and emigrants. The land has been subsequently either rented, given to the families of LTTE cadres or used by the LTTE to host their administrative structures. The LTTE has reportedly allowed IDPs to settle on other people's lands. It is also to be assumed that some LTTE camps are located on the land of IDPs. The LTTE has reportedly instructed occupiers to vacate the lands of returnees.

The return of the property of Muslim IDPs is an issue which has come to the fore. Whilst the LTTE leadership has reiterated its commitment to returning the land of Muslims, Muslim IDPs remain suspicious of their good intent. A number of Muslim lands have been used to build LTTE administrative or other structures and it appears unlikely that the land will be returned to the owners. It is noteworthy that while a handful of Muslims entered into agreements to receive rent from persons occupying their business premises in Kilinochchi town, none are expected by the occupiers to return permanently.

At the time of writing, the LTTE had asked the SLMC to hand over a list detailing the particulars, names, locations and extent of land of Muslims. "

HUMANITARIAN ACCESS

General

Humanitarian access very restricted in the Vanni and north (February 2008)

- In the LTTE-controlled Vanni, restrictions on goods such as cement, iron and steel along with irregular access impact the transport of essential goods and services into conflict areas and assistance for vulnerable populations
- With the commencement of hostilities only a handful of agencies are willing to operate in the LTTE-controlled areas and only a fraction of them are allowed do so by the army and the LTTE
- In December 2007, in one incident the LTTE ordered aid agencies to cease operations and move staff out impacting over 30,000 IDPs

CHAP, February 2008:

"The unpredictable nature of the conflict, in particular shifting confrontation lines, has been a key challenge within the humanitarian environment, stretching agencies' staff and material resources and hindering implementation of assistance programmes. Simultaneously addressing displacement and resettlement needs has been another major challenge. Restrictions on certain goods such as cement, iron, steel etc. that could strengthen LTTE capabilities are currently in place. These restrictions, together with irregular access, impact on the transport of essential goods and services into conflict areas and assistance for vulnerable populations in the Vanni. Currently the Jaffna peninsula is only accessible by the sea and air, translating into greater operational costs. Restricted access, along with staffing constraints have also impacted humanitarian coordination, reducing the ability to support strategy development, monitor project implementation and provide timely information products. In addition, negative UN/NGO press coverage has diverted energies from operations and has increased risk to aid workers."

IRIN, January 2008:

"The rapidly deteriorating security situation in Sri Lanka has already affected the ability of aid agencies to work in the conflict-ridden north. In mid-December, all international agencies working in Mullaithivu District and parts of Kilinochchi District (both under the control of the Tamil Tigers in Sri Lanka's north) were asked by the Tigers to cease operations in those areas and move staff out. According to officials with the UN and international aid agencies, the Liberation Tigers of Tamil Eelam (LTTE) informed them through the government agent in Mullaithivu, Imalda Sukumar, in mid-December that they could not guarantee the security of international staff based in Mullaithivu. The WFP pullout has meant it has been unable to deliver food to 32,000 internally displaced persons (IDPs) in Mullaithivu District over the past three weeks. The curtailment also meant no food supplies for other programmes, including Food for Education (FFE), Food for Training (FFT), Food for Work (FFW) and Mother and Child Nutrition (MCN), in the district, according to an Inter Agency Standing Committee (IASC) situation report released on 20 December.

The IASC report said the restrictions applied in areas east of Kilinochchi, the political and administrative nerve centre of the Tamil Tigers, 250km north of Colombo. The LTTE warning

came as confrontations along the line of control southeast of Mullaithivu increased in mid-December."

CPA, December 2007:

"Access to areas by humanitarian actors has been restricted largely on security grounds by various armed actors. This has been particularly pertinent with regard to the LTTE-controlled areas. As military operations have intensified in particular areas, access was restricted to areas such as Sampur, Vaharai, Western Batticaloa and Wanni. With regards to LTTE-controlled Wanni for instance the Government granted entry only to twenty agencies. With the commencement of hostilities including artillery exchanges, aerial bombardment, ground troop movements and shifting lines of control, only a handful of agencies are willing to operate, and only a fraction of them, usually the ICRC, are allowed to do so by the military and the LTTE. In such contexts, it is necessary to secure a humanitarian corridor whereby the armed actors agree not to engage in military operation along an identified supply route for a particular time period. For example, following the intensification of violence in Vaharai in August 2006 access was highly restricted. During one rare instance when the UN convoy received the approval of both parties the fighting resumed putting the convoy at risk. Humanitarian corridors continue to remain a priority to access the LTTE-controlled Wanni."

Humanitarian access improves in the east in returnee areas but some restrictions continue (May 2008)

- Humanitarian access has improved in the east, at least 20 UN agencies and NGOs have greater access in returnee areas of the east
- Agencies engaged in protection activities find it much hard to obtain access
- Once an areas is deemed safe for the return of civilians, safety should not be the basis for exclusion of humanitarian actors

SRSG, May 2008:

"While humanitarian access has improved somewhat in the East, some humanitarian organizations still do not enjoy full access to all areas of return. In the East, organizations are often subject to two level of approval, on a project-by-project basis, by the GA and the area security commander....agencies engaged in protection activities find it much more difficult to obtain access than those providing material assistance. Serious and legitimate security concerns may occasionally dictate temporary restrictions on access, but such restrictions should be the exception and not the rule. Moreover, once and area is deemed safe for the return of civilians, safety should not be a basis for the exclusion of humanitarian actors."

IRIN, November 2007:

"Some relief agencies now say they are able to work in the resettlement communities effectively even though they still have to operate within government guidelines. The guidelines require agencies to submit project proposals to the government agent (GA) who in turn refers them to the regional military headquarters. Agencies can begin work only after approval by both entities...while three months ago few agencies had continuous access to resettlement areas in Batticaloa West and North, now at least 20 UN agencies and international and local non-governmental organisations have such access.

[...]

Aid agencies are required to provide government authorities with personal details, including places of residence and identification numbers for project personnel, and the registration numbers of all vehicles that will be deployed.”

Aid agencies and staff under threat (March 2008)

- Since 2006, humanitarian workers are being increasingly targeted in Sri Lanka
- Tamil male humanitarian workers are the most vulnerable
- The figures from Sri Lanka are comparable to statistics from conflict areas in Iraq, Afghanistan and Sudan
- Violence and attacks have led to humanitarian agencies curtailing their movement, suspending projects and withdrawing from certain areas
- Besides being victims of killings and disappearances, aid agency staff have been injured in violence and subject to abductions by the LTTE in the Vanni

LST, March 2008:

“Since 2006, it has been “open season” on humanitarian workers...In addition to the war against each other, armed actors in Sri Lanka are clearly waging a war against humanitarian service and those engaged in humanitarian service. In the 24 month period from January 2006 to December 2007, there has been a killing or enforced disappearance of at least one person engaged in humanitarian service in every month, except March and October 2006.

Tamil male humanitarian workers between the ages of 21 and 40 have been the most vulnerable... More than a third of all humanitarian workers killed were from Jaffna, while all but one incident occurred in the Northern or Eastern provinces.”

CPA, December 2007:

“Over the course of the last two years aid agencies and workers have increasingly become victims and targets of various forms of violence. Sri Lanka has become one of the most dangerous places in the world for humanitarian agencies. The killing of 17 personnel from the international agency Action Contre La Faim (ACF) in Muttur in August 2006 is the most notorious example. However, it is one case in a series of violations and threats. In 2006 it is estimated that 39 humanitarian agency workers were killed or disappeared in Sri Lanka. In 2007 the figure as of December 17 2007 stands at 22. The most recent casualty was a humanitarian worker from the Sri Lanka Red Cross who was abducted and killed in the most brutal fashion in Jaffna on 16 December 2007. Looking at incidents of killings and disappearance alone, the figures for Sri Lanka are comparable to some of the statistics from other conflict areas such as Iraq, Afghanistan and Sudan. All of the victims of these killings and abductions are locals, making it clear that they are most under threat. It needs to be noted that it is mostly young Tamil males who are victims, reflecting the general pattern of the conflict. Some of these killings may be due to humanitarian workers getting ‘caught in the crossfire’ of the conflict, such as the victims of claymore attacks. It is also clear that in certain situations the killings have been targeted in execution type killings. The killings could be the result of multiple factors such as the targeting of particular NGOs, as well as other factors such as ethnicity and individual reasons such as the political associations of the victims, personal disputes.

The violence against and the attacks on humanitarian agencies have resulted in the agencies curtailing their movement, suspending projects and even withdrawing from particular areas which has a direct impact on affected communities. Both the Government and the LTTE have

condemned specific incidents but in none of the cases have the perpetrators of the crimes been prosecuted. The contestation of figures by the Government still remains and this is a critical problem that has to be addressed by the humanitarian community in particular. While it is essential that humanitarian agencies identify the motives for each of the attacks, so as to better identify the security threats they individually face, they need to recognise the cumulative impact of all these killings and disappearances and that they are being targeted.

In addition to killings and disappearances, humanitarian agencies have faced a range of other forms of violence. Agency offices and vehicles have been damaged either as a result of aerial bombardment, artillery, grenades, claymores and other attacks. In addition to being the victims of killings and disappearance agency personnel have also been injured in the violence. Agency staff have also been subjected to abductions. In LTTE-controlled Wanni, the local staff of humanitarian agencies are being forcibly recruited by the LTTE despite guarantees that it would not do so. An additional problem is that of 'taxation' where the agencies, or most usually their local partners, contractors and even beneficiaries are forced to pay armed groups. The Inter Agency Standing Committee (IASC) complained that in addition to killings, disappearances and harassment of civilians in the East by armed groups, they groups had also looted shelter material from the camps."

Restrictions on access and the safety of aid workers (Special report, 2007)

The "humanitarian space" in Sri Lanka has been steadily shrinking since 2006 and it has become increasingly difficult for agencies to respond to the needs of IDPs and other vulnerable groups. Aid workers are finding themselves being increasingly targeted in the brutal conflict. This is particularly shocking given that Sri Lanka has a long history of engagement with the international humanitarian community and respect for humanitarian principles. (Refugees International, *Sri Lanka: Humanitarians Under Fire*, September 2006, p.1) Furthermore, the policy of restricting agencies for security reasons has led many members of the humanitarian community to question why areas that are deemed unsafe for some NGO staff are at the same time considered suitable for IDP returns.

The aid community had limited access to displaced persons in Kantale and other areas of Trincomalee district during the hostilities of July and August 2006. In mid-August, when 35,000 largely Tamil IDPs fled LTTE-controlled areas of Trincomalee to Batticaloa district, the army provided only sporadic access to very few agencies to reach this civilian population. By the end of August, only UNHCR and the International Committee of the Red Cross (ICRC) still had permission to assist the civilian population in the LTTE-controlled areas, and then only in direct collaboration with local government officials. An estimated 200,000 permanent residents of Batticaloa district and 25,000 IDPs from outside the district were no longer reachable by humanitarian agencies. (Human Rights Watch, *Improving Civilian Protection in Sri Lanka: Recommendations for the Government and the LTTE*, September 2006, p.22) During ten days of fighting in Jaffna in August 2006, no serious efforts were made by either the government or the LTTE to open the A9 road for humanitarian convoys. (Human Rights Watch, *Improving Civilian Protection in Sri Lanka: Recommendations for the Government and the LTTE*, p.21)

Although large-scale combat may have ended in the east and north-east of the country, with the government taking control of the eastern province and launching an ambitious return programme, several international and local NGOs are still without continuous access to areas of return, particularly in the Batticaloa West region. Although access for humanitarian agencies to Batticaloa West has improved following a military victory there, problems remain with reaching all returnee areas of eastern Sri Lanka. Agencies maintain that it is critical to reach the returnee areas at this stage to make needs assessments and begin implementing rehabilitation

programmes. The army, however, continues to prevent agencies from travelling to certain areas, citing concern for their safety. UN agencies, especially UNHCR, and the ICRC generally have more access in areas of return than some international and local NGOs.

Since mid-2006, Sri Lanka has witnessed an increasing trend of harassment and violence against humanitarian workers. At least 30 humanitarian workers have been killed or are missing and presumed dead since January 2006. There were fatalities in directly targeted attacks, in addition to the 17 staff members of the French NGO *Action Contre la Faim* killed in August 2006, in Vavuniya in May 2006 (Norwegian Refugee Council), in Colombo in June 2007 (Red Cross) and most recently in July 2007 in Jaffna (Danish Refugee Council). Scores more humanitarian workers have been abducted and intimidated before their release.

Humanitarian agencies are reporting an increasing number of intimidatory incidents and extortion attempts in Batticaloa town, ostensibly perpetrated by the Karuna faction. While the government has been quick to condemn acts of violence against humanitarian workers, there has been a marked absence of prosecutions or investigations even when there have been clear indications of the perpetrators. For example, no apparent action has been taken by law enforcement agencies following the incidents of harassment and extortion by the Karuna faction in Batticaloa.

Access to IDPs and the freedom of movement for civilians, humanitarian agency staff and relief supplies are among the most prominent challenges confronting UNHCR and other aid agencies in Sri Lanka. UNHCR has been the lead agency for IDPs in Sri Lanka since 2004 and heads the protection and shelter sectors. Following the renewed hostilities in 2006, the agency scaled up activities to manage a population movement of up to 400,000 IDPs. The surge in violence in 2006 forced UNHCR and many other agencies to refocus on emergency response rather than durable solutions for IDPs.

Human rights organisations have declared that there has been a gradual loss of will among critical international agencies, including UNHCR, to publicly raise concerns about the government's violations during the process of return. (Centre for Policy Alternatives, INFORM Human Rights Documentation Centre, The International Movement Against Discrimination and Racism, Law and Society Trust, *Batticaloa Field Mission [May 2007]*, 4 June 2007, p.1) Additionally, it has been noted that UNHCR's statement that return was taking place in line with international protection standards was utilised by the government to silence critics, especially local critics of the return process. (South Asians for Human Rights, *Report on the Fact Finding Mission to the North and East of Sri Lanka to Assess the State of Displaced Persons*, August 2007, p.9)

In early August 2007, the UN's Emergency Relief Coordinator visited Sri Lanka. The UN High Commissioner for Human Rights is expected to travel to Sri Lanka in October 2007, and the UN Secretary General's Representative on the Human Rights of IDPs is planning a mission to Sri Lanka later in the year.

Severely restricted humanitarian access and serious security threat to aid community (October 2006)

- Most aid agencies have left Jaffna in August, due to the deteriorating security situation
- Humanitarian access to sizeable areas in the north and east remains constrained
- Humanitarian agencies themselves are targets of incrimination
- Their work has become increasingly hazardous, which is illustrated particularly with the assassination of 17 local ACF staff

- Administrative restrictions on NGOs exacerbate access problems; while the government says it is receptive to NGOs' complaints, it is not doing anything to improve the situation

UNICEF, 5 October 2006:

"The security situation remained tense and volatile in Jaffna, Trincomalee, Kilinochchi, Mullaitivu and Batticaloa districts due to the ongoing military operations. The humanitarian access to assist the civilian population in vulnerable areas has continued to be greatly impeded due to the prevailing security situation and lack of clearance from the authorities. The A9 road from Jaffna to Kilinochchi has remained closed since 12 August, preventing movement of humanitarian supplies. UN staff remain in Jaffna to assist with the emergency, but movement of UN personnel and supplies have been limited to one flight since the outbreak of fighting on the night of 11 August."

UN News Service, 22 September 2006:

Most of the humanitarian workers in the region [Jaffna], who were in Sri Lanka to help rebuild after the tsunami that struck a year and a half earlier, left in August due to the dangerous conditions.

UNHCR, September 2006, p.1, 2:

"Access to IDPs and freedom of movement for civilians, humanitarian agency staff and relief supplies are among the most prominent challenges confronting UNHCR and other aid agencies. This is in part the result of security restrictions due to the ongoing hostilities, but also as a result of restrictions on movement into areas under LTTE control and the closure of the A9 road north of Vavuniya, cutting the supply route to Kilinochchi, Mullaitivu and Jaffna. Since late August a few relief convoys have been granted access to some areas, some relief supplies have been shipped to Jaffna, and UN chartered flights have landed to Jaffna. Whilst this is a positive development, it is still not sufficient to meet the humanitarian needs.

In the context of the Common Humanitarian Action Plan (CHAP), launched on 30th August, humanitarian responses are being prepared according to sector, i.e. protection, human rights, education, food, shelter, water and sanitation, health and non food relief items. UNHCR has been designated as lead agency for protection, shelter, NFRI, and IDP site management.

[...]

Access to IDPs is severely restricted in many areas, particularly where fighting is ongoing, as well as areas under LTTE control, including considerable areas of Batticaloa, and Mannar and the entire Kilinochchi and Mullaitivu Districts. In addition to being cut off from the rest of Sri Lanka due to the closure of the A9 road, sea and air access to the Jaffna peninsula has also been interrupted and residents of Jaffna are subject to curfews. This has a serious impact on needs assessments, provision of food, non-food relief items and emergency shelter, and protection activities.

Restrictions on the movement of humanitarian staff and supplies are also hampering the replenishing of supplies of food, fuel and relief items which are soon to run out in several offices, most notably in Kilinochchi and Jaffna.

Encompassed within the access issue is the wider consideration of security, both for displaced people and staff. Internally displaced people are also becoming increasingly vulnerable as the conflict spreads, encroaching on areas previously deemed safe. The deteriorating security situation also leaves humanitarian staff in a vulnerable position and the 'humanitarian space' has

been squeezed to a considerable degree, as manifested most graphically by the killing of the 17 Action Contre la Faim staff in Muttur, in early August."

RI, 18 September 2006:

Humanitarian work and international humanitarian law in Sri Lanka are now under relentless attack from both parties to the conflict. Especially in the east and in the area around Jaffna, the LTTE is restricting humanitarian access. Their local cadres in the east have threatened Tamils who seek employment with international aid agencies. During the battle for Muttur, the LTTE held up fleeing civilians and hid in civilian locations, inviting damaging government shelling. As the residents of Muttur fled, the LTTE reneged on its promises of safe passage and targeted young Muslim men for execution.

As for the government, it is allowing the military in the east to harass and obstruct the work of international and local humanitarian aid organizations. The harassment consists of stopping the marked vehicles of aid organizations at numerous checkpoints and asking staff for individual and organizational work permits, neither of which is required under Sri Lankan government regulations; forcing the off-loading and inspection of humanitarian supplies; targeting aid workers of Tamil ethnicity in particular, blocking their passage through checkpoints and conducting strip searches.

As the Muttur executions demonstrate, local staff of international agencies are especially vulnerable. When there was a credible threat of an LTTE assault on Trincomalee in mid-August, virtually all international non-governmental organizations based there, an estimated 15 in all, evacuated their expatriates while leaving their local staff behind to continue operations, compounding the latter's isolation and vulnerability. The lack of credible government and international response to the murders has surely emboldened the combatants of both parties: killing Tamil and Muslim NGO personnel is a crime of no consequence. Impunity rules.

At the national level, the government is seeking to impose a tax on the expenditures of aid organizations, amounting to 0.9% of funds received for humanitarian purposes, and is cooperating with a Parliamentary study on the alleged misdeeds of international agencies. Prominent figures in the government and leaders of parties in the governing coalition routinely give public speeches blasting the conduct of international organizations in Sri Lanka, focusing on the failure to live up to commitments, especially in the tsunami response, over-expenditure on salaries and perks, corruption, and support for the LTTE.

Leaders of the aid community in Sri Lanka, including United Nations officials and directors of major local and international agencies, have been in frequent dialogue with senior Sri Lankan government officials, including President Mahinda Rajapakse himself, to seek an understanding of government concerns and an end to what appears to be a conscious campaign of harassment and intimidation. The aid community has received assurances of government respect for their integrity and professionalism and commitments to end the harassment. For example, the national Ministry of Defense has insisted in conversations with aid agency leaders that no instructions have been given to local commanders to ask for work permits at check points and that no special agency permit from Defense is required.

But the demands for such permits at the local level continue and the Ministry has not intervened directly with the unequivocal message that the practice needs to stop. The donor community's response to the disturbing assault on humanitarian work in Sri Lanka has been weak. Apparently the execution of 17 aid workers is not enough to get donor countries to move beyond issuing a few public pleas for the Sri Lankan government and the LTTE to return to the negotiating table and respect humanitarian principles. If there have been direct, personal, high-level interventions with the government and the LTTE, they have not been publicly visible. High-level public

engagement is essential to restore the morale and confidence of the aid community in Sri Lanka and, most importantly, the embattled civilians of northern and eastern Sri Lanka.

See also Human Rights Watch (list of sources), 19 September 2006, on "Ensuring Humanitarian Access" (p. 21 ff), and on "Ending Impunity" (p.51 ff)

See also Christian Science Monitor, 27 September 2006 (list of sources), on aid workers being intimidated by both the rebels and by government forces, the Sinhalese often perceiving the aid community as siding with the LTTE.

Sri Lanka



Humanitarian access to LTTE-held regions in north and east remain difficult (August 2005)

- National and international post-tsunami relief and reconstruction provisions to LTTE-held areas in north and east remain difficult.
- Volatile situation in the east makes working difficult for NGO

AFP, 3 August 2005:

"The tsunami was initially seen as uniting the government and Tamil Tiger rebels to work together to deliver aid to people affected by the worst natural disaster to hit the island but it has in fact deepened the divisions. Sri Lanka's Supreme Court last month virtually shot down a proposed joint mechanism by the two former warring parties to share part of the three billion dollars in aid promised by international donors.

Diplomatic sources said that [Norway] would try to salvage the tsunami joint mechanism to ensure that international donors could support the island's reconstruction effort fully.

The Colombo government needs the cooperation of the Tigers to carry out reconstruction work in the island's north-east, parts of which are held by the guerrillas. Some of the international donors also insist on a joint mechanism to deliver aid as they are unable to give money directly to the Tigers who are outlawed in several countries, including the US, Britain and India."

CHA situation report Eastern Province July 2005:

The Post-Tsunami agreement between government and LTTE was meant to be the tool for providing aid to LTTE-held areas. This agreement has been put on hold by the Sri Lanka Constitutional Court (see under Causes and Background).

"NGO activity has been disturbed due to the prevailing situation in Trincomalee. The temporary shelter activities will most probably end within two months. At the moment most of the agencies are involved in livelihood activities."

Jayatilaka and Muggah, FMR 20, May 2004:

"A third of the estimated 600,000 IDPs in Sri Lanka live in areas controlled by the Liberation Tigers of Tamil Elam (LTTE). Displaced people within these so-called 'un-cleared' or 'liberated areas' (terms used by the Sri Lankan government and the LTTE respectively) are at especial risk. Their situation highlights the difficulties of assessing protection and assistance in the context of conflict."

NATIONAL AND INTERNATIONAL RESPONSES

Government response delayed by multiple ministries and centralised decision-making (May 2008)

- A multiplicity of ministries and agencies with overlapping mandates has led to delayed responses, bureaucracy, lack of coordination and duplication
- Decisions made at the Colombo level are communicated to local actors with limited or no consultation taking place and are not always effectively implemented at the local level
- More can be done to empower local officials and civilian authorities
- A lack of comprehensive and uniform policies on issues such as compensation and assistance has led to ad hoc and piecemeal responses

CPA, December 2007:

“The main coordinating actor for human rights and humanitarian issues of the Government of Sri Lanka is the Minister of Disaster Management and Human Rights. There are also other actors that play a key role in relief, resettlement and reconstruction initiatives including the Ministry of Resettlement, Ministry of Nation Building, Ministry of Relief Services, National Human Rights Commission and Resettlement Authority to name a few. The multiplicity of ministries and agencies with overlapping mandates and duties at times lead to delayed responses, bureaucracy, lack of coordination and duplication. Parallel to this there is also centralised decision making in this regard, with many of the decision made in Colombo and then communicated to local actors with limited or no consultation taking place.

A positive development recently was the setting up of the Consultative Committee on Humanitarian Assistance (CCHA) which includes the Commissioner General of Essential Services, the Secretary to the Ministry of Foreign Affairs, the Secretary of Defense, the UN and a number of key Ambassadors. This forum has been a useful mechanism to raise issues and create a dialogue with the government actors and others. A criticism with the CCHA and other government forces is that there is often a significant time lag between commitments at highlevel meetings and implementation of those decisions on the ground. Further, critics have also pointed out that CCHA is being used as an excuse by the authorities to claim that issues are being addressed when in actual fact limited progress has been made in the ground with humanitarian work including access issue, movement of goods, visas and work permits.

The above issues and problems are not limited to relief, rehabilitation and reconstruction efforts but are a structural problem common to many areas. Therefore it is imperative that the Government takes the lead with the assistance of all other stakeholder in ensuring that there is strong rights based policy and legal framework which is implemented speedily and effectively.”

SRSG, May 2008:

“...Significant structural obstacles hinder the national response. First, there is evident confusion among responsible actors, as responsibilities are dispersed and accountability not clearly established. Second, policies on matters such as return and the emergency and development plans for the East have been made in Colombo, without consultation of the communities affected, and this appears to be general practice. Third, policy decisions taken in Colombo, such as those affecting access of NGOs, are not always effectively communicated and implemented at the local level, especially military authorities. The outcomes of the CCHA are not public, undermining

transparency and accountability. In addition, where plans have been adopted, more can be done to empower local actors, especially civilian authorities. Finally, the lack of comprehensive and uniform policies on key matters, particularly compensation and assistance, has led to ad hoc and piecemeal responses.”

International response to IDPs led by UNHCR (May 2008)

- UNHCR is the lead international agency for IDPs in Sri Lanka
- International agencies have not adopted the cluster approach although coordination has been divided between different UN agencies
- A protection working group in Colombo, chaired by UNHCR, provides a forum for addressing protection concerns, especially through joint advocacy

SRSG, May 2008:

“Pursuant to the Government’s request, UNHCR is the lead international agency for IDPs in Sri Lanka. For the conflict-displaced, UNHCR engages in contingency planning and emergency response and provides protection and humanitarian assistance. It is also implementing confidence-building and stabilization activities for all IDP communities, with an additional emphasis on the search for solutions for those in protracted displacement. International agencies have not adopted the cluster approach, although UNHCR coordinates efforts in the areas of protection, camp coordination and management (shelter), and non-food relief. UNICEF leads sectoral groups on water, sanitation, education and nutrition; WFP on logistics and food security; WHO on health; UNDP on early recovery; and OCHA supports coordination. At the national level, UNHCR chairs the IDP Protection Working Group. It has provided a forum for addressing protection concerns, particularly through joint advocacy efforts, including its *Study on Forced Displacement, Freedom of Movement, Return and Relocation*, adopted by the Inter-Agency Standing Committee (IASC). The study detailed specific incidents of forced displacement and forced return in 2006-2007, and made recommendations to all relevant actors based upon national and international legal norms. The IASC is a forum for overall coordination of the work of the humanitarian community, including contingency planning and fund-raising, and it has been an important platform for public advocacy on the protection of civilians, consultation of IDPs in the return process and the imperatives of humanitarian access and protection of humanitarian workers.”

National and international response (Special report, 2007)

The Ministry of Disaster Management, established in December 2005, and in 2006 renamed the Ministry of Disaster Management and Human Rights, is responsible for coordinating emergency operations in the areas under the government’s control.

The Minister chairs the Consultative Committee on Humanitarian Affairs (CCHA), a high-level coordinating and policy-making forum in which government officials and representatives of international agencies and bilateral donors can discuss issues of humanitarian assistance including access for agencies, delivery of essential goods and services, and security concerns.

Through the CCHA, the government confirmed in June 2007 that NGOs would be granted immediate access to areas of return. Despite subsequent requests by the UN Resident Coordinator/ Humanitarian Coordinator in Sri Lanka, little progress had been made on this issue by August 2007.

Following the early phases of return, the government considered several suggestions by the humanitarian community, such as providing notice to IDPs before return, and improving the arrangements for return. However, agencies continue to express their concerns to the Ministry over aspects of the return process.

In April 2006, the Ministry of Disaster Management and Human Rights, with the support of UNHCR, drafted detailed guidelines on “confidence building and stabilisation measures” for IDPs in the north and east. In October 2006, these were approved by the Inter-Ministerial Committee on Human Rights. Based on the guidelines and workshops, independent consultants prepared an action plan for their implementation, in order to improve people’s protection from displacement and during displacement, the provision of humanitarian assistance to IDPs and their return, resettlement and reintegration. While progress so far has been limited to the policy dialogue at the Colombo level, the UN’s Inter-Agency Standing Committee has expressed its hope that the government would implement the activities proposed in the action plan. (Inter-Agency Standing Committee, *Conflict-Related Internal Displacement in Sri Lanka: A Study on Forced Displacement, Freedom of Movement, Return and Relocation*, 15 July 2007, p.13)

Many international and national human rights organisations continue to call for an independent international human rights monitoring system in Sri Lanka, but there seems to be reluctance on the part of the government to permit such a presence. The legitimacy of the institutions created by the government to respond to the human rights violations, including those facing IDPs, have come under increased scrutiny.

The IDP Protection Unit of the Sri Lankan Human Rights Commission (HRC) has continued to undertake activities to assist IDPs, providing mobile services to issue new identity documents, and intervening on a number of occasions when local authorities were forcing IDPs to return, informing them that the HRC would take up these individual cases as fundamental human rights violations. As a result of these interventions, some individuals were allowed to remain. The HRC, an independent body established in 1997, is constrained by inadequate statutory powers and resources, relying as it does on part-time commissioners to deal with a huge backlog of cases. The unconstitutional 2006 appointment of HRC commissioners by Sri Lanka’s President has affected the public standing of the body (UN Country Team, *Sri Lanka: Common Country Assessment Part II*, October 2006, p.40) and raised questions about its independence and legitimacy.

A Presidential Commission of Inquiry has been set up to investigate 16 alleged serious violations of human rights, including the murder of the 17 *Action Contre la Faim* workers in August 2006. The Commission only started operations in May 2007 and appears to have made limited progress so far; its work is to be observed by an “International Independent Group of Eminent Persons”, a panel with a limited mandate to observe the workings of the Commission of Inquiry. The creation of the Group of Eminent Persons is widely believed to have stemmed from an effort by the President to prevent the deployment of international human rights monitors to his country. In June 2007, the Group of Eminent Persons released its first statement, faulting the Commission of Inquiry, saying that it had dawdled since its inception last November and that its independence had been compromised by interference from the attorney general’s office, which acts as the legal counsel to the Commission. (International Herald Tribune, *International panel faults commission investigating abuses in Sri Lanka*, 11 June 2007)

Government and LTTE assistance to IDPs and returnees (October 2006)

Government Response

The Government of Sri Lanka (<http://www.priu.gov.lk/index.html>) is home to three ministries having a direct bearing on assistance to IDPs:

the Ministry of Rehabilitation, Resettlement and Refugees (MRRR),
the Ministry of Eastern Development and
the Ministry for Assisting Vanni Rehabilitation

The MRRR is responsible for IDPs island-wide. However, the Ministry has channelled much of its rehabilitation, return and relocation programmes onto the Northern Province through a Rehabilitation and Reconstruction Authority of the North (RRAN) (CPA February 2003, pp.71-73). Durable solutions for Muslim IDPs from the Northern areas currently residing in Puttalam, Anuradhapura and Kurunegala in the Eastern and Vanni districts must be found through cooperation between the three ministries. A Rehabilitation, Resettlement and Refugees (RRR) secretariat has been established at the Prime Minister's Office.

The Task Force for Rebuilding the Nation (TAFREN) (<http://www.tafren.gov.lk/>) has been established by the Sri Lanka government in the wake of the tsunami disaster in order to establish damage assessment and an overall reconstruction plan. The Task Force for Relief (TAFOR) is charged with the construction of temporary shelter and housing for tsunami-IDPs, through the Transitional Accommodation Project (TAP).

On 29 December 2004, the government created the Centre for National Operations (<http://www.cnosrilanka.org/index.html>), tasked with the coordination of the tsunami relief operations.

Peace in Sri Lanka is the official website of the Government's Secretariat for coordinating the Peace Process (SCOPP)

The November 2005 presidential elections have prompted some restructuring in government agencies and ministries. In November 2005 the Reconstruction and Development Agency (RADA) was established, combining TAFREN and TAFOR into one agency responsible for the reconstruction and development activities in post-tsunami and post-conflict areas. At the same time, two new ministries were created, the Ministry of Resettlement and the Ministry of Nation Building and Development. All those new entities should follow a coherent strategy with regard to both conflict- and tsunami-displacement, which is not always translated into effective action on the ground (AI, June 2006, p.5).

Response in LTTE-held areas

AI, June 2006, p.5, 6:

"In the LTTE-controlled areas there are several entities that are involved in relief, rehabilitation and reconstruction efforts. The Planning and Development Secretariat (PDS), is a branch of the LTTE's civil administrative structure that coordinates all humanitarian planning and development in the LTTE-controlled areas and in the northeast as a whole. The Tamils Rehabilitation Organization (TRO) is a humanitarian organization that has been working in the northeast for over 20 years. It is a registered charity with the Government of Sri Lanka. The Centre for Women's Development and Rehabilitation, the Economic Consultancy House are among NGOs and independent bodies registered with the government and involved in rehabilitation and reconstruction efforts."

An overview of humanitarian and development assistance projects by the LTTE and local NGOs in LTTE-controlled areas can be found at the [webpage](#) of the LTTE Peace Secretariat.

In 2003, the government and the LTTE installed the Sub Committee on Immediate Humanitarian and Rehabilitation Needs in the North-East (SIHRN). Before the SIHRN could start real reconstruction projects, the LTTE retracted from the committee, along with leaving the peace talks table. The suspension of the SIHRN has contributed to stalling most of the rehabilitation activities in the North-East. (Jayasuriya, Sunday Observer, 8 May 2005 This includes the functioning of the North East Reconstruction Fund (NERF), established in February 2003 by the World Bank and SIHRN, and intended to finance the resettlement of IDPs.) In replacement of the SIHRN, the LTTE proposed to start negotiations on Interim Self Governing Authority (ISGA). The inability of both parties to advance on that subject contributed to the current stalemate of the peace process. The P-TOMS agreement between the government and LTTE raised hopes of a renewed attempt for collaboration in the distribution of reconstruction aid. At the point of writing, the future of the P-TOMS remained unclear, after its implementation was suspended by the Sri Lanka Constitutional Court. A ruling was expected to be issued on 12 September 2005.

While UN agencies maintain that the central barrier to effective return or resettlement of conflict-displaced people is a lack of political will, the Sri Lankan government says that it is a lack of international funding which inhibits the pursuit of durable solutions to Sri Lanka's conflict displacement. Also, UN agencies said in 2005 that the government approach to return and resettlement was dealt with by different agencies, which made the approach less coherent and return less sustainable. "

Grave human rights situation

ACHR, 25 October 2006:

"Sri Lanka's criminal investigation system has failed to deal with even simple crimes. There is a national distrust of this system by everyone. More serious crimes, like the recent assassination of 17 ACF staff, have not been properly investigated. Human rights organisations ask for allowing an international independent human rights monitoring body into Sri Lanka. So far, the Sri Lankan government has refused to move in that direction."

International presence and coordination with national authorities

Issues of access and staff security

The international humanitarian community is facing considerable constraints regarding access to displaced population and staff security. The UN considered leaving the country after the GoSL did not respond proactively to the request to enquire the assassination of 17 staff of Action Contre la Faim, in August 2006.

Another serious impediment to timely and effective response is the government regulation regarding NGO certification and documentation.

The UN Country Team (UNCT) in Sri Lanka consists of: [UNHCR](#), [UNDP](#), [UNICEF](#), [UNFPA](#), [UNESCO](#), [WHO](#), [WFP](#), [FAO](#), [ILO](#), IOM, [World Bank](#), [IMF](#) and the [Asian Development Bank](#) (ADB). [ICRC](#) also has several offices in Sri Lanka.

There are several mechanisms for co-ordination of assistance activities – all concerning the shorter or longer-term needs of internally displaced. Where several government entities and/or UN agencies are involved in the same project or topic, the prioritization and the assignment of

detailed responsibilities is managed by the Prime Minister's Office. A UN-RC co-ordination unit organizes regular co-ordination meetings between ministries, donor representatives and NGOs.

Until the end of 2004, there was no formally appointed Humanitarian Coordinator in Sri Lanka with an overall responsibility for IDPs. UNHCR was appointed by the Government to be the lead-agency in the provision of protection, relief items and emergency shelter to displaced families returning to their home areas. A UN consolidated appeal process for Sri Lanka has never been undertaken, partly because the government did not want to internationalize the conflict.

However, after the tsunami, the Resident Coordinator was appointed Humanitarian Coordinator and a UN Flash Appeal for the Indian Ocean Earthquake-Tsunami was launched. The April 2005 mid-term review considered the financial needs throughout 2005 largely met. It announced the drafting of a joint UN-Government Transitional Strategy from relief to recovery, which should serve as a programming, coordination and fundraising instrument. This reconstruction exercise is to include programmes not directly linked to tsunami recovery.

In line with the Humanitarian Reform Process, Sri Lanka has set up, in 2006, an Inter Agency Standing Committee (IASC) which includes UN agencies and some national and international NGOs.

Protection coordination

Within the framework of the September 2006 Common Humanitarian Action Plan (CHAP), UNHCR and strategic humanitarian partners developed a coordinated approach towards providing IDP protection and respect of human rights (NRC, 11 September 2006). The objective is to improve the response through effective displacement monitoring and providing information to IDPs. The success of this multi-disciplinary (legal and humanitarian), interagency project will depend on local, national and international actors' collaboration.

The CHAP itself is meant to bridge the funding gap from September to December 2006 and focuses on humanitarian needs of the newly displaced and other conflict-affected populations (UN OCHA, 30 August 2006).

NGOs

A list of NGOs delivering humanitarian assistance in Sri Lanka is available through the membership list of the [Consortium of Humanitarian Agencies](#) (CHA). The CHA Monthly Situation Reports of the North and East give a comprehensive overview of the most recent displacement situation and of protection concerns and activities. After the tsunami, the [Humanitarian Information Centre for Sri Lanka](#) was set up. It provides an sectoral overview of NGO relief, rehabilitation and reconstruction activities. The CHA [Knowledge Center has also been in the process of establishing an](#) NGO directory, including information about ongoing activities. Activities and contact details for the Sri Lanka Red Cross are available at the internet page of the [IFRC](#).

Donors

[Japan](#) is Sri Lanka's largest donor government, followed by the [ADB](#), the [World Bank](#), [Germany](#), the United States ([USAID](#)) and the EU. The World Bank and the [IMF](#) also provides multi-year loans to support the Government of Sri Lanka's poverty reduction strategy and macroeconomic reforms. In a May 2005 donor conference Almost all donors provide assistance related to peace building and humanitarian assistance. Japan, the World Bank, and the ADB provide loans and grants in the areas of infrastructure, reconstruction and rehabilitation, industrial development, agriculture, health, human resources, transportation, and power sector reform. In the area of

democracy and good governance, the World Bank has a project supporting legal reform. Most donor governments support projects related to conflict, human rights, civil society and media development.

Coordination of post-tsunami reconstruction

Some \$3 billion of international aid were pledged in May 2005 for post-tsunami reconstruction via a government-LTTE joint mechanism. This money can currently (August 2005) not be spent on LTTE-held areas, due to the fact that the post-tsunami aid-sharing agreement between the government and the LTTE, signed on June 26, 2005, was put on hold by the Sri Lanka Constitutional Court.

After the Tsunami, the international relief community set up websites to coordinate the relief and reconstruction process, as a considerable number of new agencies had poured into the country. Comprehensive websites are: [Humanitarian Information Centre for Sri Lanka](#) (HIC) and [Recoverlanka](#).

A UN Inter-Agency IDP Working Group, (see [reports](#)), meets periodically in Colombo to discuss and coordinate responses to IDP returnees with national authorities. Currently (Summer 2005), the IAWG is working on a paper outlining disparities in aid distribution among different groups of IDPs and advising on a list of criteria to assure equal treatment of IDP populations.

The MRRR has set up several reconstruction programmes which are (partially) financed by international institutions:

North-East Housing Reconstruction Programme (NEHRP), together with the World Bank, running until 2009,

North-East Emergency Reconstruction Programme (NEERP), funded by World Bank and EU, running until end 2005, and which manages the Unified Assistance Scheme (UAS)

North-East Community Restoration and Development Project (NECORD), funded by the World Bank, running from 2002 to 2006,

Wide cooperation between the government and international organizations is taking place both related to the demobilization and reintegrating of child soldiers: the [Action Plan for Children Affected by War in Armed Conflict](#) and [Mine action](#).

Since June 2004, mainstreaming of human rights is also reinforced by a Senior Human Rights Advisor who works with the Resident Coordinator and UN agencies to advise and support strategies to protect human rights and build the human rights capacity of local institutions, civil society and UN itself.

[UNIFEM](#) provides an overview of the UNCT gender programming in Sri Lanka as well as an overview of women's peace-building activities. There are also Sri Lankan women's organizations such as the [Sri Lanka Women's NGO forum](#)

The tsunami has thrown back reconstruction efforts in the war-affected north and east, including a 4Rs strategy developed by World Bank, UNHCR and UNDP, and for which Sri Lanka is one of the four pilot countries. The Multilateral Group, consisting of the UN, ICRC, IOM, and the financial institutions, has developed a detailed joint plan of action. To read more about the *Repatriation, Reconciliation, Recovery and Reconstruction (4Rs) concept*, see the [report](#) by UNDG-ECHA Working Group.

Reference to the Guiding Principles on Internal Displacement

Known references to the Guiding Principles as of April 2004

- Reference to the Guiding Principles in the national legislation
- Other References to the Guiding Principles (in chronological order)
- Availability of the Guiding Principles in local languages
- Training on the Guiding Principles

Reference to the Guiding Principles in the national legislation

None

Other References to the Guiding Principles (in chronological order)

"The Resident Representatives of UNDP, UNHCR, UNICEF and WFP today [1 April 2004] expressed their joint concern over recent reports of the displacement of northern Tamils from Batticaloa District, either as a result of fear of persecution, or as a result of threats. These threats include those reportedly directed at businessmen and included in a flyer that ran in the local Tamil Alai newspaper published on 31 March 2004. This at a time when so many other persons displaced by two decades of conflict have seized the opportunity to return to their homes - some 356,000 people since the ceasefire agreement was signed in February 2002.

All citizens of Sri Lanka, including residents of Batticaloa District, have a right to life, liberty and security of person under Article 3 of the Universal Declaration of Human Rights, and a right to own property under Article 17. The UN agencies strongly condemned any abuse of these rights, which are also in contravention of the United Nations Guiding Principles on Internal Displacement, and urged the authorities of all parties to ensure protection, to hold accountable anyone who violates those rights, and to maintain law and order."

Guiding Principles on Internal Displacement at the foundation of UNHCR's protection programme "14. Over the past four years, UNHCR staff in Sri Lanka have engaged in a rigorous process of analysis, self-evaluation, consultation and planning, making considerable effort to re-orientate the programme so as to focus more directly on the organisation's statutory tasks of protection and the pursuit of durable solutions for those in its care. They have developed a programme which is clear in its objectives and strategy, as set out in the 2001 Country Strategy for Sri Lanka and the 2002 Country Operations Plan. A central plank of this is the use of the UN SG's Representative on Internally Displaced Persons' Guiding Principles on Internal Displacement as the foundation for the protection strategy of the programme.

[...]

21. The UNHCR programme in Sri Lanka is rigorously based upon UNHCR's statutory tasks of protection and the pursuit of solutions. UNHCR's systematic use of the Guiding Principles as the basis for its protection, advocacy, training, planning, programming, project implementation, monitoring and situational analysis in Sri Lanka is perhaps unique in a situation of internal displacement worldwide. In particular, UNHCR Sri Lanka has re-orientated its approach to microprojects, ensuring that protection, social and economic rights are fully taken into account in the process of project identification, design and implementation. All implementing partners and field staff questioned had a clear idea of their individual roles in the wider protection strategy and were also well aware of the importance of 'protection by presence'. They were all familiar and comfortable with the Guiding Principles and their practical application. This may well be the result of UNHCR Sri Lanka's efforts, in association with the Consortium of Humanitarian Agencies

(CHA) in Sri Lanka, to develop a 'toolkit' guide for humanitarian personnel, offering practical guidance on the implementation of the Guiding Principles. All project proposals have to be drawn up with specific reference to the Guiding Principles, which also greatly increased field workers' familiarity with them." (UNHCR May 2002, pp. 7-9)

Sources: UNHCR

Date: May 2002

Documents:

UNHCR's programme for internally displaced persons in Sri Lanka, Report of a joint appraisal mission by the UK Department for International Development and UNHCR, Evaluation and Policy Analysis Unit [Internet]

Availability of the Guiding Principles in local languages

The Guiding Principles have been translated into Tamil and Sinhala by the Office for the Coordination of Humanitarian Affairs (OCHA)

Date: 2002

Documents:

UN Guiding Principles on Internal Displacement, Tamil [Internet]

UN Guiding Principles on Internal Displacement, Sinhala [Internet]

Training on the Guiding Principles

CHA/Brookings-CUNY Project/UN Toolkit Project: The Guiding Principles on Internal Displacement Project also known as the 'Toolkit Project' was launched in 2000 by the Consortium of Humanitarian Agencies (CHA) with the aim of adopting a set of universal standards in core areas of humanitarian protection and assistance for Internally Displaced Persons in Sri Lanka. The Toolkit highlights fundamental areas of importance and attempts to put across a structured and practical approach to the issues.

The Toolkit is a compilation of extracts from:

- 1) The Guiding Principles on Internal Displacement, presented in 1998 to the United Nations by the Representative of the Secretary-General on Internally Displaced Persons, Francis M. Deng ;
- 2) Modules on Internal Displacement, developed by the Norwegian Refugee Council (NRC) and the Office of the UN High Commissioner for Human Rights (OHCHR), based on the Guiding Principles on Internal Displacement;
- 3) Guiding Principles on Internal Displacement: Annotations, by Walter Kalin (American Society of International Law and Brookings Institution Project on Internal Displacement, 2000); and
- 4) Handbook for Applying the Guiding Principles on Internal Displacement (UN Office for the Coordination of Humanitarian Affairs (OCHA) and The Brookings Institution Project on Internal Displacement, November 1999).

During 2002, the Consortium of Humanitarian Agencies, with financial support from the Brookings – CUNY (present Brookings – SAIS) Project on Internal Displacement, conducted a series of Training and Assessment Workshops in Trincomalee (25 July 2002), Vavuniya (Aug

2002), Mullathivue, Killinochchi and Jaffna (13-14-15 October 2002) and Mannar, Batticaloa and Ampara (3, 5, 8 November 2002)
Sources: CHA/Brookings-CUNY Project/UN
Date: 2001
Documents: "What You Can Do", UN Guiding Principles on Internal Displacement, A Toolkit for Dissemination, Advocacy and Analysis, pdf 1 Mb [Internet]
<u>Training Reports</u> Training and Assessment Workshop Report – Trincomalee, Sri Lanka, CHA, July 2002 [Internet] Training and Assessment Workshop Report – Vavuniya District, Sri Lanka, CHA, August 2002 [Internet] Training and Assessment Workshop Report for 3 programmes in Mullathivue, Killinochchi and Jaffna, CHA, October 2002 [Internet] Training and Assessment Workshop Report for 3 programmes in Mannar, Batticaloa and Ampara, CHA, November 2002 [Internet]

Recommendations

Recommendations by RI on equal response to conflict victims as to tsunami victims

The contrast between the instant mobilization on behalf of tsunami survivors and the historic neglect of the conflict-displaced has been too great for the Sri Lankan Government and citizens, as well as the donor community, to ignore. Some Government officials have expressed a renewed determination to address the terrible conditions in the welfare centers through resettlement and relocation programs. Senior staff of the Office of the UN High Commissioner for Refugees (UNHCR) in Colombo told RI that they will be seeking Government approval and donor funding for a program to conduct a census among the remaining welfare center residents and relocate the most vulnerable by the end of 2006. The European Commission humanitarian agency, ECHO, and the U.S. Agency for International Development have both endorsed the concept of allowing tsunami funds to be used in "affected districts," which would allow partner agencies to respond to displacement throughout a given district regardless of the original cause. Non-governmental organizations should apply the concept of affected districts to their ample private funds as well.

If implemented, these measures will mitigate some of the worst aspects of the neglect of the conflict-displaced, but the core issue impeding comprehensive action is the lack of progress towards an overall peace settlement. The signs are deeply discouraging. The eastern districts of Batticaloa and Trincomalee are more militarized than they were in March 2001, prior to the ceasefire. In early September, Foreign Minister Lakshman Kadirgamar was assassinated in Colombo, an act that had all the hallmarks of an LTTE operation, though they have denied responsibility. The LTTE has closed its public offices in government-controlled districts in the east and withdrawn their officials. Presidential elections are scheduled for November 22 and the ruling party candidate, current Prime Minister Mahinda Rajapahse, is running in an alliance with two Sinhala nationalist parties that have vowed to abrogate the agreement with the LTTE on the

sharing of international tsunami funding while expressing deep skepticism about the utility of further peace negotiations. In this context, a comprehensive reformulation of the donor strategy for Sri Lanka, as embodied in the agreements of the Tokyo Donor Conference, is not possible. Refugees International therefore recommends that:

Donors clarify to their implementing partners that tsunami funds may be used throughout tsunami-affected districts and partner agencies take advantage of this flexibility to respond rapidly to the needs of conflict-displaced persons;

Non-governmental humanitarian agencies begin sensitizing their private donors about the need to assist conflict-affected displaced persons and then expand programs for them;

Donors increase their support to UNHCR to continue their assistance to conflict-displaced;

The Government of Sri Lanka and UNHCR agree on a plan for the relocation of the most vulnerable individuals from the welfare centers and complete the relocation process by the end of 2006 at the latest;

Donors increase their support for other programs benefiting conflict-displaced persons who have returned to their home communities, focusing on housing and livelihood;

The Secretary-General's Special Envoy for Tsunami Recovery highlight the issue of the needs of conflict-displaced persons by visiting a welfare center on his next trip to Sri Lanka.

Recommendations by the IDP Unit (April 2002)

IDP Unit April 2002, p. 6:

Recommendations regarding national policies and practices:

The MRRR, and its counterpart authorities at the district and local levels, need to have their capacities strengthened if they are to effectively address the needs likely to arise as the peace process gains momentum. UNHCR's capacity-building of the ministry should be supplemented by other partners, including those addressing community development and economic recovery. Donors must be encouraged to support this.

The international community should assist the MRRR in its objectives to relocate people from welfare centers, providing that IDPs move voluntarily and that provisions are made for the attainment of basic self-reliance.

It is important that members of the IDP community, especially those representing women and children, be given adequate opportunity for inputs into the design of the MRRR's IDP policy. Further, a public awareness campaign should be undertaken to ensure that all IDPs participate in the registration so that an accurate picture of the IDP situation is obtained to underpin future planning."

IDP Unit April 2002, pp. 8-9:

Recommendations regarding Protection:

"Projects and activities aimed at fostering reconciliation and peaceful co-existence between the different ethnic groups must be conceived and decisively supported.

The international community, as part of its overall engagement with the LTTE, must mount and sustain pressure on the LTTE to allow IDPs to leave the Vanni to return or relocate to where ever they wish to.

The GSL must be strongly encouraged to sign the Ottawa Land Mine Treaty in order to gain further support by the donor community for de-mining. This should be accompanied by a clear commitment by both the SLA and the LTTE to stop laying mines and to cooperate in the de-mining process, including the provision of all relevant maps.

Full commitment to the agreement not to conscript children is required from both parties to the conflict. This commitment must be accompanied by the release of those conscripted prior to the cease-fire. Similarly, cases of persons previously detained under the Prevention of Terrorism Act should be reviewed and, where appropriate, detainees be released.

Particular efforts need to be made to address the needs of vulnerable women, especially those who are heads of households, in order to enhance their capacity to be self-sufficient. Similarly, specific activities to protect and assist unaccompanied or otherwise vulnerable minors need to be undertaken.

Measures to legitimize and capacitate the police and judicial structures in LTTE-controlled areas should be initiated in tandem with the establishment of the Interim Council so as to ensure that effective protection and conflict resolution mechanisms are in place.

Effective monitoring mechanisms and forceful intervention when and as required, are necessary to ensure respect of basic human rights, including the voluntary nature of return movements. The establishment of an office of the UNHCHR, working in conjunction with the proposed Interim Council that will administer the LTTE-controlled areas, would be a much valued development."

IDP Unit April 2002, p. 12:

Recommendations regarding durable solutions:

"Given the dearth of national resources available at this time for sustainable interventions for rehabilitation, reintegration and recovery, the UN system must work with the donor community to ensure that investment in such activities is recognized as an integral part of a peace building process and cannot wait until a peace agreement is concluded.

The development actors should make every effort to include relocated and returned IDPs into their area-based programming in order to accelerate their full integration.

Psychosocial support should be increased to especially vulnerable welfare centre populations, especially women-headed households, to build confidence and reduce dependency in order to achieve self-reliance once relocated or returned.

Because the pace of de-mining invariably lags behind the rate at which IDPs return, it is essential that mine-awareness interventions in at-risk areas of return be heightened, especially among children, and that minefields within areas of return be clearly marked with durable markers.

A detailed analysis is required of the nature and extent of problems likely to be faced in recovering land and property in order to establish adequate and timely mechanisms to deal with this issue. Also, an amendment is required to the ten years land tenure Act to protect IDPs who have been displaced for longer periods from being unable to recover their land and houses.

Since many IDPs want to return to land currently designated as SLA high security zone, the GSL must be encouraged to accelerate its release of such lands for returnees. Likewise, security restrictions on offshore fisheries should be regularly reviewed in order to promote the re-establishment of sustainable livelihoods for returning fishermen.

As the GSL policy transitions from humanitarian support for IDPs to medium-term relocation or return, it is incumbent upon the international community to also make this transition in their support of national authorities, especially at the district and local levels."

IDP Unit April 2002, pp. 14-15:
Recommendations regarding coordination

"An IDP Working Group should be entrenched under the umbrella of the RC charged with an oversight function of the UN system's and its partners' response to IDP needs. Such team should include the ICRC, representatives of relevant non-IASC actors, and appropriate national counterparts.

The Country Team assists, where possible, UNHCR's efforts in capacitating the MRRR and its district-level counterparts, as well as with strengthening inter-ministerial coordination mechanisms, and that the IDP Unit provides support for such training.

The donor community must be encouraged to also coordinate its support to ensure that IDP needs are addressed in a comprehensive and holistic manner.

UNDP should make every effort to strengthen its field presence in war-affected areas. Where possible, common premises should be sought with other agencies in order to facilitate coordination and realize economies.

The Country Team and donors should work towards adapting existing trust fund arrangements to facilitate rapid disbursement of resources for urgent IDP needs.

That information sharing mechanisms be strengthened between all actors and between HQs and the field."

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